

Whangarei District Council Meeting

Agenda

Date: Thursday, 25 July, 2024

Time: 9:00 am

Location: Civic Centre, Te Iwitihi, 9 Rust Avenue

Elected Members: His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

1. Karakia/Prayer	
2. Declarations of Interest / Take Whaipānga	
3. Apologies / Kore Tae Mai	
4. Public Forum / Huihuinga-a-tangata	5
5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti	
5.1 Minutes Whangarei District Council Meeting held on 27 June 2024	7
5.2 Minutes Whangarei District Council 3 July 2024	17
5.3 Minutes Whangarei District Council Meeting 16 July 2024	21
6. Decision Reports / Whakatau Rīpoata	
6.1 Exemptions for Council Controlled Organisations to 25 August 2027	29
6.2 Temporary Road Closure – Northland Car Club Sep and Oct 2024	31
6.3 Temporary Road Closure - International Rally of Whangarei 2024	41
6.4 Whangārei Future Development Strategy - Adoption of the consultation document and supporting documents	71
6.5 Regional Economic Development CCO – Northland Inc. Shareholding	235
7. Information Reports / Ngā Pūrongo Kōrero	
7.1 Administrative Matter - Correction to Council Minutes	291
8. Public Excluded Business / Rāhui Tangata	
8.1 Confidential Minutes Whangarei District Council Meeting held on 27 June 2024	

- 8.2 Confidential Minutes Whangarei District Council 3 July 2024
- 8.3 Springs Flat Roundabout - Procurement Plan
- 8.4 Council approval sought for Extension of Wastewater and Stormwater Operations and Maintenance Contract – CON16080
- 8.5 Airport Noise Committee Community Representative
- 8.6 Northland Events Centre (2021) Trust Reappointments and Resignations
- 8.7 Future Use Old Municipal Building July
- 8.8 Saorsa Retirement Village Trust - Capital Grant request

9. Closure of Meeting / Te katinga o te Hui

Recommendations contained in the Council agenda may not be the final decision of Council.

Please refer to Council minutes for final resolution.

4 Public Forum

Meeting: Whangarei District Council
Date of meeting: 25 July 2024
Reporting officer: Carolyne Brindle (Senior Democracy Advisor)

1 Purpose / Te Kaupapa

To afford members of the community an opportunity to speak to Council and to report on matters raised at public forums where appropriate.

2 Summary

Standing Orders allow for a period of up to 30 minutes to be set aside for a public forum at the commencement of each monthly council meeting.

The time allowed for each speaker is 5 minutes.

Members of the public who wish to participate should send a written application, setting out the subject matter and the names of the speakers, to the Chief Executive at least 2 clear working days before the day of the meeting.

Speakers

No applications to speak had been received at the time of the agenda closure.

Response to previous speakers

Speakers	Topic
Fiona Green	Crime Prevention matters.
<i>Response</i> Thank you for your submission to Council on Crime Prevention Having safe communities is a priority for Council, however, we do have limited funding and resources available in this area. We appreciate your acknowledgement of the success of the CitySafe Community Officer programme, which is a priority for Council, along with maintaining the extensive CCTV Network in the inner city. Our Community Development Advisors engage and collaborate with local communities, each of which have identified differing priorities for their respective communities, engaging with community murals, enhancing parks for safer environment and partnering with community events to promote community cohesions, such as the school pool community partnerships to keep young people occupied and safe. They also consult with our Youth, Positive Aging and Disability advisory groups to create supportive environments and to consult on a diverse range of topics relating to local government for each sector.	

Our Central Library actively promotes youth activities and Council actively supports the Whangarei Youth Space and we also partner with the Multi-Ethnic Collective to consult with, and support, our migrant communities.

Council funding to address social inequality has been focused around engaging with local hapu and iwi and seeking their priorities.

Council does not fund Neighbourhood Support and your comments about the state of Whangarei Neighbourhood Support, along with your desire to engage in crime prevention initiatives have been referred to Police, who are the national partners with this organisation, and the Police have the mandate to lead crime prevention initiatives, and are partners with Council on the CitySafe programme.

Item 5.1
Whangarei District Council Meeting Minutes

Date: Thursday, 27 June, 2024
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
 Cr Gavin Benney
 Cr Phil Halse
 Cr Deborah Harding
 Cr Patrick Holmes
 Cr Scott McKenzie
 Cr Marie Olsen
 Cr Carol Peters
 Cr Simon Reid
 Cr Phoenix Ruka
 Cr Paul Yovich (Teams)

Not in Attendance

Cr Ken Couper
 Cr Nicholas Connop
 Cr Jayne Golightly

Scribe

D.Garner (Democracy Adviser)

Administrative matters

- Meeting livestreamed
- Withdrawn – Confidential Item 8.3 - Future use of the Old Municipal Building
- Supplementary reports:
 - 4.1 Public Forum speaker

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a prayer.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made.

3. Apologies / Kore Tae Mai

Cr's Ken Couper and Jayne Golightly (absent) and Nicholas Connop (late arrival).

Moved By Cr Deborah Harding

Seconded By Cr Gavin Benney

That the apologies be sustained.

Carried

4. Public Forum / Huihuinga-a-tangata

4.1 Public Forum - June 2024

Fiona Green - Crime Prevention Matters.

5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held 23 May 2024

Moved By Cr Carol Peters

Seconded By Cr Patrick Holmes

That the minutes of the Whangarei District Council meeting held Thursday 23 May 2024, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting, subject to the following correction: Refer item 1.4 of the confidential agenda – correction of Division column from ‘Abstain’ to ‘Against.’

Carried

5.2 Minutes Extra ordinary Whangarei District Council meeting 29 May 2024

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the minutes of the Extra ordinary Whangarei District Council meeting held Wednesday 29 May 2024, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting, subject to the following corrections:

Refer item 5.2, page 21 typographical error ‘Cr Simond Reid’ corrected to ‘Cr Simon Reid.’

Refer item 5.2, page 32 Procedural motion, typographical error ‘6 to 6’ corrected to ‘5 to 6.’

Carried

5.3 Minutes Whangarei District Council 18 June 2024

Moved By Cr Marie Olsen

Seconded By Cr Carol Peters

That the minutes of the Whangarei District Council meeting held Tuesday 18 June 2024, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Information Reports / Ngā Pūrongo Kōrero

6.1 Civic Centre Project Recognition

Moved By Cr Carol Peters

Seconded By Cr Scott McKenzie

1. That Council notes the positive recognition that Te Iwitahi has received.
2. That Council shows on public display the awards credited to the building and thank the personnel involved.

Carried

Cr's Simon Reid and Paul Yovich abstained from voting on Item 6.1.

6.2 Water Supply Fluoridation – Progress Update June

Moved By Cr Gavin Benney

Seconded By Cr Simon Reid

That the Council notes:

1. That the dates for completion of the fluoridation work at the Whau Valley, Ruddells, Ruakaka and Ahuroa water treatment plants has been pushed back until 28th March 2025.
2. That to meet the completion date fluoride will be added to these water supplies from the last week in February 2025.

Carried

7. Decision Reports / Whakatau Rīpoata

7.1 Northland Forward Together - Revised strategic collaboration document

Moved By Cr Carol Peters

Seconded By Cr Deborah Harding

That the Council:

1. Notes the report.

2. Adopt *Northland Forward Together I Te Taitokerau Kōkiri Ngātahi* as the shared strategic collaboration document for Northland Local Government (Attachment 1).
3. Approve His Worship the Mayor Vince Cocurullo to sign *Northland Forward Together I Te Taitokerau Kōkiri Ngātahi*.

Carried

7.2 Local Water Done Well - Overview of the Local Government (Water Services Preliminary Agreements) Bill

Moved By Cr Scott McKenzie

Seconded By Cr Simon Reid

That the Council:

1. Notes the report;
2. Notes information regarding the Local Government (Water Services Preliminary Arrangements) Bill, and the key principles of Local Water Done Well;
3. Supports the overall direction of Council individually, and jointly with other councils investigating service delivery options that may meet the overall principles of Local Water Done Well;
4. Supports regional collaboration with this initiative through the Mayoral Forum, with regular reporting to Council.

Carried

7.3 2024 Rates Remission and Postponement and Early Payment of Rates Policies

Moved By Cr Simon Reid

Seconded By Cr Patrick Holmes

That Council adopts the rates remission and postponement policy, as required under Sections 85-90 and 109-110 of the Local Government (Rating) Act 2002 and Schedule 11 of the Local Government Act 2002; and the early payment of rates policy, as required under Section 55 of the Local Government (Rating) Act 2002.

Carried

7.4 2024 Significance and Engagement Policy Adoption

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the Council:

1. Adopts the revised Significance and Engagement Policy (Attachment 1), to replace the Council's existing policy.
2. Delegates to the Chief Executive the ability to make minor editorial changes to the revised Significance and Engagement Policy, if required.

Carried

7.5 2024-25 Fees and Charges

Moved By His Worship the Mayor

Seconded By Cr Marie Olsen

That Whangarei District Council:

- a. Adopt the fees and charges listed in **Table A**, as follows and as per attachment 1: *Statement of Proposal: Fees and Charges 2024-25*.

These fees were consulted on and deliberated as part of the 2024-34 Long Term Plan process, as required under the Special Consultative procedure under the Local Government Act 2002.

Table A: 2024-25 Fees and charges subject to the Special Consultative Procedure

	Refer Statement of Proposal
Bylaw Enforcement	Page 6
Drainage (Wastewater and Trade Waste)	Page 3-5
Food Premises	Page 7-9
Gambling and Racing Act	Page 10
Health Act Registered Premises	Page 11-12
Public Places Bylaw	Page 12
Resource Management Act Resource Management Administrative charges Council Professional Fees Monitoring and Land Use District Plan/Private Plan Changes Abatement notices	Page 13-22
Rubbish Disposal	Page 22-24
Water Supply	Page 25-27

- b. Authorises the Chief Executive to make minor amendments, drafting, typographical or presentation corrections necessary to the 2024-2025 Fees and Charges document.

Carried

7.6 Adoption of the Treasury Risk Management Policy 2024 (including the Liability Management Policy and Investment Policy)

Moved By Cr Patrick Holmes

Seconded By Cr Deborah Harding

That the Council adopts the Treasury Risk Management Policy which includes:

- a. The Liability Management Policy
- b. The Investment Policy.

Carried

7.7 Easter Sunday Shop Trading Policy - Readoption

Moved By Cr Gavin Benney

Seconded By Cr Simon Reid

That Council:

- 1. Continues the Easter Sunday Shop Trading Policy (the Policy, Attachment 1) without amendment.
- 2. Authorises the Chief Executive to approve any necessary minor drafting or presentation amendments to the Policy to correct errors or omissions, or to reflect decisions made by Council at this meeting, prior to final publication.

Carried

Cr Carol Peters requested her vote against be recorded.

7.8 Psychoactive Substances Policy - Revocation

Moved By Cr Scott McKenzie

Seconded By Cr Carol Peters

That Council revokes the Psychoactive Substances Policy (Attachment 1) with effect from 28 June 2024.

Carried

Cr Paul Yovich left the meeting at 9:48am during discussion on Item 7.8.

7.9 Te Tai Tokerau Regional Accessibility Strategy

Moved By Cr Carol Peters

Seconded By Cr Phoenix Ruka

That the Council:

1. Receives the Te Tai Tokerau Regional Accessibility Strategy report.
2. Adopts the Te Tai Tokerau Regional Accessibility Strategy, a joint approach to accessibility developed by the Far North, Kaipara, Whangarei District Council's and the Northland Regional Council.
3. Directs staff to develop an implementation plan specific to Whangarei District Council, that maps out actions within the strategy.

Carried

7.10 Adoption of the Parua Bay and Waipu Placemaking Plans

Moved By Cr Patrick Holmes

Seconded By Cr Simon Reid

That the Council:

1. Adopts the Parua Bay Placemaking Plan 2024 (Attachment 1).
2. Adopts the Waipu Placemaking Plan 2024 (Attachment 2).
3. Authorises the Chief Executive to make any minor amendments to the Parua Bay and Waipu Placemaking Plans prior to publication.

Carried

7.11 Northland Event Centre (2021) Roof Replacement Options

Moved By Cr Carol Peters

Seconded By Cr Gavin Benney

That the Council:

1. Receives the report Northland Events Centre Roof Replacement Options.
2. Directs staff to proceed with option 3 which proposes a mono-pitch structure, with the advantage of a reduction in construction costs, potential for increased Heating, Ventilation and Air Conditioning (HVAC) efficiency and remains true to the cultural narrative.

3. Approve staff to develop a Procurement plan for option 3.

Amendment

Moved By Cr Phil Halse

Seconded By Cr Simon Reid

That the Council:

1. Receives the report Northland Events Centre Roof Replacement Options.
2. Directs staff to proceed with option 3 which proposes a mono-pitch structure, with the advantage of a reduction in construction costs, potential for increased Heating, Ventilation and Air Conditioning (HVAC) efficiency and remains true to the cultural narrative.
3. Approve staff to develop a Procurement plan for option 3.
4. That the Whangārei District Council caps the total spend of the project at \$10.2 million.

On the amendment being put Cr Phil Halse called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich			X
Results	10	0	1

**The amendment was Carried (10 to 0)
and subsequently Carried
as the substantive Motion**

Cr Paul Yovich rejoined the meeting at 10:27am during discussion on Item 7.11.

7.12 Future of Severely Affected Land Programme (FOSAL)

Moved By His Worship the Mayor

Seconded By Cr Marie Olsen

That the Council:

1. Notes that while a detailed assessment/consultation has not been undertaken in relation to Future of Severely Affected Locations Programme, information held by Council does not indicate properties that would qualify for Category 3 within the district.
2. Opts out of the Government's Future of Severely Affected Locations programme, notifying the Minister of its decision.

Carried

A break was taken from 10:40am to 11:00am following Item 7.12.

8. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 23 May 2024	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Civic Honours Selection Committee – Approval of Minutes and Recommendations		
1.3	Future use of Old Municipal Building		

1.4	Litigation Update	
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This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons stated in the open minutes	
1.2	To protect the privacy of natural persons including that of a deceased person.	Section 7(2)(a)
1.3	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(h) Section 7(2)(i)
1.4	To maintain legal professional privilege.	Section 7(2)(g)

9. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with prayer at 11:19am.

Confirmed this 25th day of July 2024

His Worship the Mayor Vince Cocurullo (Chairperson)

Item 5.2

Whangarei District Council Meeting Minutes

Date: Wednesday, 3 July, 2024

Time: 11:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
 Cr Nicholas Connop
 Cr Ken Couper
 Cr Jayne Golightly
 Cr Phil Halse
 Cr Deborah Harding
 Cr Patrick Holmes
 Cr Scott McKenzie
 Cr Marie Olsen
 Cr Carol Peters
 Cr Simon Reid
 Cr Phoenix Ruka
 Cr Paul Yovich

Not in Attendance

Cr Gavin Benney

Scribe

C Brindle (Senior Democracy Adviser)

1. Karakia/Prayer

Cr Nicholas Connop opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made.

3. Apologies / Kore Tae Mai

Cr Gavin Benney

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That the apology be sustained.

Carried

4. Decision Reports / Whakatauripoata

4.1 Dog Management Policy and Bylaw - Hearing

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That Council:

1. Receives the feedback on the proposed Dog Management Policy (the Policy) and Dog Management Bylaw (the Bylaw) in Attachments 1 to 6;
2. Hears the oral feedback on the proposed Policy and Bylaw from the submitters listed in Attachment 7;
3. Accepts the feedback received after the closing date of consultation in Attachment 8.

Carried

The submitters who were heard are listed:

Margaret Crichton

Patricia Fenton

Karen Whitley

Todd Hamilton – Backyard Kiwi

David Golding

Liz Perales

Noeline Whitehead (tabled maps)

Emma Craig – Save the Kiwi

Tim Robinson

John Gardner

Terence Walsh

Mark Domican (tabled map)

Shirley Neal

David Lourie (tabled speaking notes)

Janinka Greenwood

Will Monk

James Bellamy – Whangarei Heads Landcare Forum

Melissa Arseneault

Amanda Tate

Ellie Smith (tabled images)

Diane Fleming.

A break was taken from 12.27pm to 1.5pm following the submission from Terence Walsh.

Cr Harding left the meeting at 2.10pm.

Extra ordinary business

Subsequent to the agenda being circulated Confidential Item 1.1 Property Development Opportunity was distributed separately but not within the timeframe specified in LGOIMA.

The report was not included in the agenda for the reason that this property opportunity only became known after the agenda closure

Council are asked to consider this matter at today's meeting to enable tender timeframes to be met.

Moved By His Worship the Mayor

Seconded By Cr Carol Peters

That council consider Item 1.1 Property Development Opportunity at today's meeting.

Carried

Exclusion of the public

Moved By Cr Marie Olsen

Seconded By Cr Carol Peters

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Property Development Opportunity	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	To enable the council to carry on without prejudice or disadvantage commercial activities To enable Council to carry on without prejudice or	Section 7(2)(h)

	disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
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Carried

5. Closure of Meeting / Te katinga o te Hui

Cr Connop closed the meeting with a karakia/prayer at 3.11pm.

Confirmed this 25th day of July 2024

His Worship the Mayor Vince Cocurullo (Chairperson)

Item 5.3

Whangarei District Council Meeting Minutes

Date: Tuesday, 16 July, 2024

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo

Cr Gavin Benney

Cr Nicholas Connop

Cr Ken Couper

Cr Jayne Golightly (Teams)

Cr Phil Halse

Cr Deborah Harding

Cr Patrick Holmes

Cr Scott McKenzie

Cr Marie Olsen (Teams)

Cr Carol Peters

Cr Simon Reid

Cr Paul Yovich

Not in Attendance

Cr Phoenix Ruka

Also present

Bryce Henderson, Deloitte Limited

Scribe

C Brindle (Senior Democracy Adviser)

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer.

3. Apology / Kore Tae Mai

Cr Phoenix Ruka

Moved By Cr Deborah Harding

Seconded By Cr Nicholas Connop

That the apology be sustained.

Carried

Cr Peters joined the meeting at 9.01am following the apologies.

4. Decision Reports / Whakatauripoata

4.1 Development Contributions Policy 2024 Adoption

Moved By His Worship the Mayor

Seconded By Cr Patrick Holmes

That the Council:

1. Approve and Adopt the Development Contributions Policy 2024 in accordance with Section 102 of the Local Government Act 2002.
2. Authorises the Chief Executive to make any necessary drafting, typographical or presentation changes or corrections to the Development Contributions Policy 2024 prior to the document being published.

Carried

4.2 Revenue and Financing Policy - 2024-34

Moved By His Worship the Mayor

Seconded By Cr Ken Couper

That Council:

1. Receive the information.
2. Adopt the Revenue and Financing Policy (having undertaken the Special Consultative Procedure, in accordance with sections 82, 82A and 102 of the Local Government Act 2002).
3. Authorise the Chief Executive to make minor amendments, drafting, typographical or presentation corrections necessary to the Revenue and Financing Policy.

Carried

4.3 Adoption of the 2024-34 Long Term Plan

Subsequent to the agenda being circulated Item 4.3.1 providing the Audit Opinion was distributed.

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That the Council:

1. Adopt the 2024-34 Long Term Plan.
2. Resolve to carry forward unspent capital project budgets (where applicable) as at 30 June 2024 (in addition to those already forecast) into the 2024-25 year. These subsequent carry forwards will be part of a revised budget, which will be reported back to Council.

3. Notes Council's decisions made during Deliberations as outlined in the minutes of the Extra ordinary Council meeting 29 May 2024 (Attachment 1 to the agenda report).
4. Notes that the NZ Transport Agency Waka Kotahi Subsidy for Transport Activities will not be finalised until later this year. Once this has been finalised, Council will be able to provide direction on how local share will be deployed to address any gaps in funding while further noting it is likely further changes to Central Government Transport subsidy will require a review of revenue/rates and/or service delivery through a future Annual Plan or Long Term Plan Amendment process.
5. Authorises the Chief Executive to make any necessary drafting, typographical or presentation changes to the 2024-34 Long Term Plan document.

On the motion being put Cr Golightly called for a division:

	For	Against
His Worship the Mayor Vince Cocurullo	X	
Cr Gavin Benney	X	
Cr Nicholas Connop	X	
Cr Ken Couper	X	
Cr Jayne Golightly		X
Cr Phil Halse	X	
Cr Deborah Harding	X	
Cr Patrick Holmes	X	
Cr Scott McKenzie	X	
Cr Marie Olsen	X	
Cr Carol Peters	X	
Cr Simon Reid	X	
Cr Paul Yovich	X	
Results	12	1

The motion was Carried (12 to 1)

Secretarial Note: Correction to Minutes 29 May 2024 acknowledged. The error in the recording of the decision/voting on the Aquatic Centre Repairs, has no material impact on the adoption of the LTP and will be addressed through a 'Correction to the Minutes' report to Council.

4.4 2024-2025 Rates Resolution

Moved By His Worship the Mayor

Seconded By Cr Ken Couper

That the Council:

1. Having adopted the 2024-34 Long Term Plan, including the 2024-25 Funding Impact Statement, resolves to set the following rates in accordance with the Local Government (Rating) Act 2002 for the financial year commencing on 1 July 2024 and ending on 30 June 2025:

a. General Rates

Rate/Differential category	Basis of assessment	Including GST
General Rates		
Uniform Annual General Charge	Per separately used or inhabited part of a rating unit *	\$821.00
Residential category**	Per \$ of land value	\$0.0027338
Multi-Unit category**	Per \$ of land value	\$0.0054676
Miscellaneous category**	Per \$ of land value	\$0.0027338
Rural category**	Per \$ of land value	\$0.0039244
Commercial and Industrial category**	Per \$ of land value	\$0.0147841

b. Targeted Rates

Rate/Differential category	Basis of assessment	Including GST
Sewerage Rates (Connected to wastewater system)		
Residential category**	Per separately used or inhabited part of a rating unit*	\$928.00
Other – non-residential**	Per pan or urinal	\$601.00
Water Rates		
Consumption charge <i>Note: where an invoice for water by meter relates to a period that spans two financial years, the consumption over the period will be pro-rated (i.e. the amount of water consumed or supplied in the first year will be charged at the first year's</i>	Volume of metered water consumed per cubic metre	\$3.38

<i>amount per cubic metre, and the amount consumed or supplied in the second financial year will be charged at the second year's amount per cubic metre).</i>			
Supply charge (metered)	Per separately used or inhabited part of a rating unit to which the water is supplied*	\$40.00	
Availability charge	Per separately used or inhabited part of a rating unit for which the water is available to be supplied*	\$40.00	
Uniform charge (unmetered)	Per separately used or inhabited part of a rating unit to which the water is supplied*	\$555.00	
Backflow preventer charge	Per water supply connection, based on the nature of connection		
	15/20mm connection	\$94.22	
	25mm connection	\$95.50	
	32mm connection	\$112.98	
	40mm connection	\$115.63	
	50/60mm connection	\$119.96	
	80/100mm connection	\$302.13	
	150mm connection	\$353.69	
	200/250mm connection	\$585.79	
Hikurangi Swamp			
Hikurangi Swamp Special Rating District	Per hectare of land in the Hikurangi Swamp Special Rating District based on location within that area***		
	Class A approx 2,485ha	\$234.12	
	Class B approx 1,425ha	\$210.70	
	Class C approx 1,342ha	\$163.87	
	Class D approx 1,970ha	\$23.40	
	Class E approx 1,106ha	\$11.71	
	Class F approx 32,354ha	\$4.68	
Hikurangi Swamp Drainage Rating District	Per hectare of land in the Hikurangi Swamp Drainage Rating		

	District based on location within that area*** Class A approx 5,592 ha Class F approx 12,076ha	\$23.69 \$2.37
Roading seal extension rates		
Attwood Road	Per rating unit within the area of benefit ***	\$920.00
Brooks Road	Per rating unit within the area of benefit ***	\$920.00
Glenmohr Road	Per rating unit within the area of benefit ***	\$1150.00
Knight Road	Per rating unit within the area of benefit ***	\$1150.00
Massey Road	Per rating unit within the area of benefit ***	\$920.00
Mountain View Road	Per rating unit within the area of benefit ***	\$1150.00
Nook Road	Per rating unit within the area of benefit ***	\$920.00
Tahunatapu Road	Per rating unit within the area of benefit ***	\$920.00
Tudehope Road	Per rating unit within the area of benefit ***	\$1150.00
Waiotoi Road	Per rating unit within the area of benefit ***	\$920.00
* The definition of a separately used or inhabited part of a rating unit can be found in the Funding Impact Statement section of Council's 2024-34 Long Term Plan. ** The definitions of these differential categories can be found in the Funding Impact Statement section of Council's 2024-34 Long Term Plan. *** The definitions of these specified and defined area of benefits can be found in the Funding Impact Statement section of Council's 2024-34 Long Term Plan.		
2. Resolves that the due dates for payment of rates and imposition of penalties are as follows: a. Due dates and penalty dates for rates other than metered water rates (volumetric, supply and backflow preventer charges) The due dates for rates other than metered water rates (volumetric, supply and backflow preventer charges) are set out in the table below. Pursuant to Section 57 of the Local Government (Rating) Act 2002 a penalty of ten percent (10%) will be added to the amount of each instalment which remains unpaid after the due date for payment with penalties to be added on the penalty dates specified in the table below:		

Instalment	Due date for payment	Date penalty will be added
One	20 August 2024	22 August 2024
Two	20 November 2024	23 November 2024
Three	20 February 2025	24 February 2025
Four	20 May 2025	22 May 2025

b. Due dates and penalty dates for metered water rates (volumetric, supply and backflow preventer charges)

Water accounts are processed monthly, two-monthly or six-monthly. The due dates of these accounts will be relative to the consumer's cyclic billing period and will apply as specified in the table below:

Month water rates invoice issued	Due date for payment
July 2024	20 August 2024
August 2024	20 September 2024
September 2024	20 October 2024
October 2024	20 November 2024
November 2024	20 December 2024
December 2024	20 January 2025
January 2025	20 February 2025
February 2025	20 March 2025
March 2025	20 April 2025
April 2025	20 May 2025
May 2025	20 June 2025
June 2025	20 July 2025

Penalties will be added to water rates (volumetric, supply and backflow preventer charges) not paid by the due date under Section 57 of the Local Government (Rating) Act 2002. A penalty of ten percent (10%) will be applied to any portion of water rates unpaid after the due date, at the penalty dates specified in the table below:

Month water rates invoice issued	Date penalty will be added
July 2024	22 August 2024
August 2024	24 September 2024
September 2024	23 October 2024
October 2024	22 November 2024
November 2024	23 December 2024
December 2024	22 January 2025
January 2025	24 February 2025
February 2025	24 March 2025
March 2025	23 April 2025
April 2025	22 May 2025
May 2025	24 June 2025
June 2025	23 July 2025

3. Resolves that additional penalty charges will be applied in accordance with section 58 of the Local Government (Rating) Act 2002, with a penalty of ten percent (10%) being added to any unpaid rates (including penalties previously added and water rates) from previous rating years that remain unpaid as at 16 July 2024. This penalty will be added on 16 September 2024.

On the motion being put Cr Golightly called for a division:

	For	Against
His Worship the Mayor Vince Cocurullo	X	
Cr Gavin Benney	X	
Cr Nicholas Connop	X	
Cr Ken Couper	X	
Cr Jayne Golightly		X
Cr Phil Halse	X	
Cr Deborah Harding	X	
Cr Patrick Holmes	X	
Cr Scott McKenzie	X	
Cr Marie Olsen		X
Cr Carol Peters	X	
Cr Simon Reid		X
Cr Paul Yovich		X
Results	9	4

The motion was Carried (9 to 4)

5. Public Excluded Business / Rāhui Tangata

There was no business conducted in public excluded.

6. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting at 9.52am with a karakia/prayer.

Confirmed this 25th day of July 2024

His Worship the Mayor Vince Cocurullo (Chairperson)

6.1 Exemptions for Council Controlled Organisations to 25 August 2027

Meeting: Whangarei District Council
Date of meeting: 25 July 2024
Reporting officer: Joanne Tasker (Risk Management Advisor)

1 Purpose / Te Kaupapa

To review the exemption status of Springs Flat Contractors Limited and Whangarei Waste Limited.

2 Recommendations / Whakataunga

That the Council:

1. Resolves to exempt Springs Flat Contractors Limited as an organisation exempted under Section 7 of the Local Government Act 2002, for a three year period starting on 25 August 2024 and ending on 25 August 2027.
2. Resolves to exempt Whangarei Waste Limited as an organisation exempted under Section 7 of the Local Government Act 2002, for a three year period starting on 25 August 2024 and ending on 25 August 2027.

3 Background / Horopaki

Council-controlled Organisations (CCOs) are organisations where one or more local authorities hold or control 50 per cent of the voting rights or have the right to appoint 50 per cent of the directors or trustees to the board.

Under the Local Government Act 2002 (LGA), CCOs must develop a yearly Statement of Intent, Half-yearly Report, and an Annual Report, unless they are granted an exemption under section 7 of the LGA.

Council may exempt a small CCO that is not a council-controlled Trading Organisation under this section. In doing so, Council must consider the following:

- The nature and scope of the activities provided by the organisation
- The costs and benefits, if an exemption is granted, to the local authority, the council-controlled organisation, and the community

Once granted, exemptions can be revoked at any time. Exemptions must be reviewed within three years of being granted. Council's current CCO exemptions were last reviewed by Whangarei District Council at the Council meeting on 26 August 2021.

4 Discussion / Whakawhiti kōrero

4.1 Springs Flat Contractors Limited

Springs Flat Contractors Limited (SFCL) was first exempted by Council on 24 June 2009. The exemption status was last reviewed on 26 August 2021 and Council resolved to exempt SFCL for the three years ending 29 August 2024.

SFCL is a dormant company. It has been retained because the company holds tax losses which may be of benefit to Council in the future.

Because the entity is dormant, there are no objectives or performance targets/measures to report on, and as such there is no need for Council to receive reports.

It is recommended that Council exempt SFCL for a further three years, ending on 25 August 2027.

Council's Chief Executive Simon Weston is currently a director of Springs Flat Contractors Limited.

4.2 Whangarei Waste Limited

Whangarei Waste Limited (WWL) was first exempted by Council on 27 November 2013. The exemption status was last reviewed on 26 August 2021 and Council resolved to exempt WWL for the three years ending 26 August 2024.

WWL is the partner of the Northland Regional Landfill Limited Partnership (NRLLP), which is a joint venture between Council and Northland Waste Limited, to operate the Puwera Landfill.

NRLLP is a Council-controlled Trading Organisation and is subject to the CCO reporting requirements under the LGA. The operations of the landfill are reported to Council by NRLLP. There is no benefit of WWL providing a Statement of Intent, Half-yearly report, and Annual Report as this would duplicate what is already provided by NRLLP.

It is recommended that Council exempt WWL for a further three years, ending on 25 August 2027.

Councillor Simon Reid and Alan Adcock, Council's General Manager of Corporate, are both currently directors of Whangarei Waste Limited.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website.

6.2 Temporary Road Closure Request – Northland Car Club September and October 2024

Meeting: Whangarei District Council
Date of meeting: 25th July 2024
Reporting officer: Lana Van Bergenhenegouwen, Community Events Coordinator
 Bea Mossop, Venue and Events Manager
 Gordon Whyte CAR Specialist, Roading.

1 Purpose / Te Kaupapa

To seek approval of the proposal to temporarily close roads, to allow the Northland Car Club to hold on their motorsport event series in September and October 2024.

2 Recommendation/s / Whakataunga

That Whangarei District Council,

1. Approves the temporary closure of the following roads to ordinary traffic for the Northland Car Club Motorsport event series on the following dates in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Sunday 22 September 2024

Doctors Hill Road, from intersection of Mountfield Road to 400m from SH1.

Period of Closure: 8am to 5:30pm

Sunday 20th October 2024

Sime Road, 200m from intersection with Marsden Point Road.

Kepa Road, complete closure.

Period of Closure: 8am to 5:30pm

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

3 Background / Horopaki

The Northland Car Club run a series of events in accordance with New Zealand Motorsport Standards and Regulations which allow the club members to compete safely under strict, managed conditions.

These club days are popular within the club and community with a number of families spectating and participating in the sport.

4 Discussion / Whakawhiti korero

All events are run to Motorsport New Zealand rules and regulations. There will be marshals at the venue to keep everyone safe. The club has either a Motorsport New Zealand Steward or an appointed Safety Officer to oversee the smooth running and compliance of each event.

Traffic management plans for each event are submitted to Northland Transport Alliance (NTA) for approval prior to each event occurring. Included in the traffic management plans are arrangements to ensure the affected parties can access their properties during the event.

4.1 Risks

Motorsport events carry a number of associated risks, however the Northland Car Club have a history of running well organised events ensuring everything within their control is done to eliminate risks as well as manage those risks and hazards that cannot be eliminated, reducing the likelihood of harm occurring to any person, property or business.

Vehicles and drivers are required to comply with the strict safety standards as set down by Motorsport New Zealand.

Spectators are managed at the event with appropriate signage and designated personnel monitoring spectators and their locations.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website, Council News, Facebook and marketing by the event organisers.

6 Attachments / Ngā Tāpiritanga

1. Application Letter
2. Public Liability Insurance Certificate
3. Proposed route maps
 - a. Doctors Hill Road
 - b. Sime Road & Kepa Road



Northland Car Club Inc
PO Box 596
Whangarei
info@ncc@org.nz

17th June 2024

Hi all

Thanks very much for your help with our proposed road closures.

As per our on-line applications we would like to ask the Whangarei District Council to consider our requests for the following closures under the tenth schedule:

22nd September 2024 - Doctors Hill Road, Ruakaka

20th of October 2024 - Sime & Kepa Roads, Ruakaka

We request the roads to be closed from 8am until 5.30pm but during these times we can allow access through the road if need be as required. We would stop the racing to allow for this to happen safely.

Thanks again for your time and consideration of these events for our club.

Regards

Paul Rodgers
Speed Committee
Northland Car Club

Policy Schedule

Northland Car Club Inc
C/- Aon New Zealand - Whangarei

Policy No

LSM-6124287

Reference No

44664
9-1

SME Package

POLICY NUMBER HO-LSM-6124287

WORDING [VL POL SME-032022](#)

INSURED ORGANISATION Northland Car Club Inc

BUSINESS DESCRIPTION Sporting Car Club

PERIOD OF INSURANCE From 4pm: 28 November 2023
To 4pm: 28 November 2024

Section 1

TERRITORY New Zealand

PRODUCTS TERRITORY New Zealand

JURISDICTION New Zealand

All Other Sections

TERRITORY New Zealand

JURISDICTION New Zealand

		LIMIT	EXCESS	RETROACTIVE DATE
PUBLIC & PRODUCTS LIABILITY	Included	\$ 2,000,000	\$ 500	
Advertising Liability	Included	\$ 1,000,000	\$ 1,000	
Contractors or Sub-contractors	Included			
Defective Workmanship	Included	\$ 250,000	\$ 1,000	
Fire Protection Costs	Included	\$ 1,000,000	\$ 1,000	
Goods on Hook	Included	\$ 250,000	\$ 1,000	
Hazardous Substances Emergency	Included	\$ 1,000,000	\$ 1,000	
Innkeeper's Liability	Included		\$ 500	
Keys and Locks	Included	\$ 250,000	\$ 1,000	
Product Recall	Included	\$ 100,000	\$ 1,000	
Property in Care, Custody or Control	Included	\$ 500,000	\$ 1,000	
Property Owner's Liability	Included			
Service and Repair	Included	\$ 250,000	\$ 1,000	
Tenant's Liability	Included			
Trade Advice or Services	Included			
Underground Services	Included			
Unmanned Aerial Vehicles	Included	\$ 1,000,000	\$ 1,000	
USA/Canada Coverage (Products only)	Excluded			
USA/Canada Visits	Included			
Vehicles - Additional Provisions	Included			
Vehicle Inspection Certification	Included	\$ 750,000	\$ 1,000	
Vibration or Removal of Support	Included			
Welding/Gas Cutting/Burning Off/Use of Explosives	Included		\$ 1,000	
Punitive or Exemplary Damages	Included	\$ 1,000,000	any one Occurrence and \$2,000,000 in the aggregate	
EMPLOYERS LIABILITY	Excluded			
STATUTORY LIABILITY	Included	\$ 1,000,000	\$ 500 (Officers \$Nil)	7 June 2016

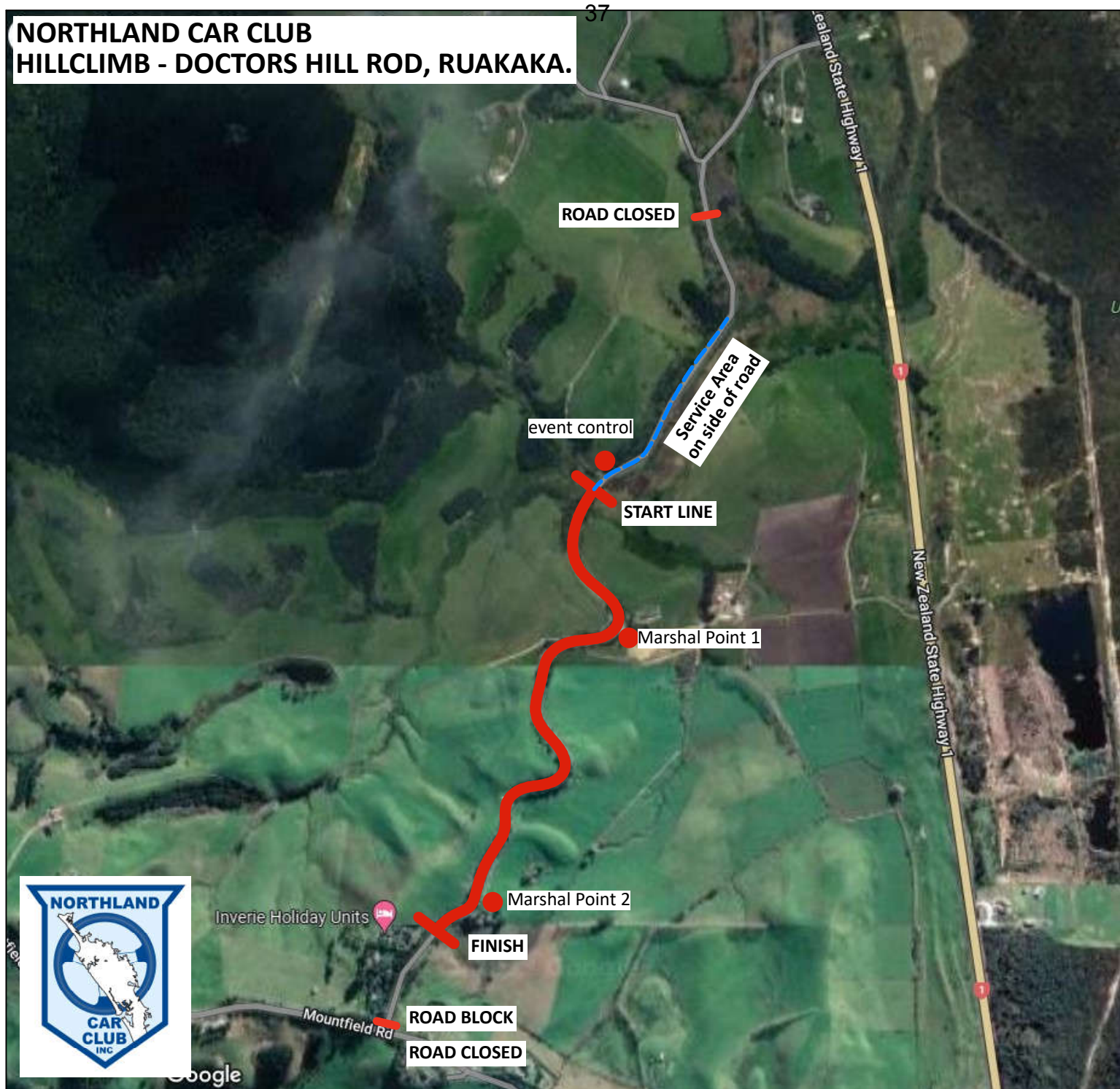
Signed for and on behalf of Vero Liability Insurance Limited

Authorised Officer
BJS



1 November 2023

**NORTHLAND CAR CLUB
HILLCLIMB - DOCTORS HILL ROD, RUAKAKA.**





6.3 Temporary Road Closure Request – International Rally of Whangarei 2024

Meeting: Whangarei District Council

Date of meeting: Thursday 25 July 2024

Reporting officer: Lana van Bergenhenegouwen, Community Events Co-ordinator
 Bea Mossop, Manager Venue and Events
 Gordon Whyte, CAR Specialist, Roading

1 Purpose / Te Kaupapa

To seek approval of the proposal to temporarily close roads, to allow the International Rally of Whangarei 2024 to be held on 8th to 10th November 2024.

2 Recommendations / Whakataunga

That the Whangarei District Council:

1. Approves the temporary closure of the following roads to ordinary traffic for the International Rally of Whangarei 2024 on the following dates in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Wednesday 6th November 2024 to Sunday 10th November 2024 (Service Park)

Pohe Island Road, from start to end including the carpark.

Period of Closure: 8am Wednesday 6th November to 8pm Sunday 10th November 2024.

Wednesday 6th November 2024 (Testing)

Hosking Road, from Paparoa Oakleigh Road to Walker Road.

Period of Closure: 8am to 5pm.

Friday 8th November 2024 (Ceremonial Start)

James Street, from Robert Street to Cameron Street - including Cameron Street Mall.

John Street, from Robert Street to Cameron Street.

Cameron Street, from James Street to Walton Street.

Period of Closure: 3pm to 7pm.

Saturday 9th November 2024 (Hikurangi Refuel and community event).

George Street, from Alfred Street to Hill Street (Alfred and Hill streets remain open).

King Street, from George Street to Church Street.

Period of Closure: 7:30am to 3pm.

Saturday 9th November 2024

(Special Stage 1 & 5 HELENA)

Pigs Head Road, from the intersection of Whananaki Road to the bridge at Kaiikanui Road intersection.

Kaiikanui Road, from Pigs Head Road to the intersection of Webb Road & Mimiwhangata Road – including intersection/s with Black Fern Grove (No Exit), Birdie Track Road (No Exit), Hay Road (No Exit).

Webb Road, from the intersection of Kaiikanui Road & Mimiwhangata Road to gate number 206 Webb Road – including intersection/s with Ngahua Bay Road (No Exit).

Period of Closure: 5:10am to 9:25am and 10:25am to 2:40pm.

(Special Stage 3 & 7 CROWS NEST)

Crows Nest Road, from SH1 to Paiaka Road.

Paiaka Road, from Crows Nest Road to Browns Road – including intersection/s with Wallace Road (No Exit), Rusk Road.

Browns Road, from Paiaka Road to Oetzmans Road.

Oetzmans Road, from Browns Road to Maromaku-Towai Road – including intersection/s with Bolero Road (No Exit).

Maromaku-Towai Road, from Oetzmans Road to Marlow Road.

Period of Closure: 7:40am to 11:40am and 12:55pm to 4:40pm.

(Special Stages 4 & 8 MARLOW)

Marlow Road, from Whangārei District Council Marlow Road Boundary to Riponui Road.

Riponui Road, from Marlow Road to Otakirangi Road.

Otakirangi Road, from Riponui Road to Swamp Road – including intersection/s with Rowlands Road (No Exit).

Period of Closure: 7:55am to 12:10pm and 1:10pm to 4:55pm.

(Special Stage 9 & 10 Pohe Island - Te Matau a Pohe Bridge)

Dave Culham Drive, from Port Road to Riverside Drive - includes Te Matau a Pohe Bridge.

Period of Closure: 2pm to 10pm.

Sunday 10th November 2024

(Special Stage 11 & 15 OTUHI)

Otuhi Road, from SH14 to Codlin Road.

Codlin Road, from Otuhi Road to Tangihua Road.

Tangihua Road, from Codlin Road to Bint Road.

Bint Road, from Tangihua Road to Porter Road.

Porter Road, from Bint Road to Snooks Road.

Period of Closure: 5:30am to 3pm.

(Special Stage 12 & 16 WAIOTIRA)

Ararua Road, from Mititai Road to Hartnell Road - including intersection/s with Wood Street (No Exit).

Hartnell Road, from Ararua Road to Stead Road.

Stead Road, Hartnell Road to Taipuha Road.

Taipuha Road, from Stead Road to Neville Road.

Neville Road, from Taipuha Road to Hosking Road – including intersection/s with Harrison Road.

Hosking Road, closed at intersection of Neville Road and Walker Road.

Walker Road, from Hosking Road to Waikiekie North Road.

Waikiekie North Road, from Walker Road to Paparoa Road.

Period of Closure: 6am to 3pm.

(Special Stage 13 & 17 DURHAM)

Waipu Gorge Road, from Whangārei District Council Waipu Gorge Road Boundary to SH1.

Durham Road, from Waipu Gorge Road to Finlayson Brook Road.

Finlayson Brook Road, from Durham Road to SH1 – including intersection/s with Brooks Road.

Period of Closure: 7:30am to 4pm.

(Special Stages 14 & 18 WAIPU CAVES)

Waipu Caves Road, from 878 Waipu Caves Road to intersection of Mangapai Caves Road and Springfield Road – including intersection/s with Short Lane (No Exit), Palmer Road (No Exit), Waipu Caves Estate Drive (No Exit), Boyd Road (No Exit).

Mangapai Caves Road, from the intersection of Waipu Caves Road and Springfield Road to the intersection of Graham Road and Mangapai Caves Road – including intersection/s with Rountree Road (No Exit), McDonnell Road (No Exit), Ngatoka Road (No Exit), Parry Road (No Exit).

Period of Closure: 8am to 5pm.

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

3 Background / Horopaki

The International Rally of Whangarei will take place on 8th – 10th November 2024 in the Northland area.

The event is the final round of the FIA, Asia Pacific Rally Championship, and the New Zealand Rally Championship.

The 2024 FIA, Asia Pacific Rally Championship series comprises of six rounds:

- Rnd 1 South India Rally – India
- Rnd 2 Rally of Otago – New Zealand
- Rnd 3 Rally Montre – Japan
- Rnd 4 Danau Toba Rally– Indonesia

- Rnd 5 Rally Longyou – China
- Rnd 6 Rally of Whangārei – New Zealand

The 2024 FIA Asia Pacific Rally Championship series also includes five FIA titles and our own Brian Green Property Group. New Zealand Rally Championship includes 7 titles contested over the two days.

The Community groups that we are calling on to assist us with the event are Whangarei South Rotary Club, Opouwhanga Hall Committee, Kamo Club - Motorsport Section, Hikurangi Business Association, Hikurangi Lions Club, Mid Western Lions, Waipu Lions, Whangarei Rock n Roll Club, Northland Rugby and other local groups.

4 Discussion / Whakawhiti kōrero

Rally New Zealand (RNZ) is experienced in running events to the standards required by the FIA.

RNZ have established a good working relationship with Council staff and work closely with Council to host a well-managed and safe event holding a debrief each year to see where improvements can be made for the following year.

RNZ work with several local clubs and groups, providing opportunities for these groups to fundraise throughout the event for example marshalling, spectator management and food stands at the main spectator points.

Rally New Zealand undertake to:

1. Contact all owners and occupiers of property adjacent to the road explaining details of the closure and deliver the first letter setting out the details of the road closure and a second letter in the ten days before the closure confirming the closure times and emergency procedures.
2. Erect signs at the intersections of the road during the month before the rally setting out the times of the road closure and the reconnaissance convoy date and times.
3. Details of the Traffic Management Plan are published in our “Safety Plan” which is prepared in accordance with the FIA Safety Standards. A copy of the Safety Plan will be forwarded to Council closer to the event. The TMP includes erecting Transit standard RG 16 “Road Closed” signs at all intersections which will be controlled by clearly identified marshals.
4. The Rally is being held under a MotorSport New Zealand Permit which includes Public Liability of \$10 million. A copy of the Insurance Certificate is attached.
5. Provide full emergency services including St John Ambulance Paramedics and AREC radio communications. All owners and occupiers of affected properties will be advised how to contact these services in an emergency.
6. Authorise the New Zealand Police to open the closed road. Should any emergency arise access will be allowed for emergency vehicles.
7. Fully repair any damage to fences and private property.
8. Pay the costs of advertising the proposed closure.

4.1 Risks

RNZ Safety team attended the recent FIA 2023 Rally Safety Training Program, so they are all up to date with the latest procedures and changes to FIA requirements. The importance of setting up special stages to ensure the safety of spectator viewing is a strategic part of event

management. RNZ continue to review our safety standards for the setting up of public areas. This includes:

- Identification of quality viewing areas
- Identification of danger points within the viewing area
- Erecting safety mesh fences plus taping to identify the areas where public can safely be located.
- To ensure at all times that personal safety is paramount.
- Training spectator safety marshals so that they can in a firm and polite manner advise the safety message to the public.

Rally New Zealand works with local community groups to make a spectator charge at controlled 'quality viewing areas'. This is an excellent opportunity for local community groups to source funds from outside their area. This includes many opportunities to raise funds for paddock parking, food stalls and so on.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website, Council News, Facebook and marketing by the event organisers.

6 Attachment / Ngā Tāpiritanga

International Rally of Whangārei 2024 - Temporary Road Closure Application Information Pack (includes Application Letter, Maps and Public Liability Insurance).

International Rally of Whangarei | 08-10 Nov 2024

Attn: Whangarei District Council

To Whom this may concern,

I write to apply for temporary road closures for the 2024 International Rally of Whangarei. The event this year is to be held on 08-10 November 2024.

The event is the final round of the FIA, Asia Pacific Rally Championship, and the New Zealand Rally Championship.

The 2024 FIA, Asia Pacific Rally Championship series comprises of six rounds:-

Rnd 1	15 Mar - 17 Mar	South India Rally – India	Asia Cup
Rnd 2	12 Apr - 14 Apr	Rally of Otago – New Zealand	Pacific Cup
Rnd 3	07 Jun - 09 Jun	Rally Montre – Japan	Asia & Pacific Cups
Rnd 4	02 Aug - 04 Aug	Danau Toba Rally – Indonesia	Asia Cup
Rnd 5	21 Sep - 22 Sep	Rally Longyou – China	Asia Cup
Rnd 6	08 Nov - 10 Nov	Rally of Whangārei – New Zealand	Pacific Cup

The 2024 FIA Asia Pacific Rally Championship series also includes five FIA titles and our own Brian Green Property Group New Zealand Rally Championship includes 7 titles contested over the two days.

The Community groups that we are calling on to assist us with the event are Whangarei South Rotary Club, Opouwhanga Hall Committee, Kamo Club - Motorsport Section, Hikurangi Business Association, Hikurangi Lions Club, Mid Western Lions, Waipu Lions, Whangarei Rock n Roll Club, Northland Rugby and other local groups.

Rally New Zealand under take to:-

1. Contact all owners and occupiers of property adjacent to the road explaining details of the closure and deliver the first letter setting out the details of the road closure and a second letter in the ten days before the closure confirming the closure times and emergency procedures.
2. Erect signs at the intersections of the road during the month before the rally setting out the times of the road closure and the reconnaissance convoy date and times.
3. Details of the Traffic Management Plan are published in our "Safety Plan" which is prepared in accordance with the FIA Safety Standards. A copy of the Safety Plan will be forwarded to Council closer to the event. The TMP includes erecting Transit standard RG 16 "Road Closed" signs at all intersections which will be controlled by clearly identified marshals.
4. The Rally is being held under a MotorSport New Zealand Permit which includes Public Liability of \$10 million. A copy of the Insurance Certificate is attached.
5. Provide full emergency services including St John Ambulance Paramedics and AREC radio communications. All owners and occupiers of affected properties will be advised how to contact these services in an emergency.
6. Authorise the New Zealand Police to open the closed road. Should any emergency arise access will be allowed for emergency vehicles.
7. Fully repair any damage to fences and private property.
8. Pay the costs of advertising the proposed closure.

International Rally of Whangarei | 08-10 Nov 2024

Reconnaissance Thursday 07 & Friday 08 November 2024:

1. Reconnaissance Convoy - A two pass competitor reconnaissance convoy, supervised by rally officials, will travel over the roads to familiarise the drivers with the conditions. Residents will be advised of the times by letter and by signs erected at intersections.
2. Rally New Zealand Supervision - The convoy will have a lead and sweeper cars plus roving officials supervising road behaviour.
3. Police Supervision - Police will be in attendance.
4. Reconnaissance Cars - Cars used for reconnaissance will have identifying numbers on both rear side windows plus the windscreen, and headlights will be switched on.

Police Liaison:

The Whangarei Police are provided with maps and full details of both reconnaissance and the event.

Spectator Safety:

Our Safety team **attended the recent FIA 2023 Rally Safety Training Program**, so they are all up to date with the latest procedures and changes to FIA requirements. The importance of setting up special stages to ensure the safety of spectator viewing is a strategic part of event management. We continue to review our safety standards for the setting up of public areas. This includes:

- Identification of quality viewing areas
- Identification of danger points within the viewing area
- Erecting safety mesh fences plus taping to identify the areas where public can safely be located.
- To ensure at all times that personal safety is paramount.
- Training spectator safety marshals so that they can in a firm and polite manner advise the safety message to the public.

Rally New Zealand works with local community groups to make a spectator charge at controlled 'quality viewing areas'. This is an excellent opportunity for local community groups to source funds from outside their area. This includes many opportunities to raise funds for paddock parking, food stalls and so on.

Road Maintenance:

Competitors are used to experiencing a wide variety of road surfaces, so no preparation is necessary. Rally New Zealand request Council to review their road grading timetable to ensure that grading is scheduled for **immediately after the rally, not before**. This will help to minimise resident concerns and costs.

Council and Resident Recognition:

Rally New Zealand wishes to sincerely thank both Far North District and Whangarei District Councils and Residents for their continuing support of rallying. This support allows your district and our country to gain valuable recognition, stimulate economic activity and provide residents with entertainment and leisure opportunities from this international event.

International Rally of Whangarei | 08-10 Nov 2024

APPLICATION BY : **RALLY NEW ZEALAND**

TO : **NORTHLAND TRANSPORT ALLIANCE**
For Whangarei District and Far North District

FOR : **TEMPORARY ROAD CLOSURE**

To ensure safety, Rally New Zealand will be restricting spectator access for a distance of 100 metres from the specified road and all adjoining side roads.

The road closure times in this application are based on the maximum time allowance for competitors running at the end of the field. In the normal course we would anticipate that we would be able to open the road approximately 60 minutes earlier.

Rally New Zealand recommends that Council review their grading timetable so that the planned road grading around the date of the rally is made immediately following the Rally. This will help to minimise both costs and resident concerns.

2024 RALLY TEMPORARY ROAD CLOSURES

WEDNESDAY 06th NOVEMBER TO SUNDAY 10th NOVEMBER 2024

Service Park

Pohe Island Rd - All of Pohe Island Rd and Car Park - as per application to WDC Venues & Events Team
Period of closure from 8am Wednesday 06th to 8pm Sunday 10th November



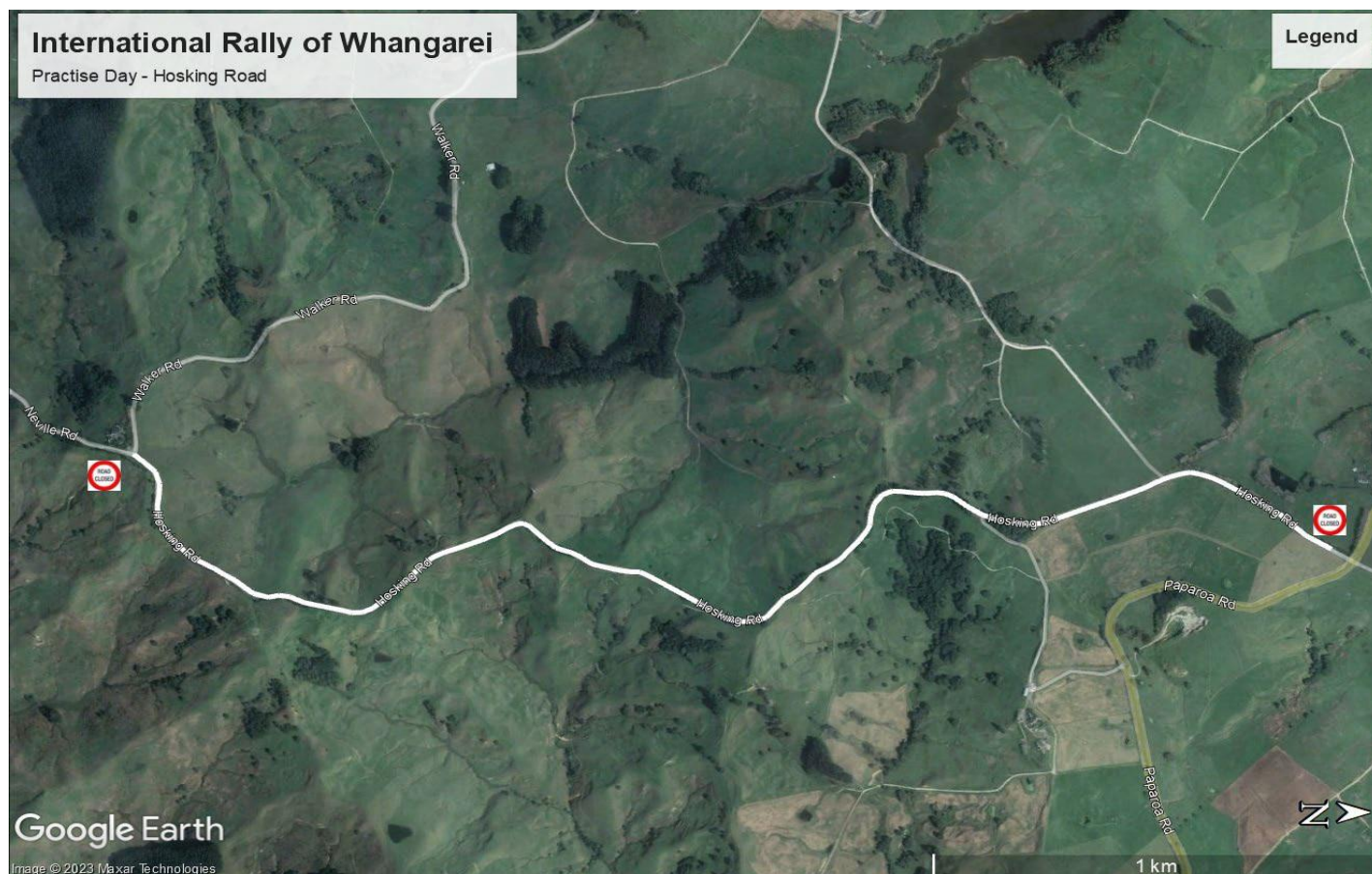
International Rally of Whangarei | 08-10 Nov 2024

WEDNESDAY 06th NOVEMBER 2024

TESTING - WEDNESDAY 06 November 2024

HOSKING RD

From Paparoa Oakleigh Road to Walker Road. Testing will be organised by the Northland Car Club Inc. Period of Closure From 08:00 to 17:00hrs

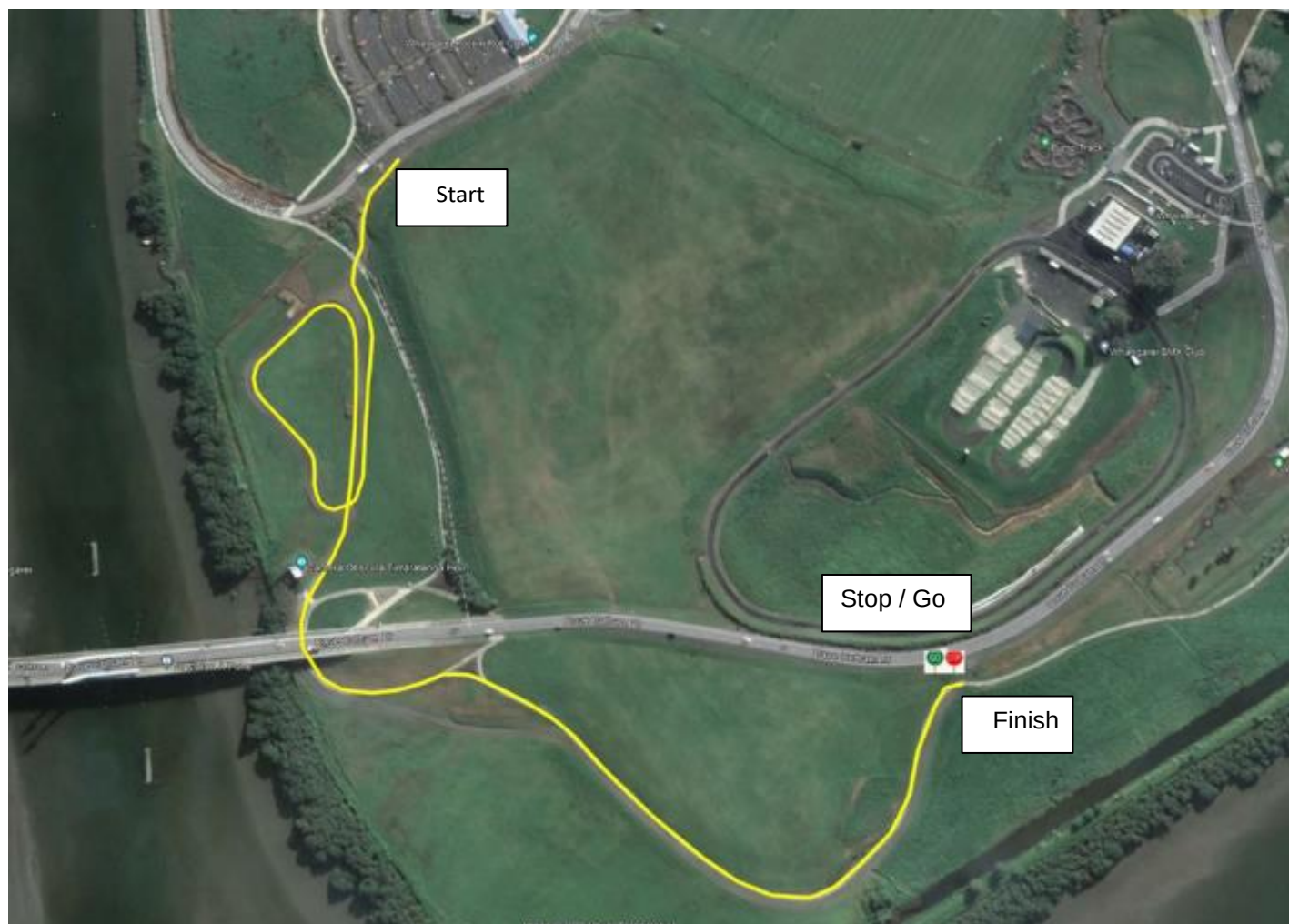


International Rally of Whangarei | 08-10 Nov 2024

FRIDAY 08th NOVEMBER 2024

SHAKEDOWN -

POHE ISLAND WALKWAY – as per application to WDC Venues & Events Team
Period of Closure from 10am to 3pm Friday 08 November 2024



Comments: (NOT a closure) The temporary traffic management required is a stop / go set up on Dave Culham Drive as indicated above. Traffic coming from both directions will be stopped for short intervals to allow rally cars to cross right from the end of the stage, on to Dave Culham Drive heading toward Riverside Drive.

International Rally of Whangarei | 08-10 Nov 2024

FRIDAY 08th NOVEMBER 2024

CEREMONIAL START –

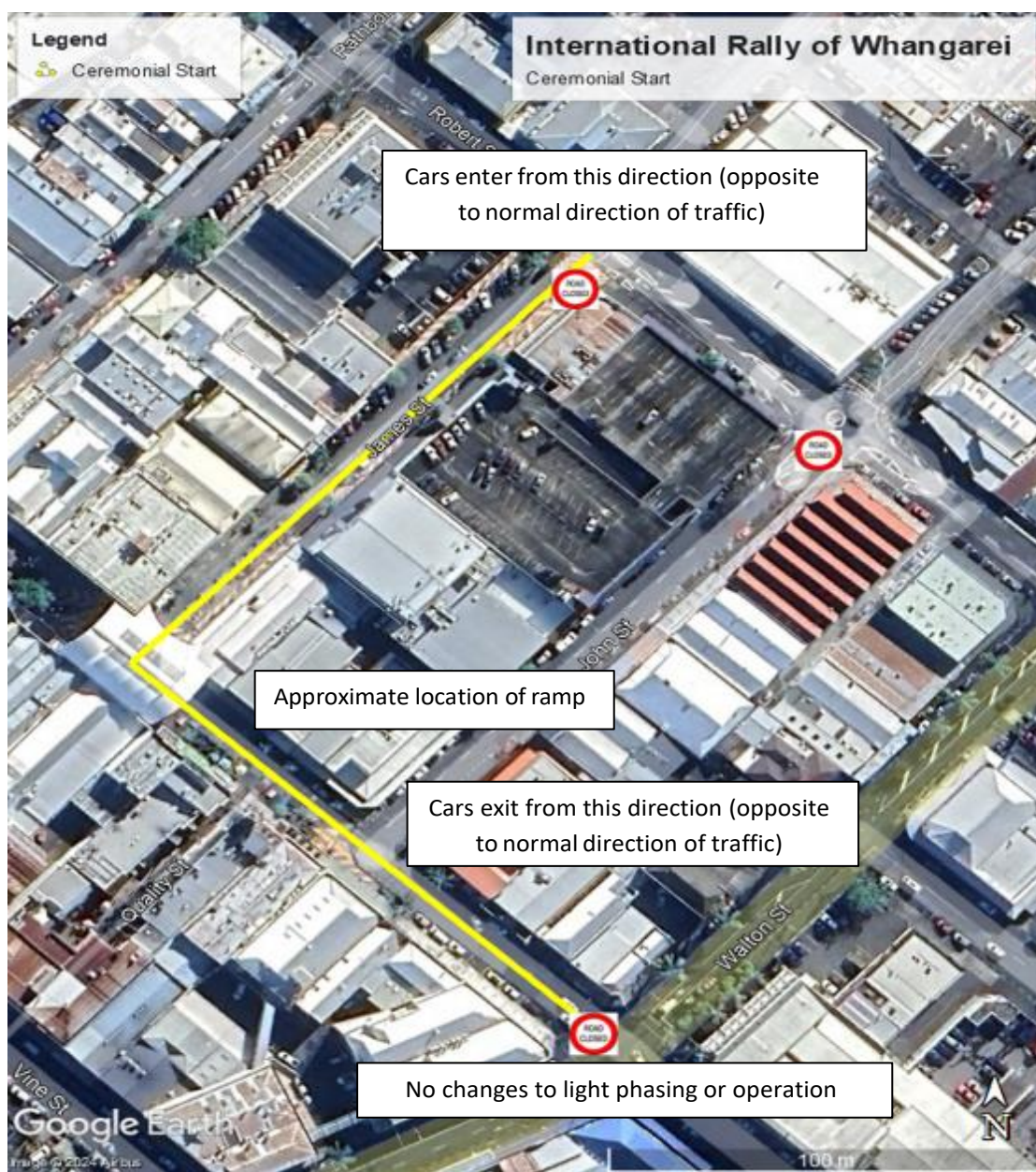
CAMERON STREET MALL

James Street, from Robert Street to Cameron Street

John Street, from Robert Street to Cameron Street

Cameron Street, from James Street to Walton Street

Period of Closure: 3pm to 7pm Period of Closure from 15:00hrs to 19:00hrs



International Rally of Whangarei | 08-10 Nov 2024

SATURDAY 09th NOVEMBER 2024

HIKURANGI REFUEL & MEET THE DRIVERS

George Street, from Alfred Street to Hill Street (Alfred and Hill streets remain open)

King Street, from George Street to Church Street

Period of Closure: 07:30 - 15:00hrs

Estimated Number of Cars: 60

Residents will have managed access during closure



International Rally of Whangarei | 08-10 Nov 2024

SATURDAY 09th NOVEMBER 2024

SS 1 & 5 HELENA – AS PER MAP

Pigs Head Road from the intersection of Whananaki Rd to the Bridge at Kaiikanui Rd Intersection

Kaiikanui Road from Pigs Head Road to the intersection of Webb Road & Mimiwhangata Road

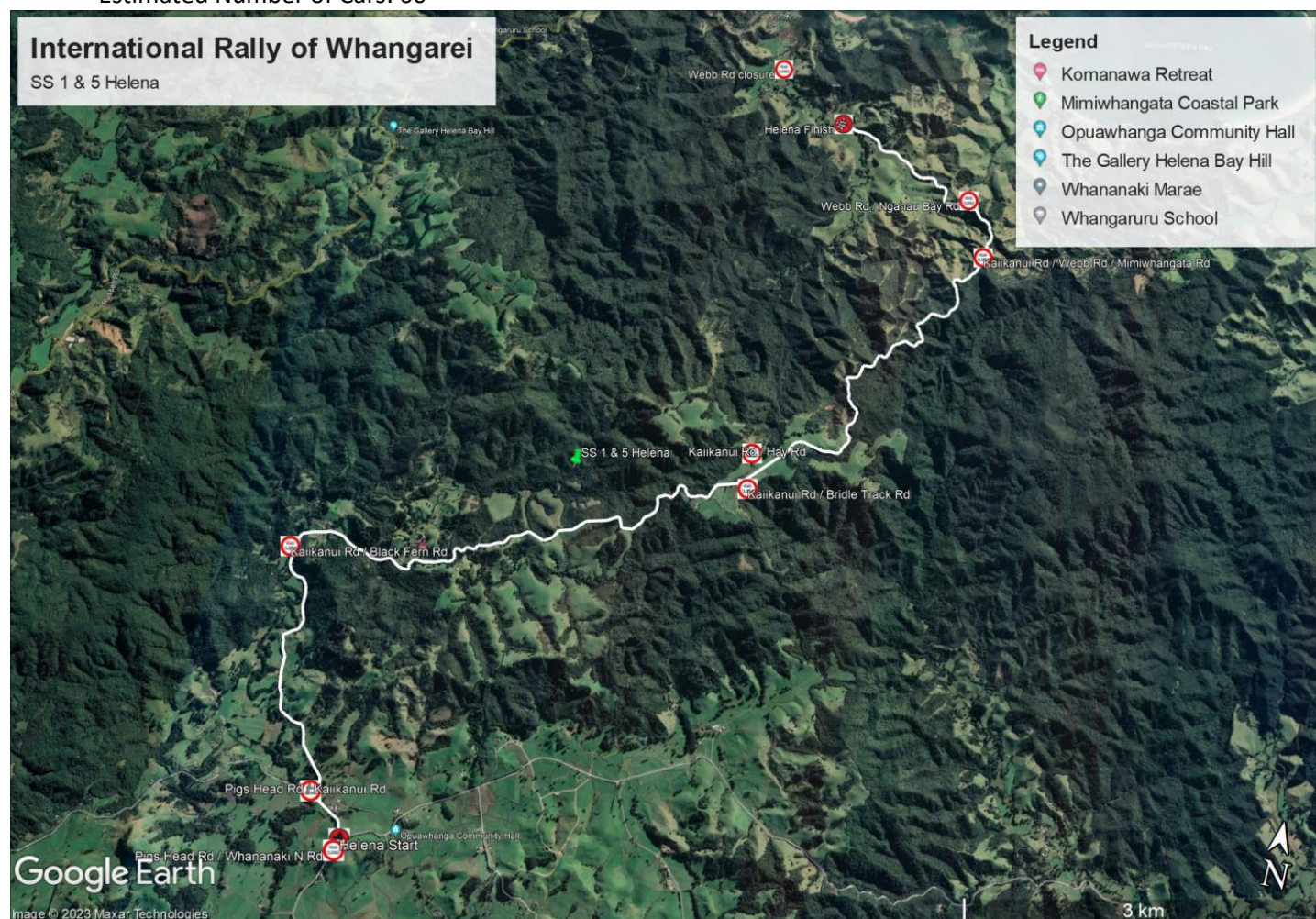
- including intersection/s with
 - Black Fern Grove (No Exit)
 - Bridie Track Road (No Exit)
 - Hay Road (No Exit)

Webb Road from the intersection of Kaiikanui Road & Mimiwhangata Road to gate number 206 Webb Road (opposite the sheds)

- including intersection/s with
 - Ngahau Bay Road (No Exit)

Period of Closure: 05:10 – 9:25hrs and 10:25 – 14:40hrs

Estimated Number of Cars: 60



International Rally of Whangarei | 08-10 Nov 2024

SATURDAY 09th NOVEMBER 2024

SS 3 & 7 CROWS NEST - AS PER MAP

Crows Nest Road from SH 1 to Paiaka Road

Paiaka Road from Crows Nest Road to Browns Road

- including intersection/s with
 - Wallace Road (No Exit)
 - Rusk Road

Browns Road from Paiaka Road to Oetzmans Road

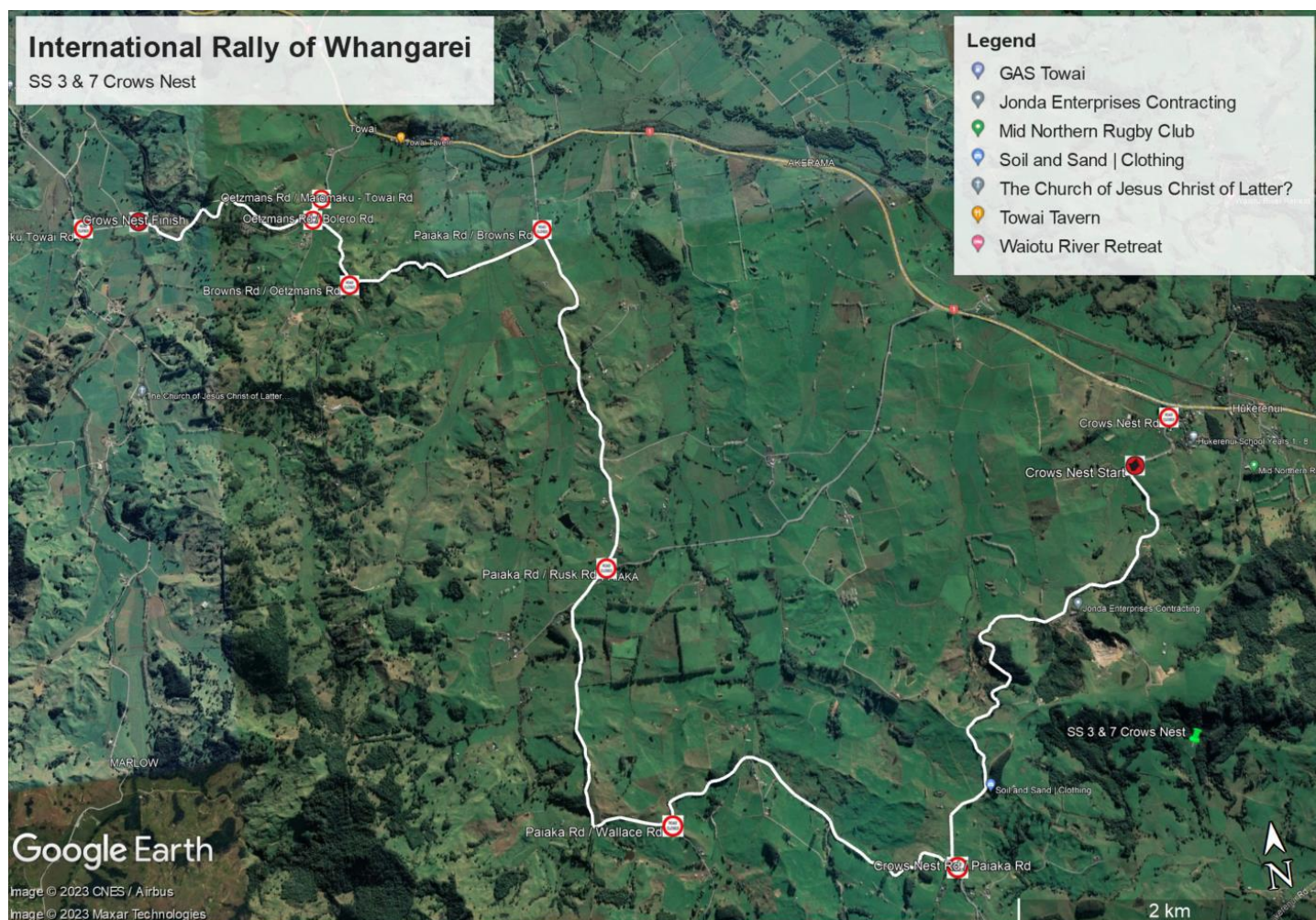
Oetzmans Road from Browns Road to Maromaku-Towai Road

- including intersection/s with
 - Bolero Road (No Exit)

Maromaku – Towai Road from Oetzmans Road to Marlow Road

Period of Closure 07:40 – 11:40hrs and 12:55 – 16:40hrs

Estimated Number of Cars: 60



International Rally of Whangarei | 08-10 Nov 2024

SATURDAY 09th NOVEMBER 2024

SS 4 & 8 MARLOW – AS PER MAP

From the District Boundary on Marlow Road to Riponui Road

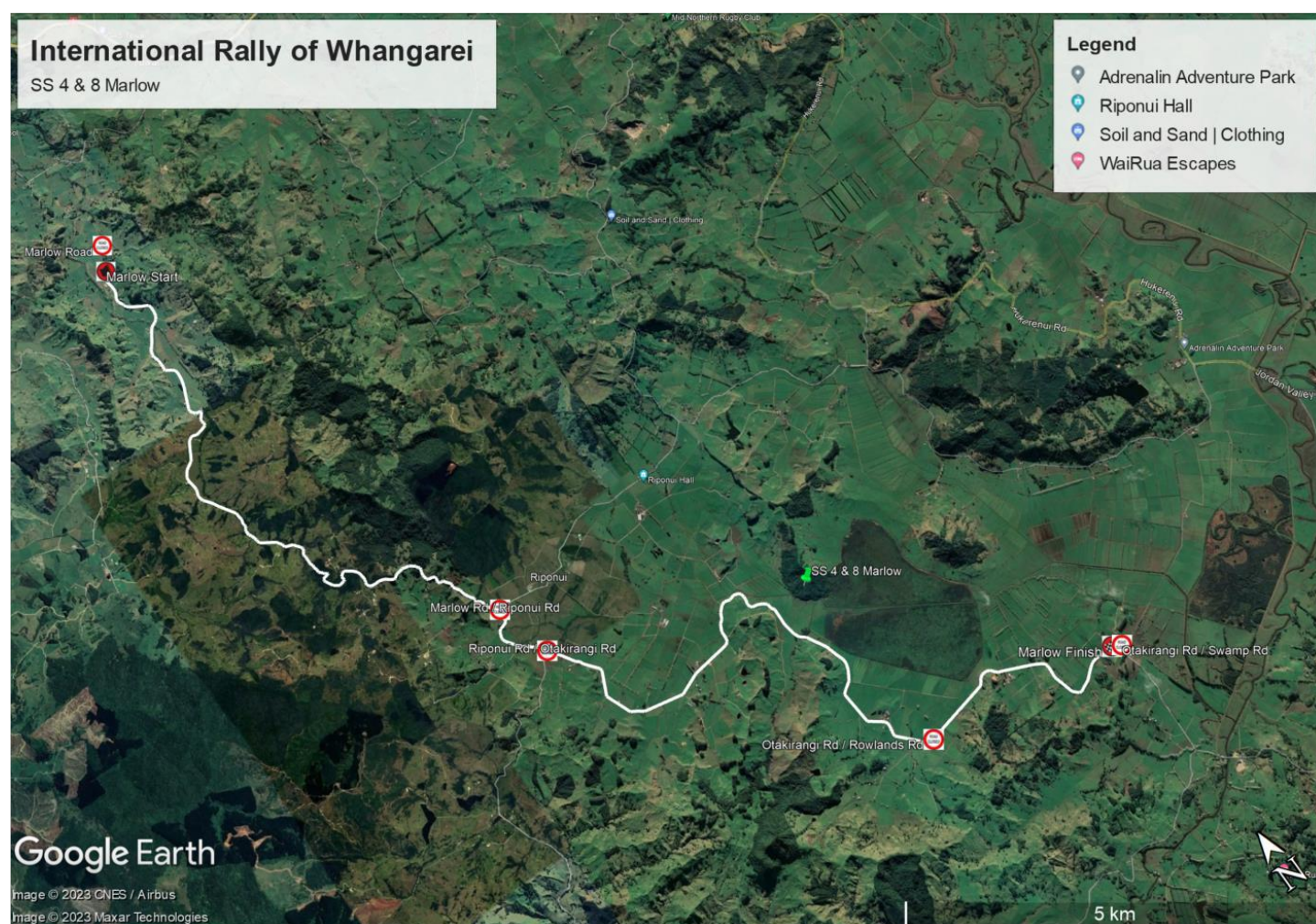
Riponui Road from Marlow Road to Otakairangi Road

Otakairangi Road from Riponui Road to Swamp Road

- including intersection/s with
 - Rowlands Road (No Exit)

Period of Closure 07:55 – 12:10hrs and 13:10 – 16:55hrs

Estimated Number of Cars: 60



International Rally of Whangarei | 08-10 Nov 2024

SATURDAY 09th NOVEMBER 2024

SSS9 & SSS10 POHE ISLAND

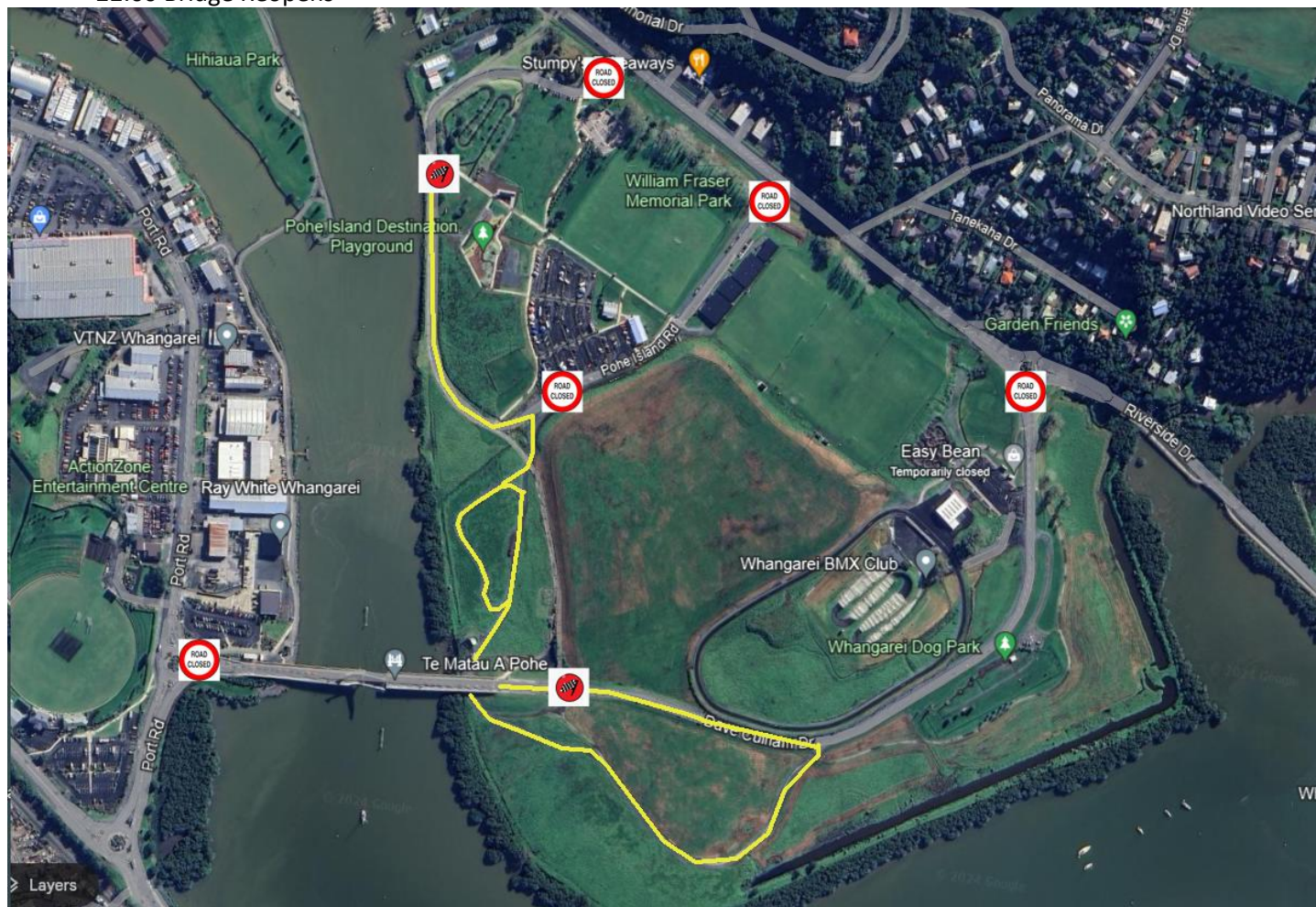
Te Matau a Pohe Bridge

Pohe Island Walkway

Dave Culham Drive from Port Road to Riverside Drive.

Period of Closure from 14:00 to 22:00hrs

22:00 Bridge Reopens



International Rally of Whangarei | 08-10 Nov 2024

SUNDAY 10TH NOVEMBER 2024

SS11 & 15 OTUHI – AS PER MAP

Otuhu Rd from SH14 to Codlin Road

Codlin Rd from Otuhu Road to Tangihua Road

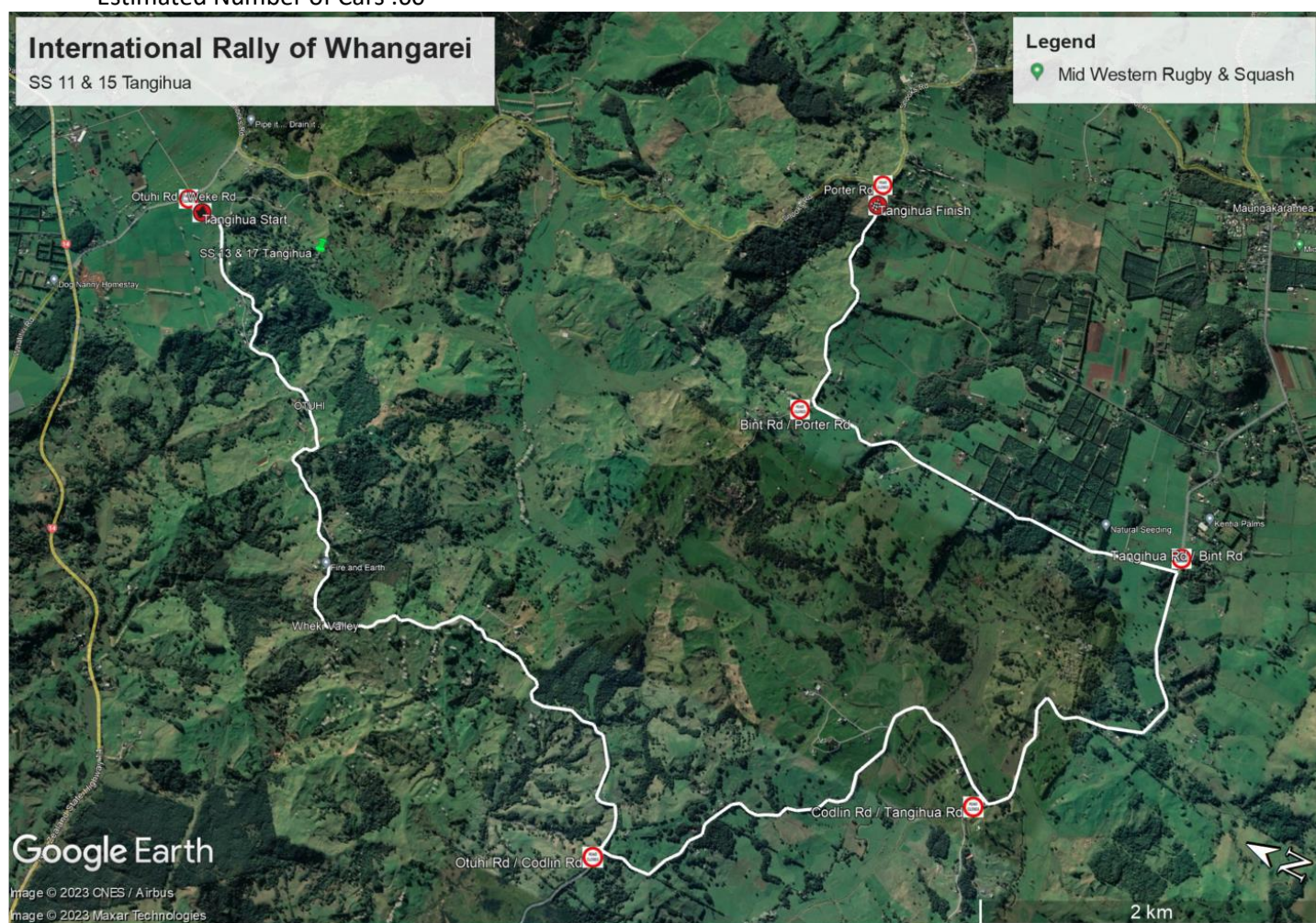
Tangihua Road from Codlin Road to Bint Road

Bint Road from Tangihua Road to Porter Road

Porter Road from Bint Road to Snooks Road

Period of Closure: 05:30 to 15:00hrs

Estimated Number of Cars :60



International Rally of Whangarei | 08-10 Nov 2024

SUNDAY 10TH NOVEMBER 2024

SS 12 & 16 WAIOTIRA – AS PER MAP

Ararua Road from Mititai Road to Hartnell Road

- including intersection/s with
 - Wood Street (No Exit)

Hartnell Road from Ararua Road to Stead Road

Stead Road Hartnell Road to Taipuha Road

Taipuha Road from Stead Road to Neville Road

Neville Road from Taipuha Road to Hosking Road

- including intersection/s with
 - Harrison Road

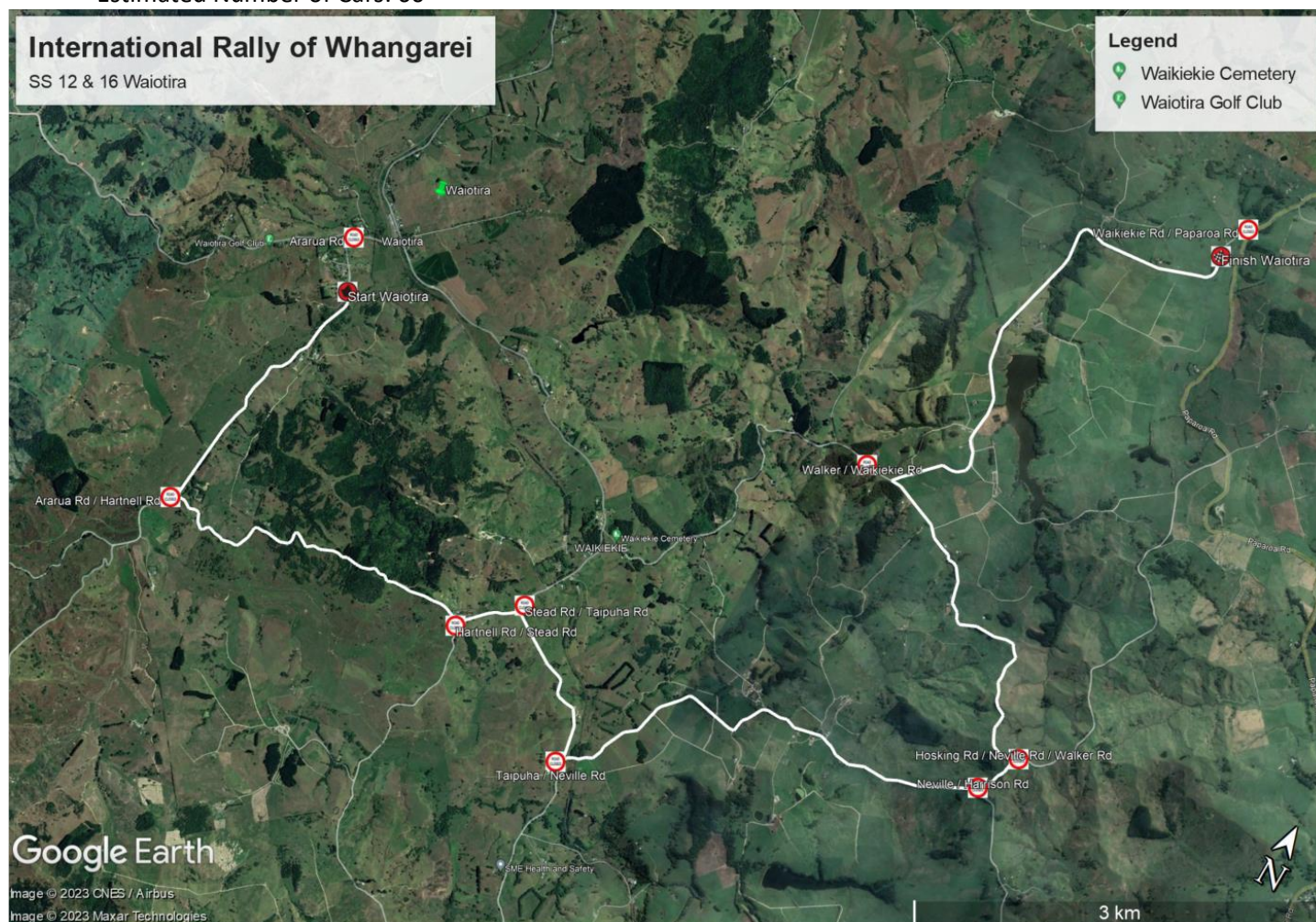
Hosking Road closed at intersection of Neville Road and Walker Road

Walker Road from Hosking Road to Waikiekie North Road

Waikiekie North Road from Walker Road to Paparoa Road

Period of Closure: 06:00 – 15:00

Estimated Number of Cars: 60



International Rally of Whangarei | 08-10 Nov 2024

SUNDAY 10TH NOVEMBER 2024

SS 13 & 17 DURHAM – AS PER MAP

Waipu Gorge Road from Whangārei District Council Waipu Gorge Road Boundary to SH1

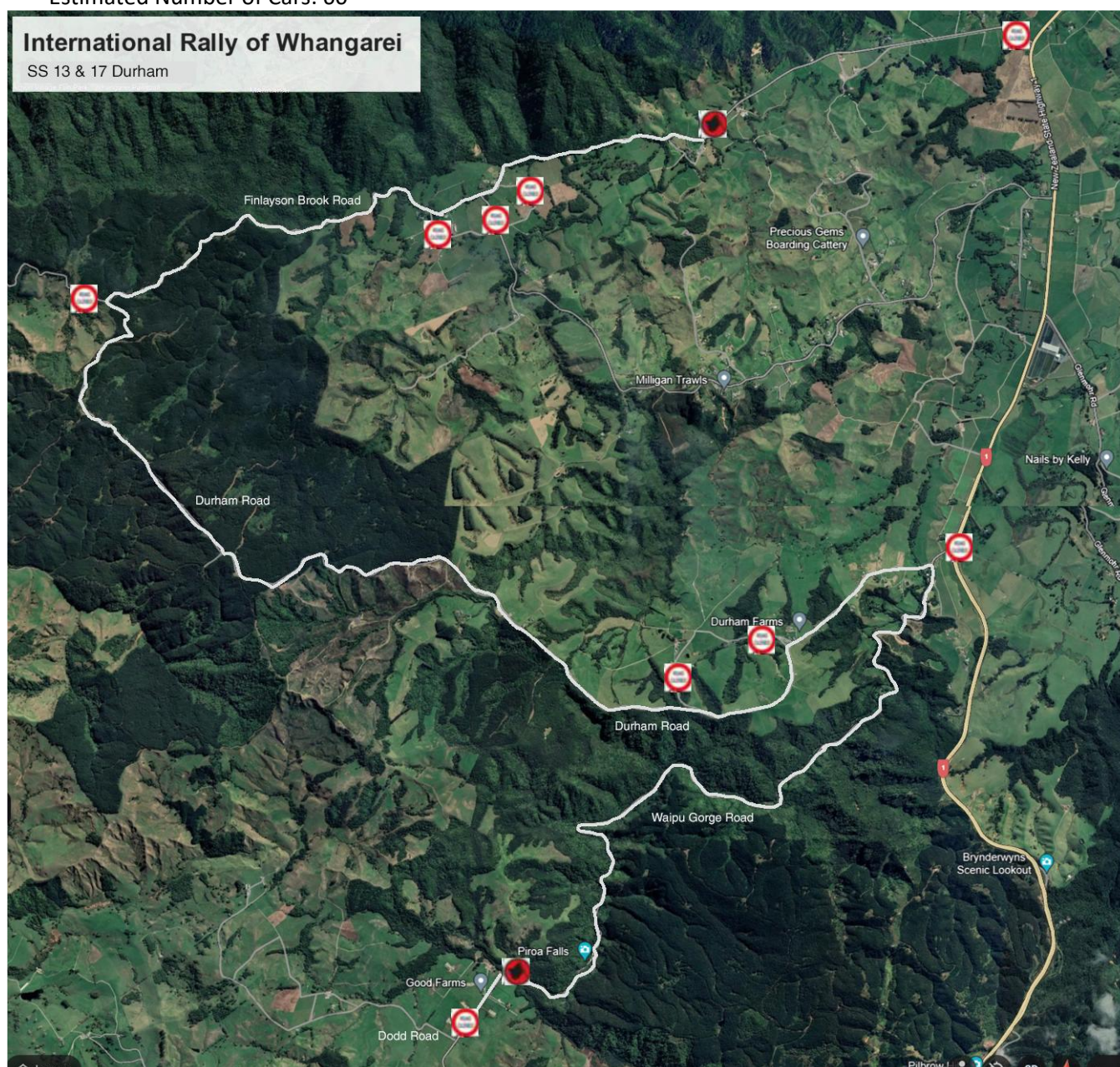
Durham Road from Waipu Gorge Road to Finlayson Brook Road

Finlayson Brook Road from Durham Road to SH1

- including intersection/s with
 - Brooks Road

Period of Closure: 07:30 – 16:00hrs

Estimated Number of Cars: 60



International Rally of Whangarei | 08-10 Nov 2024

SUNDAY 10TH NOVEMBER 2024

SS14 & 18 WAIPU CAVES – AS PER MAP

Waipu Caves Road from 878 Waipu Caves Road to intersection of Mangapai Caves Road & Springfield Road

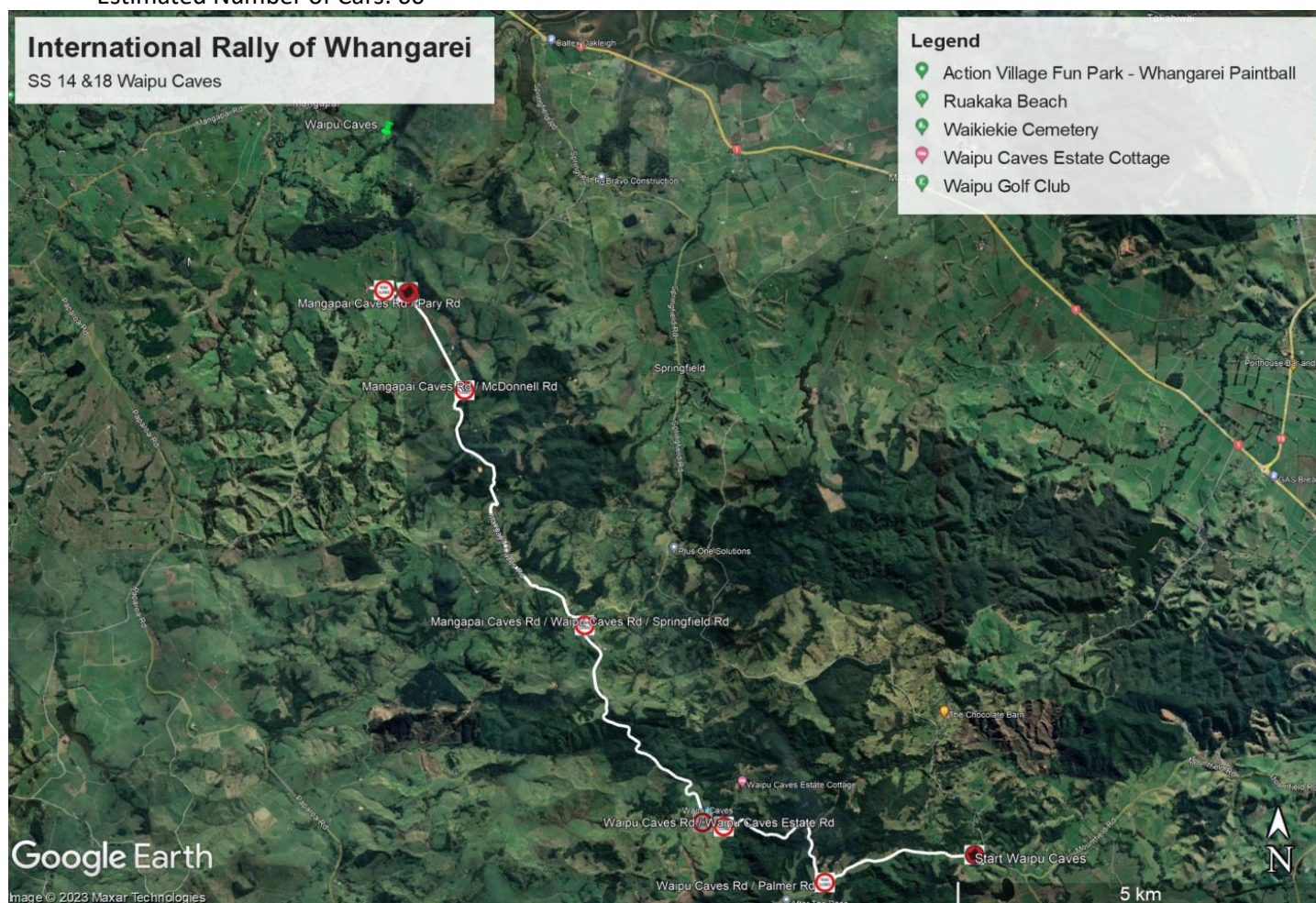
- including intersection/s with
 - Short Lane (No Exit)
 - Palmer Road (No Exit)
 - Waipu Caves Estate Drive (No Exit)
 - Boyd Road (No Exit)

Mangapai Caves Rd from the intersection of Waipu Caves Road & Springfield Road to the intersection of Graham Road & Mangapai Caves Road

- including intersection/s with
 - Rountree Road (No Exit)
 - McDonnell Road (No Exit)
 - Ngatoka Road (No Exit)
 - Parry Road (No Exit)

Period of Closure: 08:00 – 17:00hrs

Estimated Number of Cars: 60



International Rally of Whangarei | 08-10 Nov 2024

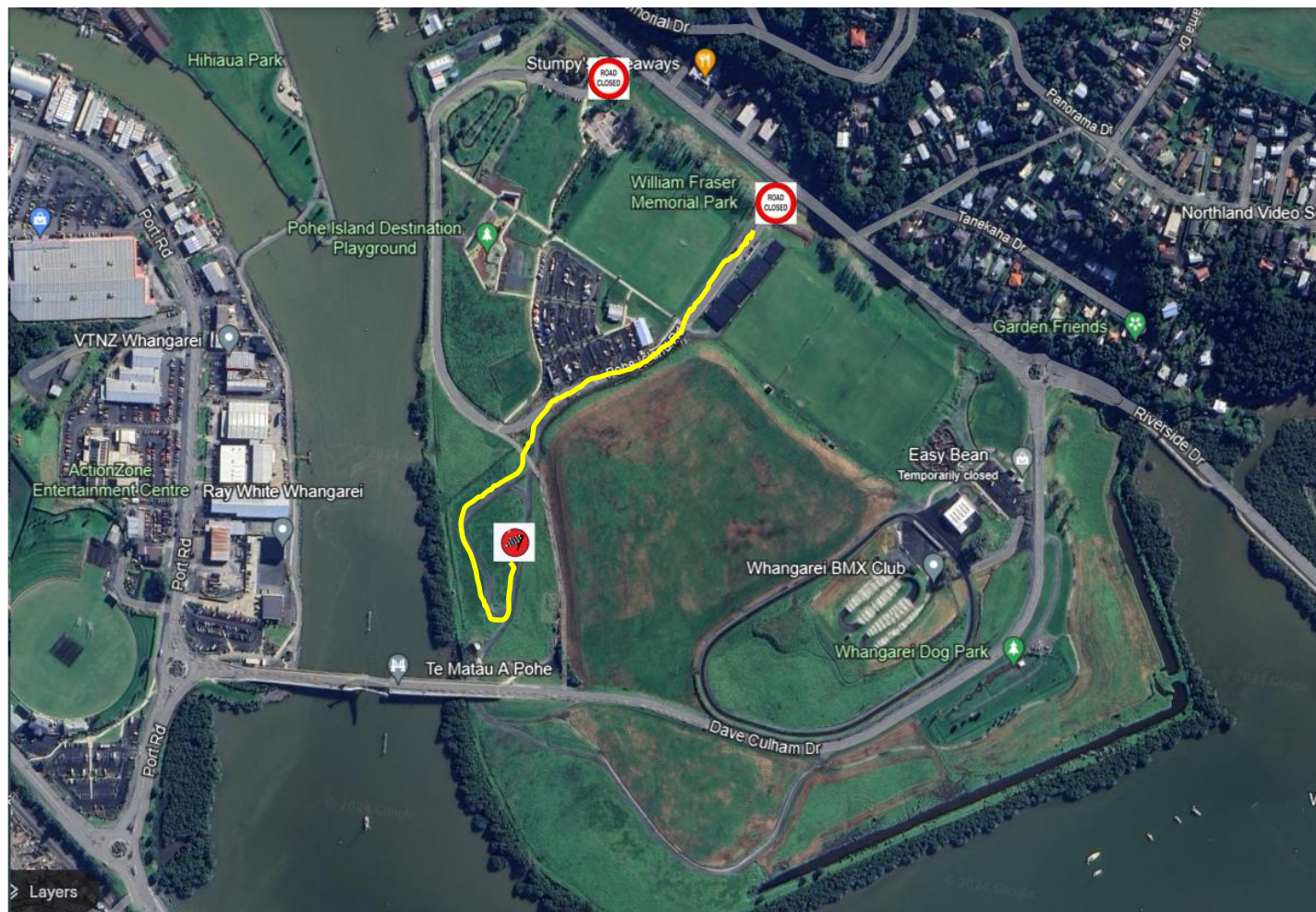
SUNDAY 10TH NOVEMBER 2024

CEREMONIAL FINISH

POHE ISLAND WALKWAY – as per application to WDC Venues & Events Team

Ceremonial finish will be on the jump on Pohe Island. The cars will drive in and park up, then go over the ramp.

Period of Closure from 14:00 to 18:00hrs Sunday 10th November 2024



International Rally of Whangarei | 08-10 Nov 2024

CONTACT US

Please contact Simon or Jim if you require any further information or representation to Council.

Yours sincerely



Simon Bell

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Jim Matangi

International Rally of Whangarei
p: 0276146493 | e: jim.matangi@gmail.com

Following Appendices:

1. Road Closure Timetable
2. Proposed Event Maps – Day One
3. Proposed Event Maps – Day Two
4. Proposed Event Route & Speed Schedule – Day One
5. Proposed Event Route & Speed Schedule – Day Two
6. Public Liability Insurance Certificate

International Rally of Whangarei | 08-10 Nov 2024
1 - ROAD / LOCATION CLOSURE TIMETABLE

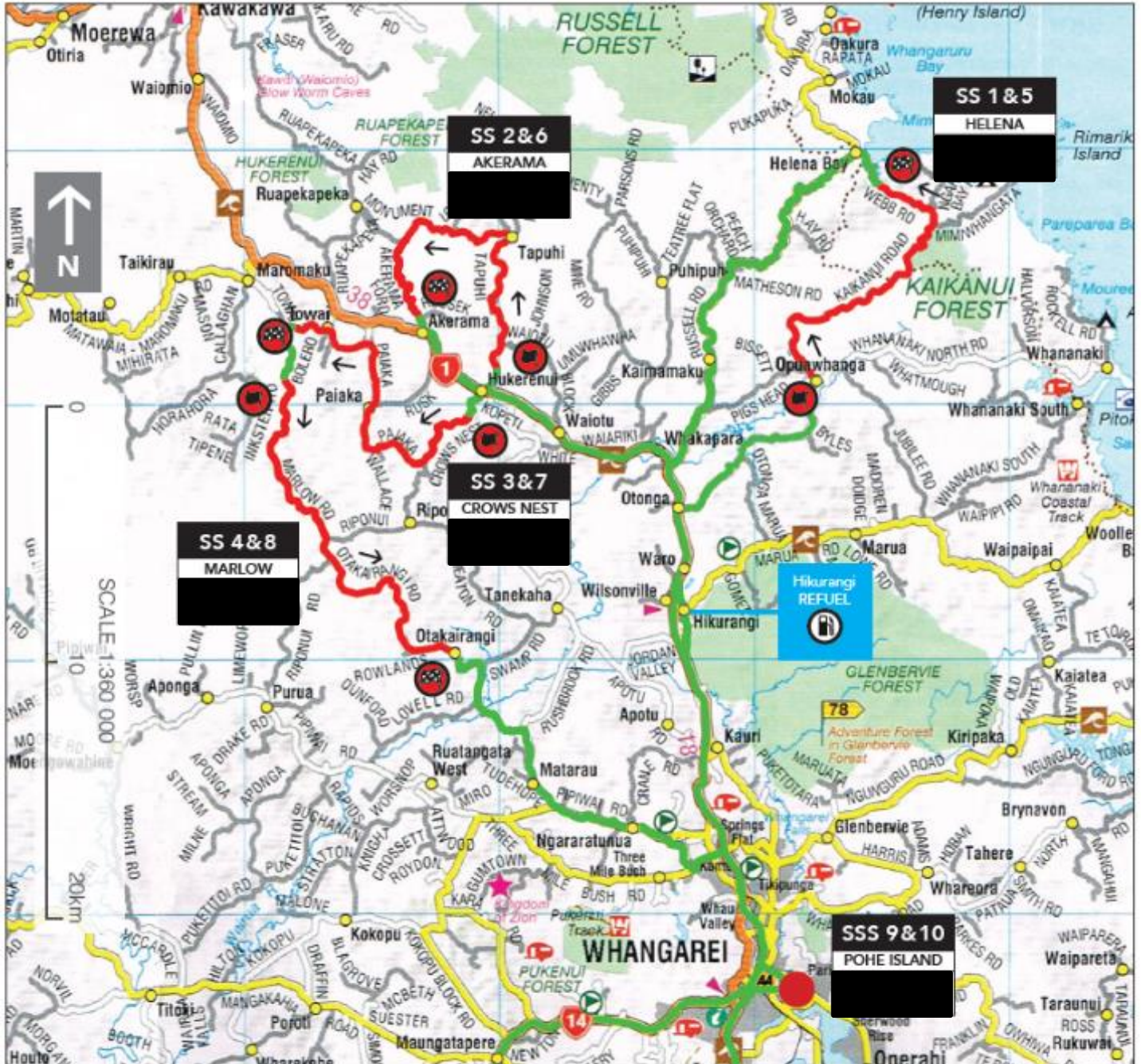
SS / EVENT	Name	Km	1st car	Closure Time	Council
WEDNESDAY 06 NOVEMBER 2024					
Pre-Event Test Stage	Test Stage		9:00	08:00 - 17:00	Whangarei DC
Pohe Island Service Park	Service Park Closure		0:00	8am Wednesday 06th to 8pm Sunday 10th November	Whangarei DC
FRIDAY 08 NOVEMBER 2024					
Pohe Island Shakedown	Pohe Island & Dave Culham Drive		12:55	10:00 – 15:00 (Stop & Go Only)	Whangarei DC
Official Rally Start	Cameron Street		17:30	15:00 - 19:00	Whangarei DC
SATURDAY 09 NOVEMBER 2024					
1	Helena 1	14.60	6:40	05.10 – 09.25	Whangarei DC
2	Akerama 1	16.50	7:30	06.00 – 09.25	Far North DC
Refuel	Hikurangi Refuel & Meet the Drivers		8:21	07.00 - 15:00	Whangarei DC
3	Crows Nest 1	15.97	8:55	07.40– 11.40	Whangarei DC / Far North DC
4	Marlow 1	19.82	9:25	07.55 – 12.10	Whangarei DC / Far North DC
5	Helena 2	14.60	11:55	11:45 – 16.00	Whangarei DC
6	Akerama 2	16.50	12:50	11.25 – 15.25	Far North DC
Refuel	Hikurangi Refuel & Meet the Drivers		13:33	07.00 - 15:00	Whangarei DC
7	Crows Nest 2	15.90	14:10	12.55 – 16.40	Whangarei DC / Far North
8	Marlow 2	19.82	14:40	13.10 – 16.55	Whangarei DC / Far North DC
9	Pohe Island Super Stage 1	1.80	17:05	14.00- 22:00	Whangarei DC
10	Pohe Island Super Stage 12	1.80	18:28	14.00- 22:00	Whangarei DC
SUNDAY 10 NOVEMBER 2024					
11	Otuhi 1	13.80	7:05	05.30 - 15.00	Whangarei DC
12	Waiotira 1	16.40	7:46	06.00 - 15.30	Whangarei DC
13	Durham 1	21.30	8:59	07.30 – 16.00	Whangarei DC
14	Waipu 1	15.80	9:37	08:15 – 17:00	Whangarei DC
15	Otuhi 2	13.80	11:03	05.30 - 15.00	Whangarei DC

International Rally of Whangarei | 08-10 Nov 2024

16	Waiotira 2	16.40	12:40	06.00 - 15.30	Whangarei DC
17	Durham 2	21.30	13:57	07.30 – 16.00	Whangarei DC
18	Waipu 2	15.80	14:34	08:15 – 17:00	Whangarei DC
Finish	Pohe Island		15:27	14:00 - 18:00	Whangarei DC

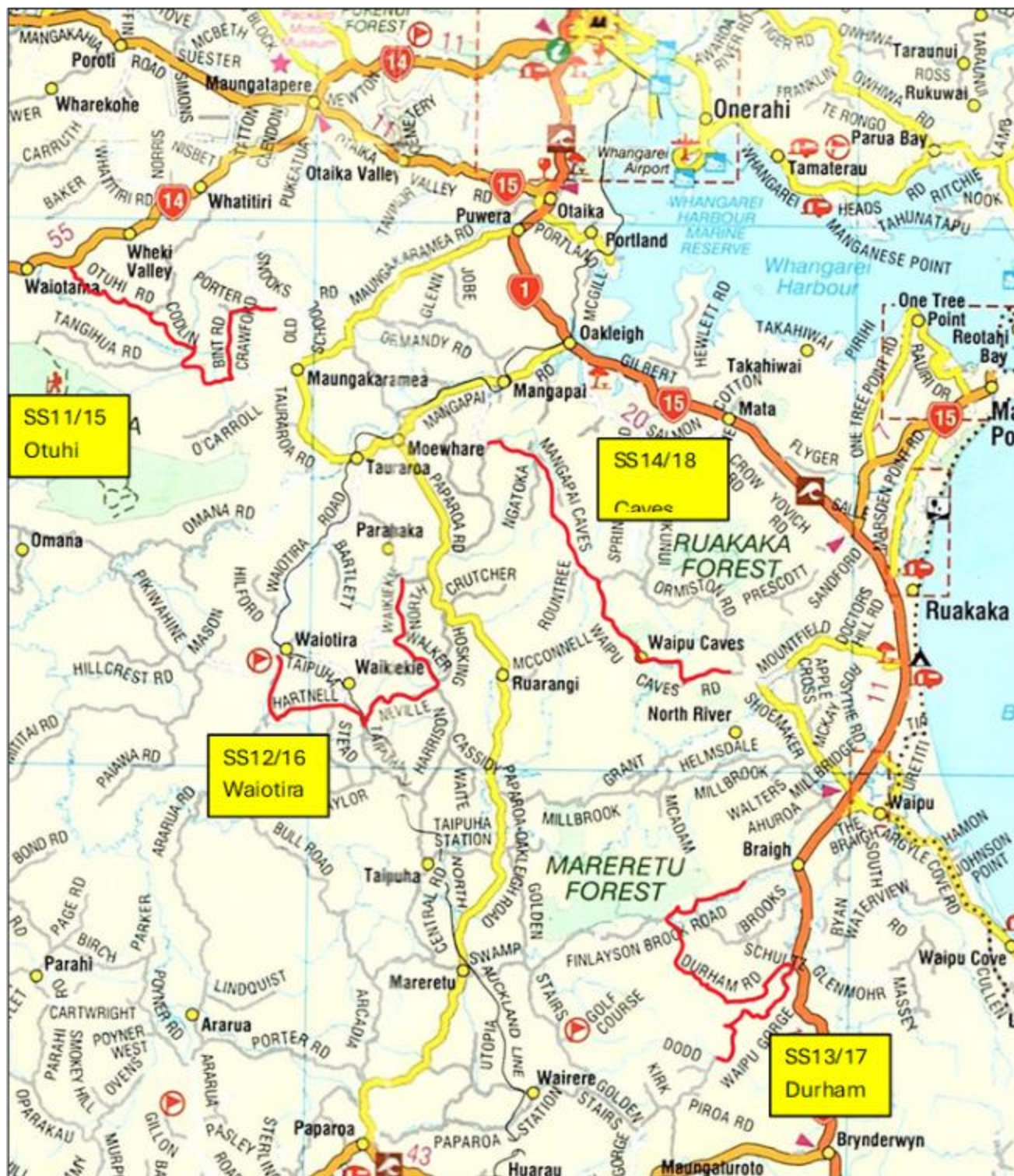
International Rally of Whangarei | 08-10 Nov 2024

2 - PROPOSED ROAD CLOSURE MAPS – DAY ONE



International Rally of Whangarei | 08-10 Nov 2024

3 - PROPOSED ROAD CLOSURE MAPS – DAY TWO



International Rally of Whangarei | 08-10 Nov 2024

4 - EVENT SCHEDULE – DAY ONE (draft)

INTERNATIONAL RALLY OF WHANGAREI – Day One					V1 30062024	
TC	Location	Distances			Target Times	1 st Car Due
SS		SS	Liaison	Total		
SHAKEDOWN						
Friday:						
TC	Service Park Pohe Island					
SD	Shakedown Pohe Island	1.13	0.01	0.01		12:55
SD	Shakedown Pohe Island		1.21	2.34		13:00
SD	Service Park Pohe Island					
SD totals		1.13	1.22	2.35		
CEREMONIAL START						
Friday						
	Ceremonial Start - Cameron Street					17:30
Start LEG 1 SECTIONS 1 & 2						
Saturday						
0	Start – Pohe Island					6:00
RA1	Refuel at Building and Fire, Kioreroa Rd					
	Distance to next refuel – RA2	(28.75)	(91.06)	(119.81)		
1			38.00	38.00	0:45	06:45
SS1	Helena 1	13.56			0:03	06:48
2			32.55	46.11	0:50	07:38
SS2	Akerama 1	15.19			0:03	07:41
2A	Hikurangi Regroup/Refuel & Meet the Drivers IN*		20.51	35.70	0:40	08:21
2B	Hikurangi Regroup/Refuel & Meet the Drivers OUT				0:15	08:36
RA2	Remote Refuel at Hikurangi					
	Distance to next refuel – RA3	(35.73)	(49.81)	(85.54)		
3			18.44	18.44	0:25	09:01
SS3	Crows Nest 1	16.07			0:03	09:04
4			2.47	18.54	0:25	09:29
SS4	Marlow 1	19.66			0:03	09:32
4A	Parc Fermé IN		26.41	46.07	0:50	10:22
4B	Parc Fermé OUT / Flexi Service IN					
	Flexi Service A – Pohe Island	(64.48)	(138.38)	(202.86)	0:20	
4C	Flexi Service A OUT/Parc Fermé IN					
4D	Parc Fermé OUT					11:12
RA3	Refuel at Building and Fire, Kioreroa Rd					
	Distance to next refuel – RA4	(28.75)	(93.67)	(122.42)		
5			38.00	38.00	0:45	11:57
SS5	Helena 2	13.56			0:03	12:00
6			32.55	46.11	0:50	12:50
SS6	Akerama 2	15.19			0:03	12:53
6A	Hikurangi Regroup/Refuel & Meet the Drivers IN*		20.51	35.70	0:40	13:33
6B	Hikurangi Regroup/Refuel & Meet the Drivers OUT				0:15	13:48
RA4	Remote Refuel at Hikurangi					
	Distance to next refuel – RA5	(38.03)	(59.17)	(97.20)		
7			18.44	18.44	0:25	14:13
SS7	Crows Nest 2	16.07			0:03	14:16
8			2.47	18.54	0:25	14:41
SS8	Marlow 2	19.66			0:03	14:44
8A	Parc Fermé IN		26.41	46.07	0:50	15:34
8B	Parc Fermé OUT / Flexi Service IN					
	Flexi Service B – Pohe Island	(64.48)	(138.38)	(202.86)	0:45	
8C	Flexi Service OUT/ Parc Ferme In					
8D	Parc Ferme Out					17:04
9			3.90	3.90	0:08	17:12
SS9	Pohe Island 1	1.28			0:03	17:15
9A	Neutralisation In* Te Matau ā Pohe		3.90	5.18	0:10	17:25
9B	Neutralisation Out				1:00	18:25
10			0.10	0.10	0:10	18:35
SS10	Pohe Island 2	1.28			0:03	18:38
10A	Over Night Parc Fermé IN*		3.90	5.18	0:08	18:46
Leg 1 Totals		131.50	288.56	420.06		
*Early Check In is permitted						
			Sunrise	06:19	Sunset	19:53

International Rally of Whangarei | 08-10 Nov 2024
5 - EVENT SCHEDULE – DAY TWO (draft)

INTERNATIONAL RALLY OF WHANGAREI. Day Two – V1 30062024							
TC SS	Location	SS Dist.	Liaison Dist.	Total Dist.	Target Time	1 st Car Due	
LEG 2 - SECTIONS 4 & 5							
Sunday							
10B	Parc Fermé OUT Porowini Ave					06:00	Section 4
10C	Service C IN		3.58	3.58	0:06	06:06	
	Service C – Pohe Island	(2.30)	(9.36)	(11.66)	0:16		
10D	Service C OUT					06:22	
RA 5	Refuel at Building and Fire, Kioreroa Rd Distance to next refuel – RA6	(13.80)	(45.76)	(60.06)			
11			27.20	27.20	0:40	07:02	
SS 11	Otuhi 1	13.80				07:05	
RA 6	Remote Refuel at Waiotira Distance to finish	(53.50)	(47.22)	(100.72)			
12			19.00	32.80	0:38	07:43	
SS 12	Waiotira 1	16.40				07:46	
13			46.60	63.00	1:10	08:56	
SS 13	Durham 1	21.30				08:59	
14			10.90	32.20	0:35	09:34	
SS 14	Waipu Caves 1	15.80				09:37	
14A	Parc Fermé IN		22.60	38.40	0:42	10:19	
14B	Parc Fermé OUT / Flexi Service IN						Section 5
	Flexi Service D – Pohe Island	(67.30)	(126.30)	(193.60)	0:30		
14C	Flexi Service OUT / Parc Fermé IN						
14D	Parc Fermé OUT					11:20	
RZ 7	Refuel at Building and Fire, Kioreroa Rd Distance to next refuel – RA8	(13.80)	(45.76)	(60.06)			
15			27.20	27.20	0:40	12:00	
SS 15	Otuhi 2	14.40				12:03	
RZ 8	Remote Refuel at Waiotira Distance to Finish	(53.50)	(47.22)	(100.72)			
16			18.46	32.86	0:40	12:40	
SS 16	Waiotira 2	16.40				12:43	
17			46.60	63.00	1:10	13:53	
SS 17	Durham 2	21.30				13:57	
18			10.90	32.20	0:35	14:31	
SS 18	Waipu Caves 2	15.80				14:34	
18A	Service E IN *		22.35	38.40	0:42	15:16	
	Service E – Pohe Island	(67.30)	(126.30)	(193.60)	0:11		
18B	Service E OUT / Finish Holding Area IN *					15:27	
	Ceremonial Finish –		1.39	1.39	0:06	15:33	
	Final Parc Fermé IN –					15:30	
	Leg 2 Totals	134.60	252.60	387.20			
*Early arrival is permitted			<i>Sunrise</i>	<i>06:17</i>	<i>Sunset</i>	<i>17:55</i>	

TOTALS OF THE RALLY	SS	Liaison	Total		* %
Leg 1 – Saturday 13 May	131.50	288.56	420.06		31.30
Sections 1 & 2					
Leg 2 – Saturday Evening/Sunday 14 May	134.60	252.60	387.20		34.76
Sections 3, 4 & 5					
Total – 18 SS	266.10	541.16	807.26		35.27

International Rally of Whangarei | 08-10 Nov 2024

6 – Public Liability Insurance Certificate



Level 32, ANZ Centre
23-29 Albert Street
Private Bag 92055
Auckland 1142, New Zealand
Telephone +64 9 306 0350
www.veroliability.co.nz

Insurance Certificate		Client ID	Agent No
Public & Products Liability		43826	8000014

We, the Insurers, Vero Liability Insurance Limited confirm that Public & Products Liability insurance has been effected on the following basis:

POLICY NUMBER	HO-LPL-6171359		
THE INSURED	Motorsport New Zealand Inc and Member Clubs in respect of Permitted Events Only		
BUSINESS DESCRIPTION	Administration, Governance and Regulation of Motor Sport in New Zealand		
POLICY PERIOD	From	4.00pm	31 December 2023
	To	4.00pm	31 December 2024
LIMIT OF INDEMNITY	\$ 10,000,000	any one Occurrence and for any one Period of Insurance in respect of Products Hazard	
EXCESS	\$ 3,500	per Occurrence	
POLICY WORDING	VL POL PL-032022		
FIRE PROTECTION COSTS	Limit of Indemnity \$2,000,000 any one claim and in the annual aggregate, subject to an excess of \$3,500 each and every claim		

This certificate is issued as a matter of information only and is subject to the terms and conditions of the issued policy.
Signed for and on behalf of Vero Liability Insurance Limited



Authorised Officer
DTL



15 December 2023

6.4 Adoption of the draft Whangārei Future Development Strategy for public consultation

Meeting: Whangarei District Council

Date of meeting: 25 July 2024

Reporting officer: Hamish Sykes (Senior Strategic Planner)
 David Mitchell (Team Leader – Strategy)

1 Purpose / Te Kaupapa

To adopt the draft Whangārei Future Development Strategy (FDS) and supporting documents for public consultation.

Recommendation/s / Whakataunga

That the Council:

1. Approves the draft Whangārei Future Development Strategy (**Attachment 1**) for public consultation via the Special Consultative Procedure pursuant to section 83 of the Local Government Act 2002.
2. Approves the draft Whangārei Future Development Strategy Technical Report (**Attachment 2**) for public consultation.
3. Delegates the Chief Executive to make any necessary formatting, typographical and administrative changes to the draft Whangārei Future Development Strategy and the draft Whangārei Future Development Strategy Technical Report prior to public consultation.
4. Notes that Northland Regional Council will be considering approving the draft Whangārei Future Development Strategy and the draft Whangārei Future Development Strategy Technical Report for public consultation on 23 July 2024.

3 Background / Horopaki

3.1.1 Whangarei District Council and Northland Regional Council are required to prepare an FDS

The National Policy Statement – Urban Development 2020 (NPS-UD) requires every tier 1 and 2 local authority to prepare an FDS. If more than one tier 1 or tier 2 local authority has jurisdiction over a tier 1 or tier 2 urban environment, those local authorities are jointly responsible for preparing an FDS. Whangarei District Council (WDC) is identified as a tier 2 Council and is required to jointly prepare and adopt the FDS with Northland Regional Council (NRC).

3.1.2 A Working Group was established to provide oversight and direction for the development of the FDS

The FDS Working Group have provided leadership on behalf of WDC, NRC, and ngā hapū o Whangārei. The Working Group have been meeting frequently during the process. Contributions made by each Working Group member should not be understated particularly as all involved members hold a number of other responsibilities. This has ensured staff have received clear direction throughout the preparation of the FDS.

3.1.3 In preparing the FDS, Council is required to engage with other relevant councils, central government, hapū and iwi, infrastructure providers, and the development sector

Hapū and a range of stakeholders have participated and have informed the development of this FDS. Engagement has informed key stages of the FDS including the strategic objectives and the scenario process. Further details is provided in the following sections of the draft Whangārei Future Development Strategy Technical Report:

- Early Engagement: page 11 – 25
- Scenario Development Process: page 69 – 98 and
- Appendix B: Hapū feedback report 114 – 140

3.1.4 The NPS-UD clearly states Council must formally consult with the community through the special consultative procedure

When preparing an FDS, the NPS-UD states Council must use the Special Consultative Procedure in section 83 of the Local Government Act.

3.1.5 FDS Formal Consultation Plan

From 3 August to 2 September, WDC and NRC are undertaking public consultation on the FDS. Key topics identified for consultation include:

1. Supporting greater housing choices.
2. Supporting local businesses and community to prosper.
3. Delivering greater transport choices through public transport, walking and cycling.
4. Achieving long-term outcomes with infrastructure.
5. Our approach to growth.

Details of the public consultation are being worked through. At the time of writing, there will be specific hui with hapū. Drop-in sessions will be made available to connect with the community and staff acknowledge that more tailored engagement might be required for businesses and other groups such as Ratepayers and Residents associations. Other engagement avenues and tools will also be applied to increase the visibility of the FDS. These will build on the existing communications shared on social media over previous months to introduce the FDS and the key topics to the community and to build engagement. These social media activations were very well received.

4 Discussion / Whakawhiti kōrero

4.1.1 Summary of the FDS

The Whangārei FDS provides for greater choices for people to live the way they may want to or need to. It does this by enabling a shift in development options from existing trends of urban fringe, to include over time focused development in existing or zoned urban areas. This is aligned with infrastructure delivery set out in the 2024-2027 Long Term Plan and the 2024-2054 Infrastructure Strategy. The FDS enables more house types, and more opportunities for

business to establish and succeed, backed by waters infrastructure (wastewater, drinking water and stormwater) and an improved transport network of roads, public and active (walking and cycling) transport options.

4.1.2 FDS Vision

The vision statement sets out an overarching purpose for Whangārei's FDS. The vision statement is directly based on the four wellbeing's (social, environmental, economic, and cultural wellbeing). These aspects of community wellbeing are aligned with and support the purpose of local government under the Local Government Act (LGA).

Growth planned for the betterment of our environment and future generations.

Healthy, inclusive, connected communities, with diverse and rewarding education and employment. Industry and businesses are thriving, driving a prosperous economy. We care for, restore and enjoy our natural environment. We uphold a culture of respect and generosity, guided by our local stories, Tikanga, and Te Tiriti o Waitangi.

4.1.3 FDS strategic objectives

The strategic objectives define the priorities and goals that the FDS sets out to achieve. The objectives have been used to develop, assess, and compare desired outcomes of different spatial scenarios.

- **Resilient and equitable access:** People can safely access their home, employment, parks, the natural environment, and community services by multiple transport modes.
- **Housing choices:** Whangārei supports pathways for people to secure a home that meets their needs in terms of type, size, location and affordability.
- **Lifting the life force / mauri of our environment:** A thriving environment where ecosystems and our relationships to them are maintained and enhanced over time.
- **Cultural recognition:** Cultural heritage, identity and diversity is protected and celebrated.
- **Employment pathways:** Economic, employment and education opportunities are available throughout Whangārei to ensure business and community needs are met.
- **Emissions reduction:** Climate change mitigation is reflected in our planning and development decisions as we move towards net zero emissions by 2050.
- **Resilient developments:** Our communities are resilient in a changing climate through limiting exposure to natural hazards.

4.1.4 Development Principles

Delivery of the FDS will take time, many iterations of decisions and long-lasting collective will. To guide delivery, Development Principles are introduced, providing a value-based approach to managing growth across the District. The Development Principles are:

1. The City Centre is the focus for the District. It is the economic, social, and cultural heart. Development and infrastructure are prioritised here.
2. The Primary Growth Corridor accommodates a significant portion of the new development over the 30-years. Enabling this growth is done by coordinated planning and infrastructure investment extending from the city centre to Te Kamo.
3. Whangārei District's urban centres serve as hubs for local communities with new housing and services. This will be supported by infrastructure delivery aligned with the Primary Growth Corridor.
4. Whangārei District's rural and coastal settlements are developed to existing planned capacity and Council investment ensure services are maintained or improved to meet the standards included in Council's Long Term Plan.

5. There will be limited further urban expansion into rural areas (unless legislation directs otherwise).
6. Development in previously identified Future Urban Zones and greenfield areas are phased beyond the long-term. Council infrastructure investment will not prioritise these areas but instead are developer led.

4.1.5 Priority Development Areas

These are the main focus areas of the FDS. These areas will accommodate majority of Whangārei's future housing and business activity of the next 30-years. The focused approach to infrastructure and development accelerates growth and change in these destinations.

The Priority Development Areas consists of:

- City Centre: The inner urban part of the District.
- Primary Growth Corridor: A highly urbanised corridor between the Avenues, across the city centre, up through Kensington and including Te Kamo.
- Urban centres: Key surrounding centres that enable urban lifestyles, including Marsden / Ruakākā, Tikipunga, Onerahi, Raumanga and Otangarei.

City Centre

Whangārei city centre is the economic, cultural, and social hub for Te Tai Tokerau. The city centre is the priority area for future economic growth and development. It offers high density housing and mixed-use lifestyle choices, connected to key transport links. A strong commercial presence, and the increased number of people living in the City Centre support businesses and the community to have confidence in Whangārei. The city centre promotes a premier arts and cultural experiences, where identity and culture are present and celebrated.

Key transformational moves including the Knowledge Precinct, a revitalised blue green network, and the fulfilment of the Hihiaua Cultural Centre vision all enhance the city centre's sense of identity, attracting people and long-term investment.

Primary Growth Corridor

The Primary Growth Corridor, a concept introduced through the FDS, outlines the area of most significant change over the next 30-years. It stretches from Whangārei Hospital, through Woodhill, the City Centre, Regent and Kensington up to Te Kamo. This growth is oriented around key transport infrastructure:

- The central multi-modal transport spine of Kamo Road, Banks Street, and Maunu Road; and
- The 'potential' future passenger rail line going from the City Centre to Regent, Kensington, Whau Valley, and Te Kamo.

The Primary Growth Corridor, connected via improved transport options, links a series of key centres. The FDS enables higher density residential and mixed-use development, within the walking catchment of those key centres, as well as shared paths and bus routes. This development in turn supports an increased uptake of active modes (walking and cycling) as well as public transport.

Urban centres

Whangārei's urban centres are priority investment areas for key services, amenities, and public spaces. They enable medium density, affordable and efficient housing types including townhouses, terraces, and apartments. This supports improved access to a range of lifestyle choices. Infrastructure servicing enables increasing growth in these centres.

These centres have high quality public spaces and community amenities, offering high quality urban living opportunities. The FDS enables urban design improvements, as well as interweaving arts and culture creating welcoming and distinct places to live.

Frequent public transport services are available along the Primary Growth Corridor, and also link to key centres of Tikipunga, Otangarei, Raumanga, Onerahi, and Marsden City. This higher quality public transport enhances access to education, employment, and everyday amenities.

4.1.6 Rural, coastal and greenfield areas

Whangārei District has a number of established rural and coastal settlements which are small and diverse in location and community. The FDS aims to limit urban expansion into existing rural and coastal areas beyond what has already been planned for.

Townships

Whangārei's townships provide a mix of commercial, retail and community facilities to support communities in the outer areas of Whangārei. Urban growth is to be limited to the current zoned capacity ensuring townships are developed to a scale where local character is preserved and celebrated.

Housing mostly consists of single storey detached homes. In the long-term, a small proportion of terrace homes are delivered nearby the local centre, catering to changing demands within these townships. Public transport is provided in these destinations but not at the same capacity or frequency as Whangārei's urban centres.

Rural and coastal settlements

Expansion of Whangārei's rural and coastal settlements is limited. Protection of highly productive soils, building Whangārei's long-term resilience and a fragile infrastructure network are all contributing factors. Rural and coastal settlements serve wider community access to local schools, community halls, marae, sports centres, shops and recreational facilities.

Climate adaptation plans are developed and implemented over time alongside community and hapū to build long-term resilience to severe weather events, coastal erosion and sea level rise. Public transport services are tailored to meet the needs of rural, isolated and dispersed communities.

Greenfield expansion

Servicing previously identified greenfield areas for future expansions is not a priority for the FDS. Identified future urban expansion areas will remain as they are currently and will require developer led investments and solutions. The FDS proposes a three-step approach to better management and provision of greenfield development.

1. Funding-led land release: The release of new land will be phased on the provision of funded infrastructure.
2. Cost recovery: Costs of providing infrastructure for new development in greenfield areas will be recovered through financial mechanisms.
3. Structure Plan large areas before development: Large areas of greenfield and future urban land requires structure planning

4.1.7 Regionally Significant Infrastructure Assets

This section of the FDS outlines large scale infrastructure projects and their role in contributing to the FDS outcomes. It informs how Council can contribute to the delivery and safeguarding of regionally significant assets. Significant projects acknowledged in the FDS includes:

- State Highway 1 and the regional rail corridor.
- Northport.

- Whangārei District Airport.
- Whangārei Base Hospital and State Highway 14 improvements.

4.1.8 Staging the FDS

The FDS must consider the growth of Whangārei over a 30-year timeframe. The FDS is delivered over three stages, aligning with the NPS-UD.

- Short-term: (1 – 3 years)
- Medium-term: (4 – 10 years)
- Long-term: (11 – 30 years)

The timeframes and the expected development outcomes are:

- **Short term:** Growth will broadly continue to happen as it currently does. However, during this time, investments in infrastructure, services and amenities can be reprioritised to focus on enabling the FDS.
- **Medium-term:** Shifts will start to occur in delivery, impacting people's preferences. This will increase growth along Whangārei's Priority Development Areas. This also coincides with further focussed investments.
- **Long-term:** The FDS can be fully realised with greater housing development and options available to residents within the Priority Development Areas.

4.1.9 Draft Hapū Aspiration Statement

The NPS-UD requires the FDS to include a clear statement within it of hapū values and aspirations for urban development. A dedicated Hapū Technical Roopu was established to support the drafting process of the Hapū Aspiration Statement¹. The Draft Hapū Aspiration Statement can be found on page 18 – 21 in the FDS.

The preparation of the Hapū Aspiration Statement was informed by kōrero and minutes from multiple hui with hapū throughout the FDS process. These minutes are recorded in Appendix B of the Technical Report (pages 114 – 140). The Hapū Aspiration Statement was delivered through a five stage approach outlined in the Draft Technical Report (page 17).

4.1.10 On the 12 June 2024, staff sought feedback on the draft FDS from Councillors

New additions and changes were made to the FDS in response to Elected Member feedback. Key changes have included:

1. Inclusion of potential improved transport link between the proposed airport location and State Highway 14.
2. Development of 3 new staging maps explaining how the FDS will be implemented through 3 stages, aligning with the NPS-UD.

Staff have held individual sessions for Elected Members on request, providing an additional opportunity to go through the FDS at greater detail.

4.1.11 Format and graphic changes

Final formatting and graphical changes to the draft Whangārei FDS will be made prior to public consultation commencing. Staff capacity has been constrained due to final changes to Council's Long Term Plan.

¹It is noted the hapū representatives were presented extremely tight deadlines to finalise the aspiration statement- for which WDC and NRC project team are appreciative of the commitments from the Technical Roopu.

4.1.12 Housing and Business Capacity Assessment

A Housing and Business Capacity Assessment (HBA) is a requirement for Councils under the NPS-UD to assess the zoned land for total and feasible development capacity (both for residential and business activities) with an operative District Plan. Council's HBA has been recently updated and shows that there is feasible capacity above the projected demand over the 30 years.

4.1.13 Going for Housing Growth

On Thursday 4 July 2024, Minister Bishop announced further updates to the Government's "Going for Housing Growth" programme. This update provided initial direction of new policy but was not the full detail of policy changes. This was also an agenda item at the Council Briefing on Wednesday 24 July 2024.

Overall, there is good alignment between the Government's announcement and the FDS. This includes:

- Already providing for sufficient capacity for 30 years of growth.
- Not having a rural-urban boundary lines in planning documents; and
- A greater use of mixed use zoning.
- Deliver housing intensification along 'strategic transport corridors'.

There are also many aspects of the announcement and future changes that do not impact Council, or are likely procedural changes.

4.1.14 Financial/budget considerations

The process of public consultation, particularly consultation that is meaningful, requires financial investment. Public consultation on the FDS is incorporated within the Strategy Department budget.

Implementation and review of the FDS may have financial or budget considerations that can be reviewed at final adoption of the Strategy, and also through future Long Term Plan and Annual Plan processes.

4.1.15 Policy and planning implications

The release of the FDS for public consultation has no policy or planning implications, and is a legislative requirement.

It should also be noted that the FDS has good alignment to the current Long Term Plan and Infrastructure Strategy.

4.1.16 Options

The Council can choose to either:

- Approve the draft Whangārei Future Development Strategy and the draft Whangārei Future Development Strategy Technical Report for public consultation as per the recommendation;
- Not approve the draft Whangārei Future Development Strategy and the draft Whangārei Future Development Strategy Technical Report for consultation. This option would still require consultation in the immediate future once issues are resolved, as consultation is a legislative requirement.

It should also be noted the FDS is also required to be approved by NRC. Approval is set for 23 July 2024.

4.1.17 Risks

The release of the draft Whangārei Future Development Strategy and the draft Whangārei Future Development Strategy Technical Report for public consultation this is a requirement in the process of developing an FDS. Potential risks and mitigations are outlined in the table below:

Risks	Mitigations
Staff resourcing: The internal project team is small and includes staff who already have involvement across a other intensive projects. This engagement will include additional over time following a busy work programme potentially impacting staff wellbeing.	The project team will need to ensure consultation commitments are achievable within the team's limitations. This will require managing priorities and focussing on consultation gaps.
Elected Member resourcing: The consultation events are open to Elected Members and some events will be of particular interest to Elected Members. This adds to a busy political calendar for Elected Members in terms of Council / Committee meetings.	The project team will aim to provide Elected Members with a confirmed calendar of consultation events as soon as possible.
Hapū resourcing: Resourcing limitations have been consistently identified as a major barrier for hapū participation in local government processes. Currently, there are several priority projects that Council is seeking hapū engagement on. This project compounds existing demands on hapū.	The project team have undertaken early engagement with hapū to inform the draft and have committed to hui at the beginning and end of the public consultation process. This timing provides space for hapū to view the draft and the Hapū Aspiration Statement, hui amongst themselves and then seek further detail if needed in a final hui. This risk remains one that is challenging to mitigate in the current circumstances.

Additionally, the FDS is well aligned to the current Long Term Plan and the Infrastructure Strategy.

The risks to Council of not adopting the FDS for consultation include:

- Signalling of lack of clear direction by Council
- Impact on relationships with stakeholders including government agencies and infrastructure providers
- Non-alignment with legislation
- Non-alignment with process to future Long Term Plans
- Impact to Council staff and other Council programmes if significant rework is required
- Potentially increased costs if significant rework is required

Additionally, as noted above, consultation would be required once issues are resolved.

5 Significance and engagement / Te Hira me te Arawhiti

The Council has reviewed and adopted the Significance and Engagement Policy as required under the Local Government Act. No decisions are being made at this time and the attachments within this agenda have no funding impacts.

Consultation on the FDS will be undertaken using the Special Consultative Procedure. Consultation will be undertaken from the 3 August to 2 September 2024.

6 Hearings process

Following the submission period, there will be a hearing process to allow submitters to speak to their submissions. In accordance with the approved FDS Working Group Terms of Reference (3 August 2023), the Working Group will consider the submissions received.

While the Working Group has the delegation to consider the submissions, Elected Members from both WDC and NRC can be present within the hearings and will have access to the summary of submissions. The Working Group can then make appropriate recommendations to the partner Councils.

Delegation to adopt the FDS remains with WDC and NRC.

7 Attachments / Ngā Tāpiritanga

Under separate cover (available on council's website)

Attachment 1 – Draft Whangarei Future Development Strategy

Attachments

Attachment 2 – Draft Whangarei Future Development Strategy Technical Report

Attachment 3 – Terms of Reference Future Development Strategy Working Group

Whangārei Future Development Strategy

Draft Technical Report

*Growth planned for the betterment of our environment and
future generations.*



Contents

Glossary v

Introduction 1

Structure of the report	1
Section 1: Purpose of the Future Development Strategy.....	3
How does the FDS meet the requirements of the NPS-UD?	4
Section 2: How did Council develop the FDS?	5
Governance and project team	5
Plan development process.....	5
Section 3: Statutory considerations	6
He Whakaputanga and Te Tiriti o Waitangi	7
Section 4: Strategic Framework informing the FDS.....	9
Overview of the Whangārei FDS strategic framework.....	9
How does the FDS relate to previous growth strategies?	10
Section 5: Purposes of engaging on the Whangārei FDS.....	12
Overview of Whangārei's engagement approach	12
Preparing Whangārei's Future Development Strategy.....	12
Engagement objectives and values.....	13
Section 6: Engagement methodology	13
Who engaged with us?	13
Tangata Whenua Partnership	16
<i>Preparation of the draft Hapū Aspirational Statement</i>	<i>17</i>
Central Government.....	18
Infrastructure Providers	20
Development Sector.....	20
Internal Stakeholder	20
Wider Community.....	20
Section 7: What we have heard.....	21
Section 8: Whangārei's Context	27
Demographics.....	28
Housing and Business Land Capacity Assumptions.....	29
Housing considerations	37
Business and Economic Development	40
Transport infrastructure	42
Natural Hazards	49
Summary of constraints.....	49

Natural hazards	51
High Risk Hazards	51
Coastal Erosion and Coastal Flooding	52
Flooding 54	
Land Instability	55
Social infrastructure / community facilities	56
Cultural mapping – papakāinga, areas of significance	59
Parua Bay Placemaking Plan – Tangata Whenua Engagement Report	61
Water infrastructure	61
Electricity Transmission	64
Spatial considerations	65
Whangārei District Growth Strategy 2021	66
Section 9: Long List Scenarios	69
Key factors and assumptions	69
Statement of hapu and iwi values and aspirations	69
Hierarchy of centres and terminology	70
Whangārei context factors	71
What are the long-list conceptual scenarios?	71
Overview of long-list scenarios	72
Engagement feedback on conceptual long list scenarios	76
Approach to assessing the longlist scenarios.	76
Summary of longlist scenario assessment	79
Key themes from the long list evaluation	85
Scenario features / combinations to consider for short list	86
Section 10: Short List Scenarios	88
The process of progressing from long list to short list, including engagement	88
Summary of ‘known unknowns’	88
Description of the short list scenarios	90
Scenario 0: Baseline (Growth Strategy)	91
Scenario 1: Urban Mobility Focus	92
Scenario 2: Neighbourhood and Recreation Lifestyle Focus	94
Assessment approach/KPIs	97
Section 11: Emerging preferred option on key features	99
Water and Transport Modelling	100
Section 12: Emerging preferred scenario for consultation	101
Strategic Vision and Objectives	101
Preferred scenario overview	103

Primary Growth Corridor.....	103
City centre.....	104
Urban centres.....	104
Townships.....	104
Rural and coastal settlements.....	104
Transformational Moves.....	104
Inset maps.....	105
Whangārei Development Principles	107
Phasing the Future Development Strategy	108
Snapshot of changes between the FDS and the 2021 Strategy	110

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Glossary

Term	Meaning
FDS	Future Development Strategy
WDC	Whangārei District Council
NRC	Northland Regional Council
NPS-UD	National Policy Statement – Urban Development
LTP	Long Term Plan
LTIP	Long Term Infrastructure Plan
RPTP	Regional Public Transport Plan
HBA	Housing and Business Capacity Assessment
NPS-HPL	National Policy Statement on Highly Productive Land
NZCPS	New Zealand Coastal Policy Statement
RMA	Resource Management Act 1991
LGA	Local Government Act 2002
LTMA	Land Transport Management Act 2003
Growth strategy 2021 focus area	An area described as a key location for accommodating most of the residential growth in the district until 2051 by the Whangārei District Growth Strategy Te Rautaki Whakatipu o Te Kaunihera-ā-rohe o Whangārei, 2021.
Growth node	An area of land identified as a potential location for accommodating future population and business growth in the Whangārei District Growth Strategy: Sustainable Futures 30 50 (2010).

Introduction

The National Policy Statement on Urban Development (NPS-UD) requires Whangarei District Council (WDC), together with Northland Regional Council (NRC), to prepare a Future Development Strategy (FDS). The primary purpose of the NPS-UD is to ensure that New Zealand has well-functioning urban environments¹. The FDS examines a variety of future development and growth² scenarios (or development paths) for Whangārei, which include different land use patterns and / or investment in different infrastructure or development locations.

This report documents the various steps and components involved in preparing the FDS. Updated and new information will be considered and incorporated into the Technical Report following the public notification of the draft FDS, including revised content from the 2024-34 Long Term Plan and additional content produced from the Special Consultative Procedure.

Structure of the report

The report is structured by the following:

Part A: Background

- Section 1: Purpose of the Future Development Strategy
- Section 3: How did Council develop the FDS
- Section 4: Statutory considerations
- Section 5: Strategic Framework informing the FDS

Part B: Engagement

- Section 5: Purposes of engaging on the FDS
- Section 6: Engagement methodology
- Section 7: What we have heard

Part C: Information gathering

- Section 8: Whangārei context

Part D: Scenario Development Process

- Section 9: Long list scenarios
- Section 10: Short listed scenarios
- Section 11: Emerging preferred option on key features
- Section 12: Emerging preferred scenario for consultation

¹ Refer to Objective 1, section 2.1 of the NPS-UD 2020.

² Refer to section 3.14(1)(b) of the NPS-UD 2020.

Part A: Background

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Section 1: Purpose of the Future Development Strategy

The purpose of the FDS is to set out the strategy for urban development of the Whangārei District over the next 30 years. From the NPS-UD, this means that WDC and NRC are to achieve:

- a. A well-functioning Whangārei urban environment, and
- b. Sufficient development capacity to meet the expected demand for housing and business activities in the district for the next 30 years, and
- c. Integration of planning decisions under the RMA with infrastructure planning and funding decisions (e.g. under the LGA or LTMA).

For the Whangārei FDS, the scope has been extended to a well-functioning kāinga in recognition of the long-term aspirations for the coastal and rural whenua Māori (Māori land). This also recognises that Whangārei is a District that has both an urban centre and a strong rural and coastal identity.

Under the NPS-UD, the Council is required to develop a FDS to inform the 2024-34 Long Term Plan (LTP)³. While the LTP has been consulted on, alignment between the two projects was broadly successful, with project alignment being agreed, as well inputs. This integration was also reinforced by overlapping of key staff between projects.

The FDS is required to spatially identify the broad locations where development capacity will be provided over the next 30 years, and the location of infrastructure required to service the development capacity, including the general location of corridors or other sites needed to provide the infrastructure.

Every FDS must include a clear statement of hapū and iwi values and aspirations for urban development and must be informed by tangata whenua values and aspirations for urban development. The FDS must include and respond to tangata whenua aspirations for urban development and development that enhances a well-functioning kāinga, (Māori economic development, services in rural and coastal communities, housing, and climate resilience). WDC and NRC have worked with hapū throughout the development of the FDS to ensure a clear statement of hapū aspirations is included in the FDS and the FDS responds to their aspirations. This is evident on appendix B. However, the process acknowledges the input from hapū input on the Future Development Strategy (FDS) does not undermine or negate the Rangatiratanga or mana motuhake of any hapū of Whangārei in future policy and decision-making⁴.

The FDS is also informed by⁵ the most recent Housing and Business Land Capacity Assessment (HBA), the advantages and disadvantages of different spatial scenarios, the relevant LTP, and other plans and strategies (e.g. the Whangārei City Centre Plan), feedback from consultation and engagement⁶, and other national policy directives.

³ Refer to section 3.12 of the NPS-UD 2020.

⁴ Whangārei Hapū within the foundational constitutional documents, He Whakaputanga o te Rangatiratanga o Niu Tirenī 1835 and the Tiriti o Waitangi 1840, maintain that all hapū input into the Future Development Strategy (FDS), does not undermine or negate the Rangatiratanga or mana motuhake of any Hapū of Whangārei in future policy and decision-making.

We participate in this process as uri of the hapū of the Whangārei rohe with the aim to assist kāwana and kaunihera to alleviate ongoing prejudice and impacts of dispossession of taonga: including land, culture and resources through the Environmental Management System now and into the future. He Whakaputanga me Te Tiriti o Waitangi must be protected for future generations to enhance and strengthen our relationship to Te Taiao

⁵ Refer to section 3.14 of the NPS-UD 2020.

⁶ Refer to section 3.15 of the NPS-UD 2020 for the consultation and engagement requirements.

Objectives of the NPS-UD include improving housing affordability and improving people's access to what the need from day to day⁷. These objectives are considered to be important aspects of a well-functioning urban environment, and they contribute to several important outcomes including lowering the overall cost of living and improving social equity through reducing car dependency in the transport system.

Throughout the development of the FDS, Council have been able to test different spatial scenarios to meet the key requirements under the NPS-UD. This included testing the distribution of residential and commercial growth, in different typologies with different infrastructure servicing assumptions, and related development capacity estimates for housing and business.

Various scenarios were developed and tested with input from a number of key stakeholders. These include, tangata whenua, central and local government sectors, key infrastructure providers and the wider community.

How does the FDS meet the requirements of the NPS-UD?

Whangārei District is identified as a Tier 2 urban environment by the NPS-UD. The NPS-UD sets out the requirements around the preparation, purpose, and content, what needs to inform the FDS, and the consultation and engagement requirements are outlined in sections 3.12 through 3.15 of the NPS-UD.

Preparation of FDS (section 3.12)

1. *Every tier 1 and tier 2 local authority must prepare, and make publicly available an FDS for the tier 1 or 2 urban environment:*
 - a) *every 6 years;*
 - b) *and in time to inform, or at the same time as, preparation of the next long-term plan of each relevant local authority.*
2. *The FDS must apply, at a minimum, to the relevant tier 1 and 2 urban environments of the local authority, but may apply to any wider area.*
3. *If more than one tier 1 or tier 2 local authority has jurisdiction over a tier 1 or tier 2 urban environment, those local authorities are jointly responsible for preparing an FDS as required by this subpart.*
4. *If a local authority that is not a tier 1 or 2 local authority chooses to prepare an FDS, either alone or with any other local authority, this subpart applies as if it were a tier 1 or 2 local authority, except that any reference to an HBA may be read as a reference to any other document that contains broadly equivalent information.*
5. *An FDS may be prepared and published as a stand-alone document, or be treated as part of any other document (such as a spatial plan).*

As well as ensuring those requirements are met, it is important to ensure the process and final documents embody the NPS-UD objectives and policies⁸. This is particularly relevant for Policy 1 which outlines that a well-functioning urban environment is an urban environment that, at a minimum, has or enables a variety of homes that:

- a. meet the needs, in terms of type, price, and location, of different households; and
- b. enable Māori to express their cultural traditions and norms; and

⁷ Refer to objectives 2 and 3 in section 2.1 of the NPS-UD.

⁸ Refer to sections 2.1 and 2.2 of the NPS-UD.

- c. have or enable a variety of sites that are suitable for different business sectors in terms of location and site size; and
- d. have good accessibility for all people between housing, jobs, community services, natural spaces, and open spaces, including by way of public or active transport; and
- e. support, and limit as much as possible adverse impacts on, the competitive operation of land and development markets; and
- f. support reductions in greenhouse gas emissions; and
- g. are resilient to the likely current and future effects of climate change.

The Technical Report demonstrates how the preparation of the FDS has incorporated the requirements.

Section 2: How did Council develop the FDS?

Governance and project team

The development of the FDS was carried out by a collaborative team which included:

- FDS Working Group who provided direction and governance for the plan-making process. The Working Group consisted of
 - Whangarei District Council (WDC) Elected Members
 - Northland Regional Council (NRC) Elected Members
 - Te Karearea Standing Committee members
 - Te Tai Tokerau Māori and Council (TTMAC) Working Party members
- WDC & NRC staff
- Consultancy team including MRCagney, The Urban Advisory (TUA) and InPlace.

Plan development process

The FDS process follows guidance produced by the Ministry for Environment, applied in the local context of Whangārei. A summary of the components of the process are shown in Figure 1 below – noting the strategic framework has shifted over the course of developing the Strategy.

In developing the FDS, Council has tested different spatial scenarios to meet key requirements under the NPS-UD, including but not limited to:

- Distribution of residential and commercial growth and related capacity estimates.
- Anticipated housing, business, and service types to support a well-functioning urban environment.
- Focus on accessibility, including public and active transport.
- The spatial identification of development capacity, infrastructure, and constraints.
- Infrastructure considerations.

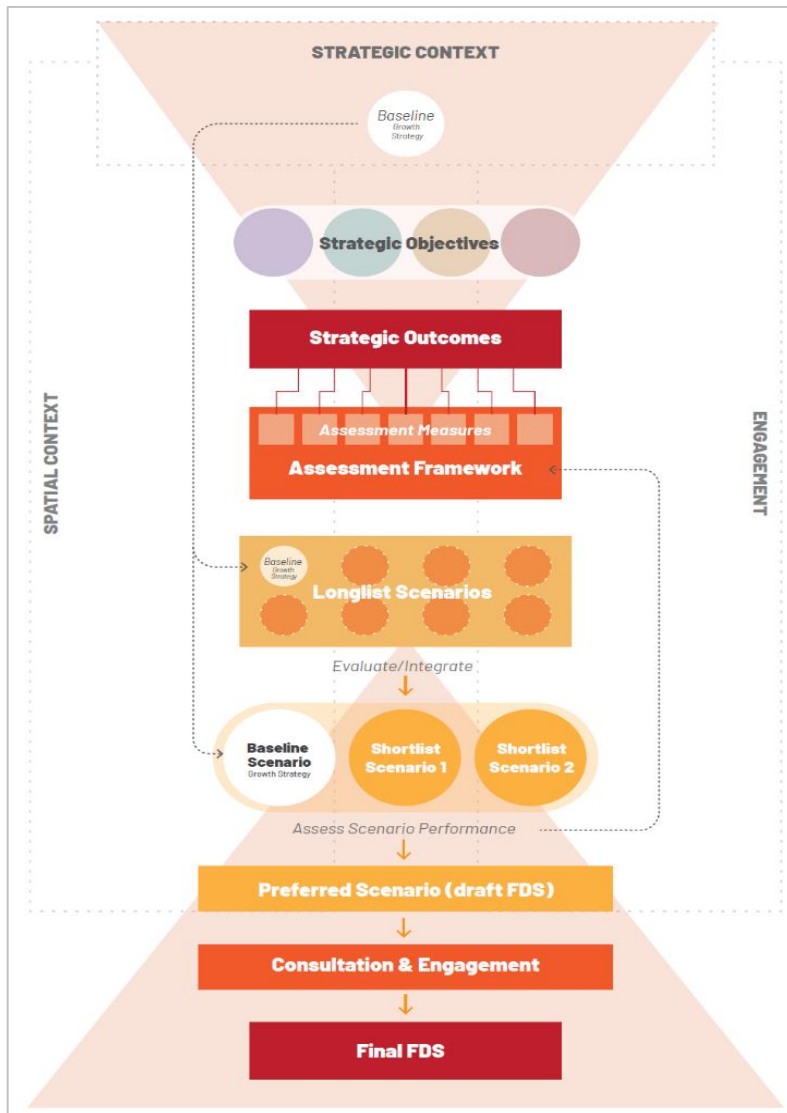


Figure 1: Strategic framework for Whangārei FDS - noting the strategic framework has shifted over the course of developing the Strategy.

Section 3: Statutory considerations

In preparing the FDS, alignment with Central Government direction and relevant national policy statements, standards, and statements is required. These documents provide the framework and guidelines for planning and development in New Zealand. Below provides an overview of how the Strategy has taken into account of relevant policy statements.

National Policy Statement for Highly Productive Land 2023 (NPS-HPL).

Requires scenarios to prioritise and support the use of highly productive land for land-based primary production. The urban rezoning of highly productive land is avoided, except if conditions included in the NPS-HPL are met. And, the rezoning and development of highly productive land as rural lifestyle is avoided, except if conditions included in the NPS-HPL are met. Scenarios were explored to minimise impacts on highly productive soils.

National Policy Statement for Indigenous Biodiversity 2023 (NPSIB)

Requires scenarios manage and minimise adverse effects on indigenous biodiversity, ecosystems and Significant Natural Areas. It requires scenarios to explore options which promote the restoration of indigenous biodiversity in both urban non-urban environments.

National Policy Statement for Freshwater Management 2020 (NPS-FM).

Requires scenarios to enable and manage land development in a way that prioritises the health and well-being of water bodies and freshwater ecosystems (Te Mana o te Wai) over the health needs of people and people providing for their social, economic, and cultural well-being.

It requires integrated freshwater management, on a whole-of-catchment basis, including the effects on receiving environments, maintaining, or improving degraded water bodies and freshwater and no further loss of extent of natural inland wetlands, their values are protected, and their restoration is promoted

New Zealand Coastal Policy Statement

Requires scenarios to consider effects on the coastal environment including considering the rate at which built development and the associated public infrastructure should be enabled to provide for the reasonably foreseeable needs of population growth without compromising the other values of the coastal environment

Encourages the consolidation of existing coastal settlements and urban areas where this will contribute to the avoidance or mitigation of sprawling or sporadic patterns of settlement and urban growth

National Planning Standards 2019.

The FDS planning process adopted terminology consistent with the National Planning Standards and the NPS-UD, shifting from the terminology used in the 2010 Growth Strategy and 2021 Growth Strategy. These strategies used terms like the urban area and urban growth nodes, where 'urban' areas are only the areas of urban development contiguous with the city centre. The NPS-UD, in addition, defines the rural and coastal settlements as urban as well, especially when these areas are serviced by urban infrastructure.

National Policy Statement for Renewable Electricity Generation 2011 (NPS-REG)

Requires the scenario to have particular regard to increasing electricity generation as part of reducing greenhouse gas emissions and to improve the security of energy supply.

Aotearoa New Zealand's first emissions reduction plan 2022.

The Emissions Reduction Plan informed the scenarios through planning and providing for infrastructure systems that support emissions reductions across a range of sectors. The NPS-UD and the FDS planning processes have an important role to play in supporting emissions reductions and climate resilience. Transport is identified as one of the largest sources of emissions, and amongst other things, increasing development density, reducing vehicle kilometres travelled, and reducing emissions from freight transport are identified as immediate focus areas for reducing emissions.

He Whakaputanga and Te Tiriti o Waitangi

Hapū expectations of involvement in decision-making processes, ensuring authority and autonomy in matters concerning their rohe (territories) and tāngata (people) is framed within the context of He Whakaputanga me Te Tiriti. Hapū expect the development and delivery FDS must recognize and respect the mana and tino rangatiratanga of hapū in shaping the future development of Whangārei alongside Council, Central Government agencies and key stakeholders. This involves engaging in meaningful partnerships, acknowledging hapū as joint sovereigns, and ensuring their active participation and involvement in the development of the Strategy.

Throughout the preparation of the FDS, it aims to reflect the principles of Te Tiriti o Waitangi, emphasising partnership, protection, and participation. This approach fosters more collaborative and respectful relationship between Treaty partners to realise the aspirations set out in the FDS.

The table summarizes relevant statutory requirements for Māori/tangata whenua in relation to developing an FDS.

Key requirements	Legislation
Te Tiriti o Waitangi/ Treaty of Waitangi principles	• NPS-UD Part 2, s2.1., Objective 5 • NPS-UD Part 2, s2.2., Policy 9 • RMA s8 • LGA s4
Statement of hapū and iwi values and aspirations for urban development	• NPS-UD Subpart 4, clause 3.13(3) • NPS-UD Part 2, s2.2., Policy 9 (b)
Tangata whenua values and aspirations for urban development	• NPS-UD Part 2, s2.2., Policy 1(a)(ii) • NPS-UD Subpart 4, clause 3.14(1d) • RMA s6(e)
Relationship of māori and their culture and traditions with their ancestral lands, water, sites, waahi tapu, and other taonga (including areas/sites of cultural significance)	• NPS-UD s3.32(1)(a) • RMA s6(e) • LGA s77(1)(c)
Consultation and participation	• NPS-UD Part 2, s2.2., Policy 9(a) • NPS-UD Part 2, s2.2., Policy 9 (d) • LGA s82 (1)
Provide opportunities for Maori involvement e.g., decision-making, management, planning tools, kaitiakitanga.	• NPS-UD Part 2, s2.2., Policy 9 (c) • RMA s7 (a) • LGA s81 (1)(a) • LGA s 82 (1) and (2)
Māori capacity building	• LGA s81 (1)(b)
Provide relevant information	• LGA s81 (1) (c)

Table 1: Key statutory considerations and requirements for Māori when preparing an FDS.

Constraint's mapping

The NPS-UD⁹ under section 3.13(2) must spatially identify:

- a) the broad locations in which development capacity will be provided over the long term, in both existing and future urban areas, to meet the requirements of clauses 3.2 and 3.3.*
- b) the development infrastructure and additional infrastructure required to support or service that development capacity, along with the general location of the corridors and other sites required to provide it*
- c) any constraints on development.*

Policy 1 and Section 3.32 of the NPS-UD does provide some indirect guidance as to the types of matters that may be relevant when identifying development constraints for the purposes of developing an FDS. Other whenua Maori barriers (regulatory processes, Council / hapū relationships and governance) are not covered within these sections are often unique and complex. The constraints experienced by tangata whenua often extend beyond what is identified in relevant statutory references.

⁹ <https://environment.govt.nz/assets/publications/National-Policy-Statement-Urban-Development-2020-11May2022-v2.pdf>

Section 4: Strategic Framework informing the FDS

Overview of the Whangārei FDS strategic framework

The Strategic Framework has been developed as an iterative process. Throughout the preparation of the FDS, amendments and changes to terminology has been ongoing in efforts to prepare an easily digestible Strategy.

The strategic framework has been informed by:

- Guidance produced by the Ministry for Environment.
- Alignment with NPS-UD policy directives.
- An understanding of the baseline scenario – existing Growth Strategy, adopted in 2021.
- Government National Policy Statement's and policy directives.
- An understanding of the existing strategic context in Whangārei.
- Existing strategies and plans developed in Whangārei.
- Other external strategies, for example, Te Rerenga Taitokerau Economic Strategy.
- Engagement with WDC, NRC, hapū and key stakeholders.

Process to Develop Strategic Drivers and Outcomes

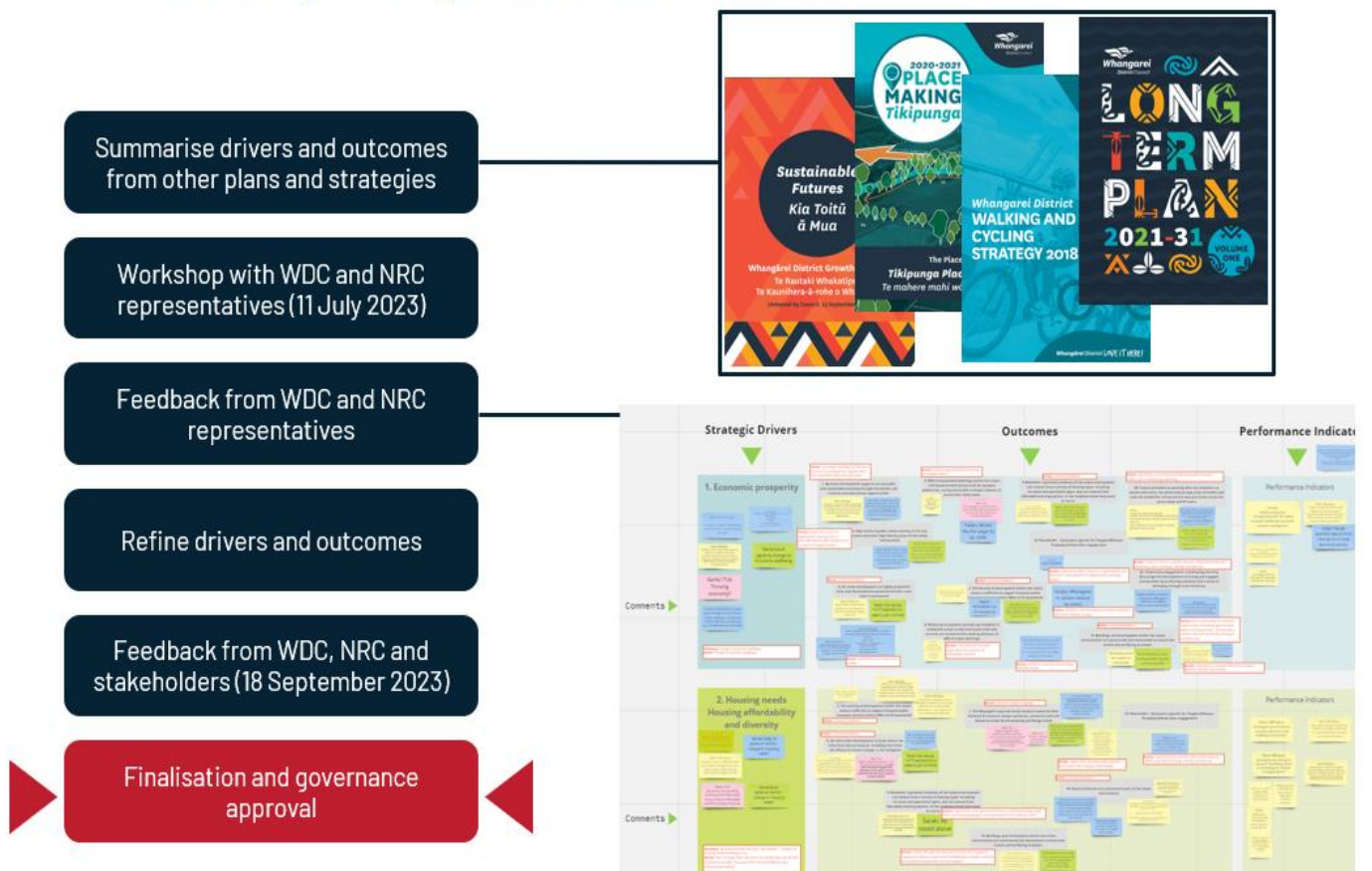
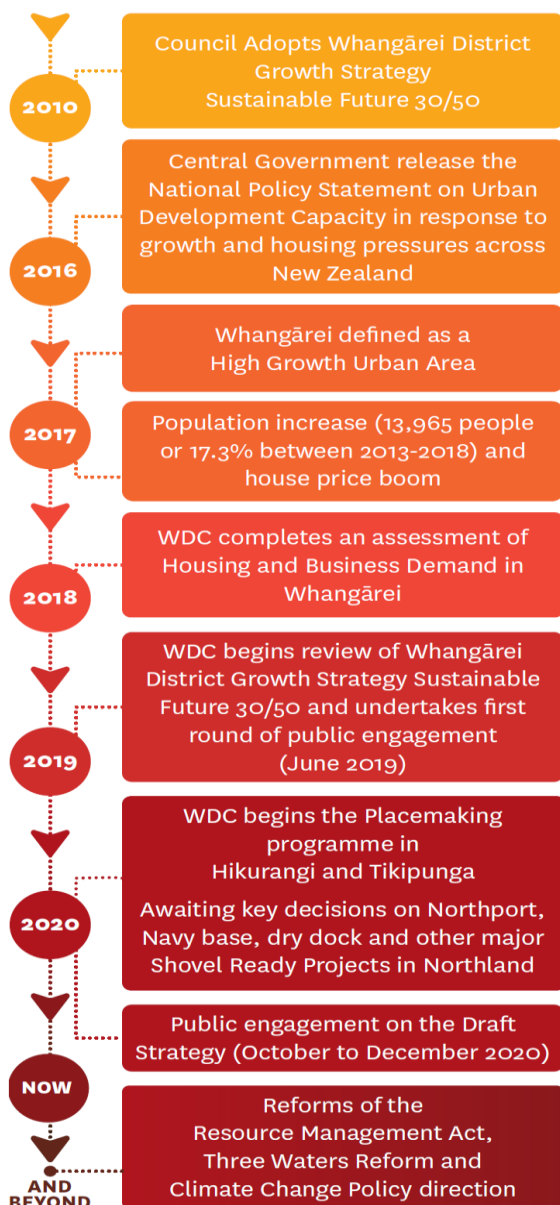


Figure 2: Overview of the process to develop strategic drivers and outcomes.

How does the FDS relate to previous growth strategies?

The FDS is a continuation of the strategic planning journey WDC has been on since 2008. WDC has developed two other development strategies in the last two decades - the *Whangārei District Growth Strategy Sustainable Futures 30/50* in 2010 (the 2010 Growth Strategy), and the *Whangārei District Growth Strategy Te Rautaki Whakatipu o Te Kaunihera-ā-rohe o Whangārei* in 2021 (the 2021 Growth Strategy). The 2021 Growth Strategy explains that it was needed to address new issues and policy areas that had arisen since the preparation of the 2010 Growth Strategy¹⁰. These new issues included matters related to the release of new government policy statements under the RMA, updated data on how the district is changing, and recovery from Covid 19.

The 2021 Growth Strategy included a flow chart showing significant events that occurred between the preparation of the 2010 and 2021 Growth Strategies, and this is included as Figure 3 below.



The timeline in Figure 3 shows that other changes were signalled at the time the 2021 Growth strategy was prepared, including reforms to the RMA and climate change policy direction, although these changes could not be factored into the strategy at that time.

This FDS continues the journey described in the 2021 Growth Strategy in the following ways:

- The development trajectory set by the 2021 Growth Strategy has been assumed as the baseline (or starting point) for assessing the alternative development scenarios during the preparation of the FDS.
- Changes in the policy and development environment that have occurred since the 2021 Growth Strategy was completed have been addressed in the FDS.
- The FDS has assumed a greater focus on developing a 'well-functioning' urban environment and the related objectives and policies of the NPS-UD 2020 (as updated in May 2022).

Figure 3: 'Our Journey' from the Sustainable Futures Whangārei Growth Strategy 2021

¹⁰ Refer to the "Our Journey" section of the *Whangārei District Growth Strategy Te Rautaki Whakatipu o Te Kaunihera-ā-rohe o Whangārei*, 2021.

Part B: Early engagement

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Section 5: Purposes of engaging on the Whangārei FDS

Overview of Whangārei's engagement approach

This section outlines the pre-engagement methodology involving hapū / tangata whenua, central and local government, key infrastructure providers, local developers, and the community. The report also provides a high-level summary of engagement themes expressed throughout the process. More detailed commentary shared with hapū can be found in Appendix B.

Future Development Strategy consultation requirements (section 3.15 NPS-UD)

The National Policy Statement on Urban Development (NPS-UD) clearly states engagement is required with the following.

- (a) other local authorities with whom there are significant connections relating to infrastructure or community*
- (b) relevant central government agencies*
- (c) relevant hapū and iwi*
- (d) providers of additional infrastructure*
- (e) relevant providers of nationally significant infrastructure*
- (f) the development sector (to identify significant future development opportunities and infrastructure requirements).*

Preparing Whangārei's Future Development Strategy

The National Policy Statement on Urban Development (NPS-UD) aims to make sure that New Zealand's towns and cities are well-functioning urban environments that meet the changing needs of our diverse communities. Whangārei is categorized as a Tier 2 urban environment. As a Tier 2 urban environment, Whangārei District Council together with Northland Regional Council are required to develop a FDS in accordance with NPS-UD.

There are four key stages in developing the draft Future Development Strategy for consultation shown here.

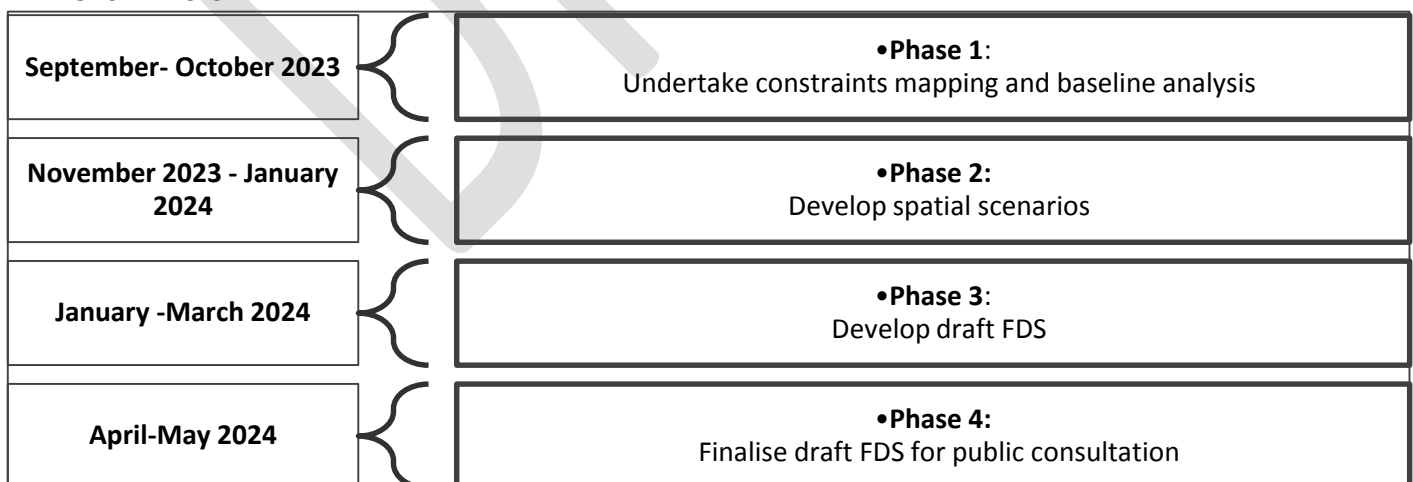


Figure 4: Key stages in developing the draft Future Development Strategy

On approval of the draft FDS, a public consultation process will begin which will follow the

Special Consultative Procedure (SCP) set out in the Local Government Act 2002. This is expected to run from 3rd August – 2nd September.

Engagement objectives and values

Our engagement values and objectives guide how we engage with our hapū partners, central government partners, stakeholders, and the community.

Engagement values	• We will operate with respect, honesty, transparency, fairness, and accountability. • We commit to engage and communicate information in an easy and accessible way for our diverse community needs. • We honour Te Tiriti o Waitangi and ensure processes are in place to uphold them. • We encourage collaboration and promote opportunities to work together. • We enable people to share their views. • We listen to diverse views with an open mind and give due consideration before making decisions.
Engagement objectives	• To build inclusive governance and foster a partnership approach. • To build awareness and a clear understanding of the FDS and what will be delivered. • To facilitate active participation and buy-in through a transparent, respectful, two-way communication approach. • To work together to find ways to align strategic priorities and coordinate programmes/implementation. • To strengthen relationships and build trust between all parties. • To development commitment and accountability to achieve programme success.

Section 6: Engagement methodology

A range of stakeholders have participated in the pre-engagement phase of this FDS project. Multiple engagement methods were used to reach the target audience, enable participation, and provide multiple avenues for providing feedback.

Who engaged with us?

Group	Whom we engaged with	Method
Politicians/Elected Members	Whangarei District Council Elected Members; Northland Regional Council Elected Members	• WDC Council Briefings • Forums ◦ Te Kārearea ◦ TTMAC • FDS Working group
Tangata Whenua	Whanau, hapū, iwi, Rangatira/members, Maori planning practitioners	• Forums ◦ Te Kārearea ◦ TTMAC • FDS Working group

		• Workshops • Meetings • Written feedback/email
Government agencies	Kāinga Ora, KiwiRail, Ministry of Education, Ministry of Housing and Urban Development, Te Puni Kokiri, Te Whatu Ora, Waka Kotahi, Whangarei District Council, Far North District Council, Kaipara District Council, Northland Transport Alliance, Sport Northland	• Central Government Technical Working Group • Workshops • Meetings • Written feedback/email
Infrastructure providers	Chorus, Channel Infrastructure NZ, Meridian, Transpower, Marsden Maritime Holding Ltd, Northport	• Northland Lifelines Group • Workshop • Meetings • Written feedback/email
Developers	Northland Inc, Habitat for Humanity NZ, Fonterra	• Targeted meetings • Online survey • Written feedback/emails
Community	Residents, community groups, interest/advisory groups,	• Social media • WDC advisory groups • Whangārei Leader newspaper and community newsletters

Table 2: Summary of engaged stakeholders

Figure 5 summarises the key stages in developing the Future Development Strategy. This has involved extensive workshopping throughout critical stages of the plan development process.

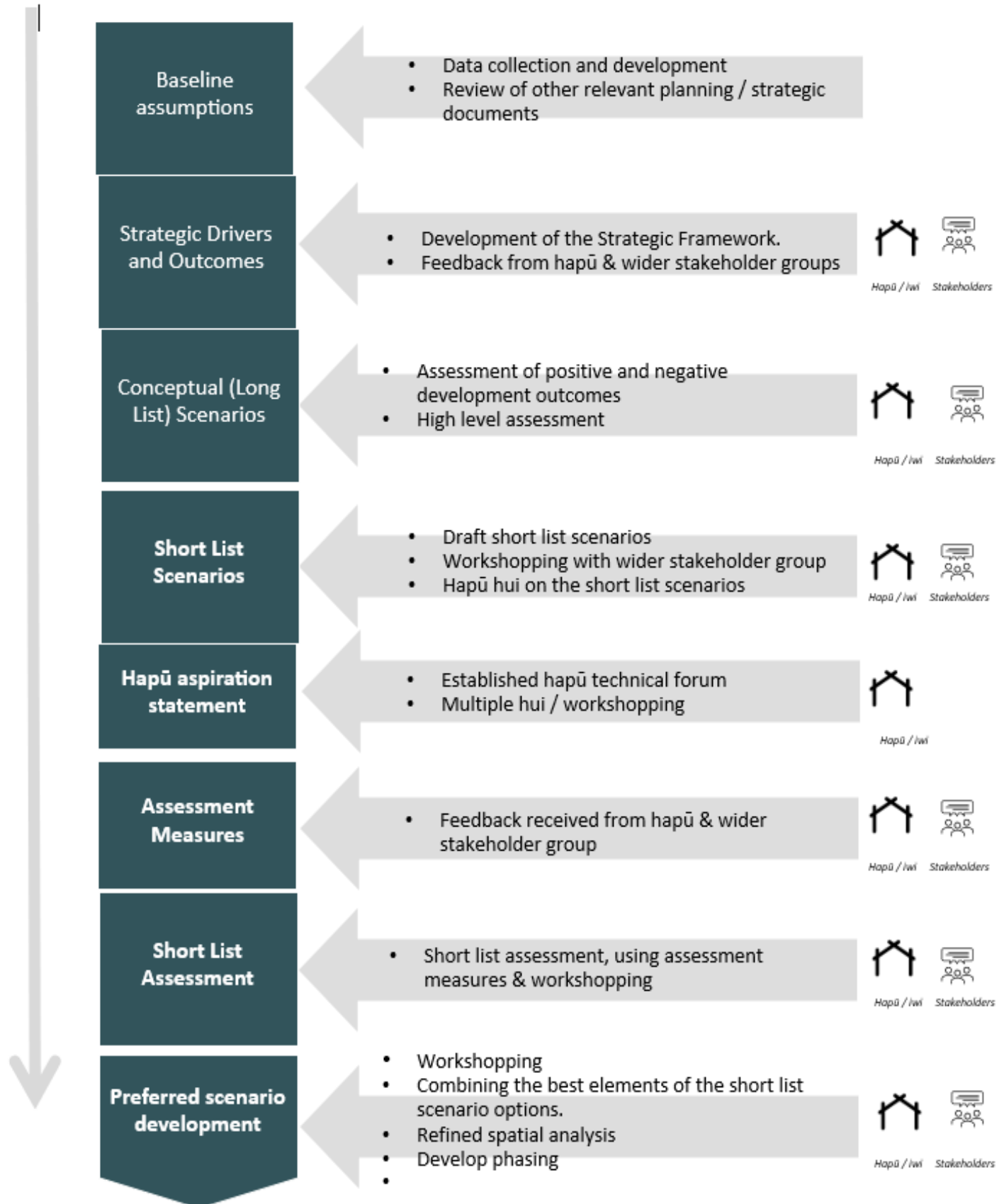


Figure 5: Key stages in developing the draft Future Development Strategy

Tangata Whenua Partnership

WDC and NRC are committed to our role as partners in Te Tiriti o Waitangi. The engagement strategy and overall FDS is underpinned by this partnership. WDC and NRC committed to engaging with tangata whenua early in a relational process.

Through the process, multiple opportunities for tangata whenua were made to support key project outcomes, as illustrated in Figure 5 and outputs from multiple meetings can be found in Appendix A and B.

Early, open, and ongoing kōrero with tangata whenua / hapū has been essential for fostering meaningful engagement, participation, and involvement in the FDS. Over the course of seven months, a variety of methods of engagement with tangata whenua / hapū have taken place. This has included a soft launch hui series, workshop and meeting discussions on drivers and outcomes, scenarios, and specifically on the Hapū Aspiration Statement. Additionally, Council received feedback by email including a Statement of Position on the FDS from Te Waiariki Hapū.

Although there have been several opportunities for tangata whenua / hapū to meaningfully contribute and influence the FDS, it has become clear that not all hapū are represented or involved. WDC and NRC acknowledge that consensus on the FDS development processes has not been achieved may not be achieved, as well as seeking full support of the Hapū Aspiration Statement (Appendix A)

To protect those who were participating in the process, the following statement was drafted and will be included as part of the Future Development Strategy.

“Whangārei Hapū (tribes) within the foundational constitutional documents, He Whakaputanga o te Rangatiratanga o Niu Tīreni 1835 and the Tiriti o Waitangi 1840, maintain that all hapū input into the Future Development Strategy (FDS), including positions on the Working Group do not undermine or negate the Rangatiratanga of any hapu of Whangārei in future policy and decision-making.

We participate in this process as uri of the hapū of the Whangārei rohe with the aim to assist kāwana and kaunihera to alleviate ongoing prejudice and impacts of dispossession of taonga: including land, culture and resources through the Environmental Management System now and into the future”.

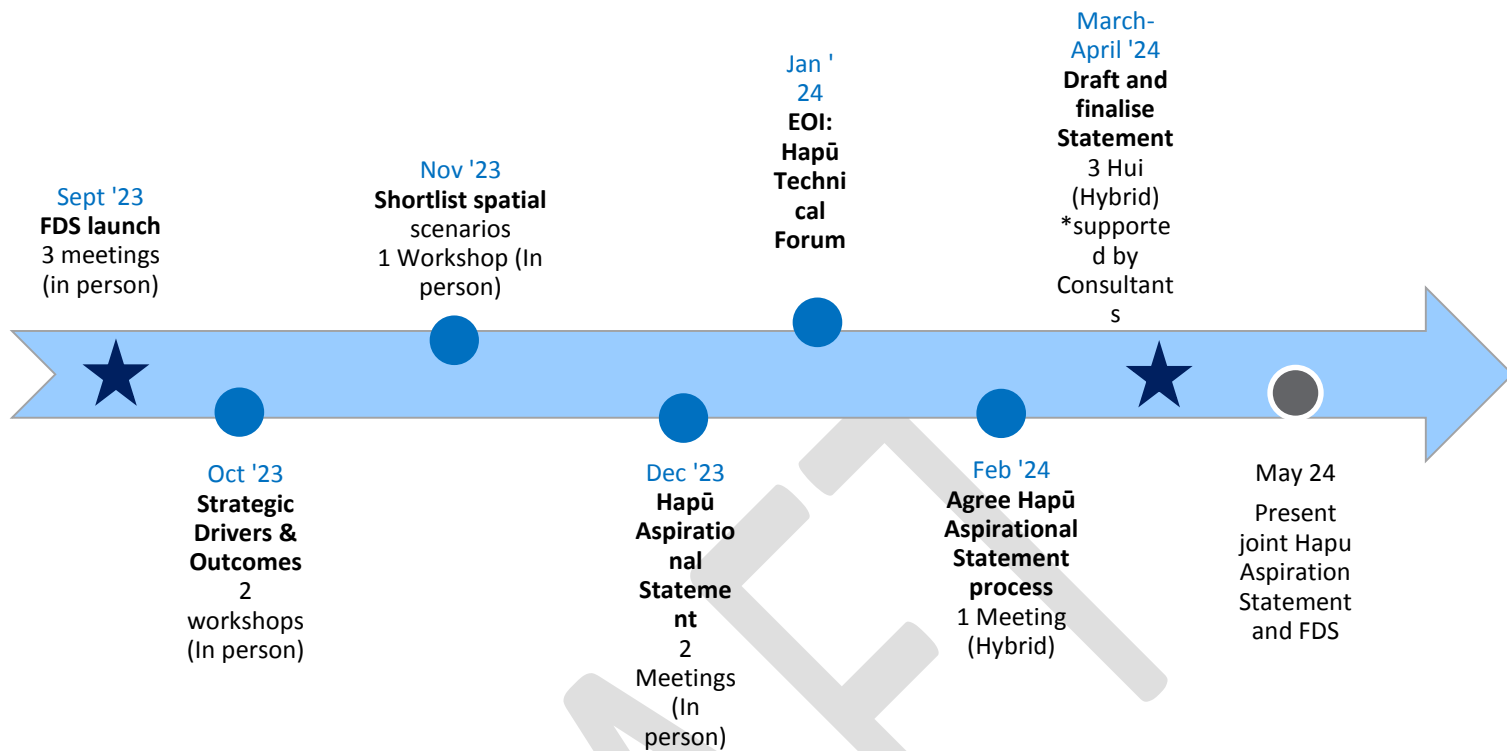


Figure 6: High-level timeline of key engagement milestones with hapū

Preparation of the draft Hapū Aspirational Statement

WDC and NRC sought an 'Expression of Interest' from Whangārei hapū members to sit on a Hapū Technical Roopu in January 2024 to support the drafting process of the Hapū Aspiration Statement. The Hapū Technical Roopu responsibilities were:

- to support drafting a district wide Hapū Iwi Aspiration Statement
- to confirm any disclaimer statements to protect the mahi and hapū rangatiratanga
- to support a desktop study of tangata whenua hapū iwi articulations of growth

The preparation of the Hapu Aspiration Statement was prepared informed by korero shared across multiple hui with hapu throughout the FDS process¹¹. The Aspiration Statement was delivered through a five stage approach:

- Stage One – Background research and project kick off: Review background information and minutes throughout FDS process
- Stage Two – First hui with hapū representatives. The purposes of the hui were to confirm and agree on next steps, timeframes, and overall approach to develop the statement of hapū values and aspirations for development.
- Stage Three – Second hui with hapū representatives – to kōrero the draft statement and make any necessary further refinements. The statement was amended following the second hui which was circulated for refinements.

¹¹ It is noted the hapū representatives were presented extremely tight deadlines to finalise the aspiration statement- for which WDC and NRC are appreciative of the commitments from the Technical Roopu.

- Stage Four - A final statement was presented and discussed with Council staff also in attendance.
- Stage Five – A wider hui was held to korero the aspiration statement and the FDS with hapu. This supported early korero on key parts of the aspiration statement before formal consultation.

The draft Collective Hapū Aspiration Statement can be found in Appendix A

Central Government

In August 2023, a Central Government Technical Advisory Group was established to coordinate government advice, input, and feedback. Representatives from the following agencies were part of the Advisory Group

- | | |
|---|------------------|
| • Kainga Ora | • Te Puni Kokiri |
| • KiwiRail | • Te Whatu Ora |
| • Ministry of Education | • Waka Kotahi |
| • Ministry of Housing and Urban Development | |

Key responsibilities of the Central Government Technical Advisory Group were:

1. To provide technical input / information (research, reports etc.) and oversight.
2. Coordinate organisation / agency feedback / advice especially regarding clarifying future work programs / investment.
3. Ensure Council direction is integrated and reflects / aligns with Government priorities.
4. Ensure consistency and alignment to support long term infrastructure investment needs and growing population needs.

Between August 2023 and March 2024, the Central Government Technical Advisory Group met six times (in person and / or online). Central Government agencies were also invited to submit written feedback following meetings / workshops.

Engagement milestones

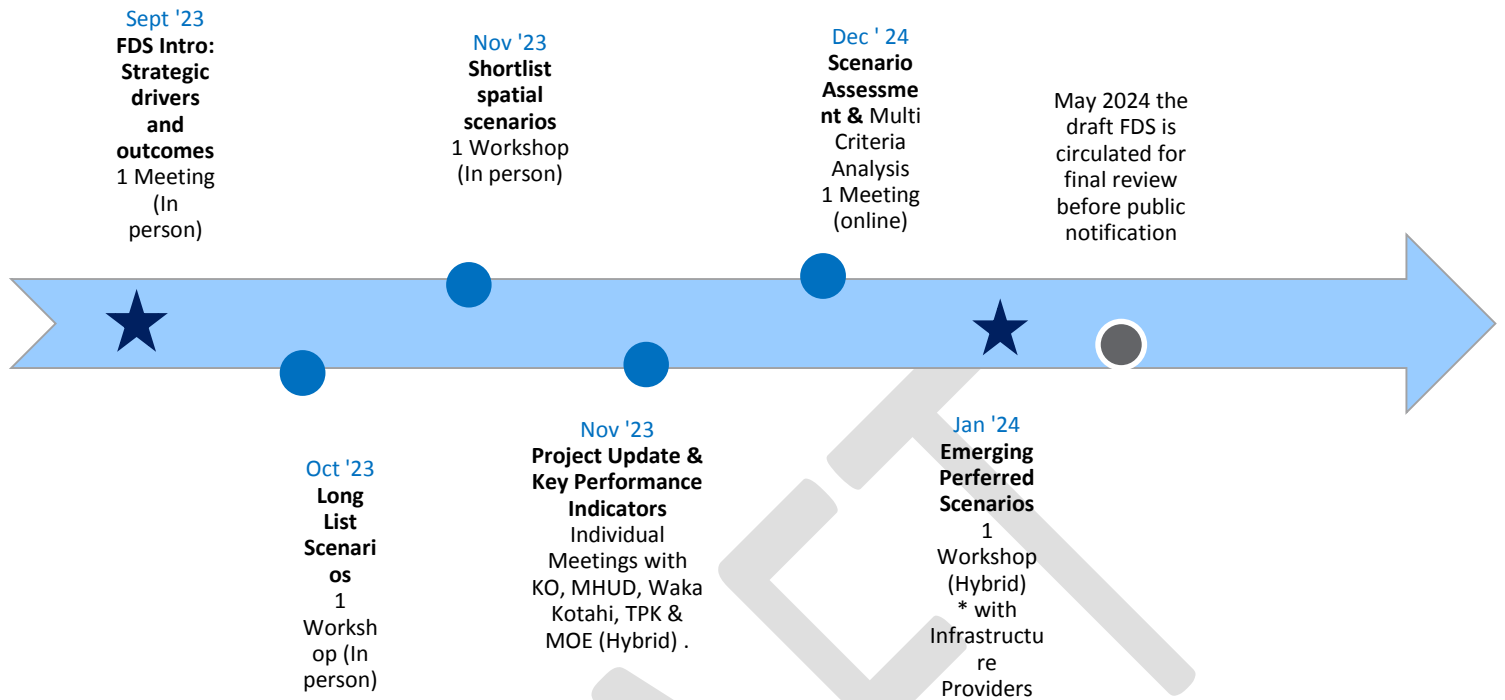


Figure 7: High-level timeline of key engagement milestones with the Central Government Technical Advisory Group

Infrastructure Providers

Engagement with infrastructure providers took place between September 2023 and February 2024. This involved individual meetings, attending Northland Lifelines Group meetings and joint workshops. Infrastructure representatives were also invited to take part in the collaborative joint multi-criteria assessment workshop alongside relevant Central Government agencies. A final review of the draft FDS was also made available.

Development Sector

To date, interaction with the development sector has been limited, despite employing different engagement methods to connect with the development sector. Meetings with Northland Inc as well as a several local landowners and developers have provided guidance of how Council is currently performing key functions including ensuring the infrastructure readiness of growing centres.

Internal Stakeholder

Knowledge exchanges with key internal stakeholders has supported key project deliverables. The FDS has often run alongside Councils LTP. This has provided scope to begin aligning infrastructure priorities and growth. WDC and NRC internal teams have provided key evidence on the current state of assets and provided inputs throughout key stages including the scenario testing processes.

Wider Community

The primary aim of community engagement was to raise awareness and start conversations about key topics ahead of formal consultation planned in August 2024.

The engagement process identified the following values:

- Clarity – Council will provide clear information about the purpose of consultation, and the scope of the decision that Council will make after considering community views.
- Accessibility – Council will provide access to relevant information, in a form that people can understand. This means we need to engage in ways that show we understand the makeup of our communities, respecting cultural and individual differences.
- Encouragement – Council will encourage people to present their views.
- Opportunity – Council will provide reasonable opportunity for people to present their views in a way that suits those people's needs and preferences.
- Commitment to Māori – Council will make sure processes are in place when consulting with Māori.
- Open mindedness and fairness – Council will receive community views with an open mind and give due consideration to those views when making decisions.
- Transparency – Council will provide access to a clear record of decisions made and available explanatory materials.

During the months of October 2023 to May 2024, staff attended council advisory groups meetings (Positive Aging Advisory Group, Youth Advisory Group and Disability Advisory Group) as well as targeted meetings. During February and March 2024, short articles in local newsletters, the Leader newspaper and three Facebook posts about the FDS were posted on Councils social media. The Facebook posts received a high number of interactions, eliciting quality responses and reaching a wide audience.

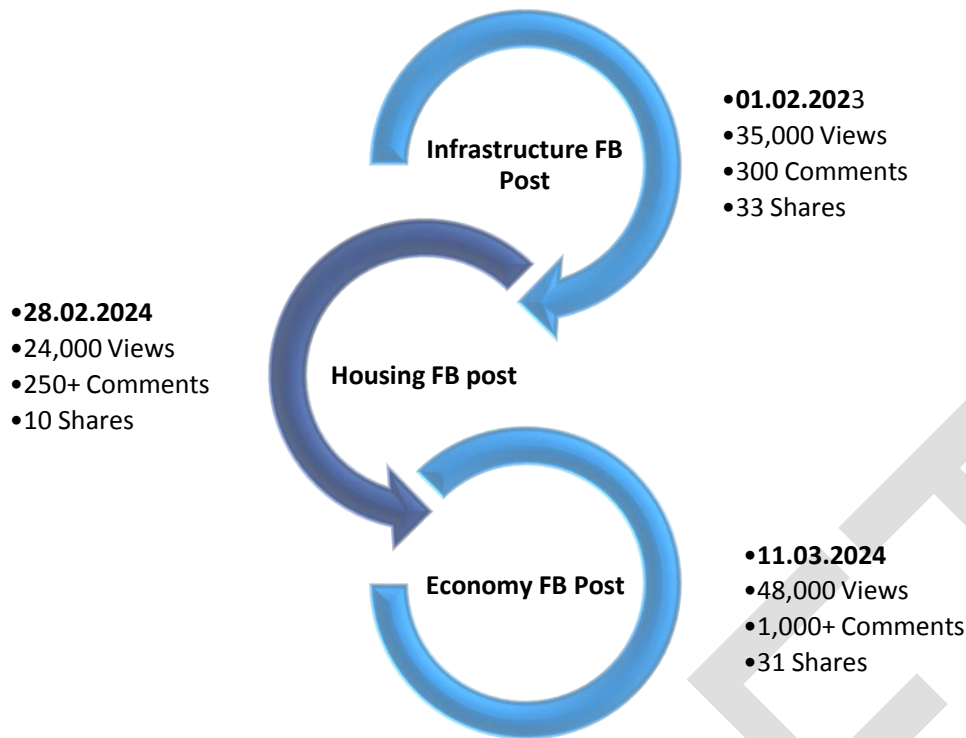


Figure 8: Social media impressions

Section 7: What we have heard

Feedback from our partners, stakeholders and the community has informed the process and content of the draft Future Development Strategy. This table summarises key engagement themes and outlines how the draft FDS responds.

Key theme	Explanation	How FDS responds:
Honour Te Tiriti o Waitangi	Honour Te Tiriti o Waitangi and New Zealand's foundational documents. Te Tiriti is a living document shaping partnership commitment approach between Māori and the Crown (Government Authorities). <i>"Acknowledge and recognise - He Whakaputanga me Te Tiriti" Hapū</i>	Treaty principles of partnership, participation & protection are embedded in the FDS. FDS acknowledged (Te Tiriti and He Whakaputanga) as constitutional documents that are foundational for our region's success.
Partnership with Tangata Whenua	Tangata whenua should be at the decision-making table to ensure genuine partnership, participation and messaging brought through in the FDS itself. <i>"Tangata whenua at decision making table to ensure genuine engagement" Hapū.</i>	Working groups at governance and operational levels were established to oversee and guide the outcomes and FDS strategic direction. FDS acknowledges not every hapu is in the position and / or wants to engage in this project - Te Tiriti o Waitangi me He Whakaputanga o Niu Tīreni Statement.
Alignment and collaboration	Working together is important. Being in the same room together, sharing information, expertise, and resources is valuable.	Partnership / collaborative ways of working have been used in the engagement process to date and

Key theme	Explanation	How FDS responds:
	<i>"...there needs to be exploration of how "shared opportunities / use" of land be explored such as sharing school playing fields with open space / green areas".</i> <i>Ministry of Education</i> Alignment with central government strategies, policy direction and investment for example, Infrastructure Acceleration Fund (IAF) funding. <i>"We would want the FDS to help implement / maximise various Government investments: e.g., IAF (Infrastructure Acceleration Fund) funding" Ministry of Housing and Urban Development</i>	reflected in the FDS. The FDS seeks to bring alignment and interweave strategies, policies, and projects to set the strategic direction for Whangārei over the next 30 years.
Accommodating growth demands	The use of up to date and accurate information to inform meeting housing and business growth demands over the next 30 years needs careful and smart planning. <i>"Majority of growth will be accommodated within the existing urban environment or mixed-use intensification opportunities along public transport routes and close to centres." Waka Kotahi</i> Encourage intensification rather than greenfield sites to protect sites and areas of cultural significance.	The FDS uses the best available data and information at hand to plan for our changing population business and housing needs. The FDS will be a blueprint for what and where growth is encouraged.
Housing key challenge	Whangārei faces housing challenges including affordability, quality (materials/accessibility), choice (type and size), and location. <i>"Everyone knows there is a major lack of affordable housing in Whangārei and building terraced and apartment buildings are an excellent solution to that problem" Community</i>	The FDS encourages greater housing choice and is supportive of inner city living, building affordable, accessible, and well-located medium density options (such as apartments and/or terraced housing).
Constrained infrastructure is a barrier to enable development	Infrastructure capacity impacts growth opportunities now and in the future. Enabling intensification through the recent District Plan provisions but not supporting infrastructure upgrade investment and timing raises concerns. Need to provide certainty on timing of infrastructure. <i>"Do not mind holding off on new development as long as Council can provide certainty on timing of infrastructure upgrades." Kainga Ora</i>	The FDS aligns land use and infrastructure provision. Council infrastructure must be sequenced, resilient and provided in a coordinated way.

Key theme	Explanation	How FDS responds:
Mobilising Māori Land	There are significant challenges with mobilising Māori land for development. <i>“The biggest challenge is enabling whenua Māori development opportunities, and connection. The location of Whenua Māori in the Whangārei District is rural or coastal, in areas that traditionally haven't been supported or assisted with.” Te Puni Kokiri</i>	The FDS supports Māori aspirations for development and seeks to overcome challenges through partnership opportunities and working alongside Māori to support their aspirations.
Labour shortage is not being addressed	Whangārei has a significant labour shortage that is not being addressed. Whangārei struggles to attract staff / labour and businesses into the district. Therefore, there are concerns Northland is not well placed to deliver projects and infrastructure to cater for planned growth. <i>“Biggest constraint is access to labour.” Infrastructure Sector</i>	The FDS acknowledges this challenge to delivery and timing. To tackle this immediate labour shortages requires a multi-agency approach to setting strategic priorities for implementation.
Whangārei lacks transport options	Limited transport options namely public transport opportunities hinder mobility and accessibility for residents in urban and rural communities. There is need for an improved transport system with frequent and reliable public transport; also transport choice and investment in multi-modal transport options such as the consideration of a passenger rail service. <i>“Although rail in Northland is currently exclusively used as a freight service, it inherently holds potential to carry passengers, inter-regional and local – similar to the shared rail network(s) in Auckland and Wellington” Kiwi Rail</i>	The FDS promotes transport choice, investment in quality public transport, and walking and cycling opportunities. An efficient, safe and affordable transport network enabling accessible/barrier-free movement in/around the Whangārei District is a key focus of the FDS.
Improved reliable and efficient transport connections	Transport connections have been significantly impacted by disruptions and underinvestment highlighting national and regional transport vulnerabilities. Importance of inter-regional transport connections and multi-mode transport link. <i>“4 laning will open a number of economic opportunities for Northland.” Development Sector</i>	The FDS signals key transport projects and the importance of transport investment to / from and within the district. Secure, resilient, and reliable inter-regional connections to Whangārei District and Te Tai Tokerau are vital to enable free movement of travel and support the prosperity of Northland's economy.
Natural hazards	Natural hazards and changing climate considerations if not managed can significantly harm people and property. <i>“...we will have to make challenging decisions especially on existing identified</i>	The FDS carefully considers key hazards including coastal erosion, coastal flooding, other flood hazards, land instability, and mining subsidence and climate change considerations in planning for the

Key theme	Explanation	How FDS responds:
	<i>growth areas impacted by natural hazards.” Central Government Workshop</i>	future. Hazard information and maps are used to guide future land use planning, transport, and infrastructure development. Some areas will be avoided, some will require mitigation and careful management, and other areas / communities may require adaptive pathway solutions over the medium to long term.
Protect productive soils and consider location of land use activities	Unplanned growth on highly productive land limits the availability of suitable soils for food and fibre production. There are concerns about location of future houses in close proximity to industry activities and possible reverse sensitive issues such as in Marden Point. <i>“As a long-established industrial activity, operations ... are susceptible to potential objections and complaints where incompatible, sensitive activities (e.g., residential development) are enabled nearby.” Development Sector</i>	Mapped productive land (soils) have been included in scenario testing and analysis. These maps are used to guide future land use planning, transport, and infrastructure development. The compatibility of land uses, proximity and location is considered in the FDS.
Improve environment outcomes	Environment degradation and declining water quality negatively impacts ecosystems, cultural/social wellbeing, and public health. Preserve and enhance native flora and fauna. Enhanced environmental outcomes and improved water quality. <i>“Swimmable rivers! The Hātea is such an incredible asset, but the water is often far too murky to be trusted for swimming”. Community</i>	The FDS seeks to contain urban development and prevent development encroaching ecologically significant areas and highly productive land which is more suitable for other activities. The FDS strives to improve environmental outcomes through enhancing green spaces, protecting wildlife corridors and enhancing natural areas to improve ecosystems and indigenous biodiversity over time.
Vibrant places and spaces	Generous green/public spaces for recreation (passive or active), sport, playgrounds, community gardens and places for gathering. Whangārei is a destination and key economic hub for Northland. Create vibrant places to gather, socialise and participate in local events. More free family friendly activities, events, theatre, hotels, things to do and see for locals as well as tourists. <i>“An “Eat Street” of new / up and coming eateries and a “Craft Street” to support small local businesses grow.” Community</i>	The FDS supports the equitable distribution of green space throughout the Whangārei District. The FDS promotes Whangārei City Centre as a vibrant and attractive destination for residents and visitors alike to participate in a range of activities and attractions.

Key theme	Explanation	How FDS responds:
Promote equitable access for all	Provide equitable access for all. Equitable access to education, healthcare, and social services for Māori, addressing disparities in health, education, and employment.	The FDS aims to enable equitable access to education, services, housing, and employment. Ongoing multi-agency collaboration, partnerships and co-operation is needed to remove barriers and enable fair and equitable outcomes for all.

Table 3: Snapshot of key themes shared throughout engagement.

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Part C – Information gathering

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Section 8: Whangārei's Context

This section highlights key characteristics of Whangārei's people, the built and natural environment. It includes an overview of key aspects of the development environment that are considered in the FDS, including development capacity, land use regulation, social and community infrastructure, network infrastructure, and the current strategic approach to developing these aspects.

Figure 9 illustrates the 'Functional Urban Area' of Whangārei as defined by Stats NZ. This definition provides a guide to the areas that need to be included in the FDS to ensure it is meeting the NPS-UD objective of a 'well-functioning urban environment'. However, the FDS will cover the whole district, including settlements such as Waipu and Hikurangi.

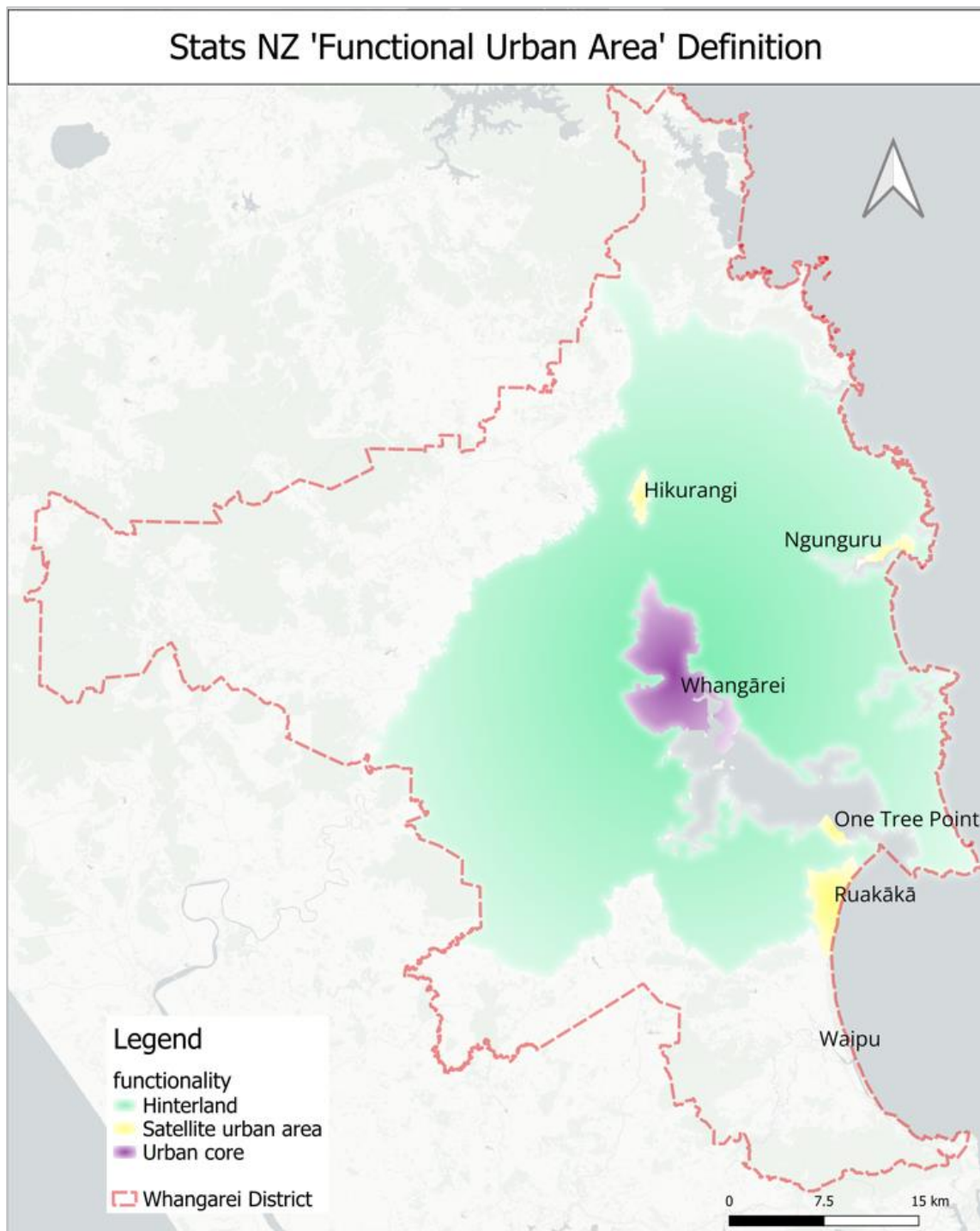


Figure 9: Stats NZ Functional Urban Area – guide for the focus area for the FDS.

Demographics

Population

Under the high-growth scenario, Whangārei District is projected to grow from 103,473 people in 2024 to 141,973 in 2053 (39% increase). These projections assume an overall ageing population, as illustrated for the high scenario in Figure 10. The population aged 65 years and older is projected to double between 2022 and 2054 (from 20,000 to 39,000 residents) in the high growth scenario, or to increase by approximately 75% in the medium scenario. Over time, there will be relatively fewer young people and more older people, which means the demand for healthcare and retirement living services is likely to increase more than demand for other services, such as schools.

Whangārei's Māori population is growing and comparatively higher than other regions. The 2018 census found 30% of the total population identify as Māori and 77% identified as European in the Whangārei District. Nationally, 16.5% of the total population identify as Māori. The census survey enables individuals to identify their own ethnicity and to identify up to six ethnicities if they choose.

Whangārei's population is projected to become more diverse over time, with growth across all major ethnic groups and an increase in people identifying with multiple ethnic groups. In 2043, the Māori population is expected to reach 47,152 people (39.5% of the population) from 31,543 in 2023.

This trend is shown in figures 10 and 11.

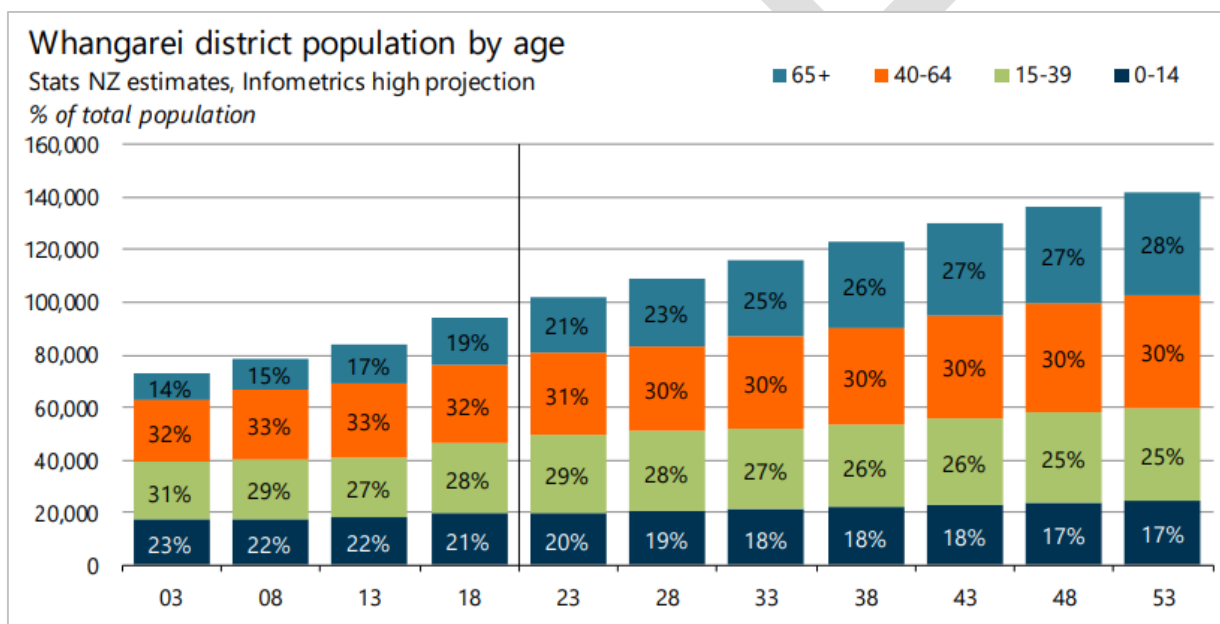


Figure 10: Whangārei district population by age (high growth), 2003-2053 (source: Whangārei District Population Projections by Infometrics, August 2023)

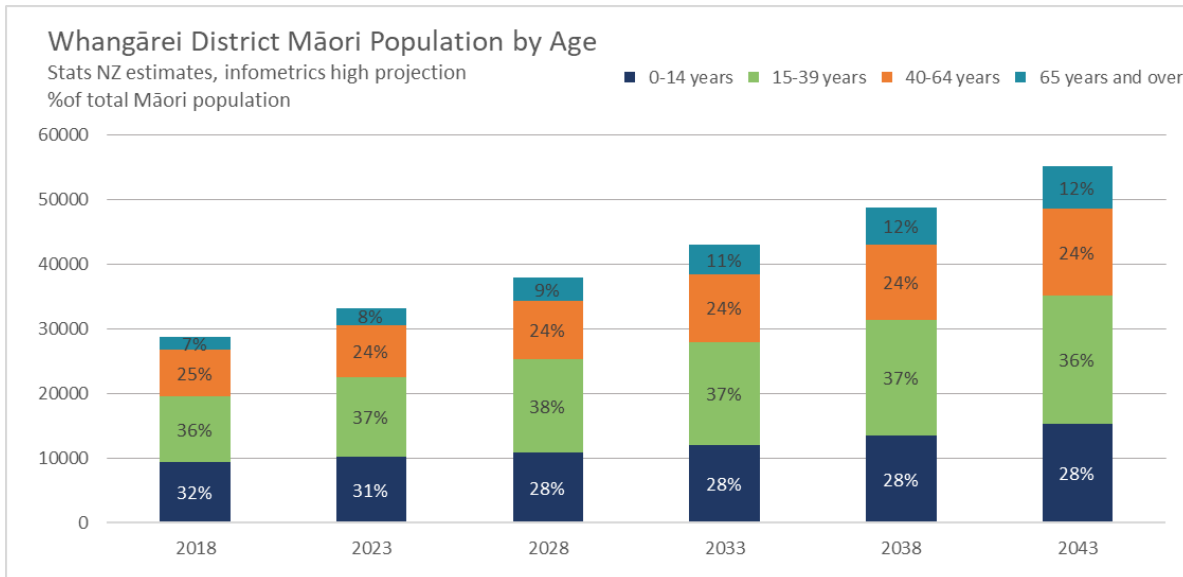


Figure 11: Whangārei District Māori population projection by age, 2018-2043 (source: Stats NZ Whangārei District Population Projections, November 2023)

Housing and Business Land Capacity Assumptions

The FDS responds to Housing and Business Development Capacity Assessment (HBA) findings about demand for and supply of housing and business land, and how much 'development capacity' is sufficient to meet expected demand (subpart 5 of Part 3). The FDS has been informed by the 2021 HBA¹² and the draft 2024 HBA; which has been prepared in parallel to the FDS. The draft FDS applies is working off the most up to date data to ensure development capacity is best captured and planned for in the FDS.

For the purposes of the report, summaries of the 2021 and 2024 HBA have been included to illustrate how key growth assumptions have been adjusted as new information has come to light.

This section of the report:

- Summary of key assumptions applied during the FDS preparation.
- summarises key information between the 2021 and 2024 HBA

Snapshot of 2021 & 2024 HBA

Category	2021 HBA	2024 HBA
Population forecasts & additional demand	• An additional 46,100 residents need to be accommodated over the long term (2051).	• An additional 38,500 residents need to be accommodated in the long-term (2054)
Plan enabled & feasible capacity	• Plan enabled capacity of residential zones in Whangārei's urban areas was 37,200 dwellings. • Feasible capacity was 19,600 dwellings. • The assessment does not consider 'infrastructure readiness' assessment – assumed all plan enabled	• Plan enabled capacity of residential zones in Whangārei's urban areas was 63,450 dwellings¹³. • Significant capacity has been accounted from previously identified Future Urban Zones, Marsden Private Plan Change and Port Nikau.

¹² During the preparation of the FDS, conclusions from the 2021 HBA informed the Future Development Strategy (FDS). However, due to project extensions and the completion of a revised HBA, capacity requirements were adjusted to the 2024 HBA.

¹³ Not excluding designations or sites with hazard risks. Also, not including potential development capacity in Future Urban Zones, the Rural Production Zone, the Ruakākā Equine Zone, or the Port Nikau Development Area.

	areas were infrastructure ready.	• Of the plan-enabled capacity, 41,773 are commercially feasible • The assessment will anecdotally consider 'infrastructure readiness' and the reasonably expected to be realised. •
Sufficiently meeting demands – short, medium and long term	• Short term – yes • Medium term – yes • Long term – no	• Short term – Yes • Medium term – Yes • Long term - Yes
Total number of homes required to meet demand	• An additional 20,100 dwellings by 2051	• An additional 14,312 dwellings by 2054 (and feasible development capacity for 16,727 dwellings)
Business land capacity	• Sufficient business zoned land in total to meet the long term demand (of 228 hectares).	• Sufficient development capacity to meet the long-term demand for: - 103.4ha of industrial land (118.9ha capacity requirement) - 63.5ha of retail and personal services land (73.1ha capacity requirement) - 11.8ha of office-based activities land (13.5ha capacity requirement)
Sufficiently meeting demands – short, medium and long term	• Short term – yes • Medium term – yes • Long term – yes However, if flood-susceptible land is excluded from the capacity assessment, there are some small insufficiencies in the long term (but not in the short or medium term) in: industrial land (9.1 hectares) and health, education and community services, and office-based activities (1.3 hectares).	• Short term – yes • Medium term – yes • Long term – yes If flood susceptible land is excluded from the capacity estimate there are capacity shortfalls for all types of business land. However, business uses are not always incompatible with flood susceptible land. There may also be shortfalls for some business land activities if developers choose to pursue residential schemes on zoned land that enables residential or business uses.

Table 4: Comparisons between 2021 and 2024 HBA

Summary of 2021 HBA

The section outlines the capacity assumptions applied during the preparation of the FDS. Issues regarding the need for an updated HBA was a key theme raised throughout early engagement with Central Government agencies. In response at the time, a memo was produced to summarise key changes to the 2021 HBA since it was released and what those changes mean for the FDS (appendix C).

What were the findings of the 2021 HBA?

The population and housing projections were based on the Whangārei District Growth Model 2020 and aligned with the 2021-31 Long Term Plan and associated Infrastructure Strategy. A high population growth scenario was applied for the 2021 HBA. This assumed there would be an additional 46,100 residents over the long term (by 2051), with a need for an additional 20,100 dwellings¹⁴.

The model found that the plan enabled capacity of residential zones in Whangārei's urban areas was 37,200 houses, while the feasible capacity was 19,600 houses. As part of the model development process, it was estimated that all sites in current residential zones are 'infrastructure ready'¹⁵ except for a small number of sites in the Settlement Zone – Residential Sub-Zone, depending on their distance from the wastewater network.¹⁶

To estimate the 'reasonably expected to be realised' capacity, analysis of recent developments within Whangārei was undertaken. The analysis reviewed the plan enabled capacity of recently developed sites (within the last 10 years) and compared that with the actual yield of subdivided lots. The findings indicated that between 45-55% of plan enabled capacity was realised, which aligns with the results of the feasible capacity modelling being 53% of plan enabled capacity. Therefore, the feasible capacity results are assumed to also be reasonably expected to be realised.

The 2021 HBA found that there was sufficient plan enabled, feasible housing capacity in the short and medium term, but not in the long term, based on the residential zones that were modelled. However, some zones that weren't modelled also contribute to the housing capacity of the district and when these are included, there is expected to be sufficient capacity in the long term.

Table 5 shows the results of the 2021 HBA, including the expected additional capacity from unmodelled zones. When the additional capacity of the unmodelled zones is included, there is expected to be sufficient capacity to meet demand plus competitiveness margins in the long term.

Table 5: Summary of 2021 Whangārei housing assessment results

	Short term (2024)	Medium term (2031)	Long term (2051)
Projected population growth since 2020	4,800	16,900	46,100
Projected household growth since 2020	2,300	7,500	20,100
Housing demand with competitiveness margin	2,800	9,000	23,100
Plan enabled, infrastructure ready capacity (modelled)	37,200		
Feasible capacity (modelled)	19,600		
Sufficiency (modelled)	Yes	Yes	No

¹⁴ Full 2021 HBA report can be found online -

<https://www.wdc.govt.nz/files/assets/public/v1/documents/council/strategies/land-capacity-assessment-summary-report.pdf>

¹⁵ Interpretating all 'planned enabled' locations at 'infrastructure ready' was consistent with Council's original District Plan proposal. Eventually, much wider upzoning was enabled in areas (including centres where infrastructure capacity constraints were previously articulated).

¹⁶ These sites make up around 1% of plan enabled capacity and 0.5% of feasible capacity across the district.

Additional plan enabled capacity (not modelled ¹⁷)	6,700		
Additional feasible capacity (not modelled)	3,500		
Feasible capacity (modelled plus not modelled)	23,100		
Sufficiency (modelled plus not modelled)	Yes	Yes	Yes

Business capacity

The projected business land demand was developed based on employment demand projections and was updated from the 2018 HBA. The total projected demand for growth in business land in Whangārei is 47 hectares in the short term, 112 hectares in the medium term, and 199 hectares in the long term. When the competitiveness margins required by the NPS-UD are considered, these increase to 56 hectares in the short term, 134 hectares in the medium term and 228 hectares in the long term. The split of land required by business sector is around 80% industrial, 10-15% retail and personal services, 5% health, education and community services, and 2% office-based activities.

A business capacity model was used to compute the plan enabled and infrastructure ready business land in the district. In total, 406 hectares of business zoned land was identified as being able to support future business activities. This shows that there is sufficient business zoned land in total to meet the long term demand (of 228 hectares). The business capacity model showed that there is also sufficient land zoned for each individual business sector to meet its demands. However, if flood-susceptible land is excluded from the capacity assessment, there are some small insufficiencies in the long term (but not in the short or medium term) in: industrial land (9.1 hectares) and health, education and community services, and office-based activities (1.3 hectares).

Table 6: Summary of 2021 Whangārei business assessment results

	Short term (2024)	Medium term (2031)	Long term (2051)
Projected business land growth (hectares)	47	112	199
Business land demand with competitiveness margin (hectares)	56	134	228
Total business land available	406		
Sufficiency (by sector)	Yes	Yes	Yes
Sufficiency (by sector, exclude flood prone land)	Yes	Yes	No (by 10.4ha)

¹⁷ The unmodelled additional plan enabled capacity comes from 5,000 houses in Rural Production Zone, 1,000 houses in the Port Nikau Development area, 200 houses in the Ruakaka Equine Zone, and 500 houses in Marsden Primary Centre. The capacity in the Rural Production Zone wouldn't meet the requirements of the new NPS-HPL. Further capacity was also expected to come from the Urban and Services Plan Change and the Growth Strategy and Placemaking Plans.

Summary of HBA 2024

The population and the housing projections were provided by Infometrics (based upon Statistics New Zealand's growth projection). Similarly, to the 2021 HBA, a high growth forecast was applied for the 2024 HBA, aligning to forecasts applied in the 2024-34 Long Term Plan and Councils Infrastructure Strategy. The advantage of planning for high growth is that it represents a 'worst case' scenario, thereby ensuring resilience and readiness for the highest growth that is plausible. This is important because effective infrastructure planning and delivery takes time.

The 2024 growth projection is lower than the 2021 growth projection (though the 2021 HBA also relied on the then high growth scenario). The 2021 housing demand assessment projects demand for 20,100 additional dwellings by 2051 - The NPS-UD competitiveness margin brought the total demand to 23,000 residential dwellings. Using the high growth scenario, there is a projected need for an additional 14,311 dwellings by 2054. To ensure a degree of choice and competition in the development market, there is a requirement to enable enough development capacity to accommodate **16,727** dwellings by 2054². Under the high growth scenario, Whangārei's housing stock will grow by 36 per cent (from 39,502 in 2023 to 53,813 in 2053).

The 2024 HBA assumes that at least the percentage share of each conventional dwelling type granted consent over the most recent five-year period (2019-2024), will be required for each dwelling type over the coming 30 years.

This means provision of sufficient development capacity to provide at least the following dwelling mix:

- 12,165 as standalone houses (85%)
- 1,431 as townhouses (10%)
- 716 as apartments (5%)

The housing capacity requirement for 16,727 new dwellings by 2054 split across the different housing typologies is:

- 14,218 as standalone houses
- 1,673 as townhouses
- 836 as apartments

An update to the Housing Capacity and Feasibility Model was undertaken to ensure new plan-enabled capacity was factored into the assessment. Market and development costing updates were also made. The Model first applies district plan zoning rules to model the number of dwellings that could notionally be completed across the district in urban zones that permit residential uses⁶. The modelling includes greenfield development opportunities (i.e., development on vacant parcels), and it includes brownfield development opportunities (i.e., parcels with existing buildings that could provide net uplift through demolition and redevelopment or infill). The Model then determines how many of the notional plan-enabled dwellings are commercially feasible based on assumptions for development costs and values. The Model does not have the functionality to consider the infrastructure-readiness of feasible development or the likelihood of realisation¹⁸

The HBA identifies the District Plan provides plan-enabled development capacity for 63,450 new dwellings⁸. This falls to 59,092 when designations are excluded⁹, it falls to 58,601 when sites vulnerable to high-risk hazards are excluded, and it falls to 50,885 when sites vulnerable to any hazard are excluded. 41,773 of the plan-enabled notional dwellings are commercially feasible. This falls to 38,038 when designations are excluded, it falls to 38,334 when sites vulnerable to high-risk hazards are excluded, and it falls to 33,765 when sites vulnerable to any hazard are excluded. Given the district-wide development capacity requirement is to enable at least 16,727 new dwellings, at the district-wide scale, there is significantly more feasible development capacity than is required.

¹⁸ i.e., development capacity must be plan-enabled, infrastructure ready, feasible, and reasonably expected to be realised.

It is important that the feasible development capacity is infrastructure ready and suitable to respond to needs in terms of location and type, as well as being sufficiently resilient to withstand adverse market conditions.

The District Plan provides potential additional development capacity in Future Urban Zones (FUZs). FUZs have been designated in some rural areas on the edge of urban Whangārei where they have been deemed as potentially suitable for residential development at a density of one dwelling per 500m² ¹¹. FUZs can only be development at the increased densities if adequate development infrastructure, including municipal water and wastewater supply, has been provided.

Assuming the FUZ is enabled with adequate development infrastructure, FUZs could provide development capacity for **12,702** additional feasible dwellings. The following tables show the net additional dwellings that could be provided in each FUZ (assuming adequate infrastructure).

Future Urban Zone	Net Additional Dwellings
Abbey Caves North	1,174
Abbey Caves South	678
Mauna North	688
Mauna South	2,808
Three Mile Bush	1,419
Vinegar Hill North	2,275
Vinegar Hill South	3,273
Whau Valley North	387
Total	12,702

SA2	Net Additional Dwellings from Future Urban Zones
Abbey Caves-Glenbervie	1,852
Granfield Reserve	1,733
Kauri	5,548
Matarau	3
Pukenui	3,496
Whau Valley	70
Total	12,702

Table 7: Future Urban Zone additional development capacity

Business Demand 2024

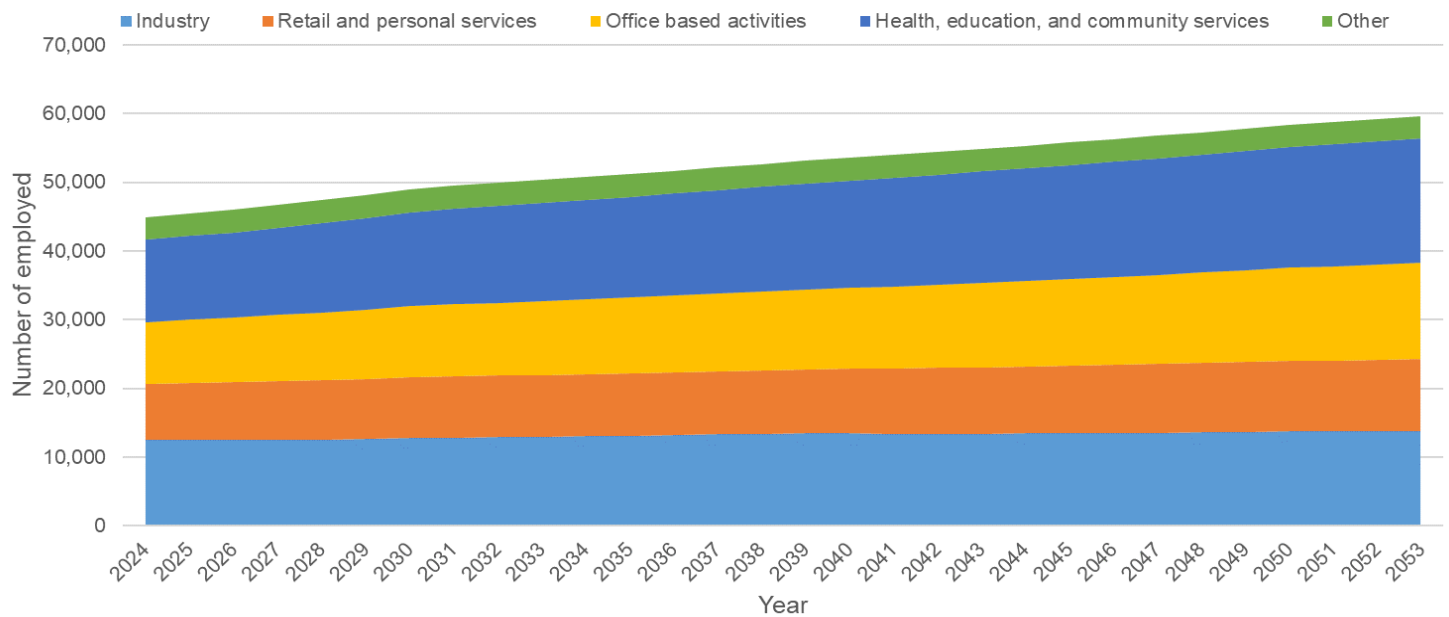
The High growth scenario projects the working age population to increase from 83,463 in 2024 to 117,314 by 2054¹⁹. Assuming a 'medium' long-run labour force participation rate, the work force is projected to account for 51 per cent of the working age population (59,685 workers) by 2054²⁰.

Figure 6 shows the projected workforce growth for the broad economic sectors of 'industry', 'retail and personal services', 'office-based activities', 'health, education and community services', and 'other'. This

¹⁹ The working age population refers to all people aged 15 and over.

²⁰ The 'medium' long-run labour force participation rate assumes 51 per cent of the working age population are economically active. The 'medium' rate is similar to the current workforce participation rate. Given the aging population profile, it does not seem reasonable to assume the workforce participation rate would increase over time as the proportion of adults that are economically inactive due to advanced years is projected to grow. This would likely offset any increase in workforce participation among younger age groups. A 'high' long-run labour force participation rate assumes 56 per cent of working age population are economically active, a low participation rate assumes 46 per cent are economically active.

shows that all sectors of the economy are expected to grow over the coming 30 years, with the greatest growth occurring in 'office-based activities' and 'health, education and community services'.



For the broad sector of **industry**, there is estimated to be a requirement for a total of:

- 19.5 ha in the short term (2024 - 2027)
- 38.7 ha in the short-medium-term (2024 - 2034)
- 118.9 ha over short-medium-long-term (2024 – 2054)

For the broad sector of **retail and personal services**, there is estimated to be a requirement for a total of:

- 13.5 ha in the short term (2024 - 2027)
- 29.6 ha in the short-medium-term (2024 - 2034)
- 73.1 ha over short-medium-long-term (2024 – 2054)

For the broad sector of **office-based activities**, there is estimated to be a requirement for a total additional of:

- 1.3 ha in the short term (2024 - 2027)
- 5.1 ha in the short-medium-term (2024 - 2034)
- 13.5 ha over short-medium-long-term (2024 – 2054)

Business Land Supply 2024

Modelling suggests there is likely to be sufficient plan-enabled development capacity to meet the needs of all sectors of the economy over the short-medium-long-term. Indeed, for most sub-sectors, there is likely to be a considerable surplus of development capacity.

In addition to the modelled development capacity available to each sector, the Port Nikau Development Area enables a new town centre, and the current Port Nikau Masterplan indicates an additional 6,000m² floorspace will be provided for retail, hospitality and commercial activities. Table 8 shows the development capacity requirement for each major economic subsector, alongside the modelled capacity²¹.

²¹ Note: The model assigns available development capacity that is suitably zoned to each sub-sector up to the point that the available development capacity equals the development capacity requirement. It does not assign surplus available development capacity to any sub-sector of the economy.

		2024 - 2027		2027 - 2034		2024 - 2054 (ha)	
Broad sector	Sub-sector	Requirement (ha)	Permitted and enabled capacity (ha)	Requirement (ha)	Permitted and enabled capacity (ha)	Requirement (ha)	Permitted and enabled capacity (ha)
Industry	Food Industry	0.4	0.4	0.6	0.6	2.2	2.2
	Light Industry	3.2	3.2	5.0	5.0	16.9	16.9
	Noxious Industry	0.2	0.2	0.3	0.3	0.8	0.8
	Heavy Industry	14.8	14.8	23.4	23.4	78.7	78.7
	Industrial Services	-	-	7.0	7.0	19.7	19.7
	Warehousing	0.9	0.9	2.3	2.3	0.6	0.6
Retail and personal services	Trade retail	5.8	5.8	15.6	15.6	42.0	42.0
	Service stations	0.2	0.2	0.4	0.4	0.7	0.7
	Supermarkets / food retail <600m2	0.4	0.4	0.6	0.6	1.3	1.3
	Supermarkets / food retail >600m2	1.2	1.2	1.9	1.9	4.0	4.0
	Department stores / durable goods retail	2.1	2.1	3.3	3.3	6.8	6.8
	Boutique shopping and personal services	1.7	1.7	4.4	4.4	11.5	11.5
	Accommodation	0.9	0.9	1.5	1.5	3.1	3.1
	Cafes, restaurants, and bars	1.1	1.1	1.8	1.8	3.7	3.7

Office based activities	Office based activities	1.3	1.3	5.1	5.1	13.5	13.5
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Table 8: Development capacity requirement and supply for each economic sub-sector (2024-2054) – no exclusions

Housing considerations

Choice and supply

In Whangārei the housing stock is predominately stand-alone dwellings, which make up around 85-90%²² of the supply. Just over 10% of the supply is attached typologies, although these are typically in a single level unit rather than multi-level town houses or apartments.

The operative District Plan enables a range of different housing typologies including:

- Higher and medium density residential and mixed-use formats in the city centre and neighbourhood centres.
- Medium to lower density residential development enabled in residential zones in the suburbs of the city.
- Residential development is also provided for in the rural zones which include the rural and coastal settlements and the Rural Lifestyle Zone.
- Future Urban zoned land has also been identified to provide residential development capacity in the future.

The housing typologies enabled in each of these zones are summarised in Table 9.

Table 9: District Plan Zone and types of housing enabled in each

District Plan Zone	Most Intensive Housing Typologies enabled
Large Lot Residential	Standalone dwelling
Low Density Residential	Standalone dwelling, minor unit
General Residential	Standalone dwelling, duplex, Minor unit
Medium Density Residential	Terraces, walk-up apartments, standalone dwelling, minor unit
Rural Production	Standalone dwelling, Minor unit
Rural Lifestyle	Standalone dwelling, Minor unit
Settlement - Residential	Standalone dwelling, Minor unit
Future Urban	Standalone dwelling, Minor unit
Mixed Use	Apartment building up to 6 stories
Town Centre	Apartment building up to 4 stories
City Centre	Apartment building up to 10 stories
various	Papakāinga – various typologies

Although land has been zoned for high and medium density housing, the HBA found that the number of feasible apartment dwellings is relatively low, even with more enabling provisions through the Urban and Services Plan Change. Related to this feasibility issue, developer feedback reported on in the HBA included “Inner city amenity, vibrancy and liveability is perceived as being poor, so people do not want to spend time or live in the inner city”. The HBA also assessed that there was potentially an over-provision for enabled

²² Refer to Stats NZ - NZ Census 2018

townhouse type development (including terraces) and that this could be substituted for apartment developments in those zones.

The Whangārei Inner City Living Business Case, prepared in 2021, investigated the opportunities for residential apartment and town house development in the city centre. While the work found there was increasing demand for inner city living and smaller housing typologies, it also found that market conditions were challenging and development of these types of dwellings was difficult.

Improved inner city amenity was identified by the work as a method for supporting the market, although it was noted that this would support high quality new builds with relatively high price points. This implies that affordable housing in the city centre may not be developed by the private sector under the current (2021) market conditions. The work did not cover areas outside the city centre.

The Whangārei District Housing Strategy (2022) identified that to “support and respond to the shortfall [in apartments] through regulatory and non-regulatory responses, Council is working through options to encourage and incentivise the development of more apartment developments in our urban areas”.

District Plan Zoning

This section describes the current District Plan zoning and the growth pattern that it enables. Table shows the housing typologies that are enabled in each zone. Residential development is enabled both in the urban area and in the rural area, but at different scales. The extent of the zones providing for residential development as a principal activity on a site are outlined in Figures 12 below.

Industrial zones tend to be located on the fringe of the areas zoned for residential and commercial activity but fit within a similar overall extent.

Other than a handful of special zones, most of the rest of the district is zoned either Rural Production Zone or for public open space, conservation, or for recreation.

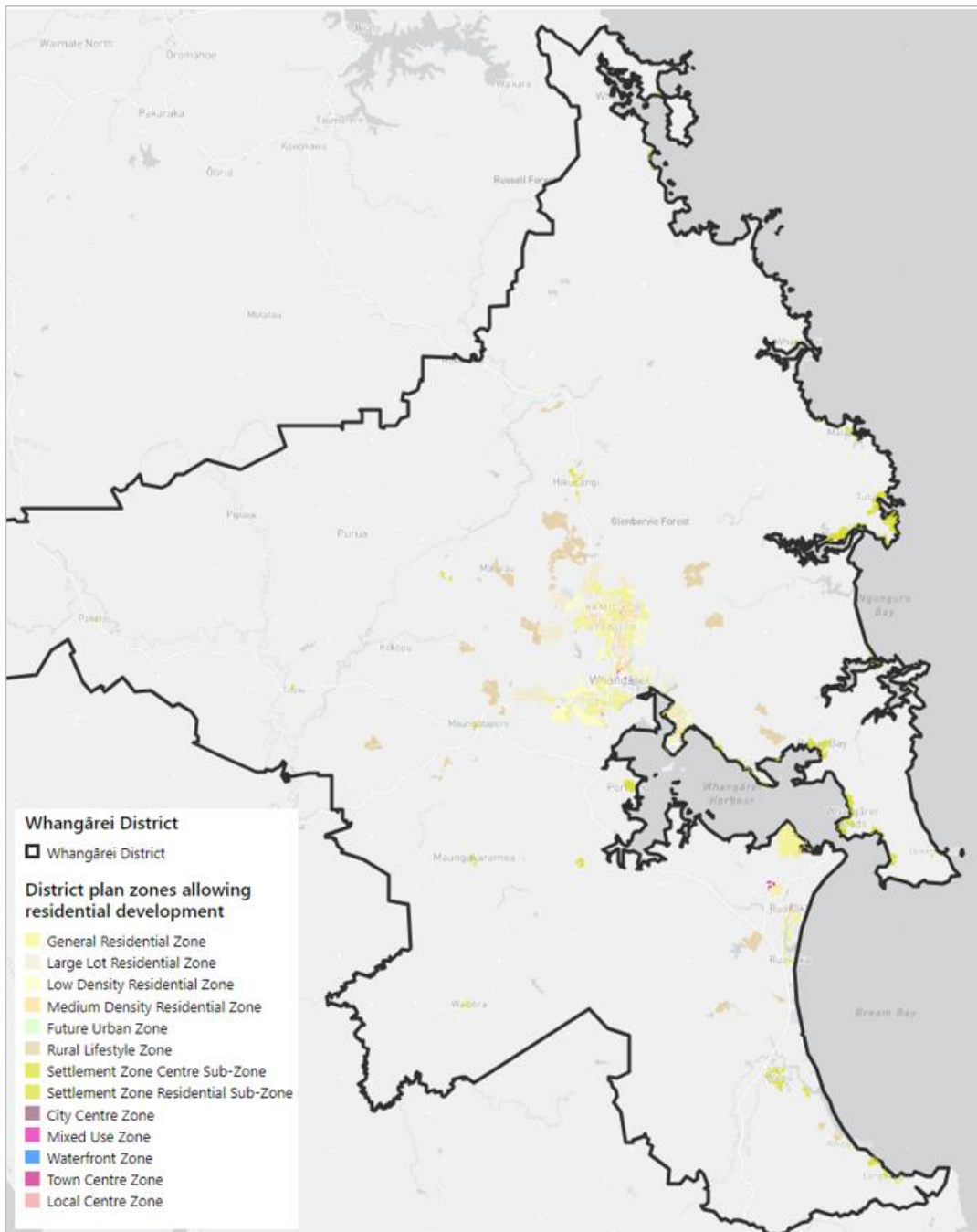


Figure 1: District plan zones allowing residential development across Whangārei District.

Housing Affordability

The housing affordability index for Whangārei, which is the average ratio of current house value to average household income, is 6.9 (Infometrics, 2023). Although the District was more affordable than the New Zealand average in 2023 (index 7.2) and there has been an improvement in affordability since 2022, the index shows that currently housing is relatively unaffordable when compared to previous decades.

Housing affordability of living is influenced by a range of factors including household income, market rent or housing prices, transport costs, infrastructure costs and delivery and other living costs related to the location and lifestyle of residents. The Housing Strategy²³ has a key outcome to increase access to affordable housing and a strategic value to prioritise affordable housing solutions based on demand. This can be achieved through statutory responses like District Plan zoning which provide for a range of housing

²³ Link to the Whangārei District Housing Strategy -

<https://www.wdc.govt.nz/files/assets/public/v1/documents/council/strategies/housing-strategy.pdf>

typologies in strategic locations, and supporting business development, job, and income growth. Market incentives may also be considered to improve market availability.

Business and Economic Development

Whangārei's role to economic prosperity

Whangārei has an important role in the Northland economy. [Infometrics Regional Profile](#) shows Whangārei GDP for the year to March 2022 as \$5,456.4m, a growth of 4.9% from the year prior. GDP per employee in Whangārei District measured \$121,702 in the year to March 2022, which was lower than in New Zealand (\$132,815). Whangārei District Council has a role in district promotion, tourism, and economic development to generate revenue and employment opportunities.

City Centre

There are 1,400 businesses and 9,300 people employed in the city centre (City Centre Plan, 2017)²⁴. Businesses are spread widely across the city centre, which creates fragmented connections and issues between these areas. Very few people (290 residents) live in the city centre, but a third of the people that are employed in the Whangārei District, work in the city centre.

The city centre area (174ha) is the main employment centre in Whangārei. In 2017 it provided jobs in commercial and professional services (22%), civic services and safety (22%), health and education (16%), retail (24%) and light industrial (11%). Building vacancy was 8% in the city centre in 2017. The City Centre seeks to be a place that attracts success through job creation, knowledge, and economic transactions (Whangārei City Centre Plan 2017).

It is intended that the quality of the public realm, including the waterfront, a range of retail, entertainment, arts and cultural facilities supports the attractiveness and vibrancy of the city centre economic area, offering opportunities for business and unique and authentic experiences for locals and visitors alike.

Northport

Previous studies into Northport reached the conclusion that Northport is the best, if not only, site in New Zealand capable of providing deep water access and significant local industry capability and infrastructure.

The Northport Impact report (Northland Inc) identified that the jobs that require high skills are in short supply and often not filled by Northlanders. As high skilled workers move to Northland to obtain jobs, GDP, employment growth and subsequent population growth and pressure on housing demand is anticipated.

Northport has a special zone in the district plan, which expects that there will be future expansion and development within the Port Zone to respond to the "future growth of the upper North Island". Flexibility to adapt and to develop the area to support the Port and its future operations is important and has been provided for in the district plan provisions for the zone.

Northport has a resource consent application lodged with WDC and NRC for consent to expand the existing port at Marsden Point²⁵. In February 2024 the consent process is ongoing after the hearing was adjourned for three months. If granted, the consent would enable the expansion of Northport's existing facilities to increase freight storage and handling capacity and support Northport's transition into a high-density container terminal.

Northport's case for change signals Northport's role is likely to significantly change in the future, mainly because of freight needs and trading patterns. This will require longer berths and more space to store and handle greater quantities, and a more diverse range, of cargo.²⁵

Jobs

Employment across the district is focused on the city centre, with some jobs spread across most of the broader urban area. There are also localised employment nodes outside the urban area in Hikurangi, Parua Bay, Marsden Point, Ruakākā, and Waipū.

²⁴ Acknowledge the figures need to be revised – best available information at the time of drafting report.

²⁵ <https://visionforgrowth.co.nz/resources/documents/The-case-for-expansion.pdf>

The 2021 Growth Strategy (Sustainable Futures) identified the key business sectors for Whangārei as manufacturing, healthcare, construction, forestry, retail, and agriculture. Opportunities for future growth are identified as relating mostly to the primary sector industries.

Strategic rural assets

There are several established industries which are of strategic importance to Whangārei District and to other rural communities across the District. Assets such as the Kauri Dairy Manufacturing Site and the Portland Cement works provide economic and employment stability for many households in the Whangārei District.

Workforce projections

Whangārei District already has a shortage of construction workers. Whangārei District has a current supply of 4,752 construction workers. A 'most likely' scenario of construction pipeline projects requires a demand of 5,120 construction workers, leaving an undersupply gap of 368 workers. The need for construction workers is not a short-term issue. Projects which are not able to be built in the next five years still need to be built. As such, infrastructure- and workforce demand compounds over time.²⁶

Te Rerenga Tai Tokerau Northland Economic Wellbeing Pathway

Northland Inc is facilitating the development of an Economic Development Strategy for the region in partnership with a range of groups and individuals throughout Northland.

Te Rerenga – Tai Tokerau Northland Economic Wellbeing Pathway seeks to set a vision for the regional economic landscape. Designed through a collaborative process involving stakeholders from many sectors, it sets a vision for a sustainable, innovative, and prosperous economy.

It has been co-created by representation from business and industry, Iwi/Māori, local and central government, community, Northland Inc, and guided by Te Rerenga Steering Group. Te Rerenga seeks to cultivate a prosperous, sustainable, and innovative economy for all to partake in its benefits

The Strategy empowers Taitokerau Northland to shape its destiny, fostering a region where people can grow, connect, and achieve balance with their environment. Importantly, this strategy is not limited to one group but involves many organisations, individuals, businesses, and community groups working together to create a place where people and enterprise choose to thrive.

Digital Connectivity

Digital connectivity is important to support the economic development of the region. Nothing But Net - Digital Strategy FNDC outlines a series of outcomes sought to improve digital connectivity (mobile and broadband), digital literacy, and the role of digital technology in business and enterprise and in supporting social wellbeing. Reflecting on the pandemic period, digital connectivity is identified as a factor that supports social and economic resilience also.

The Chorus website shows that the Whangārei urban area is serviced primarily with VDSL technology, with only pockets of direct fibre optic access. Rural areas typically have ADSL network coverage.

Previous engagement through the 2021 Whangārei District Growth Strategy identified the constraints of limited infrastructure for rural and coastal communities. Ongoing improve to provide better telecommunications connectivity inform hapū aspirations for improving service delivery.

²⁶Social impact assessment of Northland's pipeline of major infrastructure projects – June 6 2024

Transport infrastructure

Walking and cycling network

There are some dedicated walking and cycling paths (with varying degrees of priority) in the Whangārei urban core. However, the network is currently somewhat disconnected. The dedicated paths provide higher levels of safety and amenity than the standard footpaths and urban streets. There are also several proposed paths that aim to connect existing paths into a network. These existing and proposed paths are shown in Figure 13. There are also some longer proposed shared paths that would link remote areas of the district, like Ngunguru and Tutukaka, with Whangārei City.

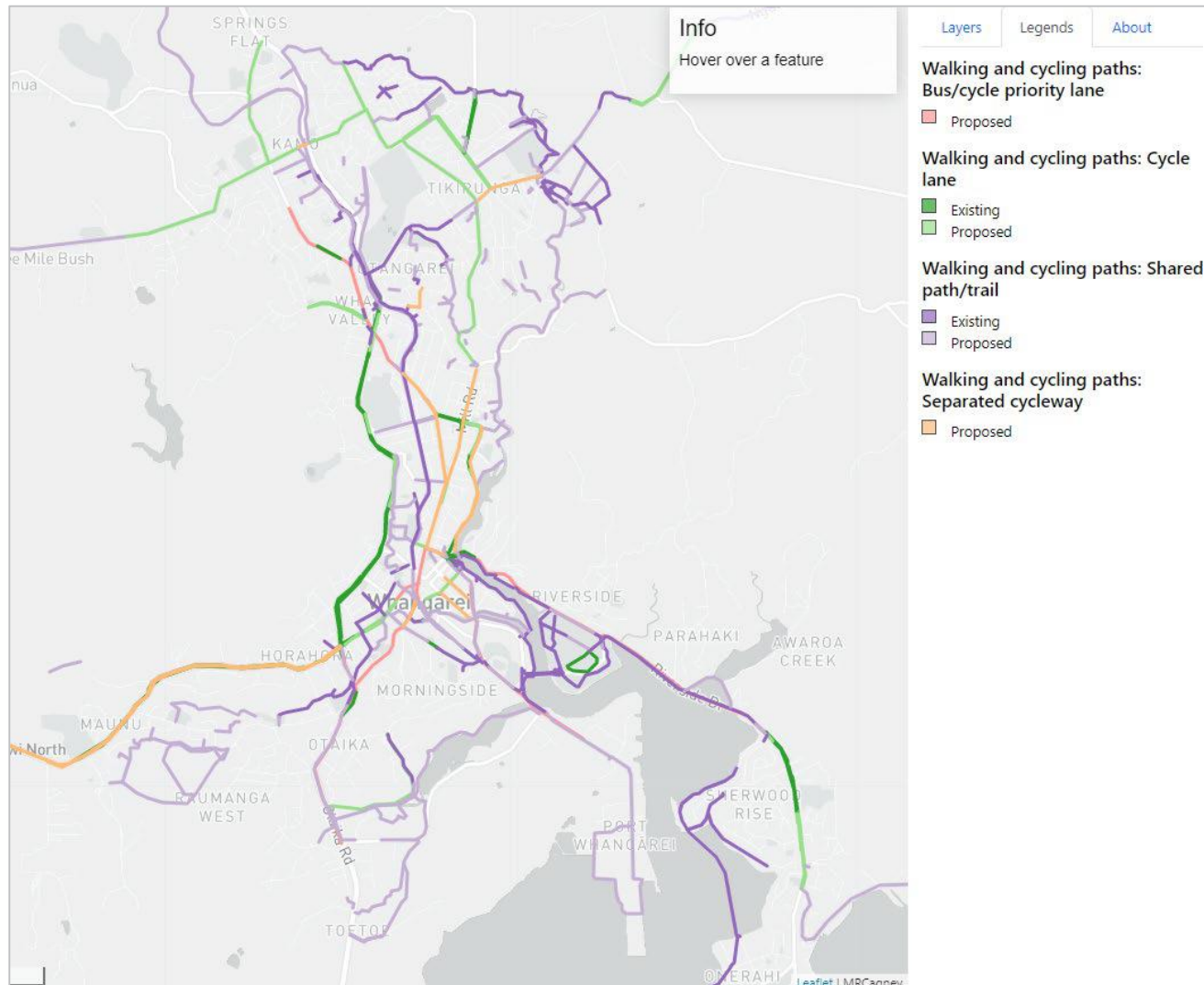


Figure 13: Existing and proposed dedicated walking and cycling infrastructure (source: WDC online maps)

The WDC Walking and Cycling Strategy outlines a framework and priorities for developing a connected walking and cycling network. The vision of this strategy is:

A walking and cycling destination that provides safe, integrated, attractive and viable networks for commuters as well as lifestyle and economic opportunities for residents and visitors.

(Walking and Cycling Vision (Walking and Cycling Strategy, 2018))

There are three main workstreams covered by the strategy:

- Urban Shared Pathways
- Tourism and Recreational Routes
- Safety and Participation Programme

The approach of the strategy for urban shared pathways is to first focus on the completion of the core urban backbone routes, then build out connections to schools, active playgrounds, significant urban destinations, and places of work and recreation. The aim of this approach is to create a full network.

The core backbone routes are planned to be between Kamo, Onerahi, Tikipunga, Raumanga, Otaika and Maunu (and a new community area at Limeburners), and the city centre.

There are also opportunity areas identified such as creating a Kamo Walkability Zone and co-benefits from the integrated implementation of the Blue Green Network Strategy.

The strategy also aims for a recreational walking network that has tracks that are easily accessed from the urban area and provide a non-urban experience for users.

The council has a Network Operation Framework report that was produced in 2021. This report focuses on the core urban area of Whangārei and includes more comprehensive maps, showing more local connections, of the strategic pedestrian and cycling networks. These are shown in Figure 14 below.

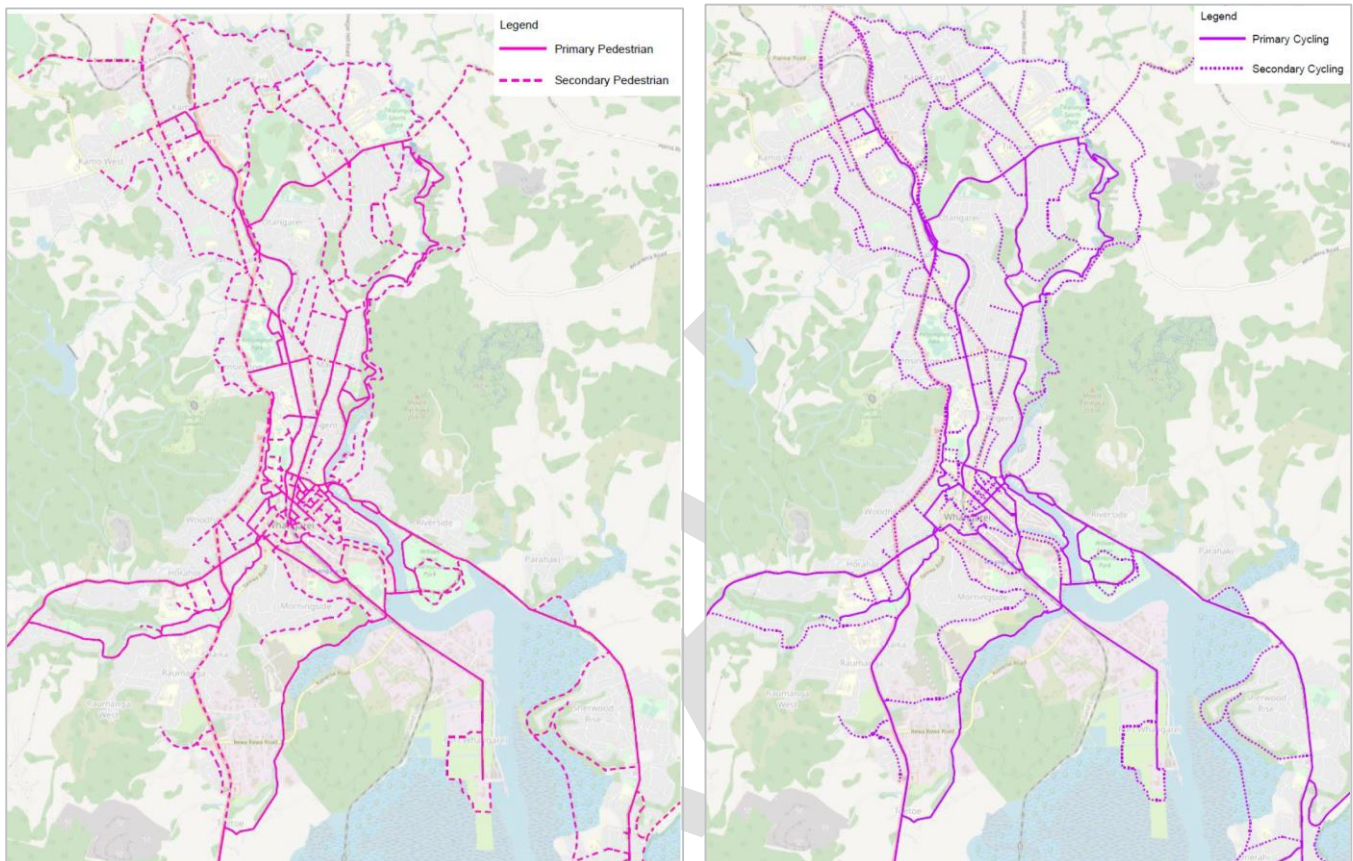


Figure 14: Network Operating Framework Priority Pedestrian and Cycling Networks

Bus network

The main Whangārei bus network services the urban core (City Link), and there are also bus routes servicing settlements to the north and south of the urban core, including Hikurangi (Hikurangi Link), Ruakākā and Waipū (Bream Bay Link), as well as Mangawhai and Kaiwaka (which are outside of the district's boundaries).

The City Link buses typically operate every half hour during the morning and evening commuter peak periods, and every one or two hours outside these times. The City Link routes are shown in Figure 15 below.

The RTP outlines initiatives for improvements in the bus network in the RTP 2021 as shown in Figure 15.



Figure 152: Whangārei City bus routes (source: Regional Public Transport Plan 2021-2031)

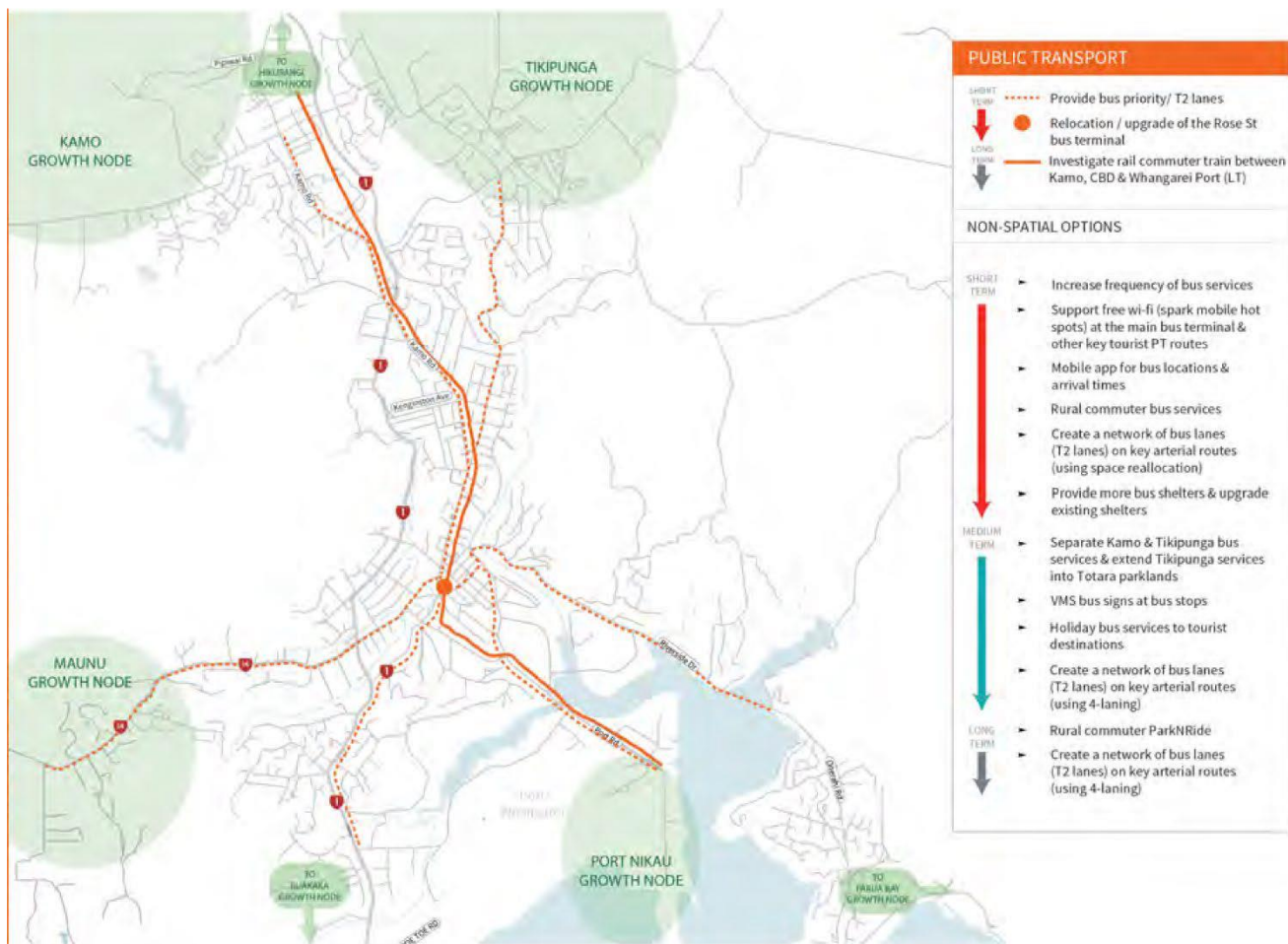


Figure 16:3: Planned improvements to the Whangārei bus network (source: NRC RPTP 2021)

Proposed improvements include, in general terms, doubling the existing service frequencies on the City Link network and increasing the Hikurangi and Bream Bay Links frequency to provide a peak commuter service.

The street and road network

Whangārei has 1,750 km of streets and roads (1,056 km of sealed roads and 694 km of unsealed roads), 436 km of footpaths, 485 bridges and large culverts, 5,407 streetlights, and 26 traffic signals.

The Long Term Plan 2021 specifies two level of service standards for streets and roads:

1. the district's roading network will be maintained in a satisfactory condition and in accordance with national safety and engineering standards.
2. we will support alternative transport methods.

The national safety and engineering standards referred to in the level of service standard are embodied in the council engineering code of practice.

A summary of key issues for the Whangārei's transportation system outlined in the LTP 2021 include:

- Poor condition of the urban sealed road network in Whangārei City
- Congestion in the city, which is being exacerbated by high population growth.
- High fatal and serious crash rate on the district's arterial roads
- An unsealed road network that has a lack of aggregate
- Isolated coastal communities reliant on vulnerable roads
- Poor use of alternative transport modes

Northern Growth Area – Springs Flat

A Government contribution of \$10.3m towards the delivery a new bridge and a new roundabout in Springs Flat will unlock growth in this area well before Year 30 (subject to delivery of other required infrastructure).

This project is funded in the 2024-2034 LTP with estimated project delivery timing of 2024-2026 and will enable up to 3000 new homes to be built in the area.

Whangārei Network Operating Framework

As noted above, the council has a Network Operating Framework report. This includes strategic network maps for general traffic and road freight.

The One Network Framework

The council is also working with Waka Kotahi on implementing a new national road classification system for the districts road and street network. The new system is called the One Network Framework and will replace the One Network Road Classification system. Waka Kotahi describes the ONF as recognising:

“... that streets not only keep people and goods moving, but they’re also places for people to live, work and enjoy. The ONF is designed to contribute to improving road safety and build more vibrant and liveable communities.”

Waka Kotahi One Network Framework Overview²⁷

The process of reclassification of the city’s streets has already begun: Figure 17 shows the new classifications for the city centre area.

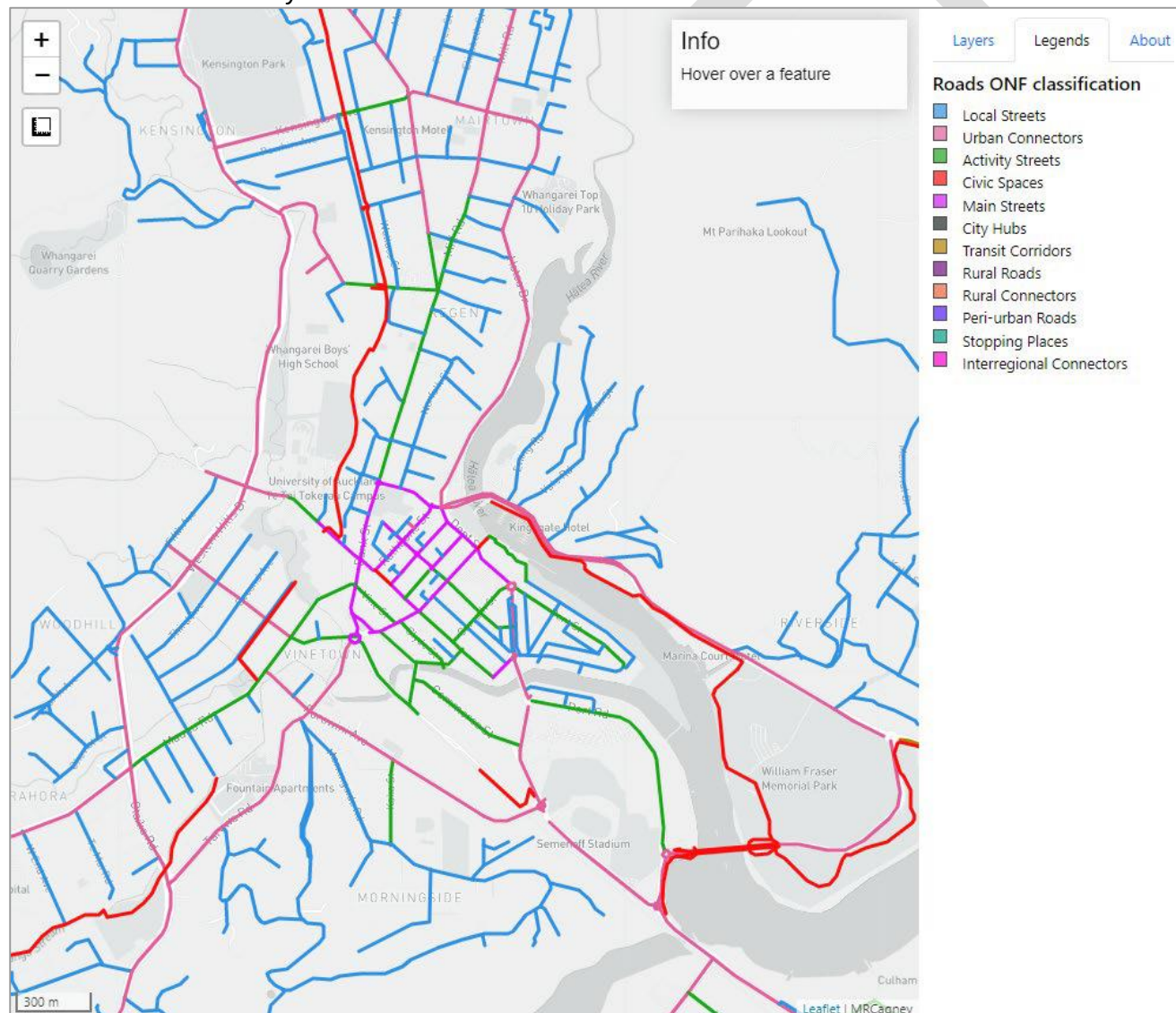


Figure 174: One Network Framework Street classifications (source: WDC Online Maps)

²⁷ ://www.nzta.govt.nz/planning-and-investment/planning/one-network-framework/overview/

The ONF will result in changes in street design and associated improvements in level of service for pedestrians, cyclists, and public transport. These are critical changes needed to establish multi-modal street environments suitable for supporting higher density urban development, along with benefits that come with this, including housing choice and affordability, transport choice and opportunities for reduced cost of living, and reduced levels of deaths and serious injuries on the transport network.

The Waka Kotahi Aotearoa Urban Street Planning and Design Guide illustrates the types of changes that are needed in street design. The design guide outlines design parameters summarised in Table below.

Table 10: Example Aotearoa Urban Street Planning and Design Guide Design Parameters

Street Class	Environment	Design Speed	Cycle Facilities
City Hubs	Designed to accommodate high-frequency, high-quality public transport services through areas with very high pedestrian numbers	30km/h	Separated
Civic Spaces	Laneway Streets and Shared Spaces	10-20km/h	Mixed On-street
Main Streets	Serve as the centre of community life and should prioritise local walking trips and access to public transport	30km/h	Separated
Activity Streets	Provide access to shops and services by all modes. There is significant demand for movement as well as place	30 - 40km/h	Separated
Urban Connectors	Long, contiguous streets that have higher levels of vehicle traffic, with less intense access function than mains streets	40 -60km/h	Separated
Local Streets (residential connectors)	Residential Connector streets with low traffic volumes and slow speeds - connect suburban residential streets to urban connectors	30km/h	Mixed On-street
Local Streets (residential)	Low traffic volumes, low speeds and limited network requirements	10 - 30km/h	Mixed On-street

Journey to work

Journey to work/education distances are typically shortest closer to the city centre and are longer on average the further away you live. Exceptions to this include Ruakākā and One Tree Point, which shows that people living in those areas are more likely to also work there, than to work in the city centre.

Figure shows the distribution of average commute distances for journeys to work in Whangārei District. Out of around 21,000 journeys to work counted in the 2018 Census, nearly 50% have a commute of less than 5km.

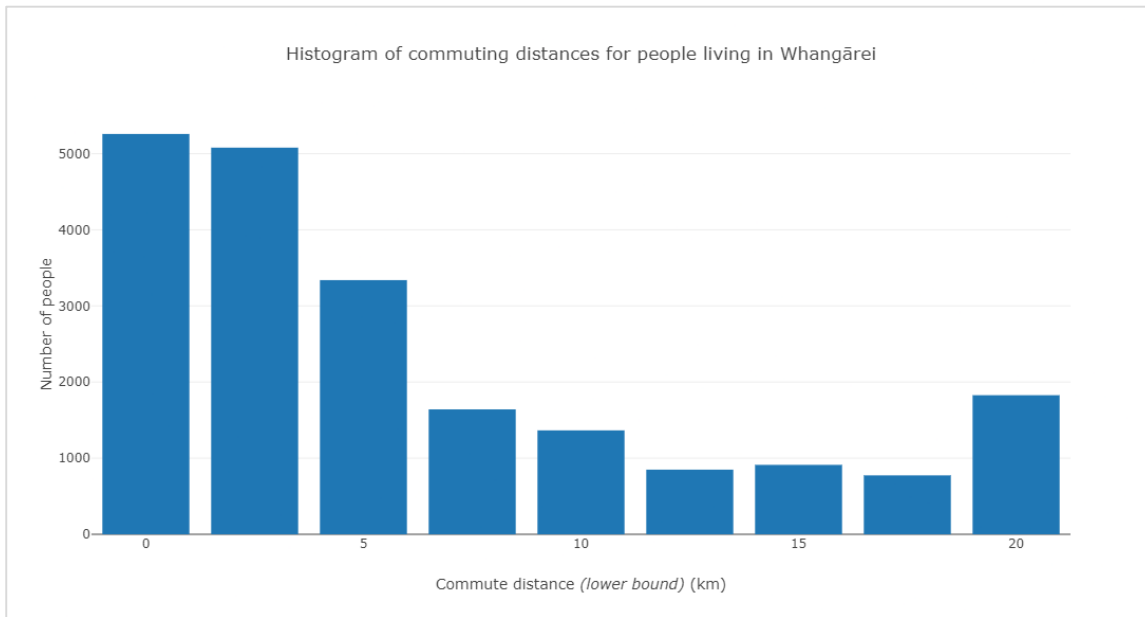


Figure 18: Histogram of average journey to work distances for people living in Whangāri District (excludes journey to education)

Figure 18 shows peoples travel mode to work for Whangārei District - 86% of people traveling to work used a private or company car or truck, either as a driver or a passenger.

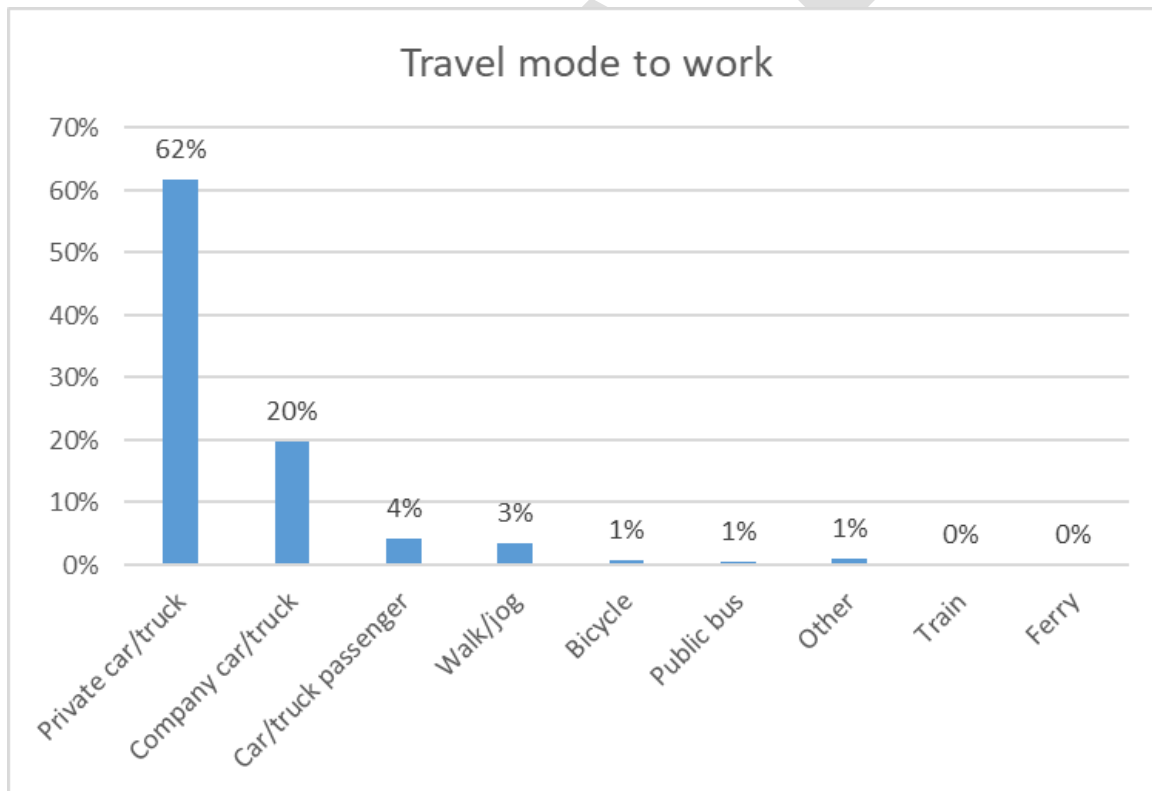


Figure 19: Travel mode to work (source: Census 2018)

Journey to education

Figure shows peoples travel mode to education: 59% of people travelling to education used a private or company car or truck, either as a driver or a passenger.

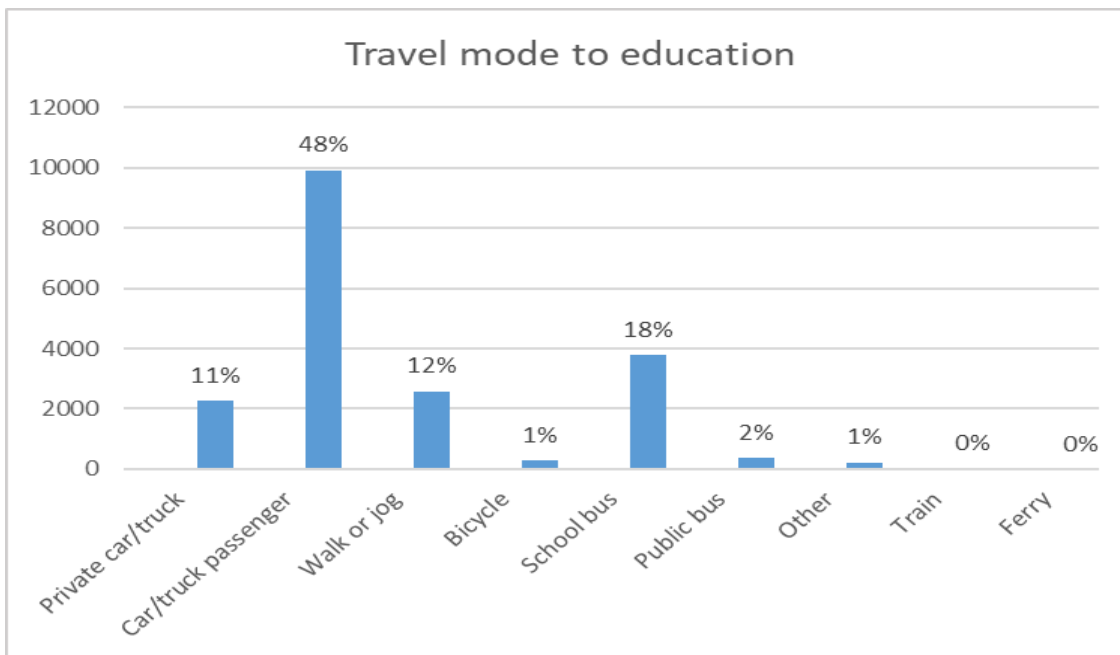


Figure 20: Travel mode to education (source: Census 2018)

Natural Hazards

Summary of constraints

Several constraints on development have been identified and mapped. A summary of these is included here and shown on the maps in Figure 21 and below:

- Noise control boundaries for the highway and rail lines: buffers around key routes.
- QEII National Trust covenants: small to medium areas of land, scattered across the district.
- Areas of 'outstanding natural features' and 'outstanding natural landscapes'.
- Quarry areas: several quarry areas across the district, mostly near urban areas.
- Hazardous sites: small to medium areas of land, mostly urban or near urban areas, including in areas zoned industrial, commercial/mixed use and residential.
 - 10% of commercial and mixed use zones are in hazardous areas.
- Slopes: a large proportion of the district (mostly outside the current urban extent) is land with a slope greater than 20°, which may limit development potential.
 - Nearly half of the district is on 'steep' land with a slope greater than 20°, including 57% of papakāinga-enabled land, 35% of Future Urban Zoned land, and 20% of the growth node areas.
- Wetlands: small areas of Wetlands, scattered across the district, mostly in rural areas. Northland Regional Council are currently updating the wetland mapping for the region. This is expected to result in more expansive areas of wetland being identified across the District. However, the revised mapping will not be available in time to be included in the FDS process and will need to be included in subsequent reviews of the strategy.
- The 'coastal environment' defined by the New Zealand Coastal Policy Statement.
- Highly productive land as defined by the National Policy Statement on Highly Productive Land (NPS-HPL).
- Aquifer recharge zones: Northland Regional Council have started to map aquifer areas – the current mapped areas are included in the baseline constraints.

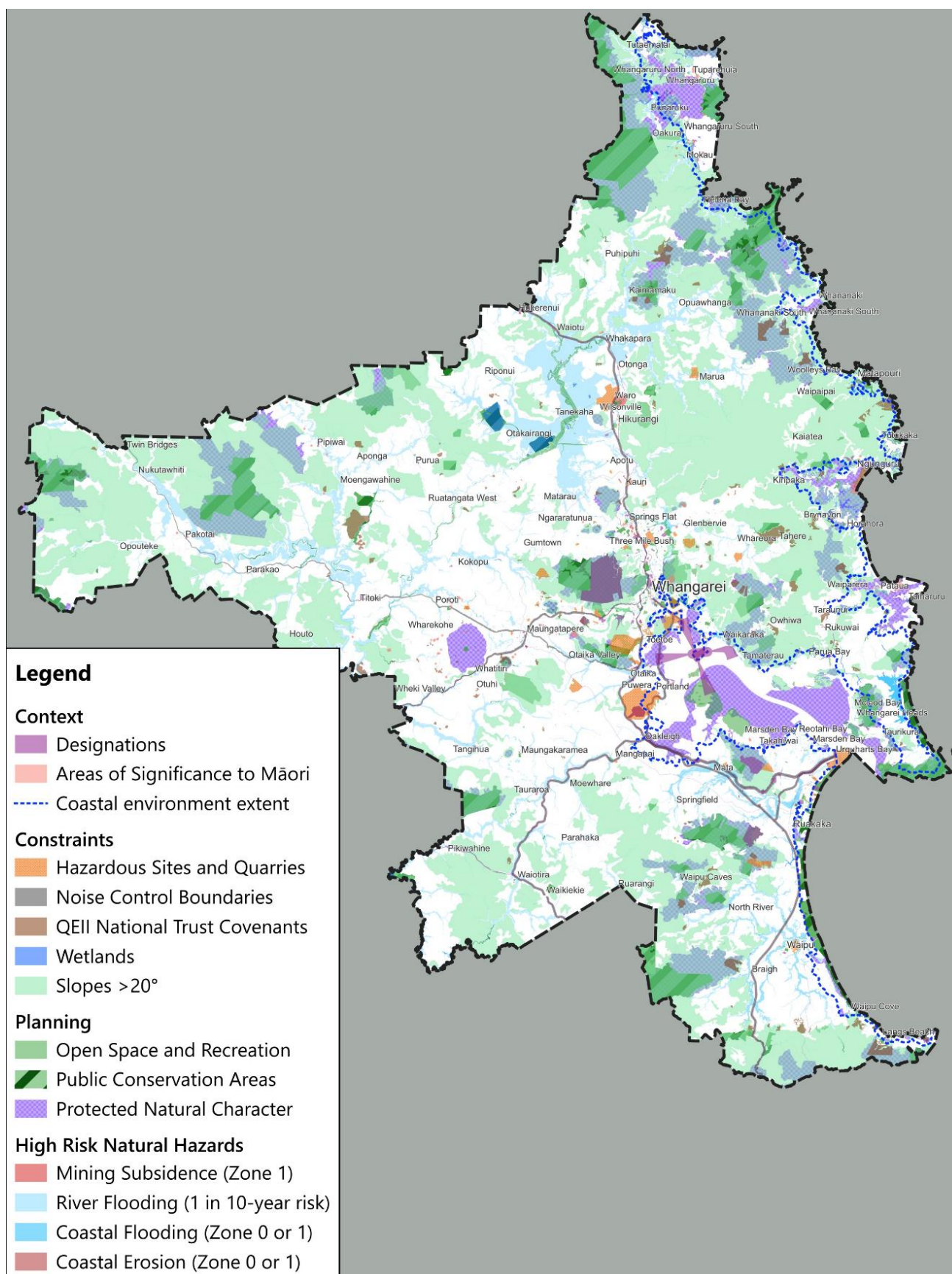


Figure 215: Development constraints map.

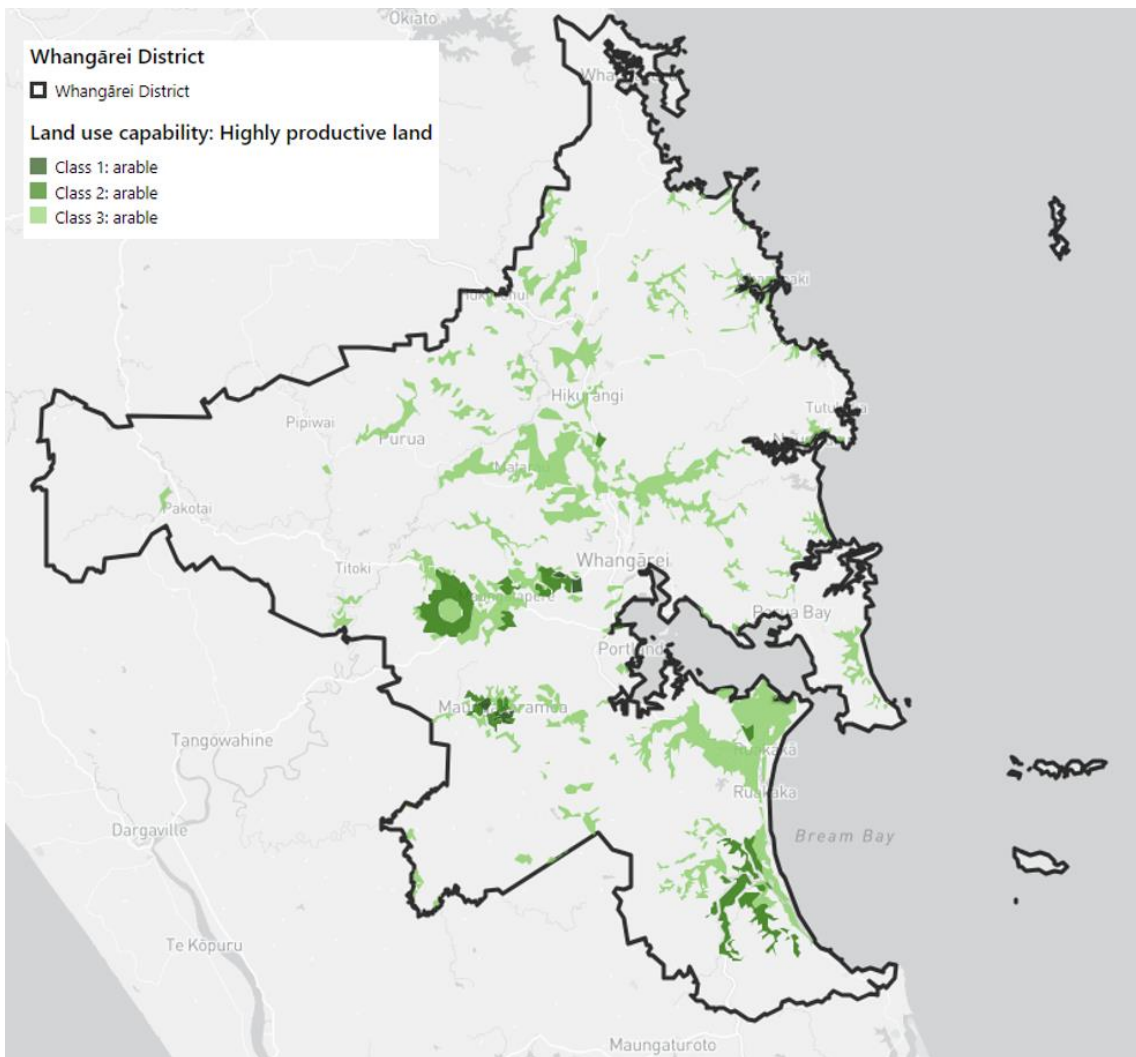


Figure 22: Land Use Capability mapping – Classes 1, 2 and 3 (source: Manaaki Whenua)

Natural hazards

WDC has recently completed a review around development in hazard prone areas. As part of this review, policies around developing in hazard prone areas have been proposed to manage those risks, in the *Proposed Plan Change 1: Natural Hazards*. Provisions of the natural hazard chapter as recommended in the section 42a report can be found below:

- [Attachment 2 - Section 42A Recommended Provisions \(clean version\) \(wdc.govt.nz\)](https://www.wdc.govt.nz/attachment/2-Section-42A-Recommended-Provisions-clean-version)

High Risk Hazards

The proposed plan change on natural hazards identifies the following hazards as being high-risk, meaning development is more restricted in these areas:

- Coastal erosion hazard areas 0 and 1 (susceptible to coastal erosion within the next 50 years)
- Coastal flood hazard areas 0 and 1 (susceptible to coastal flooding in a 1-in-50-year storm)
- High-risk flood hazard (1 in 10-year flood areas)
- Mining subsidence hazard area 1 (high risk of subsidence)

Eight percent of the district is covered by this high-risk hazard definition, including 15% of land in commercial and mixed-use zones and 9% of the growth nodes.

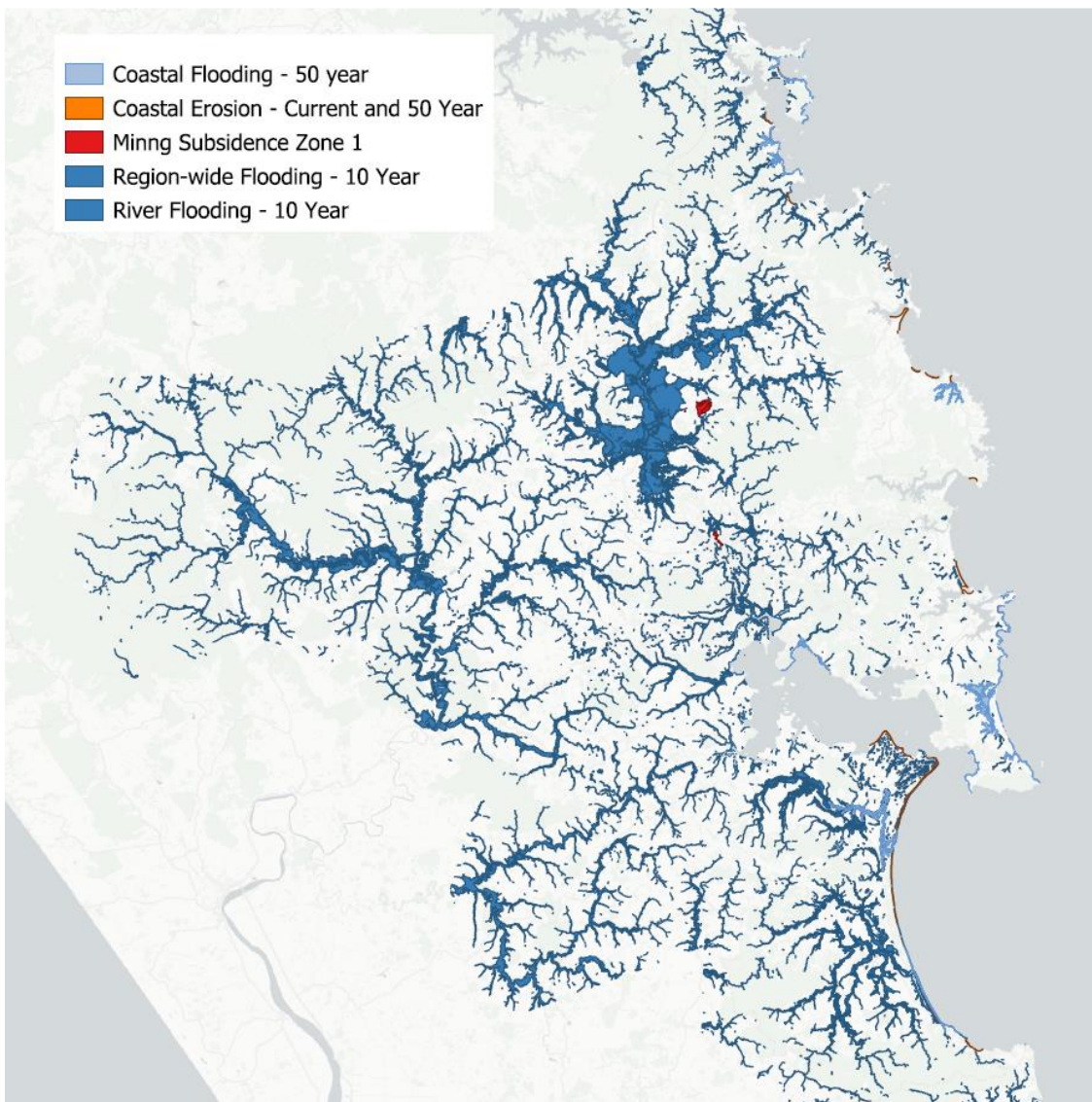


Figure 236: High risk hazards.

Coastal Erosion and Coastal Flooding

Coastal erosion and flooding hazards have been identified along much of the coastline of the Whangārei district, as illustrated in Figure 24. The existing areas that are most impacted by these hazard areas are Whangārei Central and Ruakaka. The future growth nodes of Matapouri and Tutukaka Coast are also moderately impacted by the extent of these identified hazards.

34% of land zoned for commercial or mixed use is impacted by coastal erosion and/or coastal flooding risks.

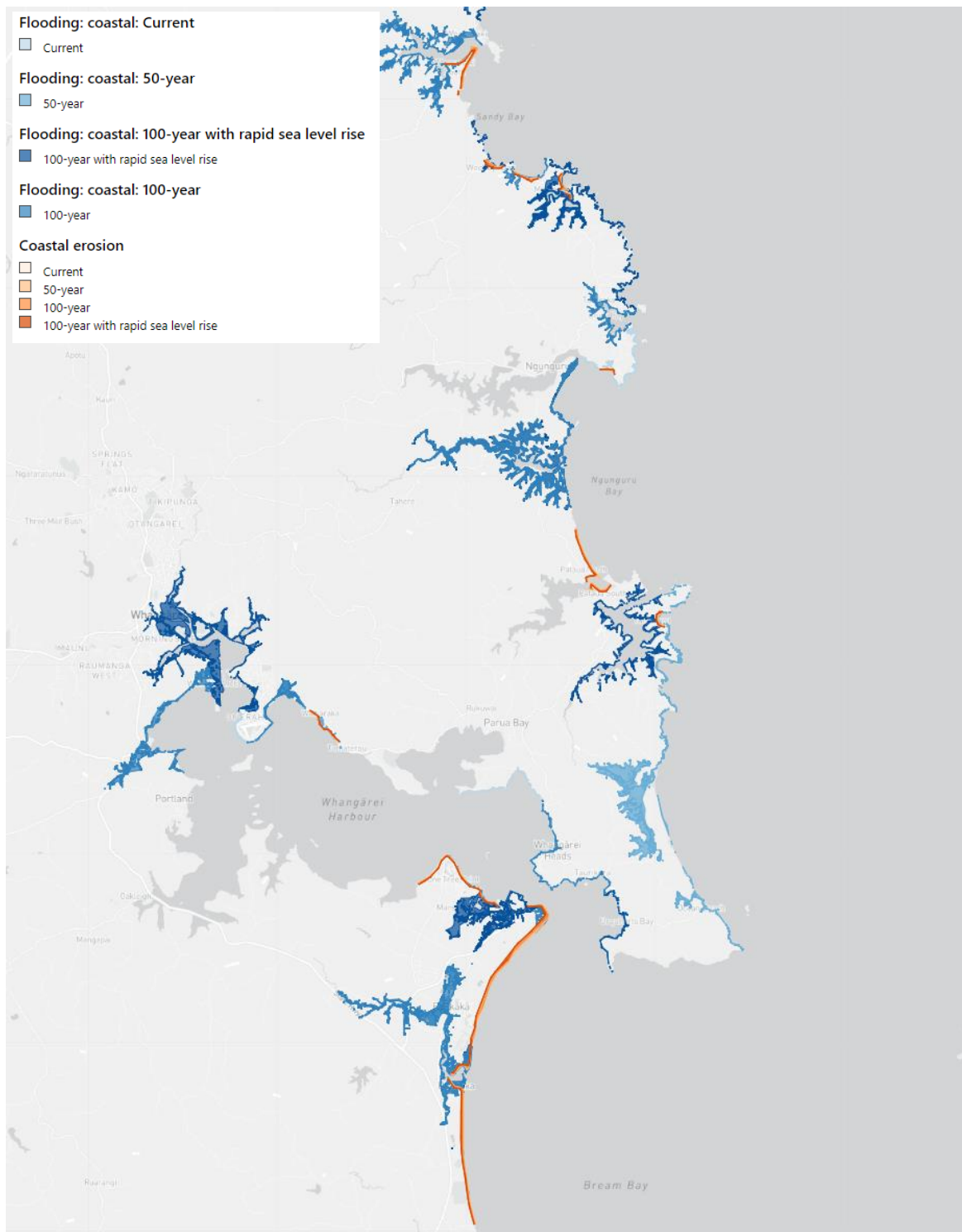


Figure 24: Coastal erosion and coastal flooding hazards

Flooding

Weather-related flooding (from rainfall) is mapped separately to coastal flooding. This has been developed across two models: a river flooding model and a regionwide flooding model. The extent of these flooding layers is shown in Figure 25.

44% of commercial and mixed-use zoned land is prone to weather-related flooding, while 17% of growth nodes, 20% of Growth Strategy 2021 Focus Areas, and 15% of papakāinga-enabled land are also at risk of weather-related flooding.

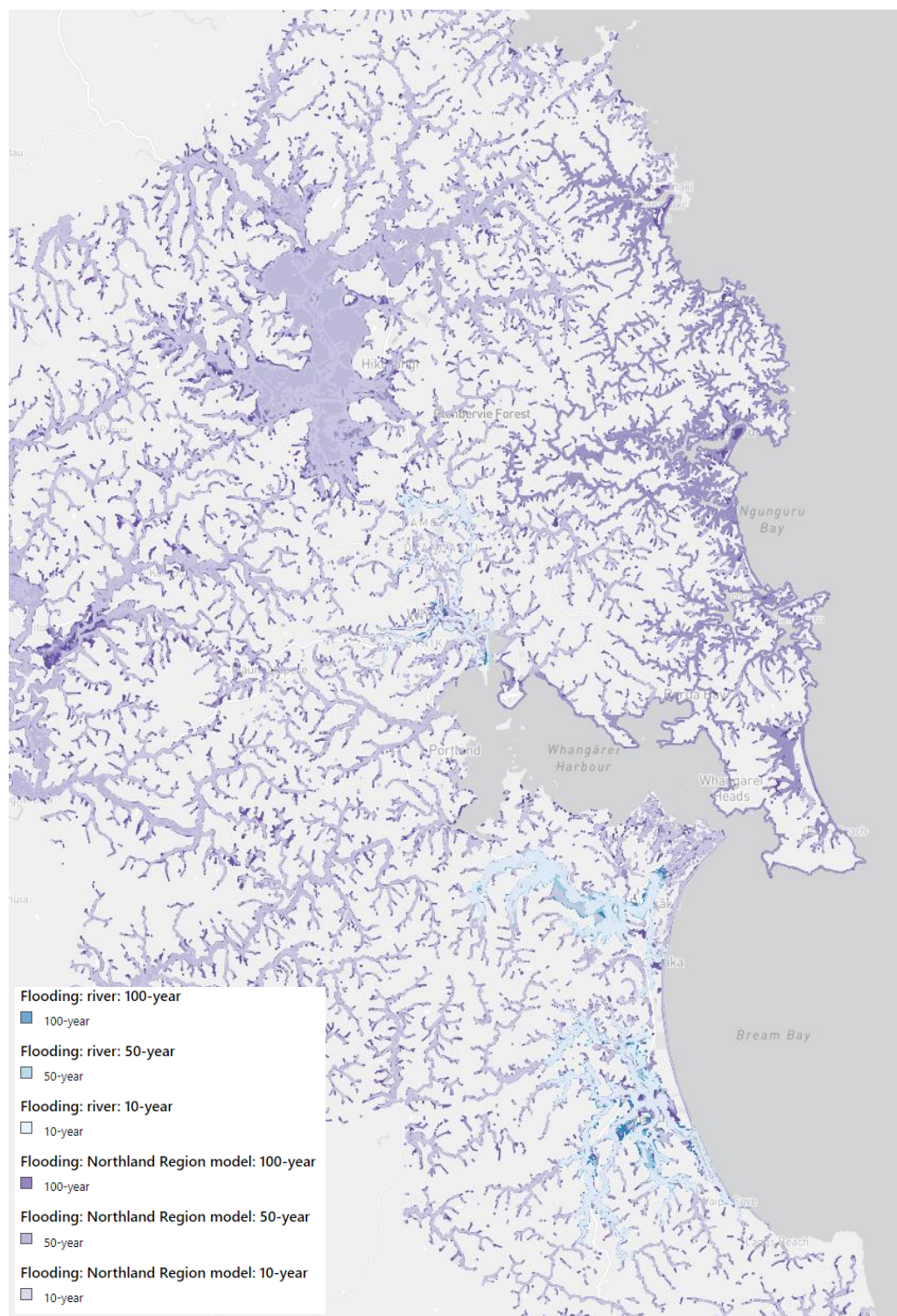


Figure 25:7 River (non-coastal) flooding

Land Instability

Much of the district is impacted by a moderate to high risk of land instability (or 'landslides'), as illustrated for Whangārei Central in Figure 26. 68% of the district has a moderate or high landslide risk. For the urban core and satellite urban areas, this is 47% and for Future Urban Zoned land it is 54%. For the Growth Strategy 2021 Focus Areas, this is 31%, and 60% of existing papakāinga areas has a moderate or high landslide risk, while 43% of residential zoned land also meet this threshold. Proposed Plan Change 1 to the district plan include objectives, policies and rules that address managing the risk associated with development in areas susceptible to land instability.

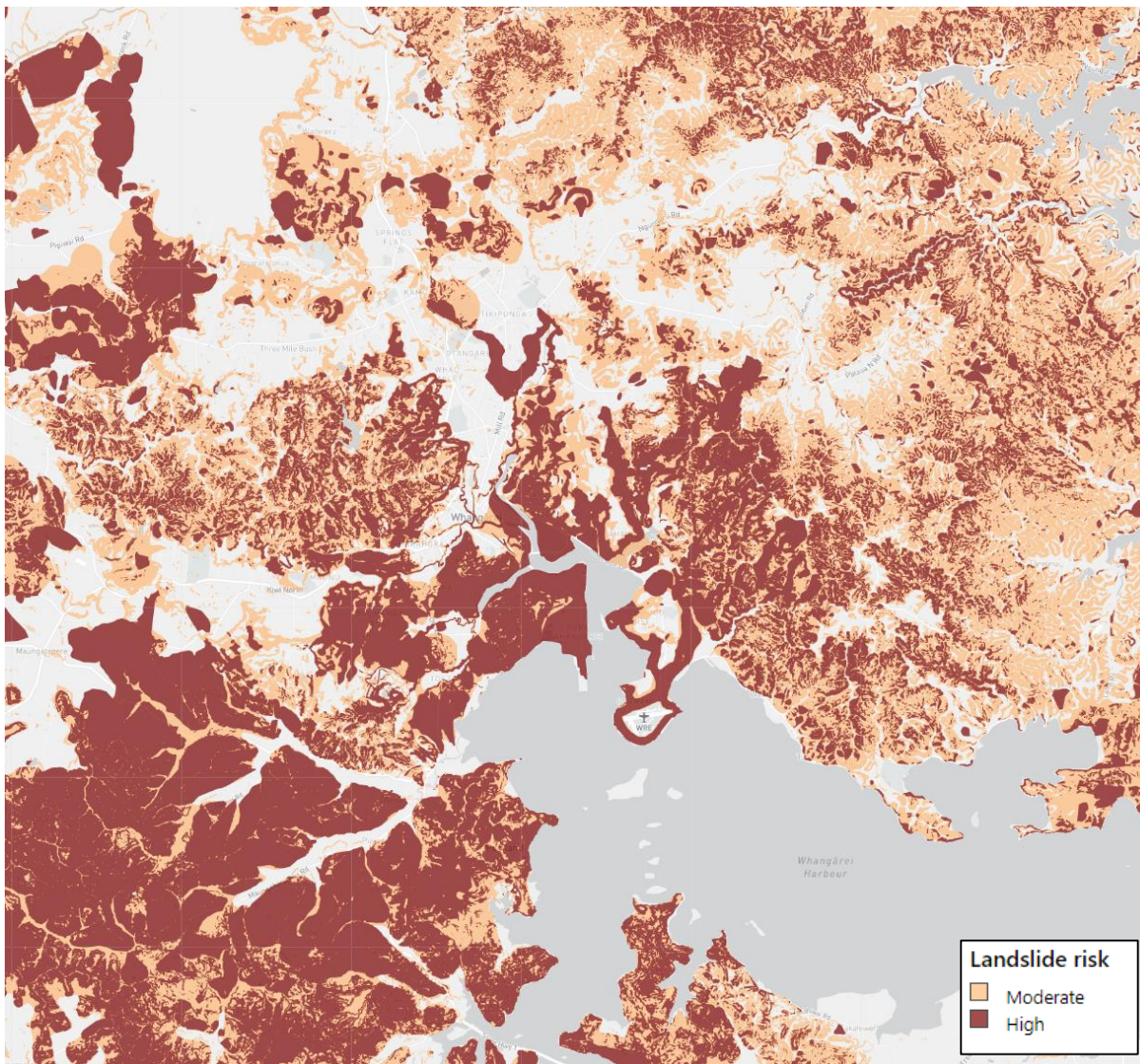


Figure 26: Land instability risk

Social infrastructure / community facilities

Health services

The redevelopment of Whangārei Base Hospital provides for Te Tai Tokerau's long-term healthcare needs and meets an increasing demand on health services. The redevelopment of the existing hospital site supports, and catalyses change in surrounding areas.

As the District and region have grown placing more demand on the hospital, better access is required. Improvements across the District help to facilitate this with fewer trips by car needing to be taken and improved public and active transport systems.

These improvements are further supported by direct improvements to State Highway 14, as well as specific improvements at Hospital Road. The integration of land use and infrastructure supports:

- Land-use patterns which improve transport choice and reduces the need to travel.
- Improvements to road network layouts, supporting greater access to alternative transport modes.
- Improved access to key services (including the hospital), education and employment.

The surrounding residential area has more dense housing options, for those that need efficient access to health services, and for those outside of the District who are using hospital facilities.

As well as the hospital, there are a range of other health facilities located throughout the urban area. These include a private hospital and various medical centres and clinics that tend to be in the commercial centres in the core urban area. There are also small-scale medical centres in the larger settlements such as Waipū, Hikurangi and Ngunguru.

Performance of existing healthcare services

The Social Baseline Report shows many geographic areas of Northland have a high proportion of people who are categorised as deprived, while the proportion who are privileged is under-represented. Such deprivation is known to cause poor health outcomes. Consequently, the people of Northland have poorer status for most health measures compared with the rest of the country. For Māori in Northland, the proportions experiencing poor health outcomes are worse again. For example, amenable mortality is defined as deaths under age 75 years that could potentially be avoided, given effective and timely healthcare. The amenable mortality rate for Māori and Pacific people is more than double that for non-Māori and non-Pacific people in Northland.

Regarding access to GP services, interviewees from the health sector (and most other interviewees who are users of health services) described that most of the 28 medical centres in Northland have closed rolls i.e., are not accepting new patients. A few practices are still accepting patients, in Ruakaka/Bream Bay area, and select centres in Whangārei, Dargaville and Paihia. The major issue holding back greater access is workforce shortages. For example, doctors have a reluctance to shift to regional areas citing poor access, housing, employment opportunities for partners, and education options for children.²⁸

Education

Population projections show that the number of children and youth is expected to grow in Whangārei. Access to early childhood education, primary and secondary schooling close to residential centres is an important consideration when prioritising growth of development nodes, and key transport links.

²⁸ Social impact assessment of Northland's pipeline of major infrastructure projects – June 6 2024

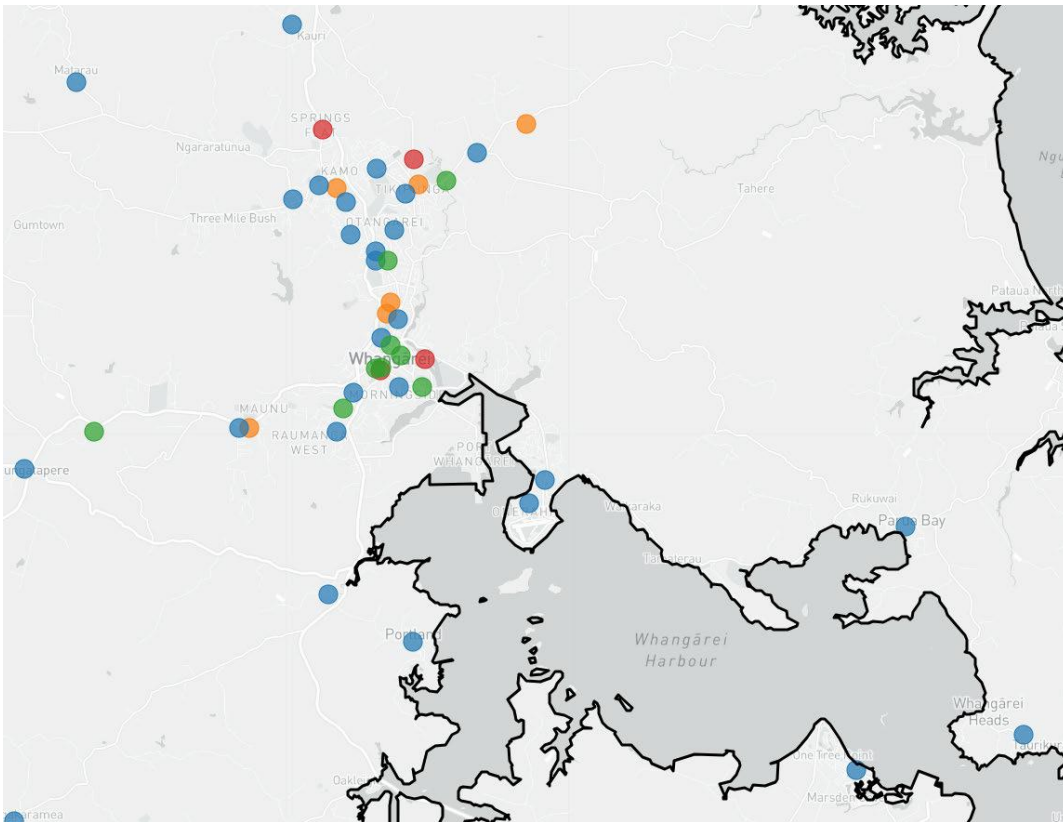
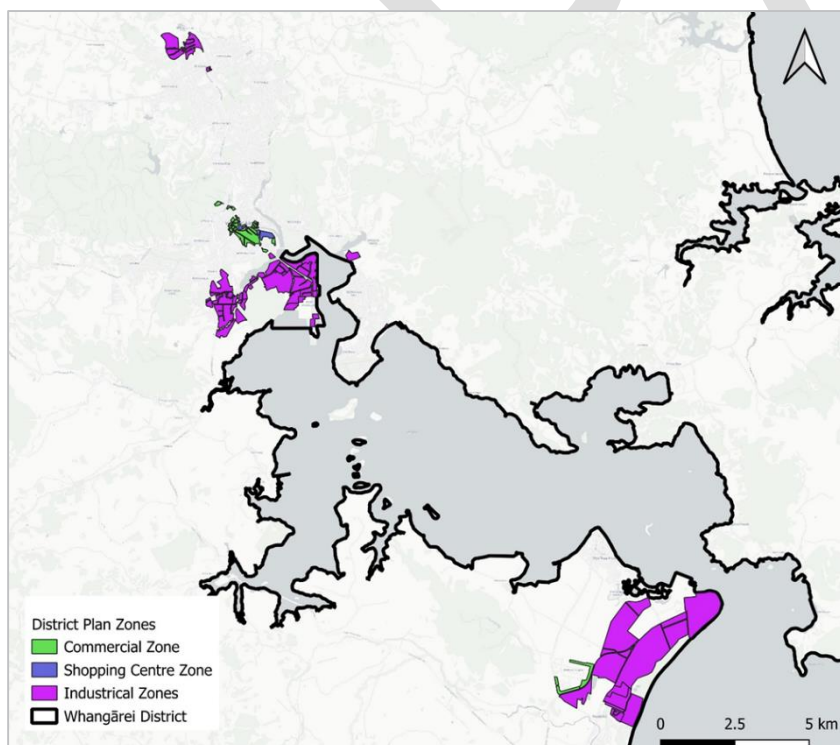


Figure 27: Distribution of education facilities in Whangārei.

The Ministry of Education network plan (to 2030) for the Whangārei and Ruakaka urban area indicates that additional capacity can be provided at the existing schools to cater for growth up to 2030, and beyond 2030 some additional primary and secondary schools will be needed near new development areas. Figure 29 shows the school relative roll growth pressure across the schools in and around the urban areas.

Figure 28: : Extent of Commercial, Shopping Centre and Industrial Zones in the main urban area of Whangārei.



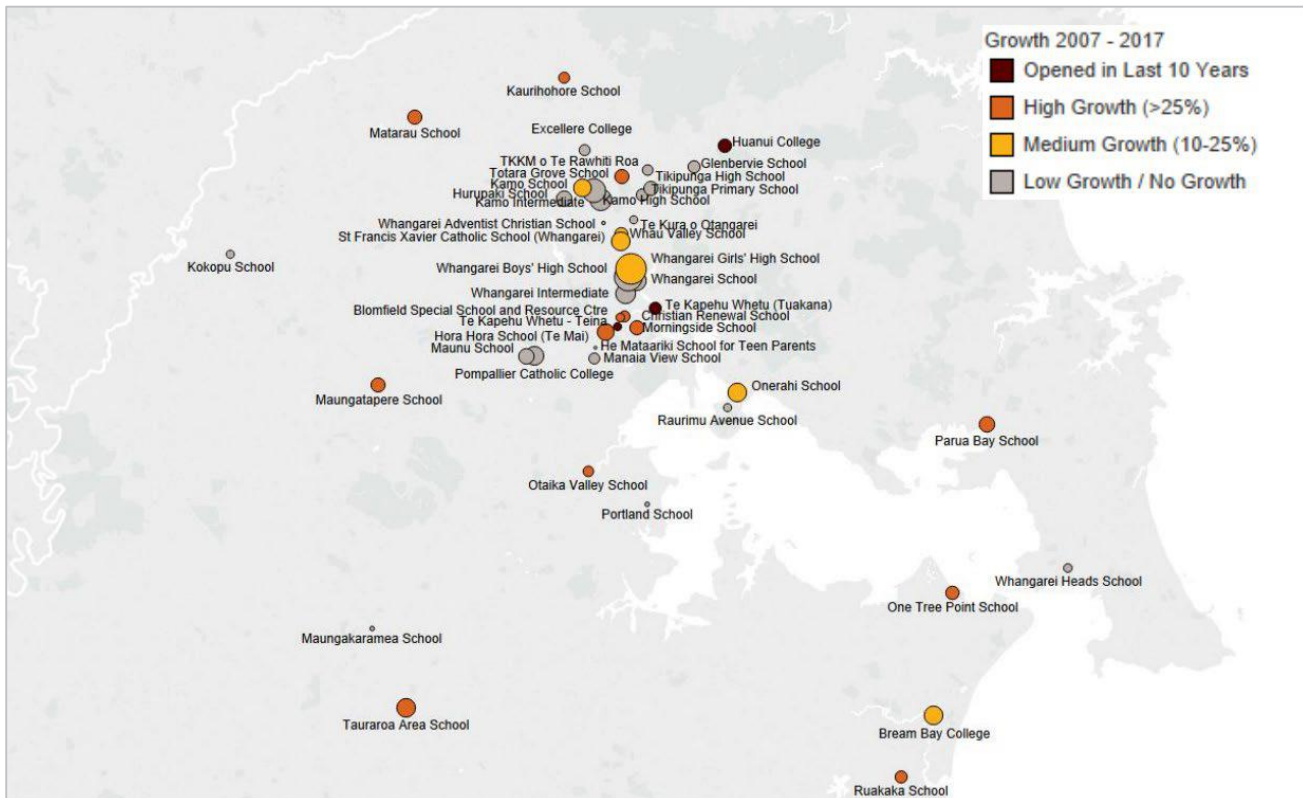


Figure 29:8 School roll growth pressure across the schools in and around the urban areas (source: NZ Government, Tai Tokerau: Whangārei /Ruakaka Steady Growing New Zealand Education Growth Plan to 2030)

Event and community facilities

Whangārei provides event and community facilities, bringing people together, celebrating arts, culture and heritage, and attracting performers and events to the district. This includes Botanica Whangārei, Claphams Clock Museum, Te Iwitihi, community halls, Forum North entertainment centre, Whangārei Central library, Kamo Library, Onerahi Library, Tikipunga Library, Parks and Reserves, public toilets, Timatatanga Hou (Camera Obscura), Whangārei Art Museum, and Whangārei Visitor Centre and I-site.

WDC has a community funding programme that supports local community groups to help the community achieve its aspirations. This programme supports activities such as festivals, exhibitions, tournaments, workshops, classes, development and maintenance of community facilities, operational/running costs for community organisations, community gardens, murals, community signs, pest control, and recycling initiatives.

The WDC Resident Satisfaction Survey 2022-2023 observed a decline in use of beaches and coastal facilities, possibly due to adverse weather over summer. Use of playgrounds, natural trails, and council tracks are all lower amongst respondents over the age of 60+ years. Generally, however, use of facilities and services remained the same as previous year. Resident satisfaction of community facilities was reported as:

Satisfaction with playgrounds has decreased compared to 2022, with 64% of respondents being satisfied, satisfaction amongst playground users has declined significantly this year to 72%. Declines in total and user satisfaction are also observed for skateparks (70% user satisfaction and 36% total satisfaction) and sports parks (72% user satisfaction and 58% total satisfaction). Satisfaction with beaches and coastal facilities remains high, although there has been a slight decline in total satisfaction (75%), possibly reflective of overall reduced usage. Cemeteries, parks, natural trails, and library services have seen fluctuations in satisfaction levels, with some declines observed in total and user satisfaction.

Urban amenities and services are often located in neighbourhood centres, in commercial or mixed-use zones. The portfolio of Council community facilities will need to cater to the growing district and its diverse needs, including an aging population, and changing locational demand for services in relation to growth nodes.

Parks and reserves

Council provides parks and recreation facilities to play sport, keep fit, have fun and support community health and wellbeing. The provision of parks and recreation facilities brings communities together through sports and events, provides spaces to keep fit and connect with nature, gives our young people places to play and socialise, provides places for rest and respite, protects biodiversity, ecosystems and landscapes and contributes to the identity of the City.

Where we don't actively provide the facilities or services, we support community through grants and leases on parks land.

Parks and Recreation portfolio²⁹:

- administer 2,131 hectares of land as open space
- 82 sports fields,
- hard courts
- 50 playgrounds and
- 7 skateparks
- 57 kilometres of walking tracks
- natural areas such as native bush, river and coastal margins and regenerating bushlands
- 18,000 street trees
- city parks, gardens, and public art
- cemeteries
- 78 public toilets

Our Active Recreation and Sport Strategy provides high-level direction on how to meet the current and future active recreation and sporting needs, ensuring all ages and abilities in our community have access to and can participate in a range of sports and recreation across our District.

Cultural mapping – papakāinga, areas of significance

Whangarei District Council is required under the Resource Management Act 1991 to recognise and provide for the relationship of Māori and their culture and traditions with their ancestral lands, water, sites, wāhi tapu and other taonga. The Whangārei District Plan has policies, objectives, and rules for Sites of Significance to Maori to protect these taonga to ensure that land use, subdivision and development does not adversely affects these areas. There are 80 scheduled sites identified in the District Plan which include for example, Pā sites, reserves, burial grounds/cemetery, marae, caves, trees, pits, terrace and other wāhi tapu sites (refer to map

Council currently have mapped some sites or areas of cultural significance to Māori, including marae and papakāinga. There are other areas of cultural significance that have not been mapped. Because the councils are not aware of the location and significance of other areas, ongoing involvement of tangata whenua in development planning and implementation is important.

In the District Plan, papakāinga are permitted on ancestral Māori land or general title land subject to an ancestral Māori link being identified.

As noted above, some areas and sites of significance to Māori have mapped by the councils, and these are shown in Figure 31.

²⁹ <https://www.wdc.govt.nz/files/assets/public/v/1/documents/have-your-say/ltp-2024-34/ltp-2024-34-cd-supporting-documents.pdf>

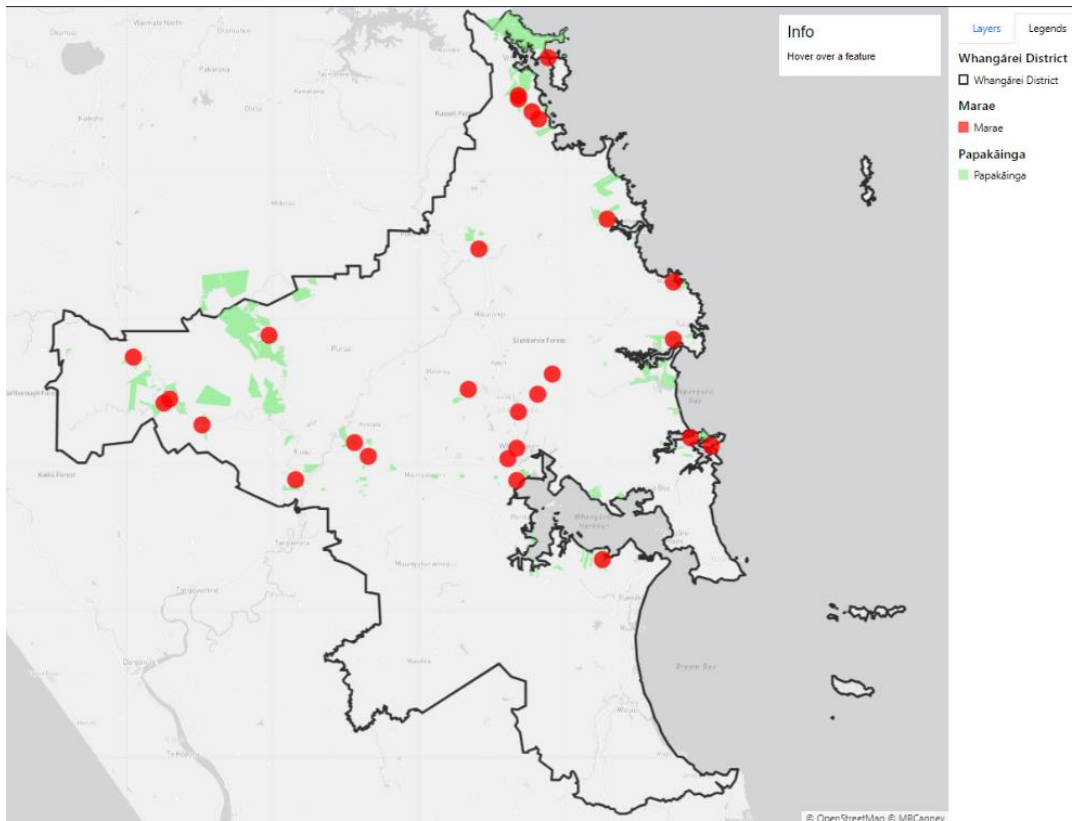
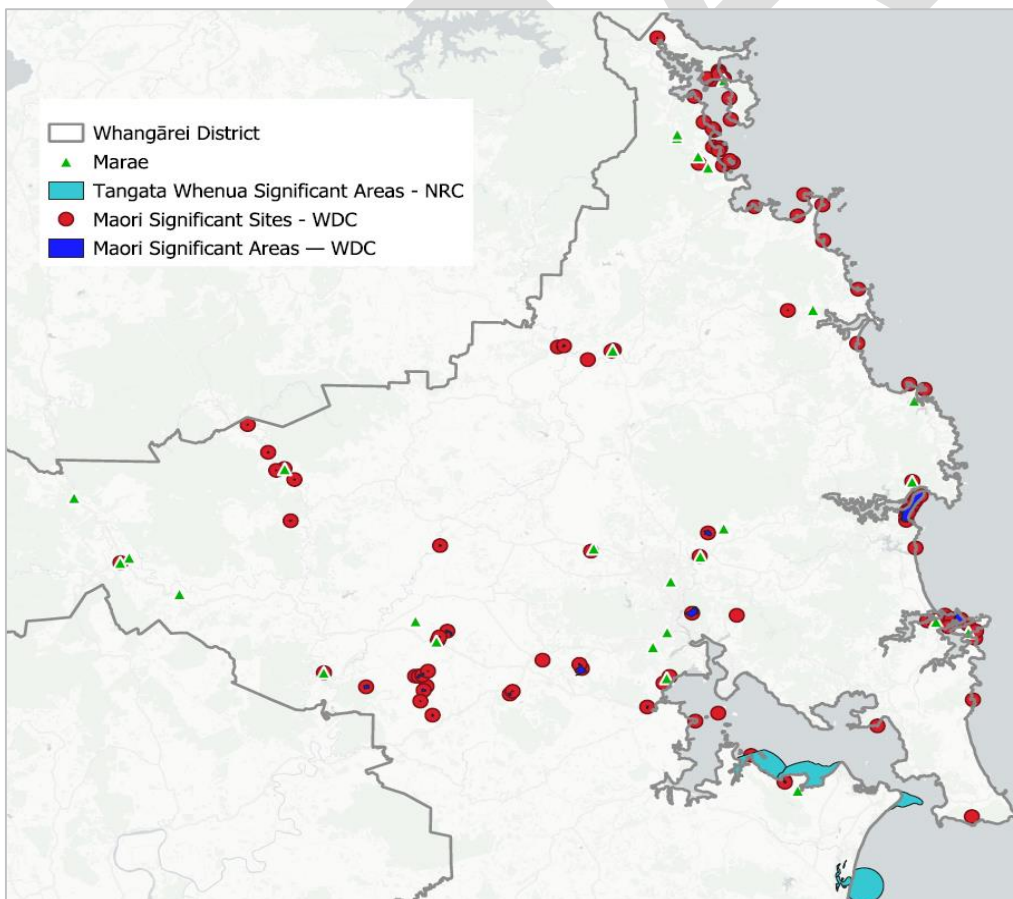


Figure 30: Papakāinga and marae across Whangārei District (there are none further south of the map extent)

Figure 31: Mapped areas and sites of significance to Māori (there are none further south of the map extent).



Parua Bay Placemaking Plan – Tangata Whenua Engagement Report³⁰

In the Whangārei Heads area, there are significant landmarks and areas/sites of significance to Māori. During the engagement process, participants expressed concern that significant landmarks in the area such as urupā (burial grounds), wāhi tapu (sacred sites or places) and other sites that might not have been investigated yet may be damaged or destroyed.

In general, with regards to the location of areas/sites of significance to different tribes who whakapapa to the area, there is a need for representatives of all the tribes to join the conversation and agree levels of protection to be granted for these sites or if repatriation would be possible.

Water infrastructure

The level of service standards for each water service are stated in the councils LTP. The figures in this section show the extent of the public water (Figure 32), wastewater (Figure 33), and stormwater (Figure 34) networks in the district, along with some of the key pieces of network infrastructure like treatment facilities and reservoirs. This information is taken from the council's long term infrastructure plan 2021-2051.

Information on the investment planned in the three waters infrastructure to align with the baseline scenario is also included in this section.

Water supply

Drinking water is delivered via a network of treatment plants, reservoirs, pump stations and pipelines. Our water service must produce quality drinking water that meets the New Zealand Drinking Water Standards at all times.

There are four level of service standards for water supply:

1. *We provide safe, high-quality drinking water to all our customers.*
2. *The water supplied is continuous and is adequate for customers' use.*
4. *In times of emergency there is adequate water supply available.*
4. *We manage the water supply system in a sustainable way that also caters for growth.*

³⁰ <https://www.wdc.govt.nz/files/assets/public/v/1/documents/council/strat-program/parua-bay-placemaking-tangata-whenua-engagement-report.pdf>

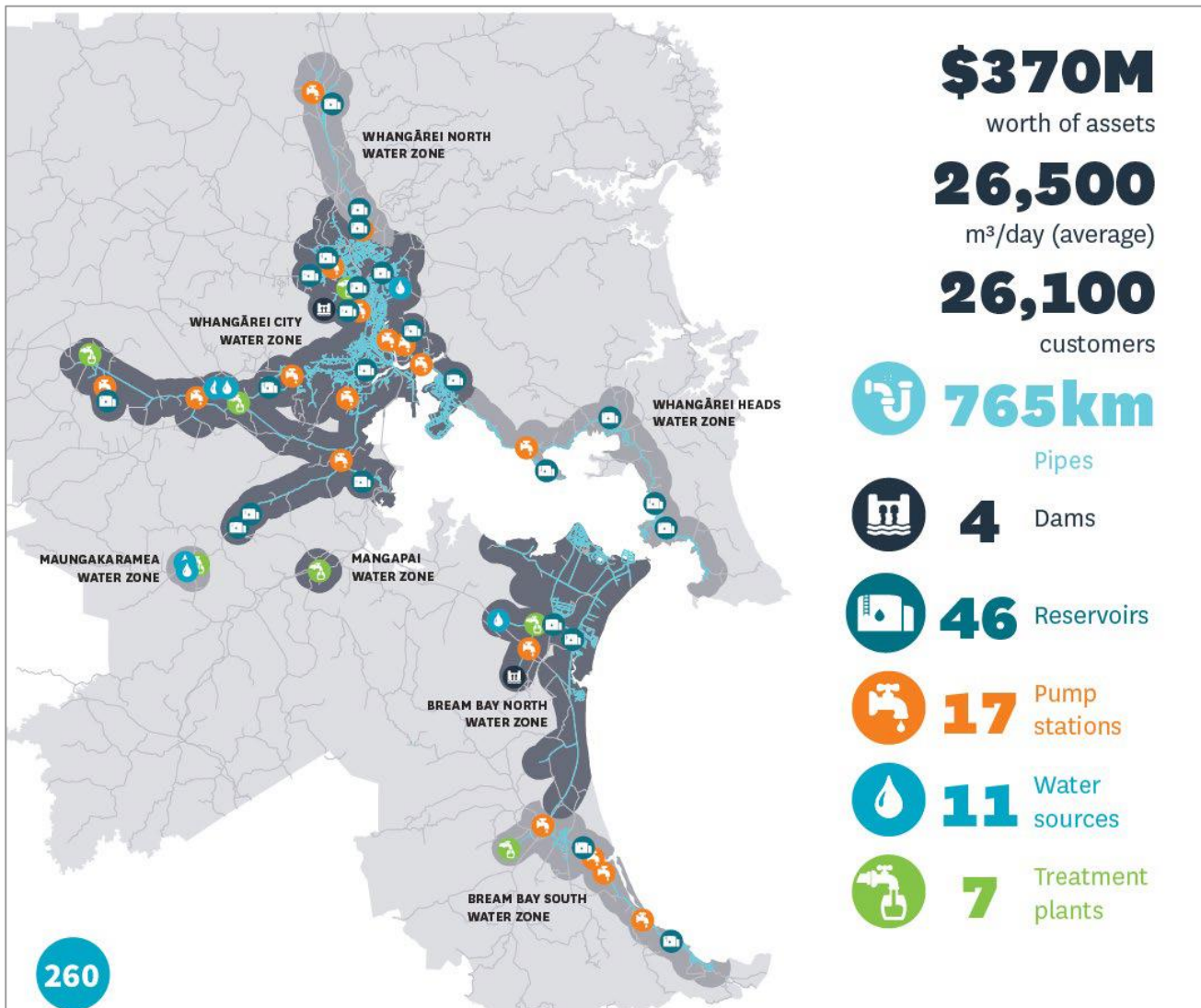


Figure 32:9 Public water supply network (Source: WDC LTP 2021-2031)

The district faces several key water supply issues, including related to climate change, a lack of information on the existing assets, assets reaching the end of their service life, ongoing maintenance of treatment plants, and population growth.

WDC also manages demand for water during dry periods through the use of water restrictions. This management measure is enabled through the Water Supply Bylaw, which enables the Council to restrict or prohibit the use of water for any specified purpose, for any specified period, and for any or all of its customers.

Water supply has two main projects include in the baseline scenario - the Porotī WTP upgrade / Wairua River water source, and a new storage dam. There are also around 30 other major projects included in the baseline scenario – many of these are required to cater for growth, while others are related to renewals of older assets or required to meet the level of service standards.

Wastewater

The primary purpose of this service is to provide our communities with centralised sanitation of human waste to eliminate gastric disease and environmental contamination.

Whangārei's wastewater systems collect, treat, and dispose of wastewater from over 25,000 households and businesses. The wastewater system consists of over 50,000 assets comprising pipes, manholes, pump stations, treatment plants, and discharge infrastructure. Our twelve wastewater service areas are serviced by nine Wastewater Treatment Plants (WWTP) and over 700km of pipe networks. The largest facility Whangārei WWTP treats on average 17,000,000 litres/day and the smallest Waiotira WWTP has only 7 properties connected. Working within the wider council structure, we maintain and operate the nine

wastewater systems in line with consents and budgets. We also engage with stakeholders on how the systems are to be operated, maintained, and upgraded.

The wastewater level of service is:

In defined areas, Council will collect, treat and dispose of wastewater through a reliable wastewater network which is managed to ensure blockages, breaks or spillages are kept to a minimum.

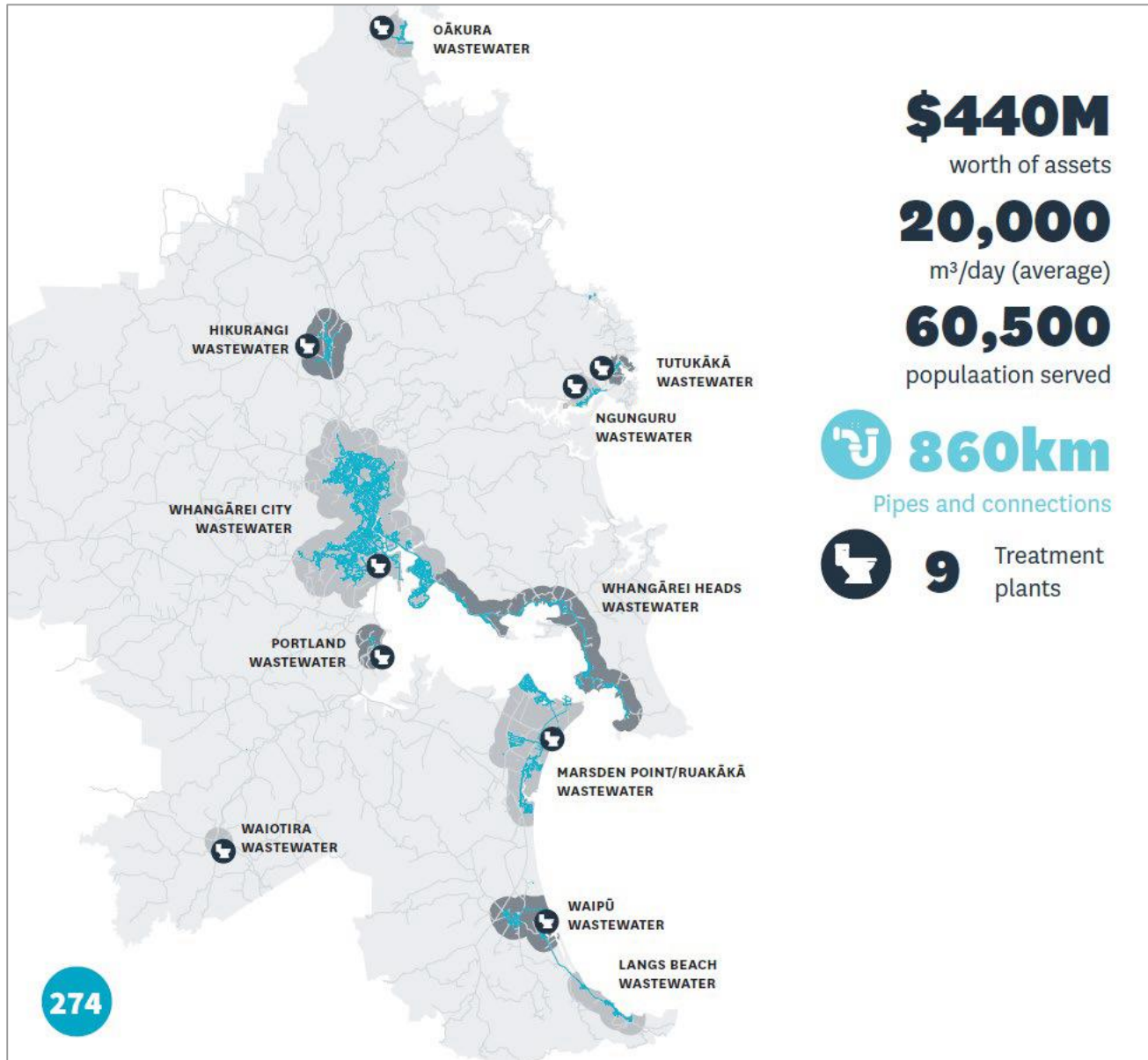


Figure 33: Wastewater network extent (Source: WDC LTP 2021-2031).

The district faces several key wastewater management issues, including related to significant unintended Inflow and Infiltration, a lack of information on the existing assets, assets reaching the end of their service life, not meeting discharge consent conditions, potential for population growth to happen more quickly than expected and a lack of capacity in the network to cope with this.

Wastewater has three potentially significant projects: the Whangārei Wastewater Treatment Plant odour control, a wastewater scheme for Matapōuri, and the Ruakākā ocean outfall. There are also around 10 other major projects included in the baseline scenario – many of these are required to cater for growth, while others are also related to renewals of older assets or required to meet the level of service standards.

Stormwater

Stormwater management is a core service that prevents flooding, which in turn ensures the resilience of our communities and the success of our economy. The purpose of the activity is to control water flow from

urban areas to streams and the ocean, effectively reducing the risk of flooding in our service areas. The stormwater assets, which include a network of over 32,000 assets being pipes, open channels, culverts, inlets, and manholes, cover a total of nearly 600km.

The level of service standard for stormwater is:

Council will manage the stormwater network to minimise flood risks within defined service areas.

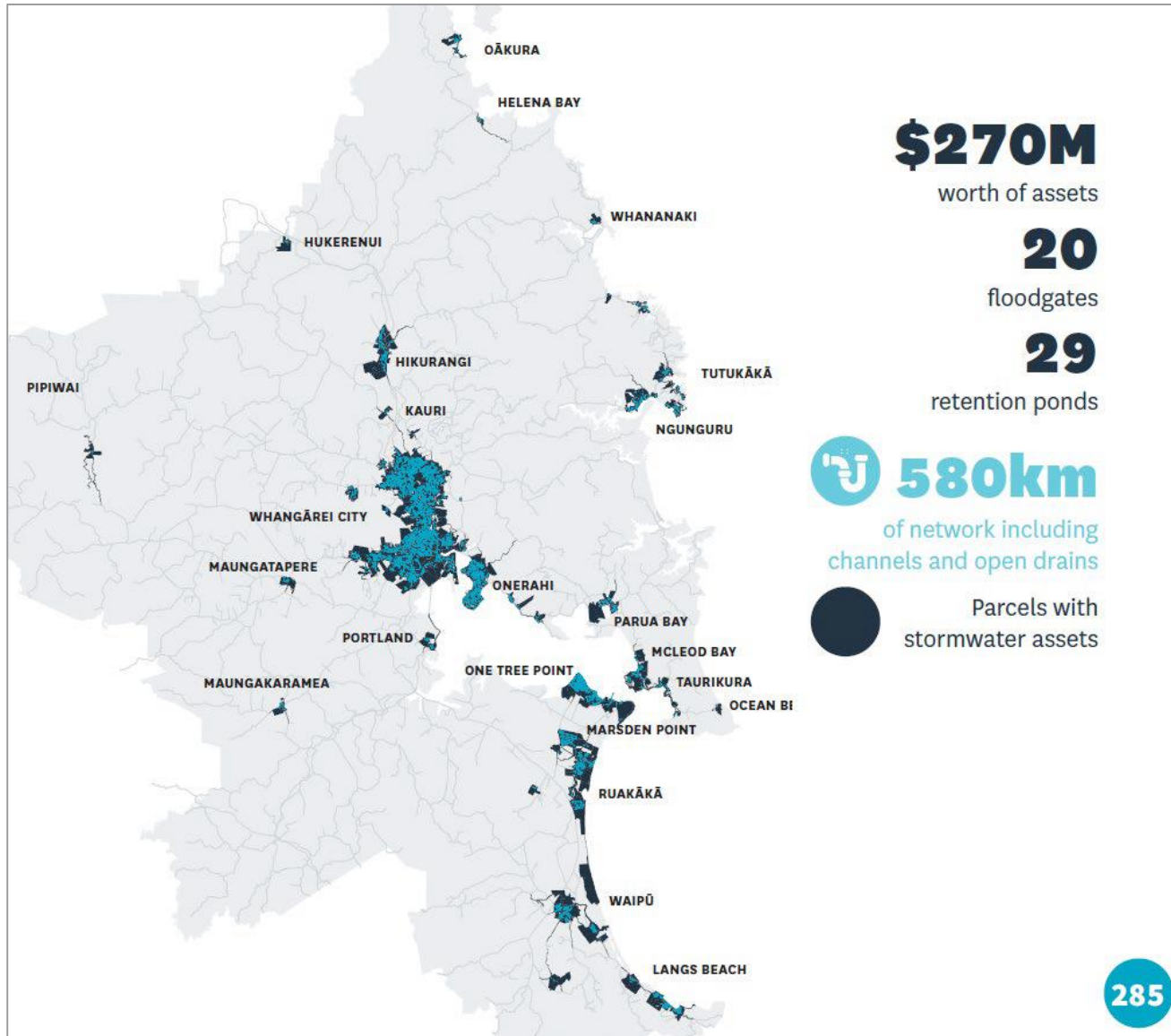


Figure 34:10: Stormwater network extent (Source: WDC LTP 2021-2031).

The district faces several key stormwater management issues, including assets deteriorating quickly and resulting in a replacement backlog, climate change and major storm events, lack of information on asset condition, and more stringent regional flood protection and consenting standards.

Stormwater has two major projects included in the baseline scenario - Climate change adaptation response, and the Blue Green Network. Neither of these projects are identified as being growth related.

Electricity Transmission

Transpower is responsible for electricity transmission in New Zealand and operates several transmission lines and sites across the Whangārei District, as outlined in Figure 35.

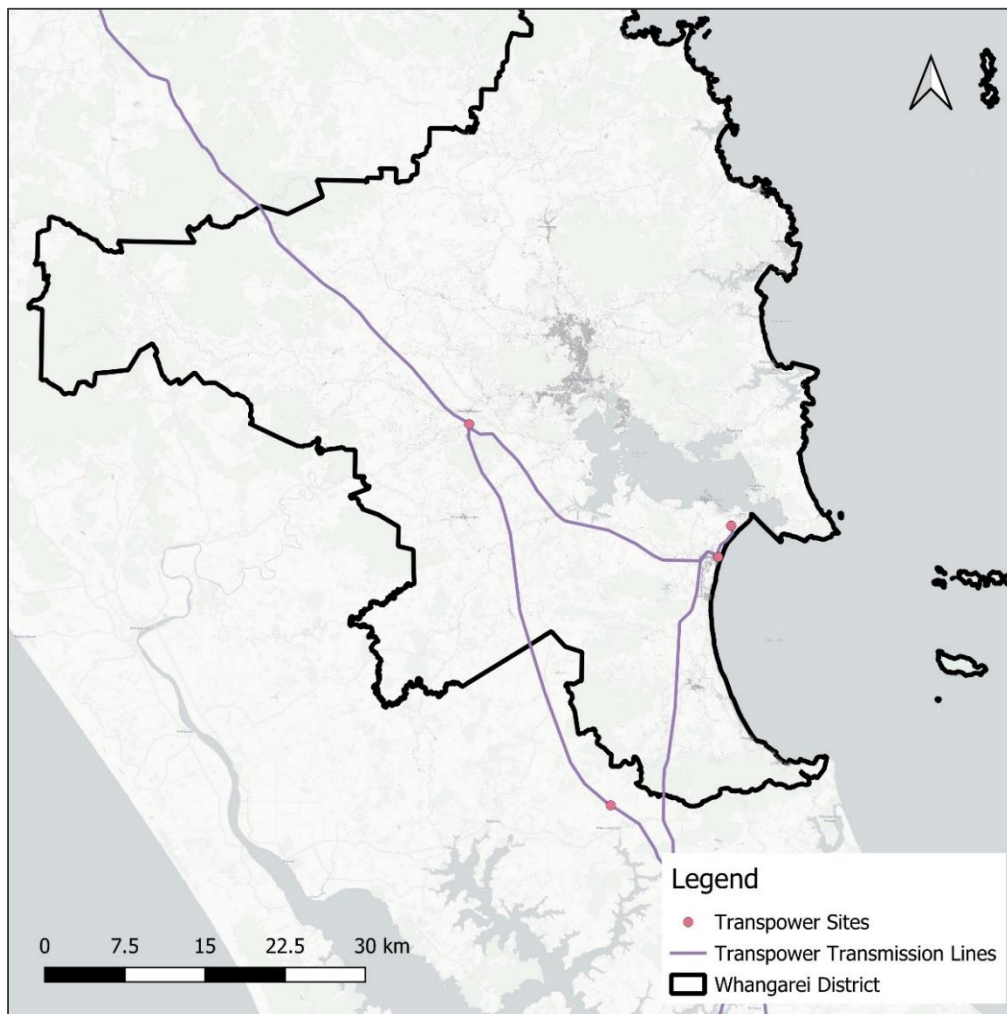


Figure 35: 11Transpower infrastructure.

Spatial considerations

This section sets out (among other matters) the purpose of the FDS and the matters that the FDS must spatially identify.

3.13(2)(a): “the broad locations in which development capacity will be provided for”: Development is to consider areas where there could be overlap with existing National Grid assets.

The residential and business development capacity assessment must be correctly informed by the constraints presented by National Grid transmission lines. Policy 11 of the NPSET directs that local authorities shall consult with Transpower to identify a buffer corridor within which “sensitive activities” will not be provided for in plans and/or given resource consent.

Sensitive activities are defined in the NPSET to include residential buildings, schools and hospitals. Policy 10 directs that buildings and structures that have the potential to compromise the grid must be avoided. This can include non-sensitive activities. Policies 10 and 11 of the NPSET have been given effect to within the Whangārei District Plan which includes [provisions to regulate land use and development near the National Grid within a buffer corridor that is 12m either side of the centreline of overhead transmission lines](#).

3.13(2)(b): “the....additional infrastructure required to support or service that development capacity, along with the general location of the corridors and other sites required to provide it.”:

The National Grid is “additional infrastructure” in terms of the NPS-UD. Transpower’s [Transmission Planning Report 2023](#) (TPR) identifies that the Northland regional peak demand is forecast to grow by an average of 2% per annum over the next 15 years – this is equal to the national average growth rate. Note that this forecast for the entire Northland region and not specific to the grid exit point(s) that service demand in the Whangārei jurisdiction.

The TPR outlines potential future works on the National Grid within the Northland region over the next 15 years. An overarching matter that informs planning for the Grid in Northland is that the Northland region, together with the Auckland and Waikato regions, share the transmission network to the Central North Island. Due to decommissioning of thermal generation in the Auckland and Waikato regions, there is an ongoing need to invest in voltage support to ensure voltage stability is maintained on the "grid backbone", and in Northland. Long-term planning for the maintenance, operation, upgrading and future expansions the National Grid is facilitated. This supports Whangārei District's contributions to New Zealand's carbon zero aspirations.

Whangārei District Growth Strategy 2021

Evolution of the baseline growth strategy included two significant strategic planning processes - the Whangārei District Growth Strategy Sustainable Futures 30/50 in 2010 (the 2010 Growth Strategy) and the Whangārei District Growth Strategy Te Rautaki Whakatipu o Te Kaunihera-ā-rohe o Whangārei in 2021 (the 2021 Growth Strategy). The 2010 District Growth Strategy (Sustainable Futures 30/50) outlined a series of growth nodes centred around existing areas of urban development, spread relatively broadly across the district. WDC's 2021 Growth Strategy (Sustainable Futures) identified a subset of these growth nodes as focus areas, where urban development is intended to be focused. This includes some greenfield areas where long term growth could be supported.

The baseline growth strategy is the trajectory of development in Whangārei based on the councils most recently adopted direction for development, the 2021 Growth Strategy. The strategy aims to achieve a 'quality compact urban form', by constraining urban sprawl, increasing development density within existing urban limits, and reducing car dependency. A key goal within the Growth Strategy is for 70% or more of future residential development to be either within the current urban area or in the rural zoned areas included in the growth strategy 2021 focus areas.

Most residential development in the short to medium term is planned to occur within existing residential zones, through either brownfield or greenfield development. Growth in non-rural business activities is expected to be within urban business zones and some settlement sub-zones (in rural and coastal settlements) in the short to medium term.

Figures 36 shows the general location of these growth focus areas and highlights the key centres of the strategy.

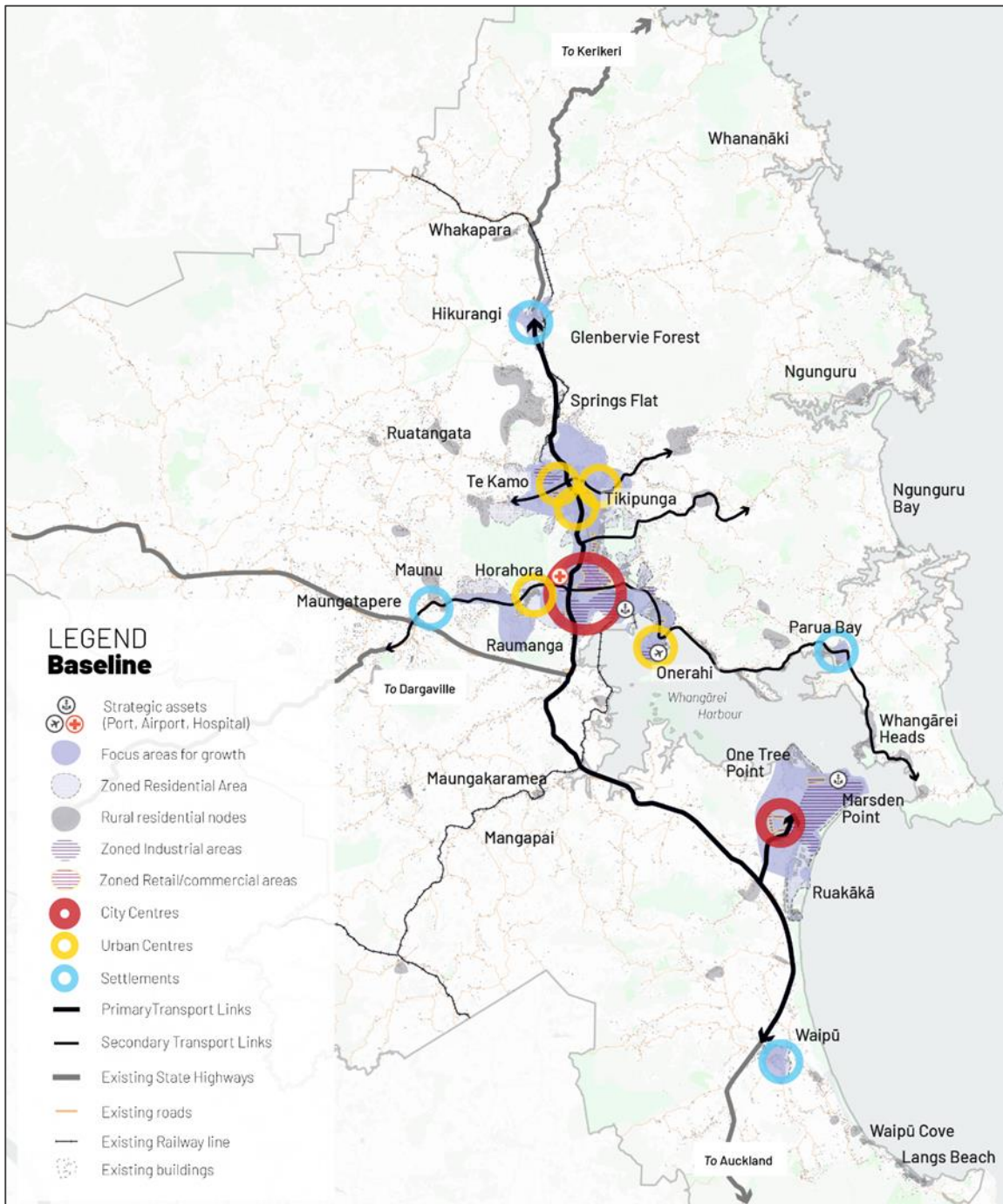


Figure 36: Whangārei Growth Strategy (2021) focus areas.

Part C: Scenario Development Process

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Section 9: Long List Scenarios

The long list conceptual scenarios were developed in response to different growth drivers and urban form options. There are fixed components that underpin each scenario, described below.

Key factors and assumptions

Key factors and assumptions used for developing these longlist scenarios are listed in the '*Long List Scenarios Assessment details*' document in **Error! Reference source not found.**

At the time of developing scenarios, some key local and spatial factors impacting development patterns and future growth were considered 'known unknowns'.

The FDS is required to respond to the national policy direction and statutory requirements for planning. Key government policy directions and their implications for scenario development are:

- Te Tiriti o Waitangi.
- Statement of hapu and iwi values and aspirations.
- National Policy Statement for Highly Productive Land 2023 (NPS-HPL).
- National Policy Statement for Indigenous Biodiversity 2023 (NPSIB)
- National Policy Statement for Freshwater Management 2020 (NPS-FM).
- National Environmental Standards for Freshwater 2020 (NES-FW)
- National Planning Standards 2019.
- National Policy Statement for Renewable Electricity Generation 2011 (NPS-REG)
- Aotearoa New Zealand's Emissions Reduction Plan 2022.

Statement of hapu and iwi values and aspirations

To appropriately respond to Te Tiriti and requirements of the NPS-UD regarding tangata whenua, a statement of hapū and iwi values and aspirations has been prepared.

Inputs and feedback from tangata whenua were still being sought at the time of the long list assessment and were delayed due to the timeframes required to establish a meaningful engagement process that will continue beyond development of this FDS.

To assess the draft longlist scenarios the project team referred to tangata whenua engagement from prior Whangārei growth strategies, particularly the Iwi/Hapu Report from the 2010 strategy and the Delivering outcomes for and with Māori section of the 2021 Growth Strategy. It was intended that this position would be supplemented with additional engagement on the current work programme and through the FDS Working Group, which includes tangata whenua representatives. From the previous engagement, known tangata whenua interests include:

- Developments being informed by te ao Māori and use Māori design practices and knowledge in partnership with iwi and hapū.
- Sites of significance to Māori are valued and protected, along with associated cultural narratives.
- Recognition of the history and value of significant features is a priority in the design of public spaces, supporting and creating a sense of identity grounded in place and connection to whenua.
- Tangata whenua are *involved* as planning partners in their rohe.
- More papakāinga and homes for Māori are delivered in partnership with Council, government agencies, and community housing providers.
- Boosting of a sustainable Māori economy.

The Iwi/Hapu Report³¹ prepared for the 2010 Growth Strategy highlighted the vision that tangata whenua have for the growth of the district for a 50-year period. The following chart (Figure 37) comes from this report and includes criteria that represent the vision for future growth. These four interlinked wellbeing

³¹ Iwi/Hapu Report, Iwi/Hapu Input to Whangārei District Council Growth Strategy: Sustainable Futures 30/50 prepared by Repo Consultancy Ltd, 2008

statements have been woven into the performance variables used to assess the long list conceptual scenarios for the Whangārei FDS.

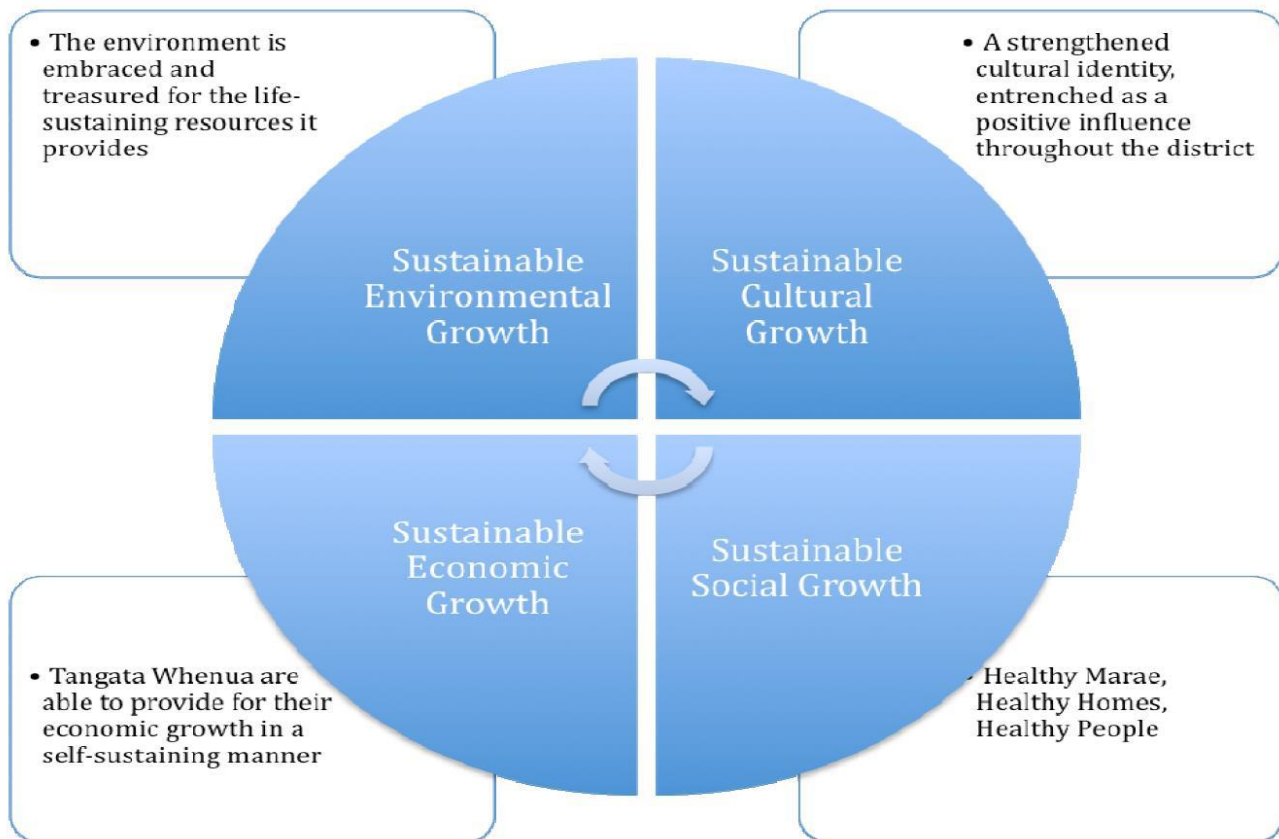


Figure 37:12 Wellbeing statements from the Iwi/Hapu Report for the Growth Strategy: Sustainable Future 30/50

References used to help inform the project teams understanding of hapu and iwi values at the time the long list assessment was done include:

- Whangārei Growth Strategy 2021
- Iwi/Hapu Report (2009): Iwi/Hapu Input to Whangareai District Council Growth Strategy: Sustainable Futures 30/50 from the 2010 strategy
- Māori Housing considerations, Whangārei Housing and Business Land Demand and Capacity Assessment
- Te Rerenga Draft Strategy
- Parua Bay Placemaking Tangata Whenua Engagement Report
- Whangārei Growth Strategy Māori Outcomes Report

Hierarchy of centres and terminology

The FDS planning process adopted terminology consistent with the National Planning Standards and the NPS-UD (Figure 38). This is a shift from the terminology used in the 2010 Growth Strategy and 2021 Growth Strategy. Previous strategies used terms like the urban area and urban growth nodes, where 'urban' areas are only the areas of urban development contiguous with the city centre. The NPS-UD, in addition, defines the rural and coastal settlements as urban as well, especially when these areas are serviced by urban infrastructure.

This terminology to describe the hierarchy of centres and focus areas for growth provide consistency across the growth strategy, NPS-UD, National Planning Standards, and the district plan (eventually) and ensure the public infrastructure level of service expectations for different development areas are clear across the scenarios.

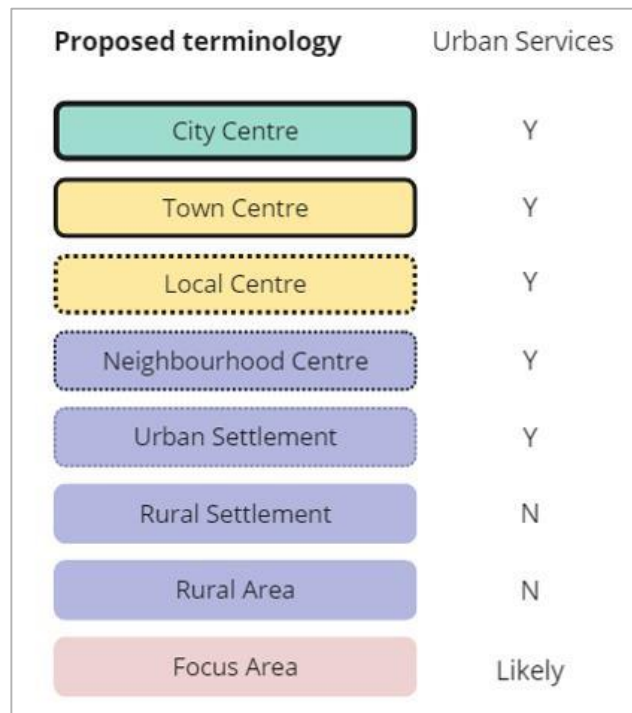


Figure 38: Hierarchy of centres, based on servicing, for development of longlist scenarios.

Whangārei context factors

The factors discussed in the ‘*Whangārei Context*’ section above, such as those to do with economic development, the city centre, Northport, and digital connectivity are assumed as being consistent for all scenarios. A range of performance variables were developed to support initial assessment of how each scenario performs against the Strategic Drivers, to support growth in Whangārei (Table). Through engagement and qualitative assessment, these variables were further validated and refined.

Table 11: Initial performance variables used to describe scenarios.

Environmental Wellbeing	Cultural Wellbeing	Economic wellbeing	Social Wellbeing
- Climate change adaptation - Quality of natural environment (incl fresh water, soil, air) - Protecting the environment and ecosystem - VKT and emissions, contribution to net zero targets - Resilience to natural hazards - Housing location - Efficiency of land use	- Cultural recognition, visibility of iwi/hapū - Providing for cultural customs and practices including cultural facilities - Natural landscapes and features - Heritage	- Transport choice and access - Employment generation - Innovation, new opportunities in region - Wealth generation - Business land capacity (commercial, industrial and mixed- use development) - Efficiency of infrastructure provision (transport, three waters)	- Housing choice (incl housing capacity, density and typologies) - Housing affordability - Access to services, community facilities - Health + safety (including Vision Zero) - Social resilience - Access to education - Sense of belonging, relationships, participation in community - Equity

What are the long-list conceptual scenarios?

Ten long-list conceptual scenarios were developed. Each scenario was assigned a letter, descriptive name and tagline as shown in Table below.

Table 12: Summary of longlist scenarios

	Descriptive name of scenario	Tagline
A	Dispersed Rural Living	<i>Living well on the land and enjoying rural life, while being close to the city</i>
B	Coastal/Rural Community Focus	<i>Thriving rural and coastal settlements, with localised economic opportunities</i>
C	Enable Greenfield	<i>Growing out and within the city, new housing opportunities enabled by the market</i>
D	Recreation Lifestyle Focus	<i>Live, work, play: supporting a balanced urban lifestyle</i>
E	Centralised Development	<i>Building a thriving Whangārei city centre, for vibrant urban living and economic opportunity</i>
F	Two City Centres	<i>A new dual community and economic focus for our District</i>
G	Natural Feature Focus	<i>A resilient, 'sponge city' that enhances and restores te taiao</i>
H	Mobility Spine	<i>Enhancing business and transport choices along the urban spine of Whangārei</i>
I	Neighbourhood Focus	<i>Convenient, connected living in local neighbourhoods</i>
O	Baseline (2021 Growth	<i>Sustainable Futures</i>

Overview of long-list scenarios

A 'high-level mapping hierarchy illustrating the high-level spatial implications of each long-list scenario, were developed. The high-level maps are summarised in Figure 39 below.

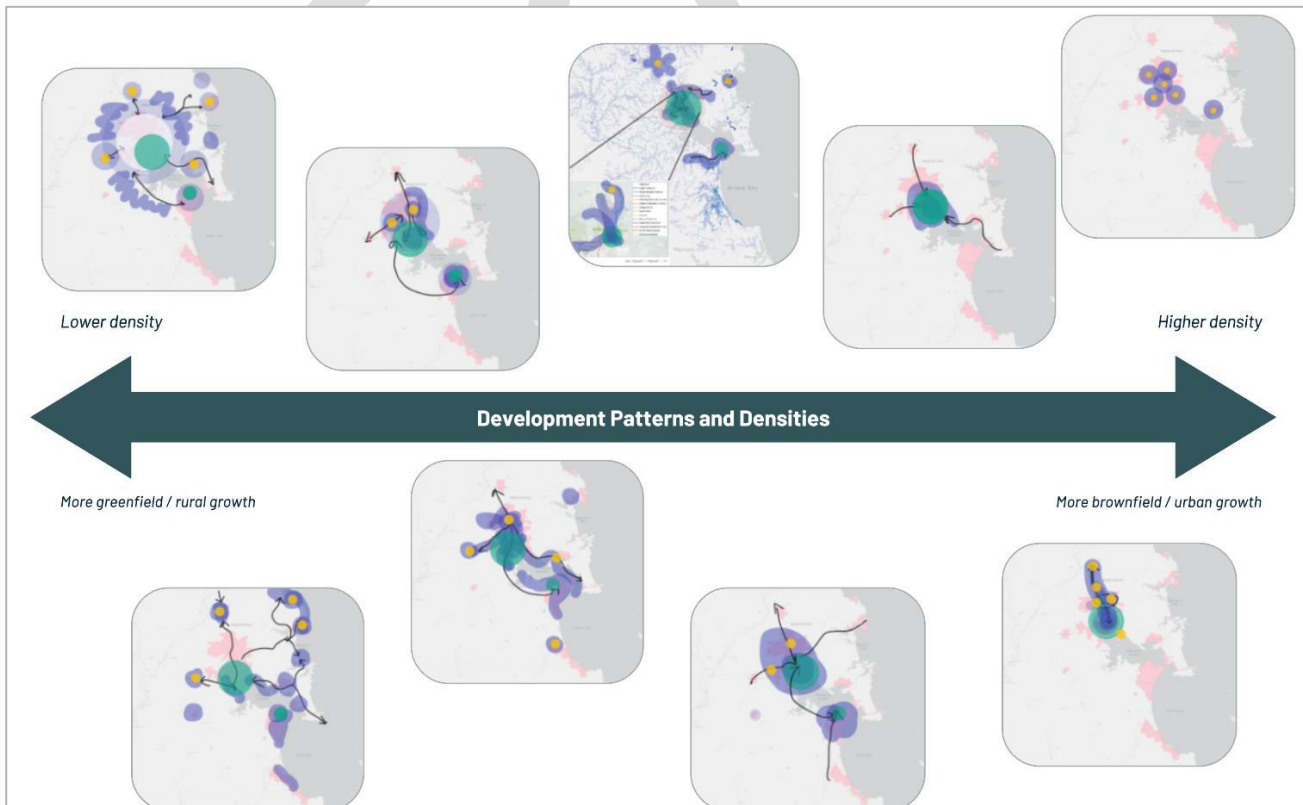


Figure 39: Visual summary of longlist scenarios.

Baseline scenario overview

All long list scenarios were assessed against the Baseline scenario, the current trajectory of growth set by the 2021 Growth Strategy. A high-level summary is provided below, and more detail can be found in the 'Whangārei Context' and 'Baseline Scenario' sections above.

The Baseline scenario considers:

- Demographics
- Cultural aspects
- Building development and land use planning
- Social infrastructure
- Network infrastructure
- Natural environment and constraints
- Economic development

A scenario based on the 2021 Growth Strategy (Sustainable Futures), which aims to accommodate growth and development in a more focused set of priority nodes. To meet demand for growth, over the next 30 years the strategy aims to accommodate:

- 12,000-20,000 new homes
- 520-560 hectares of business land

The priority development nodes are the existing urban area of Whangārei City, Tikipunga, Kamo, Maunu, Onerahi and Otaika, and Marsden Point/Ruakākā, Waipū, Parua Bay and Hikurangi. These areas are prioritised because:

- They have good access to existing and planned public transport and walking/cycling networks.
- Employment opportunities can be encouraged in areas that minimise the need to commute across town.
- Enabling higher density development in these areas encourages development of different housing typologies.
- They reflect the value of the district's natural environment and the need to protect the environment.
- They reflected the planning and development context such as the Ruakākā Structure Plan, the Port development plans, planned transport projects etc.

A comparative 'high-level' map is shown in Figure 40 below.

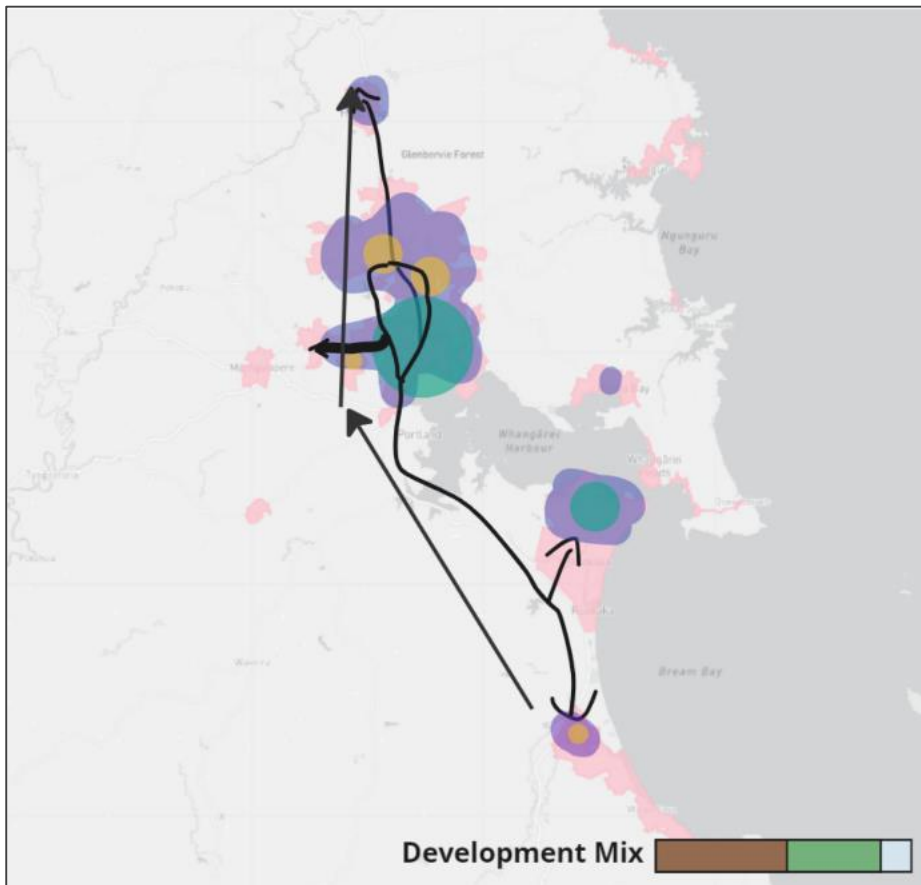


Figure 40: Baseline scenario mud map.

Risks for Whangārei City Centre and Marsden Point / Ruakākā becoming increasingly vulnerable to flooding due to climate change are also acknowledged in the 2021 Growth Strategy. The importance of the district's rural and coastal areas and providing the necessary investment and services to ensure they are resilient is also recognised by the strategy.

Baseline scenario performance narrative

To compare the long list of alternative scenarios against the baseline scenario, a description of how the baseline scenario performs against the strategic drivers and outcomes was needed. The following table (Table 13) was developed for this purpose and provides a narrative describing how the baseline scenario performs.

Table 13: Baseline scenario performance against Strategic Drivers narrative

Environmental Wellbeing	Cultural Wellbeing	Economic wellbeing	Social Wellbeing
Mostly protects indigenous biodiversity, significant landscapes, and natural features. However, there are still significant areas of undeveloped land within the coastal environment zoned for urban development – development of these areas would likely undermine the naturalness of the coastal environment. The district plan enables increased density around existing centres and therefore potentially improved urban form. However, greenfield development is also enabled, and lower density car dependent development seems to be the preferred development format for private developers. New development is enabled within coastal hazard and flooding areas, potentially limiting resilience to climate change impacts. Lower density greenfield development patterns appear to be continuing unabated. Spreading infrastructure investment more widely due to urban sprawl of this kind, rather than concentrating infrastructure investment in smaller geographic areas will likely result in less resilient infrastructure. If intensification occurs in the key growth nodes, VKT per chapter could reduce. However, car dependent development patterns appear to be continuing unabated. Increasing total VKT is likely the outcome. The improvements planned in the Blue/Green Network Strategy will improve natural features around the streams and parks in the urban area.	Papakāinga are enabled in the district plan³². However, Māori face practical issues with developing papakāinga in these areas. Some of the issues may relate to levels of council support in rural and coastal communities. The council has an ongoing partnership with hapu so Māori design principles can be incorporated into planning processes. Some cultural sites have been identified in the district plan, providing protection from inappropriate development. The council maintains venues for and promotes cultural events throughout the district.	The district plan and infrastructure investment priorities enable enough land for business development in the urban area. However, some business land is susceptible to natural hazards like flooding and land instability. Existing and planned improvements to PT services serve employment/ education centres. Frequent services are planned during peak travel to work/school periods. The planned core urban walking and cycling network also serves many employment/school areas. However, the effectiveness of the alternative travel mode networks is dependent on the local transport network being upgraded to meet the (inferred) speed profiles and active mode level of service standards for the various classification of urban streets in the One Network Framework. There is uncertainty about the timeframes for implementation of the ONF.	The district plan and infrastructure investment priorities enable enough housing to be developed in the district to provide capacity for the growing population. However, there is limited housing choice in terms of housing types, and there is no strong sign that a variety of housing types will be developed to provide housing choice for people in the short to medium term. Travel safety is not improving as much as needed to meet desired outcomes. People are exposed to safety risks when travelling. These risks create a barrier to mode shift, contributing to limiting transport choice. The existing and planned core urban walking and cycling network, and PT network and service improvements would contribute to safer travel in the urban area. This would also contribute to providing transport choice more generally. However, the rate of implementation of improvements to the network is potentially undermined by growth/development being accommodated in greenfield developments on the fringes of the urban area rather than through intensification of the existing urban area. The success of the network improvements also depends on the implementation of improvements to the speed profiles and active mode level of service standards of the ONF, and there is uncertainty about the timeframes for implementation of the ONF. Placemaking plans and initiatives will improve the quality of public open space in the key growth nodes, contributing to a sense of place and social wellbeing.

³² Noting that any final scenario through the FDS process was to maintain the same provisions which enable papakainga on whenua Maori – consistent with the Whangarei District Plan.

Engagement feedback on conceptual long list scenarios

In September 2023 workshops were held to discuss feedback on a range of conceptual longlist scenarios (the long list workshop). Following the workshop, the scenarios were made available to key WDC departments, hapū and key stakeholders including the Central Government Technical Advisory Group.

Approach to assessing the longlist scenarios.

Following the workshop and Working Group feedback each longlist scenario was qualitatively assessed by the project team against the Performance Variables listed in Table 14. This assessment provides a high-level indication of how they positively or negatively perform relative to the FDS's Strategic Drivers in comparison to the baseline scenario.

Table 14: Summary of Performance Variables and how they are used for assessment of scenarios

Strategic Driver	Performance Variable	Assessment question In comparison to the baseline scenario is the conceptual long list scenario likely to...
Social Wellbeing	Housing choice	...encourage a greater range of housing types and choice of dwelling sizes? This means we considered how housing supply and development density can lead to a better range of housing typology and dwelling size options which to meet the needs of different household types.
	Housing affordability	...enable a more cost-effective housing supply? This means we considered how the cost of new housing enabled in the market improves affordability relative to average household incomes. Urban infill/redevelopment is considered more affordable as it can often be delivered at a lower cost per unit (e.g., land and unit). Development in coastal areas is often higher in cost due to land costs, and rural lifestyle development can be costly due to larger minimum lot area requirements.
	Access to amenities	...means the locations of major amenities (services, recreation, facilities, education) become more accessible? This means we considered how the urban environment / public realm supports opportunities to participate in community. This is indicated by improved proximity of residential uses, access to and centralisation of services in local centres and city centres, relative to the baseline scenario. This includes for example the central city, hospital, schools, etc in relation to existing developed urban areas, proposed new growth areas. It also includes any changes to the recreational activities within vicinity of marae.
	Health & safety	...improve road safety and better connect people to natural amenities? This means we considered how transport safety and the health benefits of active modes and access to nature are realised, by reducing VKT and by enabling growth areas in proximity to open spaces with high natural amenity values. Also, this includes how development supports healthy homes, healthy marae and therefore healthy people.

Strategic Driver	Performance Variable	Assessment question In comparison to the baseline scenario is the conceptual long list scenario likely to...
	Social resilience	... result in a combination of residential and commercial activities leading to more vibrant places? This means we considered how sense of belonging & community, opportunities for social interaction and seeking social support is supported through access and proximity to centres and areas that support social connection. Indicated by centralisation or clustering of housing development and amenities around rural service towns and neighbourhood centres and good access between work, live and play uses.
	Equity	...improve equity for housing outcomes, cost and feasibility of personal travel, environmental impacts from growth, or exposure to natural risks? This means we considered the perceived balance or imbalance of impact from development on one community, a minority group, or spatial area over another.
Economic Wellbeing	Transport Choice and Access	...result in a lower 'vehicle kilometres travelled' (VKT) rate per capita? This means we considered cost of transport for a user, how the transport network enables access and options for transport. Lower VKT per capita indicates more cost-efficient transport network for users, provided there are other transport modes available.
	Employment Generation	...lead to business lands consolidated and close to strategic transport routes of the right types of land (e.g. parcel and zone)? This means we considered the consolidation of activity areas for employment, to achieve agglomeration benefits and preserve resources that support economically productive activities (e.g. avoid Highly Productive Land, range of type and scale of business land). Access to strategic transport routes for freight, and employee access to employment areas were also considered.
	Business land capacity (urban)	... provide sufficient land for commercial, industrial, and mixed-use development, and supporting infrastructure investment? This means we considered sufficiency of provision of land for business activities, from the baseline scenario, plus co-location of business land capacity to identified industrial or commercial growth areas supported by infrastructure investment. Includes the capacity of a scenario to support priority growth sectors (e.g. Airport, Northport).
	Efficiency of infrastructure provision (transport, three waters)	... result in a more efficient servicing model? This means we considered consolidation of land use and infrastructure (housing and business land) across growth areas identified to be positive. Typically, clustered / concentrated development areas are more efficient to service with infrastructure (fiscally and spatially), as are areas within existing urban network service areas. This approach is also a more efficient use of land and may have a lower environmental impact.

Strategic Driver	Performance Variable	Assessment question In comparison to the baseline scenario is the conceptual long list scenario likely to...
	Housing land capacity location	...encourage a range of development locations to balance housing capacity and supply by the market? This means we considered the ability of planned housing land capacity to accommodate changes in growth profile due to major development influences, which changes in demand forecast and market activity. A balance of different locations and greenfield / infill / redevelopment can help ensure supply of residential land to the market, particularly in smaller urban areas.
Cultural Wellbeing	Providing for cultural customs and practices	... provide for cultural customs and practices, including protection of sites of significance? This means we considered the protection and respect of existing Māori sites of significance and customary spaces (waahi tapu, taonga tuku iho and māhinga kai), environments, and provision of new space for cultural practices or restoration of culturally significant environments, including associated cultural narratives. This recognises that strengthened cultural identity has a positive influence on the development of the district. Housing outcomes that meet the current and future needs of Māori for housing, including flourishing papakāinga.
	Natural landscapes and features	...reduce risk of impacts that could compromise notable maunga, awa, forests, etc? This means we considered implications of development pattern on sites of significance, and other local identity forming features (where known). Development patterns which celebrate or engage with landscape, including integration of natural landscapes into urban areas. Considers the risks created by proximity of expanding urban areas to natural landscapes and features (e.g. developing rural or coastal areas might compromise these).
Environmental Wellbeing	Climate change adaptation	...improve adaptation to climate impacts including more drought, heat events, high intensity rain events, flooding, and coastal inundation?³³ This means we considered how a development approach responds to climate impacts and risks, particularly in coastal and flood prone areas. This can encompass improved resilience of infrastructure networks (via design standards), access to social infrastructure, reduced reliance on private water systems, avoiding development in hazardous areas.

³³ <https://www.nrc.govt.nz/environment/climate-action/climate-change-in-northland/future-impacts/#What%20impacts%20will%20climate%20change%20have%20in%20Northland?>

Strategic Driver	Performance Variable	Assessment question In comparison to the baseline scenario is the conceptual long list scenario likely to...
	Quality of natural environment (incl. fresh water, soil, air)	...be efficient with land requirements for growth, and avoid sensitive environmental features with key infrastructure corridors? This means we considered the impact of infrastructure and land required to support development pattern on natural environmental processes. In particular, this includes the possible impacts of a scenario's development towards water quality outcomes. Avoiding development of highly productive land can retain this resource (also refer <i>Employment Generation</i>).
	Protecting the environment and ecosystem	...lead to improved protection of the natural environment? This means we considered how a scenario, compared to baseline, protects or restores natural environmental elements including marine, freshwater and terrestrial environments. Consolidated development patterns are less likely to cause widespread environmental impact and may avoid negative outcomes. This includes how the environment is protected for the life-sustaining resources it provides.
	VKT and emissions reduction, contribution to net zero targets	...achieve mode shift? This means we considered how public transport and active transport is provided for, and anticipated travel patterns and demand of the development scenario compared to the baseline. Includes reduced car dependency, improved frequency and access to public transport and the active mode network.
	Resilience to natural hazards	...support resilience to natural hazards? This means we considered how a scenario provides physical protections, avoidance, or mitigations against natural hazards, compared to baseline. Access to social infrastructure (social resilience), in particular resilience for vulnerable communities.
	Efficiency of land use	...result in efficient servicing with infrastructure? This means we considered how the quantity of land required per unit of housing supports the efficiency of providing supporting infrastructure. Low density greenfield is inefficient compared to compact infill / redevelopment at higher densities which rely on existing infrastructure, provided there is network capacity.

Summary of longlist scenario assessment

The two highest performing conceptual long list scenarios are:

- G - Natural Feature Focus
- H – Mobility Spine

Scenarios were each evaluated against the baseline scenario, under each of the Strategic Driver categories: Social, cultural, economic, and environmental wellbeing. A positive to negative rating scale was used, to score how a scenario either improved / exceeded or reduced.

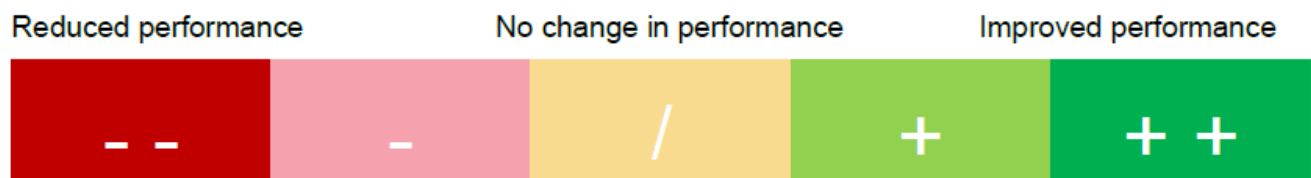


Figure 41: Rating scale.

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Table 15: Summary of assessment of Longlist scenarios against Strategic Drivers

Longlist Scenario	Key messages from engagement and assessment	Strategic Driver Assessment against performance variable	Useful Components for short-list scenarios
A – Dispersed Rural Living	Any wellbeing benefits from boosting rural hubs and remote working are not greater than the cost to support this growth pattern. Supporting innovation and new opportunities in rural townships through this growth pattern has uncertainty.	- - Poorer performance, compared to baseline across all Strategic Drivers	Clustered services in rural hubs.
B - Coastal/Rural Community Focus	Good alignment to market demand (e.g., this is how people want to live) Resilience issues with high reliance on coastal infrastructure (also natural constrains to achieving resilient infrastructure) Hard to maintain levels of service and higher cost for equitable access.	- Broadly achieves poorer performance, compared to baseline across economic and cultural wellbeing, and similar performance against environmental wellbeing. Minor improvement on baseline, with <i>Providing for cultural customs and practices</i> and <i>Social resilience</i>.	Connection with the coastal and rural environment are important lifestyle factors to consider for all short list scenarios Some growth in rural and coastal communities, along with facilities, can create more self-reliance and could be considered in short list scenarios.
C - Enable Greenfield	Too much greenfield, likely to be economically driven by developers. Better to wait until port and state highway decisions are made, where to choose greenfield growth areas. This scenario doesn't strongly consider business land capacity or employment generation. Impact on sites of significance.	- / Overall achieves poorer or comparative performance, compared to baseline across variables of environmental, social, economic and cultural wellbeing. Some performance improvement on baseline with <i>social resilience</i>	Cluster greenfield to create a core area with employment and commercial opportunities (e.g. secondary centre). Key transport link from Ruakākā to Mangawhai, other links to Kaipara could be added. Growth in Marsden/ Ruakākā can be part of other scenarios

D - Recreation Lifestyle Focus	Will reduce congestion especially on the weekends. Increases vulnerabilities of coastal communities. Cycling connections to Tutukākā and Hikurangi and between these centres would be expensive (narrow carriageway, on road). Compromises sites of significance, and puts pressure on vulnerable coastal land and communities.	+ Positive performance improvement on baseline across social and environmental wellbeing. / Variable performance compared to baseline for economic and cultural wellbeing.	Ruakākā, Waipū, Springs Flat and Maungatapere would be easier to service for cycle connections. Requires strong connection with South Whangārei including Waipū. Could combine with Neighbourhood Focus scenario to achieve more efficient infrastructure provision, economic and social outcomes.
E - Centralised Development	Focusing on one area for development is not supported by some. But would send a clear message to the market on the sort of development Council is encouraging and incentivising. Questionable as to whether a drastic change to the density of the central area would be acceptable. CBD at risk of natural hazards, likely to mean investments shift away from here over time. Centralised growth, while important, needs to be balanced with growth of other local centres and smaller rural townships.	/ Variable improvement on baseline across social, economic and environmental wellbeing. Overall impact on cultural wellbeing marginal, but positive. Notable improvement from <i>housing affordability, natural landscapes and features access to amenities, transport choice and access and employment generation</i>. Poorly performs in terms of <i>resilience to natural hazards, and climate change adaptation</i>.	Opportunity to combine centralised growth with another long list option (Neighbourhood Focus, or Mobility Spine) Avoid / minimise extension of residential development into rural or fringe areas in short list scenarios

F - Two City Centres	Strong economic outcomes are favourable and result in improved social performance. Caution about social inequities with two large separate growth areas but this could be managed. The assumed job growth (e.g., Northport and Marsden link) drives higher social outcomes and investment in transport than baseline. Density of housing = affordability, protection of natural areas and productive land use	+ Some positive performance improvement on baseline across cultural, social and economic wellbeing. Achieves minor improvement or comparative performance against baseline, for environmental wellbeing. Notable improvement from <i>housing affordability</i>, and <i>housing choice</i>.	Having two large growth areas provides more housing choice and likely affordability and could be part of a short listed scenario. Concentrated infrastructure development
G - Natural Feature Focus	Reduces climate risk exposure. Improves ecological services within urban areas. This should not be a scenario it should be a design philosophy.	+ + Notable performance improvement from baseline in environmental and cultural wellbeing, particularly <i>climate change adaptation, quality of natural environment, protecting the environment and resilience to natural hazards</i>. Achieves minor improvement or comparative performance against baseline, for social wellbeing. Notable improvement in <i>Health & safety</i>. Variable performance, compared to baseline for economic wellbeing.	All short list scenarios should consider natural feature focus as a design philosophy, particularly as a mitigation of climate risks and way to connect people to natural systems in urban places

H - Mobility Spine	Great for public transport and active modes. Whenua Māori, specifically rural and coastal communities, continue to remain isolated.	++ Notable performance improvement from baseline in economic and social wellbeing, particularly <i>access amenities, transport choice and access, employment generation, business land capacity and efficiency of infrastructure provision.</i> Notable improvement in <i>VKT and emissions reduction.</i> Achieves minor positive or comparative performance against baseline, for environmental and cultural wellbeing.	Ruakākā and Waipū mobility spine south, and spine north to Kerikeri, west spine to Maungatāpere Could combine with a Marsden option (e.g. Two City Centre) – consider impacts on freight movements. Integrated with rural communities. Airport relocation TBC Build on existing community hubs (Kamo, Tikipunga).
I - Neighbourhood Focus	Great for transport choices, VKT reduction and supporting the environment Celebrates existing identity of urban communities. Opportunities to combine with recreational focus and mobility spine scenario to optimise outcomes. Parua Bay development has challenges in this scenario.	+ Notable performance improvement from baseline for social wellbeing. Achieves minor positive or comparative performance against baseline, for environmental and cultural wellbeing. Poor or comparative performance to baseline for economic wellbeing.	Explore new centres in the west (future airport considerations) and understand the regional corridor picture. Water links to employment (Parua Bay, Marsden, Onerahi, Portland, CBD). Combine with economic growth options (e.g. Mobility Spine).

Key themes from the long list evaluation

The evaluation of the conceptual long list scenarios provides direction on what to avoid/mitigate, what to promote, and which scenario features to consider or possibly combine for the short list scenarios.

Avoid and mitigate

- Inefficient development of rural land for urban uses (as this does not meet Tangata Whenua aspirations).
- Reliance on at-risk coastal infrastructure for critical tasks.
- Flood constraints may preclude intensification in some central areas (e.g. central city) and diminish investment opportunity over time.
- Caution about social inequities with large separate growth shown in some scenarios, areas but this could be mitigated.
- Whenua Māori, specifically rural and coastal communities, continue to remain isolated under some scenarios.
- Parua Bay development has challenges in this scenario [Neighbourhood Focus].

Promote

Placemaking - development patterns should reinforce the vibrancy, role, and service functions different places play.

- Celebrate existing identity of urban communities.
- Short list scenarios will need to address business land supply and economic development.
- Consider Natural Feature Focus, particularly as a mitigation of climate risks and way to connect people to natural systems.
- Build on existing community hubs (eg, Kamo, Tikipunga).

Activity clusters - cluster services in multiple locations to improve community resiliency, social outcomes, servicing efficiencies, and economic outcomes.

- Growth and new facilities in rural/coastal communities can improve self-reliance.
- Having two large growth areas provides more housing choice and likely affordability and could be part of a short-listed scenario.
- Clustered services in rural hubs.
- Cluster greenfield to create a core area with employment and commercial opportunities (e.g. secondary centre).
- More clearly recognise the opportunities and growth in South Whangārei (Ruakākā, Waipū etc).
- Acknowledge rural and coastal areas that aren't growing and how Council will maintain existing service levels.

Adaptive growth - growth management needs to be responsive to react when key investments are locked in when these will influence development trends.

- Do not lock in greenfield growth areas until port and state highway decisions are made.
- Explore new centres in the west (future airport considerations) and understand the regional corridor picture.
- Do not focus development only in one area.
- Centralised growth, while important, needs to be balanced with growth of other local centres and smaller townships.

Enable PT and active modes - design of transport network and urban form will need to work hand in hand to achieve mode shift and VKT outcomes.

- Connections to the coast and rural environment for lifestyle purposes.
- Ruakākā and Waipū mobility spine south, and spine north to Kerikeri, west spine to Maungatapere.
- Key transport link from Ruakākā to Mangawhai, other links to Kaipara.

- Transport choices, VKT reduction and supporting the environment.
- Opportunity for water-based transport links to employment (Parua Bay, Marsden/Ruakākā, Onerahi, CBD).
- Ruakākā, Waipū, Springs Flat and Maungatapere would be easier to service for cycle connections.

Scenario features / combinations to consider for short list

- Merge the Enable Greenfield scenario with the Mobility Spine scenario.
- Combine Recreational Lifestyle Focus with Neighbourhood Focus to deliver more efficient infrastructure, and social outcomes.
- Opportunity to combine Centralised Growth with another long list scenario.
- Could combine Mobility Spine with a Marsden/Ruakākā growth option (e.g., Two City Centres) – consider impacts on freight movements.
- Feedback on Scenario G – Natural Features Focus was that all short list scenarios should consider natural feature focus as a design philosophy, particularly as a mitigation of climate risks and way to connect people to natural systems in urban places.

The assessment of short list scenario recommendations, including processing of engagement feedback, has been limited to, or excluded the following components:

- Any strategic development or transport links outside of the Whangārei District. [if some are critical, to confirm rationale for excluding/including each in the FDS]
 - Ngāwha Innovation Hub
 - Links to Mangawhai and other interactions with Waipū
 - Transport links north to Kerikeri o
 - Other links to Kaipara
 - etc.
- 'Known unknowns' of strategic developments that are, yet, unconfirmed. NB: that some scenarios have assumed that a particular development occurs (e.g. Marsden link).
- Future growth beyond 30yrs (beyond this timeframe is not a requirement of the NPS-UD).

Recommended basis for short list

Based on the scenario features / combinations and assessment of the long list scenarios, the following combinations of scenarios are recommended to form the basis for the short list scenarios development. The following is an initial combination of the long list conceptual scenario descriptions to illustrate the recommended approach for the two short list scenarios. Notably, the two scenarios will be different enough to enable assessment of trade-offs, but also have some fundamental similarities to build from.

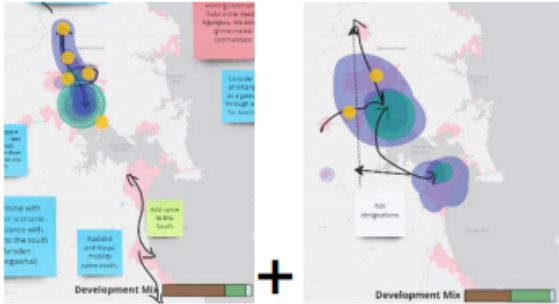
The long list conceptual scenarios recommended two combinations of short list elements, as a starting point, to design the short list scenarios.

Considerations for the short list scenario development process were:

1. Identify and confirm major future development influences (e.g. airport relocation, hospital development, Northport/Marsden city) and related opportunities
2. Identify constraints influencing shift in development pattern (e.g. central city climate risk, coastal hazard vulnerabilities)
3. Develop baseline scenario to enable short list scenarios a consistent comparative basis for performance assessment

Create two short list scenarios that address the components of the Strategic Drivers and Outcomes framework Major future development influences and constraints

Table 16:1 Short list scenario recommendations

Short list scenario 1 recommendation	Short list scenario 2 recommendation
Combine F - Mobility Spine with H - Two City Centres Development is consolidated around the North-South road spine, from Hikurangi to central Whangārei. It is balanced between the central and northern corridor and a future growth area around Marsden city. The Kiwirail line to Marsden and Northport development are realised, providing economic growth. Frequent PT services are available along the spine, centre, and Marsden city demand corridor which enhances access to education, employment, and everyday amenities in the existing and new urban areas. There are opportunities to meet economic growth northwards on the mobility spine (e.g. Kamo, Tikipunga), intensification in the central city, and through expansion of employment opportunities in Marsden city. A balance of renewed infrastructure and new infrastructure is required. New and retrofit development boosts Whangārei's performance as a 'spongey city' that is resilient to a changing climate.	Combine D - Recreational Lifestyle, and I - Neighbourhood Focus Consolidated development around existing local centres provides 'missing middle' housing choices and expanded local employment centres. This includes development in the city centre and fringe. Demand for living near places of high recreation and natural amenity are met by enabling planning and infrastructure provision, leading to intensification nearby these types of features. Minor development of existing coastal settlements enables self-sufficiency and improved community resiliency. Local centres have developed into walkable neighbourhoods with active mode links between them. Low traffic neighbourhoods are prioritised, creating a walking, cycling city. The city centre becomes a more vibrant, mixed-use place, with new employment and residential opportunities close to existing amenities. New and retrofit development boosts Whangārei's performance as a 'spongey city' that is resilient to a changing climate.
	



Section 10: Short List Scenarios

The process of progressing from long list to short list, including engagement

The long list scenarios underwent a high-level qualitative assessment process to test them against the strategic drivers and outcomes. Four long list scenarios were found to have stand-out components that performed particularly well in the qualitative assessment.

These were paired into two unique scenarios which then formed the basis of the short list scenarios. A preliminary version of these scenarios was shared with the project's stakeholder group and with hapū/iwi. The feedback from those groups led to further refinement, resulting in the short list scenarios.

The baseline scenario was described as Scenario 0 and the final short list alternative scenarios were confirmed as:

Scenario 1: Urban Mobility Focus: this is a hybrid scenario of the long list scenarios F (two city centres) and H (mobility spine). It balances growth between the central city and the northern corridor, enabling the provision of sustainable transport options and creating opportunities for economic growth.

Scenario 2: Neighbourhood and Recreation Lifestyle Focus: this is a hybrid scenario of the long list scenarios D (recreation lifestyle focus) and I (neighbourhood focus). It creates housing opportunities near **places** of high recreation and natural amenity value, while providing density in and around local centres.

Summary of 'known unknowns'

When setting this plan, we have been working through some 'known unknowns'. There are a number of factors that may affect the development of the urban area of Whangārei, where there is a level of uncertainty associated with the factors at the time of drafting this report. For the Whangārei FDS, these have been referred to as the 'known unknowns'. The known unknowns vary in circumstance, which for the Whangārei FDS include:

- Uncertainty / changes in government direction and policy position
- Matters relating to regional / national infrastructure assets
- Updated information

In preparing the FDS, new information through government announcements and engagement, have shifted the FDS responses to these factors. New known unknowns are also being reviewed and considered, both in Council's FDS and Council's Infrastructure Strategy. With some of the known unknowns, there are limited information required to plan accordingly for these projects.

Reviews of the known unknowns considered:

- the 'tipping point' of each of these elements (i.e. how/when it could be confirmed as a factor for FDS)
- level of certainty/uncertainty associated with it being confirmed
- overall impact of the element
- any cause and effect on growth for the FDS.

The 'known unknowns' are listed below and discussed in more detail in a November 2023 FDS project memo *Implications of Known Unknowns memo* – noting:

- Clearer direction on previously identified known unknowns has reduced uncertainties and risks
- New factors have been included – recognising the constantly evolving political and regulatory environment.

Summary list of Known unknowns

- **City Centre flood risk assessment:** Our City Centre is vulnerable to climatic events. Information on the extent of the risk is not fully understood. A dedicated City Centre flood risk assessment is identified in Council's Long Term Plan. This drive new understanding of risks and impacts caused by climate change and flooding on the City Centre. Infrastructure upgrades or development will be built in through future iterations of the FDS and the Implementation Plan.
- **Airport relocation:** The Onerahi airport site has been identified as not being suitable for the long-term provision of air services to Whangārei. The preferred option is to purchase and protect land for future investment if or when it is needed. Preferred location is Ruatangata.
- **KiwiRail investment in Marsden Link:** There are uncertainties with the timing of implementation. Government Policy Statement on Land Transport shifts immediate priorities away from rail.
- **State Highway 1 & State Highway 14 connections:** Government has committed to significant programme of improvements to the State Highways including the primary connection between Auckland and Northland. State Highway upgrades may shift demand and land use patterns for destinations including Marsden Point / Ruakaka.
- **Sites of cultural significance** – Whilst culturally significant sites are included in District Plan mapping, a full list of sites are currently not available.
- **Northport growth trajectory, employment, commuting patterns and housing** – uncertainty around central government decisions and infrastructure constraints.
- **KiwiRail investment in Marsden Link** – may happen in the medium term and is one of the infrastructure constraints affecting Northport Growth. *New Government Policy Statement shifts priorities away from advancing the rail corridor.*
- **Significant natural areas update** – WDC currently does not have statutory mapping for significant natural areas. Improvements to mapping may shift future areas appropriate for development and will need to be considered in for in re-zoning or more detailed planning processes.
- **Highly productive lands update** - updated soil mapping is underway but won't be completed in time for FDS so we will need to rely on the transitional definition.
- **Wetlands mapping** – wetland mapping is currently underway across the region but will not be available for the FDS process.

Description of the short list scenarios

This section provides a more detailed description of each of the scenarios, including the assumptions and considerations underlying each scenario, and an outline of what might be different living in each of these potential futures.

Each scenario is supported by a map to illustrate the intended land use pattern for that scenario. Table 17 provides clarification and descriptions of some of the legend categories that were used in the mapping of the scenarios.

Table 17: Short list scenario mapping categories and descriptions

Annotation and descriptions	Style	Servicing
Urban Growth focus area: proposed urban development to support growth, including existing urban areas (neighbourhood centre, urban settlement and rural settlement).		Urban Services
Rural areas: proposed rural development, including existing Rural Lifestyle areas.		Self-service areas
Industrial areas: proposed and existing heavy and light industrial land use activities.		
Commercial areas: proposed and existing mixed use, city centre, commercial and business land use activities.		
City Centres: priority investment areas for regional amenities and services, including placemaking. Supported by higher density housing types and key transport links. Includes large scale commercial and retail activities appropriate for a city centre.		Urban Services
Urban Centres: priority investment areas for urban amenities and services, including placemaking. Supported by higher density housing types. May be smaller scale centres such as neighbourhood centres and local centres. Includes local commercial and retail activities to support nearby residents.		Urban Services
Settlements: priority investment areas for rural amenities and services, with a focus on placemaking instead of growth. Supported by greenfield urban growth and rural growth around rural centres where land is available and unconstrained. May include a small number of local commercial and retail activities to support residents.		Urban Services
Primary Transport Links: key transport connections between city centres, urban centres, and urban growth nodes.		One Network Framework
Secondary Transport Links: important transport connections towards settlements and more dense rural growth areas.		One Network Framework

Scenario 0: Baseline (Growth Strategy)

The Baseline (Growth Strategy) scenario represents the trajectory of development in Whangārei based on the 2021 Growth Strategy, which is the public and adopted direction for development in Whangārei. It aims to achieve a 'quality compact urban form', which involves constraining urban sprawl, increasing development density within existing urban limits, and reducing car dependency. It is visualised in Figure 42.

Most residential development in the short to medium term is planned to occur within existing residential zones, through either brownfield or greenfield development. Growth in non-rural business activities is expected to be within urban business zones and some settlement sub-zones (in rural and coastal settlements) in the short to medium term. Several growth nodes are identified as focus areas, where urban development is intended to be focused. This includes some greenfield areas where long term growth could be supported.

Focus areas

Te Kamo, Ōtangarei, Tikipunga, Maunu, Whangārei City Centre, Onerahi, Otaika, Marsden Point/Ruakākā, Parua Bay, Raumanga, Hikurangi, Waipū.

Three waters infrastructure

The LTP includes 19 growth-related water supply projects to support the current planned growth trajectory of the district. The Baseline (Growth Strategy) scenario assumes all of these projects go ahead. It also includes three wastewater projects that are required to cater for planned growth. There are no major stormwater projects included in the LTP that are required to support a specific development pattern.

Transport

The programme of developing the core urban backbone walking and cycling network and build out of connections to local destinations will continue. Connections around centres and focus areas will be prioritised. As per the RPTP, the service frequencies of the City Link network will be doubled and the Hikurangi and Bream Bay Links frequencies will be improved to provide a commuter service.

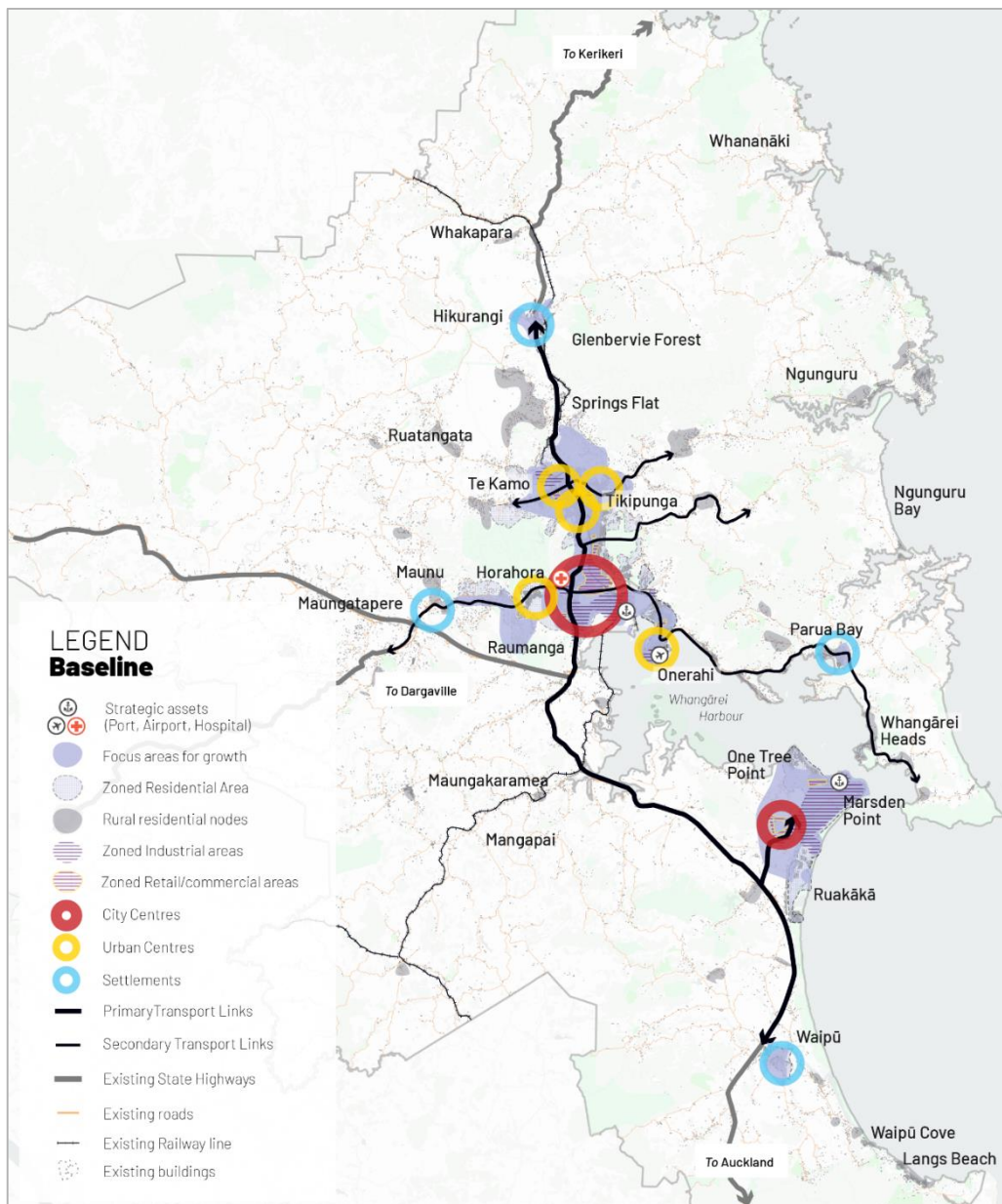


Figure 42:13 Scenario 0, the Baseline (2021 Growth Strategy)

Scenario 1: Urban Mobility Focus

This scenario consolidates development around the north-south road spine, from Hikurangi and Springs Flat to Whangārei City Centre, and its surrounds between Te Kamo and Tikipunga, as illustrated in Figure 43. Opportunities for economic growth are created in and around the higher density urban growth areas along this spine, which are conveniently located near primary transport links.

Frequent public transport services are available between Springs Flat and the City Centre and towards Marsden City, enhancing access to education, employment, and everyday amenities in the existing and new urban areas. The consolidated urban areas support walkable urban centres, improving walking and cycling access to amenities.

A balance of new and renewed infrastructure is required. New and retrofitted development to higher service standards boosts Whangārei's performance as a 'spongey city' that is resilient to a changing climate.

Focus areas

Hikurangi, Springs Flat, Te Kamo, Tikipunga, Maunu, Whangārei City Centre, Onerahi, Marsden Point/Ruakākā, Waipū.

Shifts from Baseline (Growth Strategy)

- A more consolidated urban area, with higher density brownfield development concentrated along the mobility spine from Springs Flat to central Whangārei.
- Reduced greenfield growth at the urban fringe, including along the northern harbourside, Raumanga and west of Te Kamo and to the north and south of Tikipunga.
- Spongey city initiatives for Marsden City and possible ferry service to connect it with central Whangārei³⁴.
- Public transport service improvements (enabled by higher density).
- High quality active mode facilities along the mobility spine (enabled by higher density).
- New spur railway line to Marsden Point and Northport.

Key outcomes

The key outcomes that this scenario aims to achieve include:

- High quality public transport service along the mobility spine (between Springs Flat and the City Centre and towards Marsden City).
- Reduced vehicle kilometres travelled, due to public transport improvements and higher quality active modes infrastructure along the spine.
- More efficient use of infrastructure, with concentrated investment in transport and three waters along the spine, and in public realm at the concentrated urban centres.
- Higher density living due to higher quality and more attractive urban living opportunities.
- Growth in business and employment opportunities along the mobility spine.
- Reduced exposure to natural hazards, and impact on the natural environment, due to a more compact developed area.

³⁴ Ferry link between central Whangārei and Marsden Point requires a feasibility study.

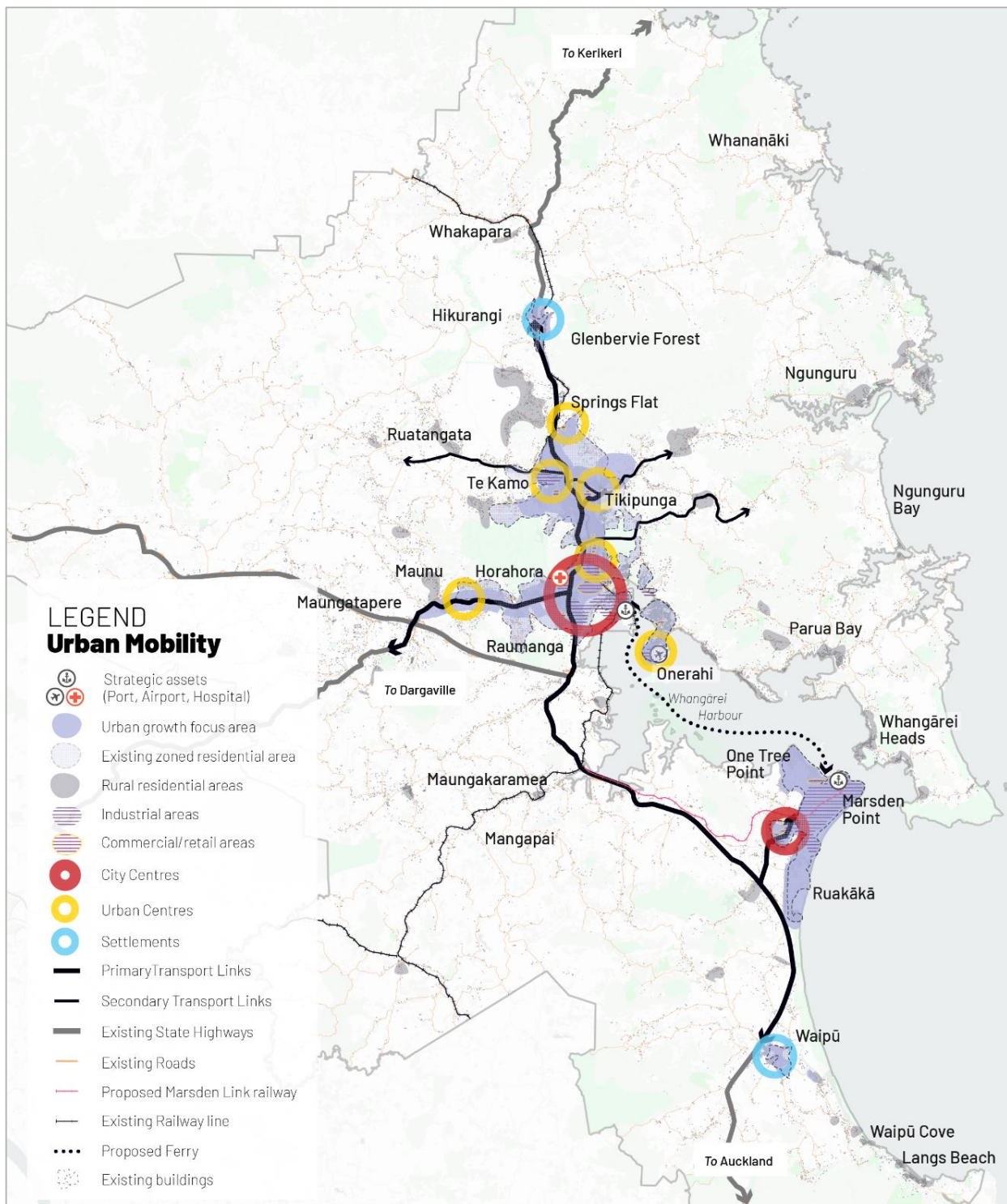


Figure 43: Scenario 1, Urban Mobility Focus

Scenario 2: Neighbourhood and Recreation Lifestyle Focus

This scenario consolidates development around existing local centres and expanded local employment centres, as illustrated in Figure 44. This includes development in the city centre and fringe and prioritises provision of 'missing middle' housing choices. Demand for living near places of high recreation and natural amenity are met by enabling planning and infrastructure provision near these types of features.

The city centre becomes a more vibrant, mixed-use place, with new employment and residential opportunities close to existing amenities. Minor development of existing coastal settlements focuses on placemaking rather than growth and enables self-sufficiency and improved community

resiliency. Local centres are developed into walkable neighbourhoods with active mode links between them. Low traffic neighbourhoods are prioritised, creating a walking and cycling city.

New and retrofit development boosts Whangārei's performance as a 'spongey city' that is resilient to a changing climate.

Focus areas

Hikurangi, Te Kamo, Ōtangarei, Tikipunga, Ngunguru, Maungatapere, Maunu, Horahora, Whangārei City, Parua Bay, Raumanga, Marsden/Ruakākā, Waipū.

Shifts from Baseline (Growth Strategy)

- Higher density developments near central Whangārei, between Horahora (hospital) to Onerahi and Te Kamo to Raumanga.
- Brownfield intensification enabled around existing local centres including the City Centre.
- Support development of key settlements through placemaking improvements to improve self-sufficiency, such as in Ngunguru, Parua Bay and Maungatapere.
- Enable more commercial activities in neighbourhoods (urban centres), supporting a '15-minute neighbourhood' principle.
- Enable more planning and infrastructure provision around areas of high recreation and amenity value.
- Reduced greenfield growth at the urban fringe, including to the north of the city around Te Kamo, Tikipunga and Springs Flat, and east around Maunu.
- Prioritise neighbourhood walkability and coastal and local active mode networks.
- Spongey city initiatives for Marsden City and possible ferry service to connect it with central Whangārei³⁵.
- Relocation of airport to Ruatangata west.
- New spur railway line to Marsden Point and Northport.

Key outcomes

The key outcomes that this scenario aims to achieve include:

- High quality core public transport service (between Kamo, Tikipunga and the City Centre).
- Some reduction in vehicle kilometres travelled from improved public transport services in urban areas and higher quality active modes infrastructure towards Whangārei Heads.
- Somewhat higher density living with less reliance on greenfield land.
- Social and economic benefits for residents on the northern harbourside, with better connectivity.
- Protection of productive soils from greenfield development in the north.

³⁵ Ferry link between central Whangārei and Marsden Point requires a feasibility study.

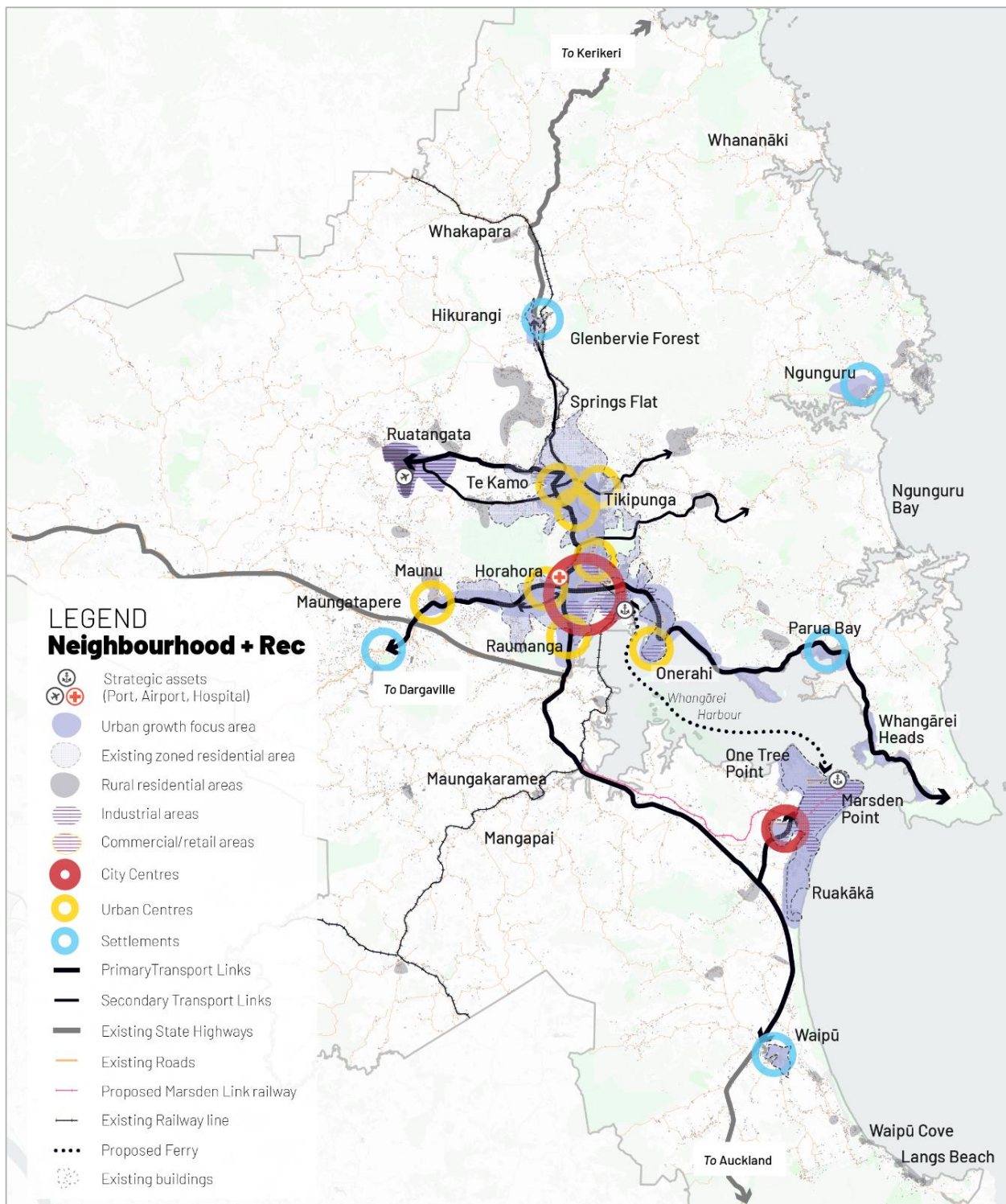


Figure 4414: Scenario 2, Neighbourhood and Recreation Lifestyle Focus

Assessment approach/KPIs

A set of assessment measures were developed that align with the strategic outcomes³⁶ of the FDS. These illustrated in Figure 45 and were used to assess how well each of the scenarios achieves the desired outcomes.

	Outcomes						
	1 – Equitable Access	2 – Housing Choices	3 – Lifting the mauri of our taonga <u>tuku iho</u>	4 – Cultural Recognition	5 – Emissions Reduction	6 – Employment Pathways	7 – Resilient Developments
Assessment Measures							
1 – Access to opportunities	✓		✓	✓	✓	✓	
2 – Access to urban amenity	✓	✓			✓		
3 – Travel choice	✓	✓		✓	✓		✓
4 – Housing choice		✓	✓	✓			
5 – Housing locations	✓	✓		✓	✓		
6 – Protection of sites of significance			✓	✓			
7 – Quality of the coastal environment			✓	✓	✓		✓
8 – Quality of water bodies and forests			✓	✓			
8 – Connected ecosystem			✓	✓			
9 – Access to employment	✓				✓	✓	
10 – Economic access			✓	✓		✓	
11 – Productive land			✓			✓	✓
12 – Climate change adaptation and resilience					✓		✓
13 – Sustainable settlements	✓		✓	✓	✓		✓
14 – Feasible and efficient infrastructure			✓				✓

Figure 45: Assessment measures and their alignment with FDS outcomes.

Scoring each scenario against each assessment measure allowed comparison of the scenarios against the strategic drivers and outcomes. The scoring needed to have enough range to show differentiation between options, but not too much that it became meaningless. A 7-point scoring system was used, ranging from -3 to +3. Scores were allocated based on judgement from the expert in charge of scoring a given measure and considered feedback received from various stakeholders.

The Baseline (Growth Strategy) scenario had a default score of 0 for all assessment measures to set the benchmark for which to compare the other scenarios against. An MCA process was then used to assign a score between -3 and +3 for each of the alternative scenarios, depending on whether (and by how much) they would improve or worsen performance against the given measure, relative to the Baseline (Growth Strategy) scenario. This process included a mix of Central Government representatives, critical infrastructure representatives, developers and Council staff.

³⁶ Noting through amendments in the process, strategic outcomes were shifted to strategic objectives.

Overview of assessment results

The results of the MCA are included in Table. More details describing the rationale for these scores is included in **Error! Reference source not found.**

Table 18: Short list MCA results

Assessment Measure	Scenario 1	Scenario 2
Access to opportunities	+2	+1
Access to urban amenity	+1	+1
Travel choice	+2	-1
Housing choice	+2	+1
Housing locations	-2	0
Protection of sites of significance	0	0
The natural quality of the coastal environment	-1	-2
Quality of water bodies and forests	0	-1
Connected ecosystem	0	0
Access to employment	+3	-1
Economic access	+1	-1
Productive land	+1	+1
Climate change adaptation and resilience	-1	+1
Sustainable Settlements	0	+1
Feasible and efficient infrastructure	+1	-1

There were some additional considerations raised in the short list assessment workshop and in subsequent feedback that also informed the preferred scenario development. These included matters related to:

- The relative importance of natural hazard avoidance or mitigation and how to achieve this.
- The relative importance of maintaining and enhancing valuable natural features, like wetlands and the coastal environment.
- The need for more affordable housing in Whangārei was highlighted.
- The airport relocation and the importance of this was highlighted.
- Is there a need for industrial land associated with a new airport location?
- The importance of tangata whenua cultural values and their relationship with the land.
- Potential transport infrastructure improvements, including a Marsden Link, an 'Ocean Flyer' inter-regional ferry service, a harbour ferry service, and inter-regional passenger rail.
- Schools and education needs of different scenarios.
- Ensuring appropriate levels of investment in areas that are not a focus for growth and development.
- The location of medical facilities.
- The requirements for the operation of the Transpower operated national electricity grid.

The assessment results and additional considerations were used to identify a set of features to include in an emerging preferred scenario, outlined in the next sections.

Section 11: Emerging preferred option on key features

The short list assessment indicated that Scenario 1, the urban mobility scenario, performed the best out of the three scenarios overall. Therefore, scenario 1 was proposed as the basis for defining an emerging preferred scenario. The emerging preferred scenario was then workshopped with WDC and NRC, considered by the FDS working group, and more detailed mapping and assessment was undertaken. Figure 46 summarises the process from short list assessment to the preparation of the preferred scenario.

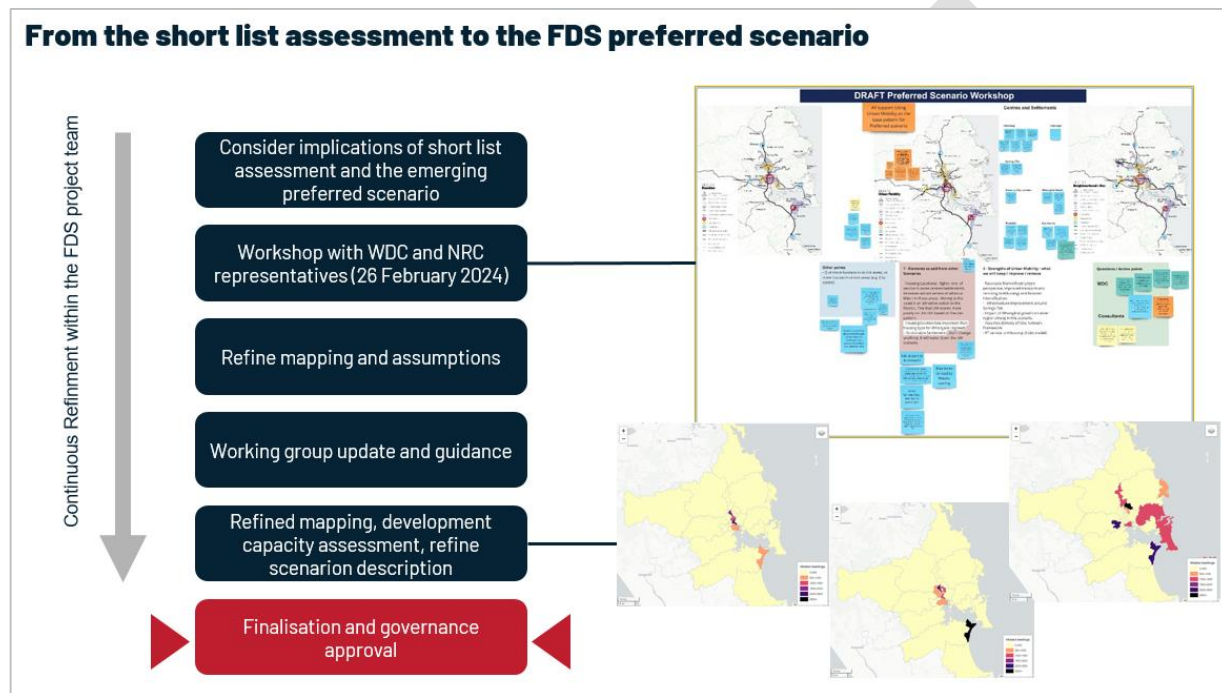


Figure 4615: Process from short list assessment to preferred scenario.

Preferred scenario workshop

The 26 February workshop with WDC and NRC representatives considered whether the Urban Mobility Scenario should be used as a basis for refining the preferred scenario, and how it could be improved by, for example, using more detailed mapping and modifying aspects of it that were not as positive as the other scenarios.

Direction / conclusions coming out of the workshop were:

- Housing choice (in terms of typologies and cost) can be prioritised over housing location.
- The extent of highly productive land affected under the Urban Mobility Scenario was overstated.
- Additional urban development (beyond what is envisaged in the Baseline Scenario) in the coastal environment should be avoided.
- Transport choice and access to employment should take priority over the growth of settlements (beyond what is envisaged in the Baseline Scenario).
- Hikurangi and Waipu should be priority investment areas for amenities and services, with a focus on placemaking rather than growth.
- Down-zoning was not favoured, as it was anticipated that a move of this nature would not be well received by the community. Alternatives to downzoning that could achieve the desired outcomes better than the Baseline Scenario were contemplated, e.g. phasing infrastructure

provision or structure planning in some areas. It was agreed that more thought on this matter was needed.

- There was a need to clarify what would happen in the strategic area between the city centre and Te Kamo (around the mobility spine).
- Better definition of the city centre is needed on the map.
- Growth in the extent of urban development in Ruakākā and Marsden should be limited.
- The Marsden Spur Link and future passenger rail should be included in the preferred scenario.
- In general terms, the workshop moved the emerging preferred scenario somewhat away from the Urban Mobility scenario towards the Baseline scenario.

Refined mapping, clarifying assumptions, and defining a preferred scenario.

Following direction from the workshop, further work was done on refining the mapping and defining the assumptions, including assumptions on how development would be enabled, how development would be phased, and how future urban areas and large greenfield development areas should be dealt with in a strategic sense.

This involved the following main aspects:

- Refining the district wide scenario map to reflect the workshop outcomes.
- Developing a narrative on how different parts of the urban environment would develop over time, e.g. how key centres will develop and what land use development will happen along the central mobility spine.
- Generally defining areas where intensification (e.g. through up-zoning) would be enabled.
- Developing a set of development phasing principles that would help guide the councils FDS implementation activities.
- Defining areas where structure planning would improve development outcomes, including future urban zoned areas and undeveloped residential zoned areas on the fringes of the city.
- Refining development capacity numbers to reflect the strategic approach and developing a basic development capacity uptake model for short/medium term, long-term, and post 30-year development phases.
- Preparing inset maps to show greater levels of detail and key moves in main areas of change, e.g. along the central mobility spine.

These aspects went through several iterations with the project team and the FDS Working Group before ultimately this phase of work produced the preferred Scenario as described in the following section.

Water and Transport Modelling

Transport modelling

During the process it was intended transport modelling would be completed to inform the preferred FDS scenario. Due to ongoing amendments to the model, this process could not be undertaken. It is intended the modelling will help to align with existing transport planning work such as business cases and will inform future implementation priorities. It is expected revised modelling will be available to inform the final version of the FDS. This will be worked through with Waka Kotahi and Northland Transportation Alliance.

Water infrastructure capacity modelling

Infrastructure capacity modelling is underway and will be a key tool in identifying our constraints and risk. Modelling was not ready to inform the draft FDS. While modelling was not available through the plan making process, Council have a medium to high confidence in the information of our critical assets such as water treatment facilities, reservoirs, wastewater treatment plants and pump

stations³⁷. There are still areas of information limitations which have been considered through the process. The priorities and scale of the projects identified will be worked through as part of the FDS Implementation Plan

Section 12: Emerging preferred scenario for consultation

This section summarises the preferred scenario. The Preferred Scenario Report in Appendix F includes a more detailed description of the preferred scenario, including narrative descriptions of the main proposed changes and larger scale maps of key areas of development activity.

Strategic Vision and Objectives

How did we develop the vision statement and strategic objectives and why do we have them?

The structure of the Strategic Framework has been amended throughout the Strategy process. In the original framework, the FDS was guided by strategic drivers³⁸. Throughout the FDS process, the terminology applied changed to give greater emphasis towards the a 'clear' vision statement and stronger application of strategic objectives. This decision improved the communication and simplicity of the Strategy.

Vision statement

The vision statement sets out an overarching purpose for Whangārei's FDS. The vision statement is directly based on the four wellbeing's (social, environmental, economic, and cultural wellbeing). These aspects of community wellbeing are aligned with and support the purpose of local government under the Local Government Act (LGA).

Growth planned for the betterment of our environment and future generations.

Healthy, inclusive, connected communities, with diverse and rewarding education and employment. Industry and businesses are thriving, driving a prosperous economy. We care for, restore and enjoy our natural environment. We uphold a culture of respect and generosity, guided by our local stories, Tikanga, and Te Tiriti o Waitangi.

Strategic objectives

The strategic objectives define the priorities and goals that the FDS sets out to achieve. The objectives have been used to develop, assess, and compare desired outcomes of different spatial scenarios. In the Whangārei FDS context, a strategic objective can be defined as the overarching goals for the district that shape the future of Whangārei.

Strategic objectives are also supported by assessment measures. Assessment measures are specific metrics used for evaluating performance against the outcomes. The assessment measures were used during the FDS preparation process to compare the expected performance of different scenarios to achieve the outcomes.

Certain assessment measures can also be monitored over time to track actual performance during the implementation of the FDS. These could be referred to as 'monitoring measures' or 'performance indicators'. The monitoring measures can be quantitative or qualitative measures and will be identified subsequently as part of the FDS implementation plan.

³⁷ <https://www.wdc.govt.nz/files/assets/public/v/1/documents/have-your-say/ltp-2024-34/ltp-2024-34-cd-supporting-documents.pdf>

³⁸ Strategic drivers were based on social wellbeing, environmental wellbeing, economic wellbeing, and cultural wellbeing. The alignment with these four aspects of community wellbeing supports the purpose of local government under the Local Government Act (LGA).

Resilient and equitable access: People can safely access their home, employment, parks, the natural environment, and community services by multiple transport modes.

Housing choices: Whangārei supports pathways for people to secure a home that meets their needs in terms of type, size, location and affordability.

Lifting the lifeforce / mauri of our environment: A thriving environment where ecosystems and our relationships to them are maintained and enhanced over time.

Cultural recognition: Cultural heritage, identity and diversity is protected and celebrated.

Employment pathways: Economic, employment and education opportunities are available throughout Whangārei to ensure business and community needs are met.

Emissions reduction: Climate change mitigation is reflected in our planning and development decisions as we move towards net zero emissions by 2050.

Resilient developments: Our communities are resilient in a changing climate through limiting exposure to natural hazards.

Preferred scenario overview

A core part of the preferred scenario is the district wide spatial map that shows the key parts of the strategy, such as the strategy, such as the location of key growth and development areas and strategic transport infrastructure, at a district wide infrastructure, at a district wide scale. The graphic in

Figure shows the preferred scenario district wide map. This scenario consolidates development around a primary growth corridor (PGC), from Te Kamo through Whangārei City Centre to Woodhill and Whangārei Hospital. The PGC is oriented around key transport infrastructure:

- The central multi-modal transport spine of Kamo Road, Banks Street, and Maunu Road; and
- The potential future passenger rail stations at Kensington, Whau Valley Shops and / or Keyte Street / Park Avenue, and Te Kamo.

Future Development Strategy - Map

DISTRICT OVERVIEW



Figure 47: District-wide FDS map.

Primary Growth Corridor

The Primary Growth Corridor (PGC), the concept introduced through this Strategy, outlines the area of most significant change up to 2053. New housing of different types and densities, new businesses, and new services. This change is also underpinned by infrastructure in waters and transport networks.

Centres and new mixed-use areas offer a range of housing, local businesses, and employment. There are recreation and shared spaces for people to gather and community to development. People find many of their daily needs readily available to them locally.

Frequent public transport services are available linking Raumanga and Marsden, through the City Centre, up through Regent and Kensington, to Otangarei, Te Kamo and Tikipunga. This connectivity between key places for people allows better access to education and training, employment, and everyday activities.

Rail has a long history of transporting people and goods throughout Te Tai Tokerau. Whangārei's rail line already passes through the PGC. As this area continues to become more densely populated, a rail service will become more feasible. Over time, this line will become a passenger service, providing stops at the City Centre, Kensington, Whau Valley / Otangarei, and Te Kamo. Extensions to Hikurangi and Marsden Town Centre support further growth in those areas, and regional connectivity, employment, and prosperity.

City centre

Continue developing the city centre as a priority investment area for regional amenities and services, including placemaking. Higher density housing types are enabled, and their development is supported. Development includes large scale commercial and retail activities appropriate for a city centre. The city centre is a hub for a variety of transport modes, including an interchange for train/bus/active mode transfers.

Urban centres

These are priority investment areas for urban amenities and services, including placemaking, and are supported by higher density housing types. They are developed with a high standard of urban design to assist in making the centre the focal point for the community and enable a broad range of commercial and community activities.

Townships

These are priority investment areas for placemaking and enhancing commuter public transport connection to Whangārei City and are supported by existing residential and commercial growth capacity. Includes commercial, retail and community activities to support residents and rural activities in the surrounding area.

Rural and coastal settlements

They support wider community access to local schools, community halls, marae and other facilities. Public transport services are tailored to meet the needs of rural, isolated, dispersed and often low socio-economic communities. Roading improvements will focus a small scale projects and ensuring better use of existing infrastructure. Cost effective infrastructure and behaviour shifts will improve safety and perceptions of rural and coastal roads. Rural and coastal settlements are not areas where growth is encouraged, with growth confined to existing zones. Improving key community assets and implementing locally driven aspirations and initiatives ensure our rural and coastal settlements can function and thrive.

Transformational Moves

The Strategy identifies seven transformational moves for change. Successfully delivering the transformational move will not happen by coincidence. It is a result of many years of aligned implementation, many partners who all buy into a shared vision for what Whangārei can become.

They are the cornerstones of which the rest of the Strategy is built. The transformational moves are programmes of work, that require coordinating and funding specific projects.

Primary Growth Corridor from the City Centre to Te Kamo: Intensification of housing and mixed-use development through the city, centred around a priority multi-modal corridor. This includes walking, cycling, public transport and private vehicle.

Blue-Green Network: Low impact design approach to stormwater management to support physical resilience, community health & wellbeing, and environmental wellbeing including enhanced biodiversity.

A vibrant and lively city centre, enhanced by the Knowledge Hub Precinct: New residents, improved resilience to flooding risks to support development, targeted development of a Knowledge Precinct for education, civic services and community and the fulfilment of Hihiaua Cultural Centre vision.

Revitalising and restoring community pride in their local centres: Increased growth supported by improved transport and placemaking provide people with access to public amenity including the celebration of arts and culture.

Marsden strategic growth area: Strategic transport improvements, wastewater treatment plant upgrades, Northport expansion, Ruakākā energy park, new Marsden Maritime Business Park, ferry service and development of new Marsden Town Centre.

Innovative and resilient transport connections for Whangārei District and Te Taitokerau: State Highway improvement between Whangārei and Marsden, Brynderwyn route resilience improvements, airport relocation, frequent public transport, alternative transport modes for remote coastal and rural settlements and safer and more efficient access to the Whangārei Base hospital.

Freight and passenger rail services: Freight connections supporting Northport and Marsden Maritime with greater access across Te Tai Tokerau and the Upper North Island. While passenger rail services commuters from Hikurangi through to Marsden, with several stops along the Primary Growth Corridor including the city centre to support the Knowledge Hub Precinct.

Inset maps

A set of three inset (areas specific) maps were prepared, showing the main areas of development activity in greater detail, including the Primary Growth Corridor and the Marsden / Ruakākā areas. The inset maps are intended to show the main changes from the FDS in a spatial sense, including indicative areas where greater development density or new business development should be enabled, locations of key transport infrastructure, priority areas for the blue green network, and showing the main destination activities in the areas such as schools. **Error! Reference source not found.** shows an excerpt from one of the draft inset maps including its legend.

The location of the blue / green network development focus areas is based on the council's blue / green network strategy, which is currently being implemented. The shared paths and cycleways were based on the councils GIS records of the existing network.

Future Development Strategy - Map

TE KAMO + WHAU VALLEY

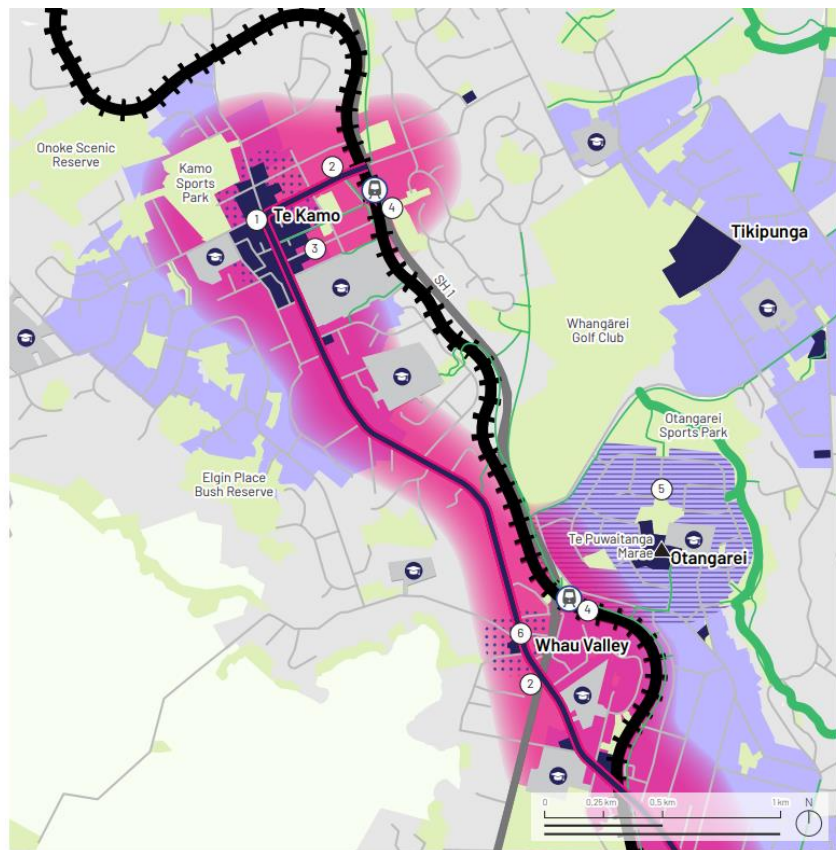
- ① Te Kamo becomes a town centre with an expanded centre area.
- ② Higher density housing and development within walking distance of Te Kamo, Whau Valley centres and indicative rail stations.
- ③ Placemaking and improved multi-modal streets for local centres and around the Primary Multi-Modal Corridor.
- ④ Indicative Te Kamo and Whau Valley passenger rail stations.
- ⑤ Cross-party masterplanning and investment for Otangarei.
- ⑥ Expansion of Whau Valley centre to provide for a wider range of services for residents.

Potential Features

- ⋯ Expanded centre area
- High density or mixed use residential area - up to 6 storeys
- Priority Multi-modal Corridor (PMMC)
- Cross-party masterplanning area
- Indicative passenger rail stations
- Public ferry service

Current Features

- Urban centres
- Mixed-use and commercial areas
- Medium density urban areas
- Other urban areas (residential and industrial)
- Rural areas
- Parks, open space and reserves
- Rivers and larger streams
- Blue-green network development focus areas
- Shared paths, walkways and cycleways
- Local Roads
- State Highway
- Railway line
- Schools
- Marae



Map 1 - Te Kamo and Whau Valley

Future Development Strategy - Map

CITY CENTRE + KENSINGTON

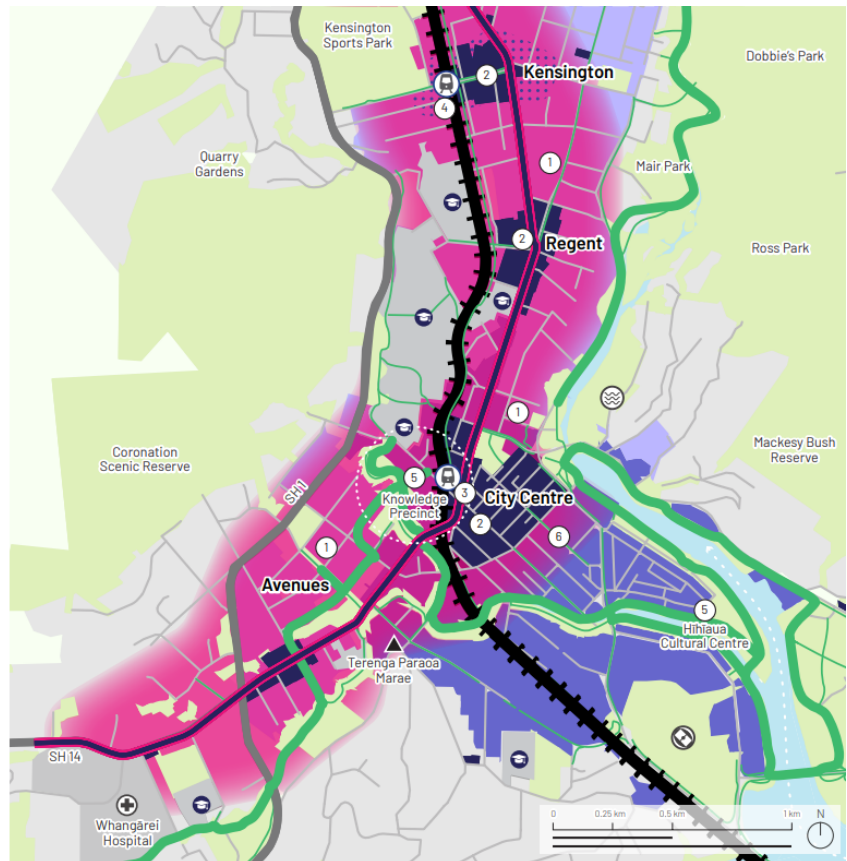
- ① Higher density housing development within walking distance of the city centre, Regent and Kensington
- ② Placemaking and improved multi-modal streets, prioritised for local centres and around the Primary Multi-Modal Corridor.
- ③ Indicative city centre train station in a more central location and develop an integrated multi-modal transport hub.
- ④ Indicative Kensington passenger rail station.
- ⑤ Develop Knowledge Precinct in city centre (circled) and fulfill the vision of Hihiaua Cultural Centre.
- ⑥ Develop and enhance low impact stormwater design in the city centre to support resilience and future development.

Potential Features

- Expanded centre area
- High density or mixed use residential area - up to 6 storeys
- Priority Multi-modal Corridor (PMMC)
- Cross-party masterplanning area
- Indicative passenger rail stations
- Public ferry service

Current Features

- Urban centres
- Mixed-use and commercial areas
- Medium density urban areas
- Other urban areas (residential and industrial)
- Rural areas
- Parks, open space and reserves
- Rivers and larger streams
- Blue-green network development focus areas
- Shared paths, walkways and cycleways
- Local Roads
- State Highway
- Railway line
- Schools
- Marae
- Hospital
- Aquatic centre
- Stadium



Map 2 - City Centre and Kensington

Future Development Strategy - Map

MARSDEN

- ① Support the Marsden Spur rail line development.
- ② Passenger rail station at Marsden town centre.
- ③ Avoid urban development encroaching into highly productive land and land affected by natural hazards.
- ④ Support new businesses to establish in the business zoned areas, including proposed Business Park.
- ⑤ New Ruakākā wastewater disposal and treatment upgrades to support housing and business growth.
- ⑥ Transport resilience corridor (Whangārei to Auckland), including proposed Whangārei to Port Marsden Road of National Significance
- ⑦ Proposed Northport expansion
- ⑧ Proposed Ruakākā Energy Park

Potential Features

- Indicative passenger rail stations
- Rail - Marsden Spur
- Public ferry service

Current Features

- Urban centres
- Mixed-use and commercial areas
- Medium density urban areas
- Other urban areas (residential and industrial)
- Rural areas
- Port area
- Marsden Cove Business Park
- Light and Heavy Industrial areas
- Parks, open space and reserves
- Rivers and larger streams
- Coastal environment
- Harbour
- Shared paths, walkways and cycleways
- Local Roads
- State Highway
- Railway line
- Schools
- Marae
- Port



Map 3 - Marsden

Figure 48: Inset maps.

Whangārei Development Principles

The Future Development Strategy considers growth in a 30-year timeframe. High level direction setting, and phasing of the Strategy has been informed by extensive engagement with key infrastructure and asset holders, an understanding of future demands and considerations of current and future market delivery trends in the Whangārei District.

A set of development phasing principles have been included with the preferred scenario (refer to **Error! Reference source not found.**). These principles are intended to provide guidance for the councils' implementation activities so that these align with achieving the strategic outcomes of the FDS, such as:

- Providing guidance on when to start planning processes to provide plan-enabled capacity in different parts of the urban area, e.g. zoning changes in brownfield intensification areas or structure planning processes for future urban zones.
- Indicating the relative priority of infrastructure planning and investment in different parts of the urban environment to make them infrastructure ready.
- Guidance on where and when changes are needed in the transport network.
- Initiating consideration of when and how to fund infrastructure.

In summary, the development phasing principles cover the following:

- District-wide principles and principles applying more to the future urban zoned and adjacent greenfield areas.
- Specific principles applying to the city centre, the primary growth corridor area, the key urban centres, and other urban areas including rural and coastal settlements.
- Sequencing of development capacity uptake to support the strategic outcomes of the FDS in the most effective and expedient way.

The Strategy has also a relationship with Council's Infrastructure Strategy which provides a strategic outlook on the District's infrastructure planning and investment over the 30-year period. This provides a long-term picture of key shifts impacting infrastructure delivery including an increased focus on resilience and climate change, district growth, changes in government direction and our communities expectations.

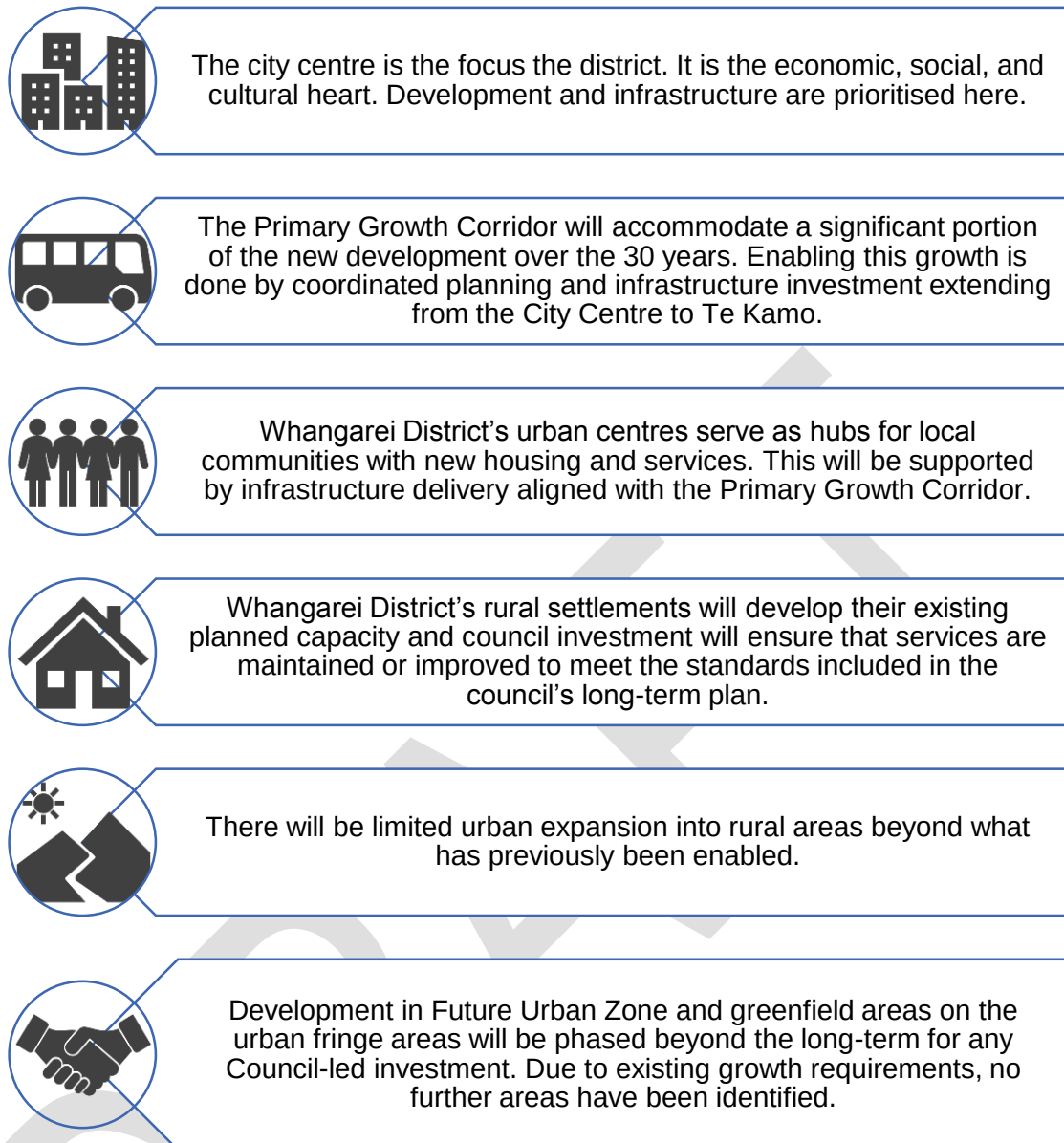


Figure 49: District-wide development principles

Phasing the Future Development Strategy

The Future Development Strategy considers growth in a 30-year timeframe. The Strategy is delivered over three stages, aligning with the National Policy Statement on Urban Development.

- Short term (1 – 3 years)
- Medium term (4 – 10 years)
- Long term (11 – 30 years)

The short and medium-term stages of the Strategy have been informed by:

- Housing demand
- Current market forces
- Housing and business areas enabled throughout the District Plan
- Infrastructure capacity and constraints
- Climate and environmental risks
- High level concerns regarding cultural sites of significance

Overtime as the Strategy is implemented, existing development trends are expected to shift in the long-term. This is a direct result of community demands and expectation, improving infrastructure capacity, more intensive building types enabled and an evolving market.

Three phasing maps were prepared to illustrate the long-term development transition throughout the Whangārei District. A summary of the key phasing steps and the phasing maps are included below.

Future Development Strategy - Map

STAGING: SHORT-TERM YEAR 1-3

Growth in our outer areas as currently planned, consented and understood. Infrastructure is aligned to our current needs and future planning direction.

Development is predominantly standalone housing with a small mix of terraces and townhouses

GROWTH

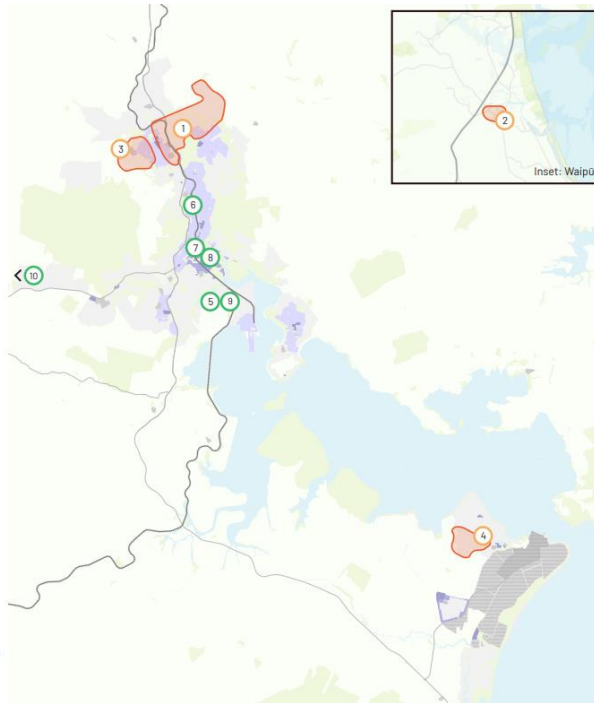
- 1 Development north of Tikipunga and east Te Kamo.
- 2 Development within existing urban area of Waipū village.
- 3 Development of fringe urban areas along Three Mile Bush Road towards Te Kamo shops.
- 4 Development in One Tree Point.

INFRASTRUCTURE

- 5 Trunk pipe network upgrade from Wastewater Treatment Plant to Regent.
- 6 Shared Path programme (walking and cycling) Te Kamo.
- 7 City Centre Plan Implementation - Stormwater upgrades.
- 8 Development contributions relief in inner city catchment.
- 9 Whangārei Wastewater Treatment plant upgrade.
- 10 Poroti Water Treatment plant upgrade.

KEY

- 5 Funded, delivered by WDC
- 6 Delivered by others
- 7 Strategic initiative enabling the FDS



Map 4 - Short-term staging

Future Development Strategy - Map

STAGING: MEDIUM-TERM YEAR 4-10

Growth is still occurring in the outer urban areas, but begins a shift to becoming more centralised. Infrastructure is provided along the growth corridor, primarily.

There is an increasing mix of small housing such as terraced houses and apartments. Standalone houses are still a predominant housing type being delivered.

GROWTH

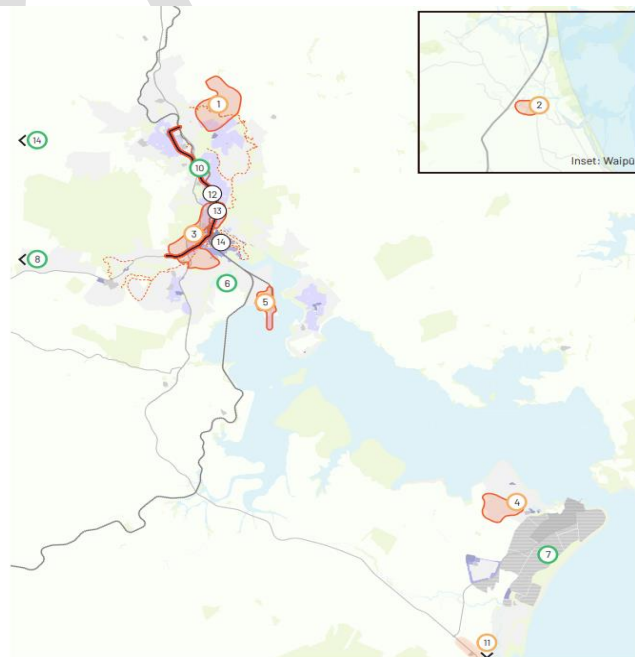
- 1 Greenfield urban expansion north of Tikipunga in existing urban and future urban areas towards Vinegar Hill.
- 2 Development within existing urban area of Waipū village.
- 3 Development in central city fringe areas of Avenues, Woodhill, Morningside and Regent.
- 4 Development in One Tree Point.
- 5 Port Nikau development.

INFRASTRUCTURE

- 6 Whangārei Wastewater Treatment Plant upgrade.
- 7 Ruakākā Wastewater Treatment Plant upgrade and disposal.
- 8 Poroti Water Treatment Plant upgrade.
- 9 Airport and associated infrastructure.
- 10 Trunk pipe network upgrade from Central City up to Te Kamo.
- 11 State Highway upgrades - Begin State Highway 1 Brynderwyn Hills bypass.
- 12 Shared paths.
- 13 Bus Priority lanes and T2 Lanes
- 14 Blue-green network in Central City.

KEY

- 6 Funded, delivered by WDC
- 7 Delivered by others
- 8 Strategic initiative enabling the FDS



Map 5 - Medium-term staging

Future Development Strategy - Map

STAGING: LONG-TERM YEAR 11-30

Growth is aligned to the infrastructure investments in the Primary Growth Corridor and Marsden, and still some greenfield in Tikipunga North.

Infrastructure is still provided for in the Primary Growth Corridor. Majority of homes delivered are more intensive housing types including terraced houses, apartments and mixed use developments along the Primary Growth Corridor. There is less reliance on greenfield development areas.

GROWTH

- ① Development along the Primary Growth Corridor including Kensington, Whangarei Central, Woodhill, Regent, the Avenues and Whau Valley.
- ② Expansion of the Bream Bay area – including Marsden City, Ruakākā and One Tree Point.
- ③ Development around the Te Kamo shops, supporting the Primary Growth Corridor.
- ④ Development north of Tikipunga and east Te Kamo.

INFRASTRUCTURE

- ⑤ SH1 upgrades – Continuation of Roads of National Significance.
- ⑥ Multi-modal corridor upgrades.
- ⑦ Exploration of passenger rail.
- ⑧ Bus Priority Lanes – Tikipunga.
- ⑨ Shared paths.
- ⑩ Water infrastructure upgrades outside the Primary Growth Corridor (indicative).
- ⑪ Whangarei Wastewater Treatment Plant upgrades and disposal

Note: Whangarei District Council projects are not funded in this stage due to Council's Long Term Plan only funding projects from years 1 - 10.

- KEY**
- Funded, delivered by WDC
 - Delivered by others
 - Strategic initiative enabling the FDS



Figure 50: District-wide FDS staging maps – short, medium and long term.

Snapshot of changes between the FDS and the 2021 Strategy

The main differences between the strategic direction of the 2021 Growth Strategy and the proposed FDS are:

- A more consolidated urban area, with higher density development concentrated along the PGC, serviced by a higher-quality multi-modal transport network.
 - Public transport service improvements and high-quality active mode facilities along the PGC enabled by and supporting higher density development.
- New spur railway line to Marsden Point and Northport servicing freight and passengers.
- A potential passenger rail service for Marsden Town Centre, Hikurangi, and the PGC.
- A potential ferry service between the city centre and Parua Bay and Marsden³⁹.
- Potential airport relocation to Ruatangata.
- The Whangārei to Port Marsden, road of national significance.
- Structure planning greenfield growth areas on the fringe of the urban area to ensure good infrastructure and urban form outcomes – aligning outcomes with the FDS.

³⁹ Ferry link between central Whangārei and Marsden Point requires a feasibility study.

Appendix A: Collective Hapū Aspirations and Values Statement

Vision Statement

All change must be sustainable to revive and enhance Te Taiao / the natural world by achieving the following:

a) He whenua haumoko

Land that is bountiful

b) He wai mā

Fresh and Coastal waters that is pure and healthy

c) He iwi whai ora

People that are flourishing

Te Titiri o Waitangi me He Whakaputanga o Niu Tīreni Statement

Whangārei Hapū within the foundational constitutional documents, He Whakaputanga o te Rangatiratanga o Niu Tīreni 1835 and the Tiriti o Waitangi 1840, maintain that all hapū input into the Future Development Strategy (FDS), does not undermine or negate the Rangatiratanga or mana motuhake of any Hapū of Whangārei in future policy and decision-making.

We participate in this process as uri of the hapū of the Whangārei rohe with the aim to assist kāwana and kaunihera to alleviate ongoing prejudice and impacts of dispossession of taonga: including land, culture and resources through the Environmental Management System now and into the future. He Whakaputanga me Te Tiriti o Waitangi must be protected for future generations to enhance and strengthen our relationship to Te Taiao.

Ngā Whaingā | Desired Goals

1. Te Taiao

Wai: Future development must provide for te mana o te Wai and ensure that the mauri of wai is protected, restored and improved over time.

Whenua: Future development must revive and enhance the whenua, and the relationship of Hapū to their ancestral whenua.

Climate: Future development must address climate change impacts, and ensure that Hapū have a strong voice in the development of climate policy.

Indigenous Biodiversity: Future development must protect, maintain, and enhance indigenous biodiversity.

Public Spaces: Endemic vegetation is widespread in public spaces supporting biodiversity corridors and restoring riparian habitats, particularly along Whangārei Terenga Parāoa.

2. Resilient & Sustainable Infrastructure

(a)**Three Waters:** Future development is supported by resilient and sustainable three waters infrastructure.

(b)**Discharges:** Wastewater and stormwater infrastructure discharges are to land.

Transport: Ensure equitable access for Hapū to sustainable and resilient transport infrastructure, including the provision of public transport.

Social Infrastructure: Future development is supported by adequate investment in social infrastructure (e.g., dedicated Mātauranga centre for learning, arts, mahi toi, interactive open spaces, schools, museums, and health and wellbeing centres).

3. Sites of Significance & Wāhi Tapu

- (a) **Identification:** Prior to rezoning any land for further development or as part of any plan change to identify sites of significance and wāhi tapu, ensure that adequate opportunities are provided for Hapū to identify where their sites of significance and wāhi tapu are located, and avoid inappropriate development of these areas.
- (b) **Data sovereignty:** Ensure the absolute sovereignty of Hapū data associated with the identification and protection of sites of significance and wāhi tapu.
- (c) **Engagement:** If future development occurs within, or near, an identified area of significance or wāhi tapu, ensure that measures are in place to require engagement with Hapū prior to development proceeding

4. Hapū Capacity & Capability

- (a) **Relationship:** The relationship of Hapū is evident within the delivery of all aspects within, and as a result of the Future Development Strategy.

Resourcing: Hapū are adequately resourced to be involved in all future processes associated with the Future Development Strategy.

Future Generations: Provide for succession by building the capacity of the next generation of kaitiaki in future mahi associated with the Future Development Strategy.

Mana Whakahaere / Decision Making: Provide opportunities for Hapū to be the decision maker on developments within their rohe that affect their values and interests.

5. Economic Development

- (a) **Tiriti Settlement lands:** Enable Hapū to give effect to their own development aspirations by ensuring removal of barriers to the appropriate development of properties which hapū, whānau and iwi own, including (but not limited to) State Owned Enterprise, Landbank, redress properties in Treaty of Waitangi Settlements, Whenua Māori, partnership investment groups and otherwise re-acquired lands and development projects.**

****Noting that Te Parawhau support the following wording: *Tiriti Settlement Land: Enable Hapū to give effect to their own development aspirations by ensuring provision is made for the appropriate development of Tiriti Settlement lands.***

- (b) **Youth:** Maximise economic opportunities for future generations.
- (c) **Whai Oranga:** Economic growth is compatible with the protection and enhancement of ecological, spiritual and cultural values of Hapū.
- (d) **Procurement:** Economic opportunities provide for hapū including through social procurement.

Ngā Tikanga | Values

Values that underpin the statement, and the formation of the FDS from a Hapū perspective. The values are broad and encompassing and recognise that the application of values varies from hapū to hapū:

Kaitiakitanga, Rangatiratanga, Kotahitanga, Whanaungatanga, Manākitanga, Tikanga.

All change must be sustainable to revive and enhance Te Taiao / the natural world by achieving the following:

(a) He whenua haumoko

Land that is bountiful

(b) He wai mā

Fresh and Coastal waters that is pure and healthy

(c) He iwi whai ora

People that are flourishing

Whangārei Hapū within the foundational constitutional documents, He Whakaputanga o te Rangatiratanga o Niu Tirenī 1835 and the Tiriti o Waitangi 1840, maintain that all hapū input into the Future Development Strategy (FDS), does not undermine or negate the Rangatiratanga or mana motuhake of any Hapū of Whangārei in future policy and decision-making.

We participate in this process as uri of the hapū of the Whangārei rohe with the aim to assist kāwana and kaunihera to alleviate ongoing prejudice and impacts of dispossession of taonga: including land, culture and resources through the Environmental Management System now and into the future. He Whakaputanga me Te Tiriti o Waitangi must be protected for future generations to enhance and strengthen our relationship to Te Taiao.

1. Te Taiao

- (a) Wai:** Future development must provide for te mana o te Wai and ensure that the mauri of wai is protected, restored and improved over time.
- (b) Whenua:** Future development must revive and enhance the whenua, and the relationship of Hapū to their ancestral whenua.
- (c) Climate:** Future development must address climate change impacts, and ensure that Hapū have a strong voice in the development of climate policy.
- (d) Indigenous Biodiversity:** Future development must protect, maintain, and enhance indigenous biodiversity.
- (e) Public Spaces:** Endemic vegetation is widespread in public spaces supporting biodiversity corridors and restoring riparian habitats, particularly along Whangārei Terenga Parāoa.

2. Resilient & Sustainable Infrastructure

- (a) Three Waters:** Future development is supported by resilient and sustainable three waters infrastructure.
- (b) Discharges:** Wastewater and stormwater infrastructure discharges are to land.
- (c) Transport:** Ensure equitable access for Hapū to sustainable and resilient transport infrastructure, including the provision of public transport.
- (d) Social Infrastructure:** Future development is supported by adequate investment in social infrastructure (e.g., dedicated Mātauranga centre for learning, arts, mahi toi, interactive open spaces, schools, museums, and health and wellbeing centres).

3. Sites of Significance & Wahi Tapu

- (a) Identification:** Prior to rezoning any land for further development or as part of any plan change to identify sites of significance and wāhi tapu, ensure that adequate opportunities are provided for Hapū to identify where their sites of significance and wāhi tapu are located, and avoid inappropriate development of these areas.
- (b) Data sovereignty:** Ensure the absolute sovereignty of Hapū data associated with the identification and protection of sites of significance and wāhi tapu.
- (c) Engagement:** If future development occurs within, or near, an identified area of significance or wāhi tapu, ensure that measures are in place to require engagement with Hapū prior to development proceeding.

4. Hapū Capacity & Capability

- (a) Relationship:** The relationship of Hapū is evident within the delivery of all aspects within, and as a result of the Future Development Strategy.
- (b) Resourcing:** Hapū are adequately resourced to be involved in all future processes associated with the Future Development Strategy.
- (c) Future Generations:** Provide for succession by building the capacity of the next generation of kaitiaki in future mahi associated with the Future Development Strategy.
- (d) Mana Whakahaere / Decision Making:** Provide opportunities for Hapū to be the decision maker on developments within their rohe that affect their values and interests.

5. Economic Development

- (a) Tiriti Settlement lands:** Enable Hapū to give effect to their own development aspirations by ensuring removal of barriers to the appropriate development of properties which hapū, whānau and iwi own, including (but not limited to) State Owned Enterprise, Landbank, redress properties in Treaty of Waitangi Settlements, Whenua Māori, partnership investment groups and otherwise re-acquired lands and development projects.**
- (b) Youth:** Maximise economic opportunities for future generations.
- (c) Whai Oranga:** Economic growth is compatible with the protection and enhancement of ecological, spiritual and cultural values of Hapū.
- Procurement:** Economic opportunities provide for hapū including through social procurement.

Values that underpin the statement, and the formation of the FDS from a Hapū perspective. The values are broad and encompassing and recognise that the application of values varies from hapū to hapū and include the following:

- Kaitiakitanga, Rangatiratanga, Kotahitanga, Whanaungatanga, Manākitanga, Tikanga.

****Disclaimer:** Te Parawhau support the following wording: Tiriti Settlement Land: Enable Hapū to give effect to their own development aspirations by ensuring provision is made for the appropriate development of Tiriti Settlement lands.

Disclaimer: Any early feedback received on the collective hapū aspiration statement will be finalised and incorporated in the final collective hapū aspiration statement

Disclaimer: The final design of the Hapū Aspiration Statement will be determined by the hapū technical roopu following formal consultation.

Appendix B: Hapū feedback Report

Section 1: Purpose and structure of the report

Whangarei District Council (WDC) and Northland Regional Council (NRC) are required to jointly prepare a Future Development Strategy (FDS) as directed by the National Policy Statement – Urban Development (NPS-UD).

The purpose of this report is to

1. Capture the feedback across the hui for hapū on the Future Development Strategy
2. Give hapū visibility of kōrero shared in the hui which included workshop exercises.

This report along with a baseline report capturing hapū kōrero shared in other resource management kaupapa, will be used to shape the Draft Whangārei Future Development Strategy.

The remainder of the report is structured accordingly:

Section 2: Minutes recorded in hapū hui

Section 3: Hapū notes from the workshop on DRAFT strategic drivers and outcomes

Section 4: Hapū notes from the workshop on DRAFT shortlist spatial scenarios

Section 5: Hapū notes from the workshop on DRAFT Key Performance Indicators

Section 6: Additional correspondence received

At the time of writing, responses to the feedback are yet to be worked through by the project team so are not articulated in this report.

Meeting dates and purpose

Engagement purpose	Date
Introduction to the Future Development Strategy	Monday 4 th September: 4.00pm – 7.00pm
Engagement approach with tangata whenua	Monday 11 th September: 4.00pm – 7.30pm
	Monday 18 th September: 4.00pm – 8.00pm
Strategic driver and outcomes	Monday 9 th October: 4.00pm – 8.00pm
	Monday 16 th October: 5.00pm – 8.00pm
Shortlisted spatial scenarios	Tuesday 24 th October: 4.30pm – 6.30pm
	Monday 6 th November: 4.30pm – 7.00pm
Tangata whenua aspiration statement	Monday 13 th November: 4.30pm – 7.00pm

Section 2: Minutes recorded from hapū hui

Monday 4th September 2023

Project: Whangarei Future Development Strategy

Meeting purpose: Introduction to the Future Development Strategy

Attendance list:

- **Te Kārearea** | Sandra Hawken, Nicki Wakefield
- **Te Huinga** | Sandra Hawken, Nicki Wakefield
- **TTMAC** | Mira Norris
- **Te Iwitahi** | Te Rina Tahitahi; apologies from Hinemoa Apetera, Peter, Ruh & Eva Vaughan
- **Te Parawhau** | Mira Norris & Te Karera Ruakere
- **Ngāti Kahu o Torongare** | Nicki Wakefield, Huhana Lyndon, Chantez Connor, Sean Malcolm, Rihari Shepherd
- **Te Uriroroi** | Lorraine Norris, Tīmaru Davis
- **Ngāti Takapari** | Marlene Green
- Donna Chase

Staff:

- **WDC** | Mark Scott, Hamish Sykes, Bernadette Aperahama, Kylie Pedersen, Eden Wynne
- **NRC** | Ingrid Kuindersma, Michael Payne

Topic	Detail
Greenfield vs brownfield	1. Huhana – comments about the kaupapa being concerning relating to the development of rural areas and not focusing on brownfield development. Aspirations for leaving greenfield development as options for hapū to develop. Hapū/iwi have no capacity to hui amongst themselves. 2. Hamish / Bernadette clarified the role and direction from the National Policy Statement - Urban Development (NPS-UD) and National Policy Statement -Highly Productive Land (NPS-HPL) to push for better land efficiencies and driving better density outcomes in existing urban areas. 3. Huhana requested for the FDS to draw a line in the sand for greenfield development to ensure that intensification happens within the urban area and urban sprawl does not occur, while at the same time providing for hapū to carry out their own development aspirations without being limited.
Current land use activities	1. Chantez requested statistics for how many consents/developments have been opposed by hapū and to inform the FDS. Hapū are playing the Council game but seeing no results as development is always approved. 2. Nicki followed on from this - Do a desktop study in terms of land use at place, include any whakaaro associated with the opposition. Bring the analysis back to people in a

	room like this where the detail that can inform the FDS can be given based on (for example) thematic analysis. 3. Mira requested that WDC identify where road / assets are planned to go so that they can identify and give detail as to how to address land use. Better rules / framework in place for land use / subdivision so that everyone can participate and hapū can have better outcomes. 4. Sandra – the information that needs to be brought back what was opposed and why, and a reflection on what is happening now. What type of infrastructure is in place. Does it need to be replaced? Was it a good development? Further discussion about monitoring, assessing land use / subdivision consent applications, resource management framework, and how this currently doesn't provide for positive outcomes for hapū.
District Plan zoning	1. Can the FDS undo the current zoning? For example, Future Urban Zone (FUZ). 2. Highlighting the concerns with FUZ identified at whenua tupuna. Hapū can't endorse development in these areas.
Public transport / sustainable transport	1. Public transport should provide for urban areas to access coastal areas during the summer to provide for entertaining youth who might be stuck in town. Would help to ease the traffic flow and make coastal communities safer (from speeding cars etc). 2. More charging stations should be made available as well as different parking options for EV charging (e.g. vehicles with trailers).
Protection of environment / environmental corridor	1. Better management of roadside weeds / fauna. Potential for switching pest management plans to include alternative options for roadside vegetation (e.g. manuka) or use of hot water to eradicate weeds. 2. Example of hypocrisy of WDC where we say that we want to protect wetlands but then propose to run a road through it. 3. Water is gold. When looking at development we need to have this as the main focus. Sound boarding tangata whenua for projects. Ahi kā are the most familiar with the natural environment. Look at the data that already exists, don't reinvent the wheel.
Role of the FDS & decision making	1. Nicki wondered how much weight the input from today will have in terms of decision making within this project. Would like to push that Sandra and Nicki have been nominated by Te Karearea to sit in a governance space for this project. Nicki asked if the room gives endorsement or direction for Nicki and Sandra on what their job is in a governance space like that. 2. Is there any certainty on what position we (tangata whenua) hold within this project? Is there any benefit of engagement if the decision is already made? The kaupapa still moves forward whether or not tangata whenua engage with the process. How can WDC and NRC help us to get the ministers in the seat to have a discussion. 3. What are the layers that hapū can talk to for the FDS and ensure it has weighting to achieve the outcomes tangata whenua have been pushing for.
Tangata whenua disclaimer	1. Nicki provided suggestions for a disclaimer / statement to advise that tangata whenua will assist in the project but will not deviate from their own rangatiratanga and recognise that this is not what their tupuna signed up for.
Te Tiriti Partnership	1. Anything to do with town planning, Council will come to tangata whenua of the area. Tangata whenua must be consulted on every project. 2. Talk to people that live in areas where development is. Talk to tangata whenua.

Previous engagement / kōrero	- Go back through hapū feedback on land use decisions – what was said, what are the themes, is there gold that would apply to the FDS - What was being opposed and why, how does this reflect on what is happening now. - Infrastructure connected to development is important – particularly wastewater - Issues raised around why subdivision goes ahead when Māori oppose - Whangarei heads full of wahi tapu. - Policy on sites of significance when considering land use is very important.
Sustainable development	- Subdivisions need to be on right soils, right development on right type of land. (Mira) - Public Transport - frequency, zero emission - important factor. - Summer cars moving around Pataua is an issue – support for busses to beaches in summer. 6 weeks over summer would be good. Help with broadness, behaviour etc. - Look at flooding patterns over last 50 years. Let that inform future development.

Monday 11th September 2023

Project: Whangarei Future Development Strategy

Meeting purpose: Engagement options with tangata whenua

Attendance list:

- APOLOGIES - Patuharakeke, Nicki Wakefield, Sandra Hawken, Rose Wellington, Deb Harding
- **TTMAC** | Mira Norris, Rīpeka Read
- **Te Waiariki** | Rīpeka Read |
- **Ngāti Takapari** | Marlene Green
- **Te Parawhau** | Mira Norris
- **Te Tāwera** | June Pitman
- **Ngāti Kahu o Torongare** | Taki Kīngi, Sean Malcolm, Huhana Lyndon
- **Te Iwitahi Mānihera** | Hinemoa Apetera, Rina Tahitahi
- **Te Uriroiroi** | Lorraine Norris, Kim Hardiman
- Sheila Taylor (Proxy, Patuharakeke)
- Rachel Ropiha

Staff:

- **WDC** | Mark Scott, Hamish Sykes, Bernadette Aperahama, Kylie Pedersen
- **NRC** | Ingrid Kuindersma, Michael Payne

Topic	Detail
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Governance	1. Red boxes meaning? 2. Understand governance level and structure but the structure doesn't cover how hapū are working at the technical level. Is there room for a Te Ao Māori technical advice? 3. Who decided TTMAC and Te Karearea representatives for the Future Development Strategy Working Group? 4. How can others be heard at a strategic level? 5. Not an ideal situation because time pressed. 6. Expectation that Māori are expected to be involved at every single tier. 7. There is no structure for tangata whenua except through the governance pathways. Non-disclosure statement required. 8. Hapū reps need accountability back to hapū – needs to be reflected in Terms of Reference. 9. Position statement is important to Hapū - ensure rangatiratanga is not undermined.
Terms of reference	1. Is there accountability in the ToR? There needs to be space for both. 2. Need a disclaimer for the governance group that they are not representatives for all hapū of Whangārei. 3. Te Tiriti not being adhered to so Hapū and the reps need to be protected.
Future Development Strategy Working Group	1. Not enough Hapū here to confirm reps are appropriate but not representative, supportive of them but need to protect rangatiratanga
Future Development Strategy outputs	1. Hapū spatial plans 2. Will Hapū be resourced to build their own spatial plans that can be locked into this? - Some not all 3. Rachael – raised the idea that Hapū maybe should have involvement in setting the spatial boundaries of the strategies. 4. What is the funding covering? Urban population, recognising that Whangārei has urban centres but has rural and coastal too. 5. Tangata whenua aspirations 6. Tangata whenua are from all parts of the district, urban, rural coastal, have different aspirations.
Timeframes for the Strategy	1. What is the timeframe for this? It has to inform the LTP, however gets reviewed every 3 years. 2. Getting in front of the 8 ball with NRC is valuable, need to be able to keep up and get ready for Regional spatial planning. And more joint projects coming. Fund spatial key generic areas. Infrastructure supporting next steps.

	3. How can hapū be enabled to do this in such tight timeframes. 30yr doc and reviewed every 3 years, building a puzzle over time and filling in the pieces. What if timeframes are unachievable, is there capacity to fund engagement through the LTP and NRC and WDC do it without hapū this time, it's too stressful. 4. Council cannot force tangata whenua to participate and Hapū reps might not want to be complicit. 5. We are still not heard - 30+ years. Is this a tick box to consult? 6. Not all Marae are up to the play and don't understand the consequences. This is hard stuff. 7. Can potentially do this work now but include disclaimers around spatial plans for Hapū are being developed, but they will cover xyz and leave room for spatial plans and the outcomes they are seeking to be picked up. 8. Possibility raised of Hapū seeking support to develop spatial plans to feed into FDS. Hapū may consider not having much input into this FDS but will work on FDS content to input into the 3 year review. 9. Ripeka - spatial plans she has been involved with took t year to do
Resourcing hapū	1. Question raised around 'will hapū be resourced to do hapū spatial plans? Can those spatial plans feed into FDS? 2. Rachael – raised the idea that Hapū maybe should have involvement in setting the spatial boundaries of the strategies. 3. Tangata whenua are from all parts of the district, urban, rural coastal, have different 4. Don't want core services being driven by Auckland – important to have firenz ect represented at a local level. 5. Feedback that timeframes are tight and it maybe difficult. 6. Bernadette – this is an ongoing project, reviewed every 3 years and will be filled in over time. 7. Can Hapū hold off and seek funding from NRC WDC to resource full blown participation next time this is reviewed in 3 years. 8. Possibility raised of Hapū seeking support to develop spatial plans to feed into FDS. Hapū may consider not having much input into this FDS but will work on FDS content to input into the 3 year review.
Infrastructure issues	9. Hinemoa - NRC and WDC have assets on their property - no discussions with landowners. 10. Kioreroa block – infrastructure has been here for at least 60 years. Issue around water. Pipes - WDC discussing this . Mark will discuss this at another time.

Monday 18th September 2023

Project: Whangarei Future Development Strategy

Meeting purpose: Engagement options with tangata whenua

Attendance list:

- **Te Huinga** | Nicki Wakefield, Sandra Hawken
- **Te Kārearea** | Nicki Wakefield, Sandra Hawken
- **TTMAC** | Mira Norris
- **Te Parawhau** | Mira Norris
- **Ngāti Takapari** | Marlene Green
- **Te Tāwera** | June Pitman
- **Ngāti Kahu o Torongare** | Taki Kīngi, Hone Kīngi, Jess Aralman, Nicki Wakefield
- **Te Iwitahi Mānihera** | Hinemoa Apetera, Rina Tahitahi
- **Te Uriroroi** | Lorraine Norris, Kim Hardiman, Tīmaru Davis
- **Patuharakeke** | Deb Harding
- **Mangakāhia** | Janelle Beazley
- **Ngāti Wai** | Thelma Munroe
- Sheila Taylor (Proxy, Patuharakeke)

Staff:

- **WDC** | Mark Scott, Hamish Sykes, Bernadette Aperahama, Kylie Pedersen
- **NRC** | Ingrid Kuindersma, Kim Wall

Topic	Detail
Introductions	1. How to manage future growth and development 2. How to support people into housing 3. Opportunities are far and wide i.e. biodiversity 4. FDS also sets policy for all other planning documents
Engagement constraints and options	1. We acknowledge not every hapū is in a position to engage, worst case scenario we will not be able to engage everyone 2. Possible engagement approach mix of technical based hui, information & whānau hui; mix of central location, coastal and rural demographics; weekly or fortnightly 3. Does this look right? Should information hui be prioritized, and technicians walk alongside? Should information hui & whānau hui be a single space? • Do whānau hui mean marae? Hapū? Yes – but led by the whanau not Council. • Technicians are like hens teeth? Technician hui need to go hand & hand with information hui; how to support both pace of those who understand with bringing hapū along;

	demographical hui where kāinga bring and share issues similar to Te Kārearea hapū info hui; • Have be careful “opening the can of worms” and being efficient with whānau, hapū and iwi time • Accountability is key • Conscious also we need to be strategic with spread of time • Hapū not involved need to be protected • Whānau hui can’t be left without information and/or TK • TK & TTMAC need to be here, how can they have final decision if they’re not present.
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Monday 16th October 2023

Project: Whangarei Future Development Strategy

Meeting purpose: Strategic drivers and outcomes

Attendance list:

- **Te Huinga** | Nicki Wakefield, Sandra Hawken
- **Te Kārearea** | Nicki Wakefield, Sandra Hawken (online)
- **TTMAC** | Mira Norris
- **Te Parawhau** | Mira Norris, Pari Walker
- **Te Tāwera** | June Pitman
- **Te Orewai** | Delaraine Armstrong
- **Ngāti Kahu o Torongare** | Lissa Davies, Nicki Wakefield, Huhana Lyndon, Taki Kīngi, Hone Kīngi, Jess Aralman
- **Te Iwitahi Mānihera** | Hinemoa Apetera
- **Te Uriroroi** | Kim Hardiman, Timaru Davis
- **Patuharakeke** | Deb Harding
- **Mangakāhia** | Janelle Beazley, Tame Te Rangi (online)
- **Ngāti Wai** | Thelma Munroe, Sean Walters (online)
- Sheila Taylor (Proxy, Patuharakeke)

Staff:

- **WDC** | Mark Scott, Hamish Sykes, Bernadette Aperahama, Kylie Pedersen
- **NRC** | Ingrid Kuindersma, Kim Wall

This hui was run as a workshop. For the kōrero shared, refer to **Section 3: Hapū workshop notes – Strategic Drivers and outcomes**

Tuesday 24th October 2023

Project: Whangarei Future Development Strategy

Meeting purpose: Strategic drivers and outcomes

Attendance list:

- **Te Huinga** | Nicki Wakefield, Sandra Hawken
- **Te Kārearea** | Nicki Wakefield, Sandra Hawken (online)
- **TTMAC** | Mira Norris
- **Te Parawhau** | Mira Norris, Pari Walker
- **Te Tāwera** | June Pitman
- **Te Orewai** | Delaraine Armstrong
- **Ngāti Kahu o Torongare** | Lissa Davies, Nicki Wakefield, Huhana Lyndon, Taki Kīngi, Hone Kīngi, Jess Aralman
- **Te Iwitihi Mānihera** | Hinemoa Apetera, Aaron Manihera
- **Te Urioroi** | Kim Hardiman, Tīmaru Davis
- **Patuharakeke** | Deb Harding
- **Mangakāhia** | Tame Te Rangi (online)
- **Ngāti Wai** | Simon Mitchell, Sean Walters (online)

Staff:

- **WDC** | Mark Scott, Hamish Sykes, Bernadette Aperahama

NRC | Ingrid Kuindersma

This hui was run as a workshop. For the kōrero shared, refer to **Section 3: Hapū workshop notes – Strategic Drivers and outcomes.**

Monday 6th November 2023

Project: Whangarei Future Development Strategy

Meeting purpose: Workshop: Draft short listed spatial scenarios & Key Performance Indicators

Attendance list:

- **Te Orewai** | Puti Tīpene, Jack Luisi
- **Ngāti Kahu o Torongare** | Lissa Davies, Nicki Wakefield, Ellen & Heke Taotahi (ellenmohi@hotmail.com), Tangi Rudolph (tangirurawhe@gmail.com), Huhana Lyndon, Taki Kīngi, Hone Kīngi
- **Te Parawhau** | Mira Norris
- **Te Urioroi** | Tīmaru Davis
- **Te Mānihera** | Hinemoa Apetera, Aaron Mānihera, Te Rina Tahitahi
- **Te Waiariki** | Rīpeka Read
- **TTMAC** | Rīpeka Read, Mira Norris
- **Te Kārearea** | Nicki Wakefield (Sandra – he tangihanga ki Matapōuri)

Staff:

- **WDC** | Mark Scott, Hamish Sykes, Bernadette Aperahama, Rai Rakich
- **NRC** | Ingrid Kuindersma, Michael Payne

This hui was run as a workshop. In addition to the notes below, please refer to **Section 4: Hapū workshop notes – Shortlisted Spatial Scenarios & Section 5: Hapū notes from the workshop on DRAFT Key Performance Indicators.**

Topic	Detail
Whangarei District Council	1. As a Council it has underinvested in infrastructure meaning we're in a pickle, so how might this be turned around for the future? 2. Worth noting this is not unique nationally 3. "How the built environment relates to us and us to the built environment" – Bernadette 4. "Are there ways to set up agreements with contractors who have the competence and council? What will make Whangārei a better place to live in and invest in."
Priority areas for future kāinga	1. Through the mapping – begin to identify future areas appropriate for future kāinga and also recognising the no go areas. 2. Hoki whenua policy
Where to recognise the giving back of land for hapū	1. Aspiration statement 2. Constraints on future development – hapū development constraints. 3. Outcomes for the Future Development Strategy. 4. What makes a well-functioning kāinga 5. Look at the values from tangata whenua – Freshwater Management 6. How the FDS is able to address / direct / inform other key kaupapa. 7. Please clarify what is meant by 'hapū left landless' - does that mean land blocks with specific hapū on Certificates of Title or land blocks held by individuals who are also hapū members? Does that point re hapū left landless across the Whangarei District or Whangarei City limits... From a spatial planning provision would we be better served to consolidate what hapū have now with options to expand through such FDS..." 8. There are ton of matters impacting hapū that impact across hapū lands that impact directly FDS i.e. Hīhīaua 99 year lease, Springs Flat
Papakāinga	1. "Are papakāinga rated separately?" – 2. It can be rated separately or as one rate – Bernadette
Return of lands and enabling development aspirations	1. How to de-alienate - what land can be returned? As opposed to thinking about this in the FDS, when thinking about 'future growth' and zeroing in priority areas for kāinga areas." – Nicki 2. "Will FDS make provisions for the return of council lands and reserves to be returned to hapū (not a settlement question it's hoki Whenua mai) generally. Can we put a policy into FDS to see the return of lands.

	3. don't limit our voice to Whenua Māori only because we haven't got Whenua to sustain our people 'hoki ki te whenua' plans. Will FDS empower hapū to hoki ki te whenua." 4. This could be inserted to Hapū Aspirations component – Bernadette 5. Tautoko the option to empower hapū with their brownfield whenua aspirations through such FDS over the next thirty years onwards...
Greenfield development	1. If green fields in Hikurangi have been protected, what's happening with greenfield in Springs Flat." 2. Any options that unlock land for new housing should also encourage more homes, shops, and offices to be built close to transport links like bus hubs. This should also align with the building of more infrastructure in the Whangarei district to support these extra homes. 3. Such a housing growth policy will demand WDC to bring more land forward to build houses on. This might be land that was earmarked for development in the future on undeveloped or greenfield sites at the edge of the urban limits. This will bring down the price of land and increase the supply of affordable housing
Constraints and opportunities to unlock residential development	1. In addition to the two points above - Tangata whenua should seek to simplify planning rules & make resource consents for new houses cheaper and faster. 2. Over the next thirty years & beyond we must continue to pursue plans that govern how land is used & what infrastructure is provided, as a minimum. There are indicators that this new Government will reform infrastructure legislation to fund infrastructure that will see the push towards a National Infrastructure Agency in the first 100 days of government. 3. There are likely to be changes in how infrastructure for undeveloped land in urban or rural areas is funded with more choices for WDC

Monday 13th November 2023

Project: Whangarei Future Development Strategy

Meeting purpose: Shaping the tangata whenua aspiration statement(s)

Attendance list:

- **Te Orewai** | Puti Tīpene, Jack Luisi, Janie Peihopa, Sophie Shortland (levi12122@hotmail.com)
- **Ngāti Kahu o Torongare** | Hone Kīngi, Nicki Wakefield, Lissa Davies, Huhana Lyndon (online), Jess Arlman, Taki Kīngi, Waimarie Kīngi
- **Te Parawhau** | Mira Norris
- **Te Mānihera** | Hlnemoa Apetera
- **Te Waiariki** | Rīpeka Read, Waimarie Kīngi
- **TTMAC** | Rīpeka Read, Mira Norris
- **Ngāti Wai** | Thelma Munroe, veronica.t@xtra.co.nz
- **Te Kārearea** | Nicki Wakefield (Sandra – he tangihanga ki Matapōuri)

Staff:

- **WDC** | Mark Scott, Hamish Sykes, Sarah Irwin

Topic	Detail
Tangata whenua aspiration statement	1. How will this statement going to be used? Because this is going to hold weight, caution needs to be taken, this would also require a level of diligence engaging this. - Nicki 2. Will Council resource our hapū to develop our aspiration statement? And how do hapū apply and how much so we can plan our wananga for our aspiration statement. 3. The previous engagement options previously communicated the aspiration statements would be resourced. 4. Options will be shared with hapū asap – decision will be needed next hui. 5. Hapū who reside in town have been left out, Kensington have been totally run over with intensification. - 6. Can we get the hui dates when the regional hui are scheduled to support promoting to whānau 7. Dates will be circulated. 8. Lissa - The questions posed cannot be answered in an hour 9. There is sensitive information in our answers to these. 10. To answer these questions will require diligence. How would a Whangarei wide aspiration statement be developed in this space? These are meaty questions and how would what we put down be honored? – Nicki 11. For the ToW question, that might simply be 'return all our whenua'. Even to provide our value system is a contentious given. - Mira 12. What for Te Orewai? As per reading? - Puti 13. The info in this report is good, and what has been progressed. Good to know so we're not rehashing what we've already provided. - Rīpeka 14. So if these matters haven't been progressed, why engage this? - Hinemoa 15. Will WDC honour what we say in the aspiration statement? Just wondering re effort to develop the statements and Council won't agree. 16. Do the aspiration statements require Councillor agreement to go into the FDS? 17. With the FDS having teeth – who approves the aspiration statement? Hapū or Council? 18. What if Council doesn't like / doesn't agree with the aspiration statement? 19. Council cannot ignore this statement like they have/do almost all hapū input, the difference here is that this has statutory weight and therefore "teeth" - Nicki
Options for aspiration statement	1. Resource hapū to roll out our own internal hapū design process of a regional aspiration statement but provide space for hapū who have capacity and capability to develop their own as a part of an appendices of Aspiration Statements for Whangarei Hapū – Huhana. 2. If hapū wanted to design their own, is it possible? - Rīpeka 3. We had suggested that in the beginning as we knew in the beginning one would not be acceptable. - Hamish 4. While we're all here, who are we to ratify all of what has been provided across these hui? - Nicki

	5. Allow for hapū to lead the development of the aspiration statement 6. Have a hapū aspiration statement for urban tribes. 7. Requires a layered approach. 8. Support with the themes identified in previous hapū / iwi report drafted in 2008. 9. Need to understand how the report has been monitored and funded. 10. Page 23 in the hapū report (decision making) is a key component for hapū.
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Section 3: Hapū workshop(s) notes – Strategic drivers and outcomes

Topic	Notes
General feedback	• All outcomes are interconnected. One needs another to be effective or minimise impact. • Connection between kaupapa improves the overall outcome. • The strategic drivers & outcomes need to specify this is for the Whangarei District and not just the CBD. • Requires a holistic lens across all wellbeing's. • Across all drivers and outcomes, decision making delegations is a critical step to realizing aspirations for tangata whenua and to enhance Te Tiriti relationships with local authorities.
Strategic driver – Economic Wellbeing	• Ensuring decisions on our whenua are not made without hapū. • Hapū at the decision-making table is a priority to realizing outcomes it relates to. • Support for outcomes the economic wellbeing relates to. • Stop selling whenua without hapū knowing. • Te Tiriti audit is urgent to fulfilling economic driver. • Support smaller buses and more frequent. • Identifying future opportunities – new technologies (AI and Chat GPT) • Outcome 7 – encourage and influence procurement opportunities for our growing Māori businesses. • Council isn't working for rural communities • Utilise water transport with the harbour. Opportunities to reduce road users. • Supporting the rebuilding of hapū economic base after lands were stolen.
Strategic driver- Environmental Wellbeing	• In Whangarei, we respond to climate change, protect, <u>and restore (new wording)</u> the environment, and support healthy and resilient communities. <i>Urban development and environmental restoration are planned together and consider risks of natural hazards to increase the resilience and ability of communities to adapt.</i>

	• Replace consider with ‘informed by’ Other comments • Remove rates from whenua Māori. • Tangata whenua at decision making table to ensure genuine engagement • Encourage brownfield development for housing • Iwi and hapū pathways for policy and planning • Return of surplus lands and reserves – environmental and economic pathways for hapū
Strategic driver – Social Wellbeing	• How will Māori wellbeing be measured? • How will effective Te Tiriti relationships be resourced, measured, and monitored? • Ensuring no greenfield development and prioritising brownfield development. • Providing equitable access for all races, all hapori. • Tangata whenua at the decision-making table help drive outcomes related to wellbeing. • Access includes bus services to & from rural communities. • Equity assessment for investment decision – need Te Tiriti lens. <i>Everyone has access to a home (whether owned or rented) that is safe, healthy (warm and dry), and meets their physical, cultural and financial needs</i> • After physical, add cultural.
Strategic driver – Cultural Wellbeing	• Need a Te Tiriti compliant Council • Who’s cultural wellbeing does this cover? • Explanation of Pihoi Pa – sites of significance • Hapū and marae capacity is ongoing. • Acknowledge and recognise - He Whakaputanga me Te Tiriti • Support capacity to develop Iwi / Hapū Environment Management Plans • Support specific cultural centres – example: Hihiaua.
Outcome 1 – Equitable Access	• Acknowledging access is not just physical. It’s also supporting visual, intellectual and language access. • Providing equal standards for all roads • What about our rural and coastal access? How can we feel safe when roads and transport are non-existent • How do we measure ‘equitable’?

Outcome 2 – Healthy and Safe Lives	<i>Urban planning contributes to strong communities while urban design assures the health and safety of people.</i> • Change wording from focuses to assures. • Consider design needs for coastal and rural communities. How is this recognised. • Paru rivers / paru moana • Our coastal and rural whanau also need to feel safe Key performance indicators • Access to health facilities / institutions • CPTED (Crime Prevention Through Environmental Design) – lighting security in communities.
Outcome 3 – Housing options	<i>A variety of housing (in terms of size, location, type and price) means people can choose to live in the housing that best suits their needs, including their ability to afford the housing they live in and to express their cultural traditions and norms.</i> • This needs to be re-written. Needs to better reflect the intent. Priority is having a roof over our head. • The only cultural need with housing is having a roof that isn't one paycheck from disappearing. • This outcome has nothing to do with cultural norms. It's about housing. • 'Express their cultural traditions and norms is a token statement. Other kōrero • Healthy homes mean healthy people • More restrictions to build of whenua Māori • How can there be a variety that is suited to everyone? • Give back the mana for developing on whenua Māori • Plan to ensure no homelessness. How can do we measure and are we clear on the housing needs? • Opportunities to support intergenerational living. Key performance indicators • Enabling more whare on whenua Māori • Number of homeless • Healthy home standards • Homeownership

Outcome 4 – Cultural Recognition	<i>Developments make use of Māori design principles to ensure housing fits within te ao Māori paradigms, such as intergenerational living</i> • Please explain whakaaro behind this. Other feedback • Issue: When WDC can dictate who, how can build on whenua Māori. • X amount of whare on X amount of land vs the rules of general residential rules. No equality. • When will sites of significance mapping begin? • Sites of significance to be aware off – Pihoi, Oruku, Western Hills, Hikurangi Repo, Lake Waro, Whangarei Terenga Paraoa Harbour • Tikanga – don't use the word to give a Māori lens. • Hapū are landless. Key performance indicators • Hapū decision making opportunities.
Outcome 5 – Climate response	• Ensuring new builds are built greener, support renewable energy outcomes (solar). • Homes both rural and urban can live off grid in urban settings. For example – water tanks, solar, greywater Key performance indicators • Homes with roof, gutters, and tanks suitable to catch water • Uptake of green roofs.
Outcome 6 – Thriving Ecosystems	• Link between outcome 5 and 6 • Clean up waterways and harbour • Holistic lens across all wellbeing's. Housing all and protecting cultural significance. • Water is a major issue – access and quality. • Want to be known for green buildings and solar panels. • This is often compromised by economic activity.
Outcome 7 – Employment opportunities	• How is land use planning inclusive of hapū voices? • Hapū are left landless in Whangarei • Training and education must be tailored for local curriculum – what's important in Whangarei? • Where does Te Purunga ki Te Raki Strategy fit? • Loop in Northland Inc

Section 4: Hapū workshop notes – Shortlisted Spatial Scenarios

	• Does Whangarei have the future workforce? • Workforce training for the future – supporting Just Transition. • Need employment opportunities that are resilient to our changing climate. Key Performance Indicators • Māori education outcomes • Access to student accommodation • Unemployment figures
Outcome 8 – Resilient Developments	<i>Settlements are developed to a scale and character reflective of their environmental context and risk of hazards.</i> • Who determines this? <i>Rural and coastal settlements can support residents' daily needs and reduce the need for people to regularly travel to more distant places to meet their needs.</i> • Where does this information come from? <i>The scale of developments and supporting amenities are managed to not exceed the carrying capacity of the land.</i> • Who determines this? Other feedback • Ancient pathways and mahinga are not acknowledged let alone protected. Historically kōrero is lost in developments. • Who determines what landscapes are valued and what is the priority? Key performance indicators • Sites of significance are maintained.
Strategic outcome 9 – Efficient Infrastructure	• Ensuring there is access to more greenspace in urban environments • What does low impact design mean? • Materials sourced from where? • Priorities 1. Rural drinking water. 2. Quality of roads – potholes 3. Providing alternative transport solutions. • What does it mean for rural communities – storm and septic systems for rural communities Key performance indicators • Town planning which is taiao informed and takes into account of traditional knowledge. • Quality of waterways – Swimmable rivers and Whangarei falls

	• Quality of roads • Drinkable water across the district
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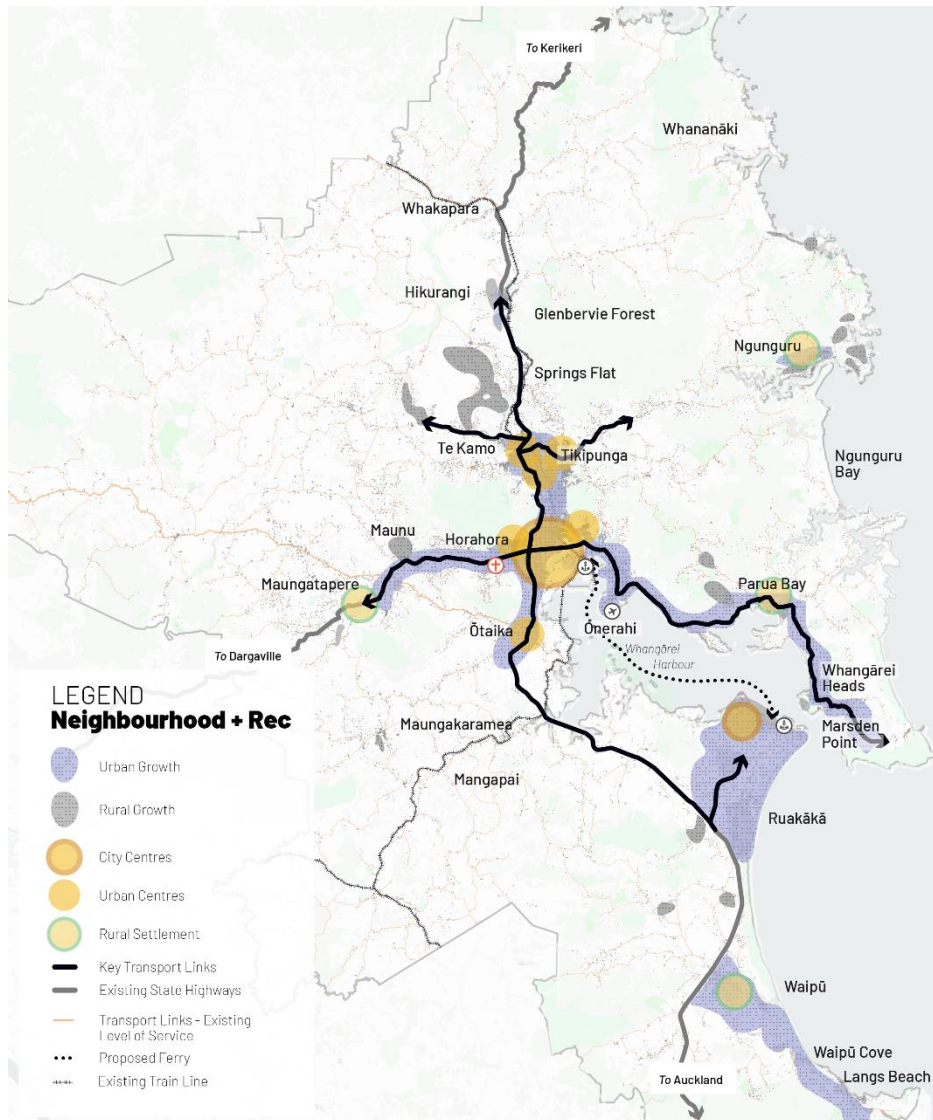
Urban Mobility Focus

Topic	Notes
Cemetery road development	• Wahi tapu • Needs to acknowledge
Rail	• Open up the use of rail lines • Both for freight and passenger • Regional passenger rail – Whangarei to Auckland • Open rail to Waiotira, Dargaville and Otiria
Healthcare	• Encourage options for mobile doctors • 1 day per week in 5 places • Creating comprehensive health hubs (Whangarei Heads, Waipu)
Education	• Another high school service in Whangarei Heads is urgent
Ferry	• Ferry across Whangarei Harbour and Marsden Point
Airport	• Move to Ruatangata • Needs good access to State Highway and Maungakaramaea highway • Need roading upgrades before site is developed.
Sewage / Wastewater	• Septic tanks upgraded • Information / direction to future builds • Water tanks required for all commercial and domestic new builds
Roads	• Improved roading maintenance across the rohe. Potholes suck. • Enabling / supporting park'n ride options for rural and coastal
Marae	• All marae has reduced speed flashlights, similar to schools
Tourism industry	• Waka – celebrating Whangarei narrative

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Neighbourhood and Recreation Lifestyle Focus

Topic	Notes
Coastal communities	• Kids have no access to get into town. Dependent on parents. • More connections from city to coastal / rural areas.
Airport relocation	• Need to widen the road to support traffic flow • Opportunity to support new housing and employment • Options to support more housing and business growth
Hikurangi	• No more housing on repo, Hikurangi • Supporting passenger rail from Hikurangi
Western Hills	• No further development on Western Hills
City Centre / CBD	• Pedestrian only city centre. No vehicles • Ring road city • What does Port Nikau development look like? Not feasible to build.
Clean waterways	• Swimming access – clean waterways
Traffic flow	• More roundabouts • Bridge Reotahi to pou pou whenua.
Tourism industry	• Making Whangarei a destination • Embracing Whangarei's past – telling our story • Opportunities for waka – creating a place to visit • Support community events and community hubs
Sustainable transport	• Hydrofoils – using our harbour. • Rail – support both passenger and freight
Healthcare	• Another hospital – creating community hubs



Section 5: Hapū post-it notes workshop(s) - Feedback and Actions on Key Performance Indicators

Outcome	Key Performance Indicator
Outcome 2 – Healthy and safe lives	- Access to health facilities / institutions - Safety and crime prevention – lighting security in communities.
Outcome 3 – Housing options	- Enabling more whare on whenua Māori - Number of homeless - Healthy home standards - Homeownership

Outcome 4 – Cultural recognition	• Hapū decision making opportunities
Outcome 5 – Climate response	• Homes with roof, gutters, and tanks suitable to catch water • Uptake of green roofs.
Outcome 7 – Employment opportunities	• Māori education outcomes • Access to student accommodation • Unemployment figures
Outcome 8 – Resilient development	• Sites of significance are maintained
Outcome 9 – Efficient infrastructure	• Town planning which is taiao informed and takes into account of traditional knowledge. • Quality of waterways – Swimmable rivers and Whangarei falls • Quality of roads • Drinkable water across the district

Section 6: Additional correspondence received

Draft Hapū Position Statement for Potential Inclusion

Within initial meetings on the FDS, hapū members in attendance raised concerns regarding:

- The capacity of hapū to attend the hui in a time of significantly constrained resources and competing priorities;
- The limited number of hapū with whom WDC and NRC had established relationships;
- The impacts of development on the rohe of the hapū and continued decision making that was compounding those impacts while the FDS has been discussed;
- The need for hapū to participate and guide the process while acknowledging the absence of decision-making power for hapū and the power imbalance.

The following position statement has been offered by some hapū members for potential inclusion in the FDS itself and also the Terms of Reference for hapū members on the project governance working group.

Whangārei Hapū (tribes) within the foundational constitutional documents, He Whakaputanga o te Rangatiratanga o Niu Tīreni 1835 and the Tiriti o Waitangi 1840, maintain that all hapū input into the Future Development Strategy (FDS), including positions on the Working Group do not undermine or negate the Rangatiratanga of any Hapū of Whangārei in future policy and decision-making.

We participate in this process as uri of the hapū of the Whangārei rohe with the aim to assist kāwana and kaunihera to alleviate ongoing prejudice and impacts of dispossession of taonga: including land, culture and resources through the Environmental Management System now and into the future.

Topic	Notes
The role of Te Tiriti o Waitangi shaping Whangārei's development	The Role of Te Tiriti in Shaping Whangārei's Development: Te Tiriti o Waitangi isn't just a historical document or relic of the past; it's a living commitment and agreement that calls us to honour a partnership that transcends generations. It continues to be a guiding document for the future, shaping our development by reminding us of the promise to work together for a prosperous, inclusive, and sustainable Whangārei. Te Tiriti is the blueprint of our development, emphasizing the principles of partnership, protection of Māori rights, and sustainable growth. It's akin to a compass pointing us in the direction of cultural preservation, economic prosperity, and social well-being. The essence of Te Tiriti o Waitangi and its principles should be interwoven throughout the entirety of our development strategy. By embracing the principles of partnership, participation, protection, and active decision-making with iwi and hapū, WDC can ensure that the legacy of Te Tiriti is honoured during the development of the FDS. Core principles include:

	○ Partnership: Acknowledges the need for a strong and ongoing partnership between the Crown and Māori. This principle emphasizes cooperation, collaboration, and mutual respect. ○ Participation: Recognizes the right of Māori to make decisions about their own affairs and participate fully in the life of the nation. This principle aligns with self-determination. ○ Protection: Ensures that Māori rights, culture, and lands are protected from unjust actions and policies, safeguarding the interests of Māori communities. ○ Active Decision-Making: Involves making informed and collective decisions with Māori communities on matters that affect them directly. It fosters shared governance and requires the Crown to actively engage with Māori in decision-making processes. ○ Equality: Ensures that Māori have the same rights and privileges as all other New Zealand citizens, promoting equal opportunities and protection under the law. Te Tiriti o Waitangi promised te tino rangatiratanga over kāinga, taonga, fisheries, waters and lands would remain with the hapū however was quickly undermined soon after 1840 signing of Te Tiriti o Waitangi. Today, those with whakapapa Māori occupy the lowest success statistics in life expectancy, education, health, employment, home ownership. Further to this, hapū of Whangārei retain aspirations to have lands reinstated to them, as well as reinstate decision making over their taonga. The lands and physical places for hapū to give effect to their tino rangatiratanga continue to be impinged upon with marae, whenua māori occupying less than 2% of their ancestral lands today. I would love to see some development principles be upheld in the FDS which can address these inequities which are direct fall out from both council and Crown breaches of Te Tiriti That He Whakaputanga me Te Tiriti o Waitangi is protected for future generations to enhance and strengthen. That our generation does not eliminate the possibility of treaty breaches to be addressed in full in the future. Below outlines how Te Tiriti o Waitangi can guide the FDS
Addressing historical injustices	Creating a truly rebalanced development pathway commences with recognizing and rectifying historical injustices. This calls for the return of land, resources, and decision-making power to Māori communities, echoing Te Tiriti's call for partnership and the equitable distribution of benefits. Hoki whenua mai - when council have received stolen lands via the harbour board or other means, that they are considered for return to the Hapū from which they were taken - and that these lands are identified and not used for economic benefit of the whole district, rather reserved for future economic benefit of the Hapū who have been deprived of these lands. Includes Opau, Hihiaua, all Harbor Board Lands, public works takings including roadways, reserves taken for council infrastructure under the guise of community recreational reserve eg seawall at Solomons Point

Practical Approaches to Genuine Partnership	1. Genuine partnership means sharing the leadership role. It involves co-design, co-governance, and co-implementation of initiatives. It's a journey where both parties walk side by side, honouring their responsibilities to build a vibrant and resilient Whangarei. 2. The pathway to genuine partnership involves empowering hapū and iwi in decision-making, respecting traditional knowledge, and ensuring that the benefits of development are equitably distributed. It's a commitment to mutual growth and well-being. 3. Commit to Treaty compliance, accountability for breaches, and ongoing engagement with Māori.
Hapū and Iwi-Led Decision-Making.	1. Foster a partnership approach that respects the tino rangatiratanga and mana motuhake, autonomy and self-determination of Hapū and iwi. 2. Delegate authority and decision-making powers to hapū and iwi through co-governance models and transfer of powers. 3. Collaborate with Māori to develop and implement policies, programs, and projects that align with their aspirations
Kaitiakitanga	1. Establish mechanisms for Māori communities to play a central role in the sustainable management of their lands and resources. 2. Collaborate with Māori communities to protect and restore natural environments and waterways of cultural significance, including biodiversity habitats, flora and fauna etc. 3. Promote sustainable land use practices that respect Māori environmental values and knowledge. Ensure that Māori values and traditional ecological knowledge intertwine with modern development, nurturing a symbiotic partnership that respects our environment and culture. 4. Develop and adopt a culturally informed spatial planning strategy for Whangarei that designates specific cultural zones, which may include natural elements such as ngahere (forests), awa (rivers), repo (wetlands), moana (oceans), kāinga (settlements), māra kai (food production areas), and mahinga kai (traditional food gathering sites). The planning process must integrate the cultural significance of these zones while drawing upon kōrero tuku iho/ancestral knowledge that traditionally allocated lands for habitation and cultivation. These culturally designated zones could serve as a foundation for guiding the FDS in regard to housing allocation, land use planning and water etc. 5. Regenerate Brownfield Sites: Consider regenerating brownfield sites (previously developed areas) before developing greenfield areas. This promotes infill development, reducing the impact on undeveloped land. 6. Coordinate growth with existing and planned infrastructure to minimize the need for additional roads, water, and energy networks. This approach reduces resource consumption and minimizes disruptions to the environment. 7. Enable Māori communities to lead climate change adaptation and environmental protection.

	Acknowledge the significant impact that past environmental actions have had on our lands, waters, and ecosystems. The scars of these actions serve as a reminder of the importance of taking a different path forward. It's our collective responsibility to address these past environmental issues, rectify the damage, and ensure a more sustainable and regenerative future.
Infrastructure	- Aligning infrastructure with the environment and supporting its natural functions is a sustainable approach that can help prevent environmental issues. It's essential to implement infrastructure in ways that work in harmony with the environment and its ecosystems. Green Infrastructure: Prioritize green infrastructure solutions that mimic or enhance natural processes. This can include the use of green roofs, permeable pavements, and urban forests to manage stormwater, reduce heat island effects, and support biodiversity. Sustainable Transportation: Promote sustainable transportation options, such as public transit, cycling lanes, and pedestrian-friendly infrastructure. This reduces the reliance on carbon-intensive modes of transport, lowers emissions, and minimizes the impact on the environment. Noting a lot of whanau Māori live in rural Whangārei and require a car for access to town. Habitat Preservation: Protect and preserve natural habitats when planning and constructing infrastructure projects. Create wildlife corridors and buffer zones to minimize disruption to local ecosystems. Climate Resilience: Design infrastructure that can withstand the impacts of climate change. This includes building resilient roads, bridges, and utilities that can withstand extreme weather events and rising sea levels. Renewable Energy: Invest in renewable energy infrastructure, such as wind turbines, solar farms, and hydroelectric power, to reduce reliance on fossil fuels and decrease greenhouse gas emissions. Partner with relevant Hapū and Iwi in the area, this will also support Hapū and Iwi growth. Waste Management: Implement sustainable waste management infrastructure, including recycling and composting facilities, to reduce landfill waste and promote resource recovery. Sustainable Building: Encourage green building practices and sustainable construction materials to create energy-efficient and environmentally friendly structures. Ecosystem Services: Recognize the value of ecosystems in providing essential services, such as water purification, pollination, and climate regulation. Plan infrastructure projects to protect and enhance these services.
Sustainable infrastructure for roads and bridges	Eco-Friendly Materials: Utilize eco-friendly and sustainable construction materials. This includes using recycled materials for road surfaces, sustainable timber for bridges, and environmentally friendly paving options. Low-Impact Design: Implement low-impact design principles for road and bridge projects. This approach focuses on minimizing environmental disruption, reducing stormwater runoff, and preserving natural features.

	3. Wildlife Crossings: Incorporate wildlife crossings into road and bridge designs to allow animals to move safely across roadways. This helps in preserving local biodiversity. 4. Natural Vegetation: Plant native vegetation along roadsides and near bridge structures to provide habitats for local wildlife and improve air quality. 5. Flood Resilience: Ensure that bridges are designed to be flood-resilient. In regions prone to flooding, raise bridge elevations to reduce the risk of damage and disruption. 6. Climate Adaptation: Plan for climate change impacts in the design and construction of roads and bridges. This includes considering rising sea levels, more intense rainfall, and higher temperatures. 7. Community Access: Prioritize pedestrian and cycling paths alongside roads and bridges to promote sustainable modes of transportation and reduce reliance on cars. 8. Water Management: Implement effective stormwater management systems for roads and bridges. Employ permeable pavements to minimize water runoff and prevent pollution of local waterways. 9. Maintenance Practices: Adopt environmentally friendly maintenance practices. This includes minimizing the use of chemicals for road maintenance and ensuring proper disposal of materials. 10. Rural and Urban Balance: Strive for a balance between rural and urban development. Preserve rural landscapes while encouraging growth in urban centres, reducing the need for extensive transportation networks
Cultural resurgence and preservation	1. Prioritize Te Reo Māori (Māori language) revitalization and its inclusion in community life and education, i.e. kohanga reo, kura kaupapa, wharekura and whare wananga. 2. Invest in cultural preservation initiatives, such as the protection of cultural heritage sites and practices. Recognize the cultural significance of the land. Engage with local iwi and hapū to ensure that construction respects cultural heritage and preserves historical sites. 3. Develop Cultural Heritage Parks alongside Hapū and Iwi throughout the district. 4. Ensure areas taken in the past for the economic benefit of the district are reserved for the future economic benefit of the deprived Hapū. 5. Promote the integration of cultural perspectives in local art, media, and public spaces.
Economic development and wellbeing	1. Emphasize that prosperity in Whangarei should be a two-fold success, where economic growth is inextricably linked with the preservation and enhancement of cultural heritage and the mauri of the whenua/wai. 2. Promote economic initiatives that benefit Māori communities, including job creation, business development, and entrepreneurship. 3. Ensure equitable access to education, healthcare, and social services for Māori, addressing disparities in health, education, and employment. 4. Commit to the equitable distribution of resources, benefits, and opportunities for Māori.

	5. Establish partnerships that foster resource sharing and economic empowerment within Māori communities.
Social wellbeing	○ Sustainable Housing/Home Ownership: Facilitate Māori home ownership, ensuring that it is accessible and equitable, while promoting sustainable housing options such as energy-efficient buildings and green infrastructure in new developments. ○ Support marae, whenua māori and papakāinga growth and development ○ Healthcare Access: Improve access to healthcare services, with a focus on reducing health disparities and ensuring culturally appropriate care. ○ Implement mixed-use cultural zoning to create communities where residents can live, work, and play within the same area, reducing the need for long commutes.
Monitoring	Implement rigorous monitoring and evaluation processes to assess the impact of the future development strategy on Māori well-being, cultural preservation, and economic growth. Adapt and refine the strategy based on the insights gained through monitoring and evaluation processes
Spatial considerations	Spatial constraints/enablers of Hapū are well mapped out including 1. areas not suitable for residential 2. areas not suitable for food production 3. areas identified for future kainga maori where the culture and language can thrive eg around Kura Kaupapa Maori 4. proximity to maori medium education options - this is a right and should be accessible to all 5. taonga mapping (NPS IB) 6. sites and areas of significance 7. areas and activities identified for future Hapū led economies 8. places of gathering - where is appropriate to gather into the future? tikanga constraints to land use for gathering, commercial, residential etc to be identified

Appendix C – 2021 HBA Memo Key Assumptions

Memorandum

Project: Whangārei FDS

Subject: Summary of Whangārei Housing and Business Land and Demand Capacity Assessment (2021)

The most recent housing and business capacity assessment (HBA) for Whangārei was completed in 2021. The findings from that HBA are being used to inform the Future Development Strategy (FDS), which is due to be completed in mid-2024. The purpose of this memo is to summarise the key findings of the 2021 HBA, and how it will be used for the FDS. This memo will also summarise some changes that have happened since that HBA, and what those mean for the FDS.

What were the findings of the 2021 HBA?

Housing capacity

The population and housing projections were based on the Whangārei District Growth Model 2020 and aligned with the 2021-31 Long Term Plan and associated Infrastructure Strategy. A high population growth scenario was used for this HBA. This assumed there would be an additional 46,100 residents over the long term (by 2051), with a need for an additional 20,100 dwellings.

A Housing Capacity and Feasibility Model was developed to compute the plan enabled and feasible housing capacity of residential zones in Whangārei District. This model draws on the District Plan zoning rules and some financial modelling assumptions. As part of the model development process, it was estimated that all sites in current residential zones are infrastructure ready except for a small number of sites in the Settlement Zone – Residential Sub-Zone, depending on their distance from the wastewater network⁴⁰. The model found that the plan enabled capacity of residential zones in Whangārei's urban areas was 37,200 houses, while the feasible capacity was 19,600 houses.

To estimate the 'reasonably expected to be realised' capacity, analysis of recent developments within Whangārei was undertaken. The analysis reviewed the plan enabled capacity of recently developed sites (within the last 10 years) and compared that with the actual yield of subdivided lots. The findings indicated that between 45-55% of plan enabled capacity was realised, which aligns with the results of the feasible capacity modelling being 53% of plan enabled capacity. Therefore, the feasible capacity results are assumed to also be reasonably expected to be realised.

The 2021 HBA found that there was sufficient plan enabled, feasible housing capacity in the short and medium term, but not in the long term, based on the residential zones that were modelled. However, some zones that weren't modelled also contribute to the housing capacity of the district and when these are included, there is expected to be sufficient capacity in the long term.

Table 2 shows the results of the 2021 HBA, including the expected additional capacity from unmodelled zones. When the additional capacity of the unmodelled zones is included, there is expected to be sufficient capacity to meet demand plus competitiveness margins in the long term.

Table 2 Summary of 2021 Whangārei housing assessment results

	Short term (2024)	Medium term (2031)	Long term (2051)
Projected population growth since 2020	4,800	16,900	46,100
Projected household growth since 2020	2,300	7,500	20,100
Housing demand with competitiveness margin	2,800	9,000	23,100

⁴⁰ These sites make up around 1% of plan enabled capacity and 0.5% of feasible capacity across the district.

Plan enabled, infrastructure ready capacity (modelled)	37,200		
Feasible capacity (modelled)	19,600		
Sufficiency (modelled)	Yes	Yes	No
Additional plan enabled capacity (not modelled ⁴¹)	6,700		
Additional feasible capacity (not modelled)	3,500		
Feasible capacity (modelled plus not modelled)	23,100		
Sufficiency (modelled plus not modelled)	Yes	Yes	Yes

Business capacity

The projected business land demand was developed based on employment demand projections and was updated from the 2018 HBA. The total projected demand for growth in business land in Whangārei is 47 hectares in the short term, 112 hectares in the medium term, and 199 hectares in the long term. When the competitiveness margins required by the NPS-UD are considered, these increase to 56 hectares in the short term, 134 hectares in the medium term and 228 hectares in the long term. The split of land required by business sector is around 80% industrial, 10-15% retail and personal services, 5% health, education and community services, and 2% office-based activities.

Key uncertainties about land requirements for business activities were identified in the HBA, including decision making on the port and freight network, rail investment, road investment, and the defence force hub.

A business capacity model was used to compute the plan enabled and infrastructure ready business land in the district. In total, 406 hectares of business zoned land was identified as being able to support future business activities. This shows that there is sufficient business zoned land in total to meet the long term demand (of 228 hectares). The business capacity model showed that there is also sufficient land zoned for each individual business sector to meet its demands. However, if flood-susceptible land is excluded from the capacity assessment, there are some small insufficiencies in the long term (but not in the short or medium term) in: industrial land (9.1 hectares) and health, education and community services, and office-based activities (1.3 hectares).

Table 3 Summary of 2021 Whangārei business assessment results

	Short term (2024)	Medium term (2031)	Long term (2051)
Projected business land growth (hectares)	47	112	199
Business land demand with competitiveness margin (hectares)	56	134	228
Total business land available	406		
Sufficiency (by sector)	Yes	Yes	Yes
Sufficiency (by sector, exclude flood prone land)	Yes	Yes	No (by 10.4ha)

What has changed since the 2021 HBA?

⁴¹ The unmodelled additional plan enabled capacity comes from 5,000 houses in Rural Production Zone, 1,000 houses in the Port Nikau Development area, 200 houses in the Ruakaka Equine Zone, and 500 houses in Marsden Primary Centre. The capacity in the Rural Production Zone wouldn't meet the requirements of the new NPS-HPL. Further capacity was also expected to come from the Urban and Services Plan Change and the Growth Strategy and Placemaking Plans.

Updated population projections

In 2023, revised population projections were developed by Infometrics for Whangārei. These updated projections are being used for the FDS and are outlined in Table 4. The latest population projections for the long term period of the FDS (2053) are slightly less than was projected for the long term of the HBA (2051).

Therefore, the population/demand side of the HBA assessment is still appropriate to rely on.

Table 4 Summary of updated population projections

	Baseline (2020)	Short term (2024)	Medium term (2031)	Long term (2051)	FDS long term (2053)
HBA assumed population	98,300 ⁴²	103,100	115,200	144,400	
Current population projection (high)	97,800 ⁴²	103,500	113,100	140,000	142,000
Difference (HBA minus Current)	-500	+400	-2,100	-4,400	-2,400

New District Plan zone extents and provisions

The HBA was based on a version of the District Plan from July 2020. In late-2022, the Housing Capacity and Feasibility Model was updated to apply the zoning extents and provisions from the 2022 District Plan, which incorporate the Urban and Services Plan change. The model was also subsequently revised to incorporate exclusions to avoid developing in hazard prone areas. In that update, a bug was found in the infill calculations which meant the estimated capacity in the HBA version was an underestimate.

The capacity estimates from the current versions of the Housing Capacity and Feasibility model are higher than the models used for the HBA and more than cover the insufficiency identified in the HBA.

Table 5 Overview of Housing Capacity and Feasibility Model versions and results

Model scenario		Plan enabled capacity	Feasible capacity
1	HBA version, underestimate ⁴³ (superseded)	37,200	19,600
2	Updated to 2022 District Plan (superseded)	59,800	20,400
3	Updated parcel and ratings data (current)	60,800	35,000
4	Exclude land covered by designations (current)	56,900	32,200
5	Exclude land impacted by high risk natural hazards ⁴⁴ (current)	55,900	31,100
6	Exclude land impacted by all natural hazards (current)	49,200	26,500

⁴² The 2020 population estimate made for the 2021 HBA has since been revised.

⁴³ The modelled capacity for the HBA version of the housing assessment was underestimated due to a bug in the model which miscalculated the capacity from infill developments. The 2022 District Plan version of the model estimated plan enabled capacity of 40,700 and feasible capacity of 20,400 before the bug was fixed.

⁴⁴ High risk natural hazards include 10-year flood zones, up to 50-year coastal flooding zones, up to 50-year coastal erosion zones, and mining subsidence zone 1.

Are there risks with relying on the 2021 HBA for the FDS?

This section highlights and responds to some questions that have been asked about how the HBA will be used for the FDS.

Will the demand side of the housing assessment be updated?

A review of the most recent population growth projections show that they are actually slightly smaller than the growth projections that were used for the 2021 HBA, so no updates to the housing demand will be made when reviewing the sufficiency results of the FDS.

Will there be more work done on housing affordability?

The 2021 HBA lacked an assessment of housing affordability, which is required by the NPS-UD. However, the 2021 Whangārei District Growth Strategy includes some analysis of housing affordability in the district, and this will be used to inform the FDS work. That work found that affordability of housing in Whangārei is becoming an increasingly severe issue. Median house prices have risen by 67% and rents by 44% since 2010, while household incomes only increased by 37.6%.

Future HBAs for Whangārei should include analysis and monitoring of housing affordability in the district.

Will there be more work done on the current and future housing demand for Māori?

The FDS programme aims to draw on a partnership approach with iwi and hapū to incorporate their values and aspirations into the FDS and therefore the future of the district. This would supplement and build on the work and findings from the 2021 HBA. The development of the partnership approach has been slower than expected, however, as it is setting the foundation for a longer term partnership between tangata whenua and Council, this delay is considered an appropriate trade-off.

Therefore, while the FDS aims to incorporate the values and aspirations of tangata whenua for future development, this partnership is also expected to be an ongoing relationship to inform future strategies and planning activities.

Understanding the future housing demand for Māori is also a requirement for future iterations of the HBA and will be incorporated into future FDS versions and placemaking plans.

How much of the plan enabled and feasible capacity is also infrastructure ready?

Although the 2021 HBA document didn't clearly outline it, all of the residential zoned land in the district were understood to be infrastructure ready, except for a small number of sites in the Settlement Zone – Residential Sub-Zone, which have different zoning rules to accommodate wastewater requirements.

Therefore, the starting assumption is that all of the plan enabled and feasible capacity results are also infrastructure ready. However, it has been noted that there may be some infrastructure constraints in parts of Whangārei (including in Ruakākā), and these will be factored into the shortlist scenario process.

How is the insufficient capacity (from the HBA) for some business districts addressed?

The business capacity assessment found that there is sufficient capacity to meet the projected demand for all business sectors in the short, medium and long term. However, if flood prone land is excluded from the assessment, a small insufficiency was identified in the long term. As this arises toward the end of the assessment period, and flood-prone land is often still developable (at a lower density, for certain purposes, and/or at additional cost), this insufficiency was not identified as a large concern in the HBA.

The main finding of sufficient capacity (including on flood-prone sites) is most relevant for the FDS.

More work is required to understand the long-term supply of business land on flood-prone sites, and therefore whether the possible insufficiency is likely to be realised.

What assumptions will be used during the preparation of the FDS?

The key findings from this summary that the FDS will draw on include:

- Population and household projections are similar to what was in the 2021 HBA. While the most recent projections will be used for the FDS, the sufficiency results from the HBA are still appropriate and will be used directly.
- Updated housing capacity models (including updating the district plan, applying natural hazard constraints, and fixing an error) show that the housing capacity estimated in the 2021 HBA was likely an underestimate. There is expected to be sufficient housing capacity in the short, medium and long term to meet demand.
- Some infrastructure constraints have been identified that were not present in the HBA – these will be considered as part of the scenario development and assessment process for the FDS.

There is expected to be sufficient business land available to meet demand in the short, medium and long term. More work is needed to determine what the impacts of the recent natural hazards mapping could have on that capacity.

Future Development Strategy Working Group – Terms of Reference

Chairperson	To be appointed by the members of the Future Development Strategy Working Group.
Members	Local government Elected Members comprised of: • Two (2) Whangarei District Council representatives to be appointed by Whangarei District Council. • Two (2) Northland Regional Council representatives to be appointed by Northland Regional Council. Tangata whenua members comprised of: • Two (2) to be appointed by the Māori caucus of Te Kārearea Strategic Partnership Committee • Two (2) members who can represent Whangarei District, to be nominated by the Māori caucus of Te Taitokerau Maori and Council Working Party (TTMAC) and appointed by Northland Regional Council.
Meetings	Monthly (or as required)

Purpose

The Future Development Strategy Working Group will provide oversight and direction for the development of the Future Development Strategy for Whangarei (the FDS). The Working Group will provide leadership on behalf of Whangarei District Council, Northland Regional Council, and ngā hapū o Whangārei.

In acting in its responsibilities, the Working Group must give effect to the National Policy Statement on Urban Development and other statutory provisions relevant to preparing the Future Development Strategy.

Key responsibilities

The Future Development Strategy Working Group has the responsibilities to:

1. Provide feedback to staff throughout the development of the Future Development Strategy (FDS);
2. Consider engagement and consultation feedback gained through the FDS communication and engagement process;
3. Consider and recommend the draft FDS to each of the partner Councils for public notification;
4. Hear and consider submissions on the draft FDS and make appropriate recommendations to the partner Councils;
5. Consider and recommend a final FDS to each of the partner Councils for approval.

Reporting and Recommendations

- The Working Group will provide recommendations in accordance with key responsibilities.

- The Working Group will report monthly (or as required) to Whangarei District Council, Te Karearea Strategic Partnership Committee, Northland Regional Council and Te Taitokerau Maori and Council Working Party through operational reporting.
- Any report that requires a formal decision will be referred to the Whangarei District Council and Northland Regional Council.

Powers not delegated

- The Working Group has no delegated authority.
- Following the final recommendation from the Working Group to adopt the final FDS, the group will then be disestablished.

Remuneration

- Remuneration and / or reimbursement for costs incurred by council members is the responsibility of each council.
- Respective tangata whenua representatives will be remunerated and reimbursed by the respective council.

6.5 Regional Economic Development CCO – Northland Inc. Shareholding

Meeting: Whangarei District Council
Date of meeting: 25 July 2024
Reporting officer: Tony Collins – Manager District Development

1 Purpose / Te Kaupapa

To make decisions required to enact the equal shareholding of Northland Inc Limited (Northland Inc).

2 Recommendations / Whakataunga

That Council:

1. Authorises the Chief Executive to sign the Share Sale and Purchase Agreement relating to the shares on issue in Northland Inc (Attachment 1)
2. Agrees to purchase 10 shares in Northland Inc from Northland Regional Council at a value of \$2 per share and authorises the Chief Executive to sign the Share Transfer Form (Attachment 2) to execute the purchase.
3. Agrees to purchase 10 shares in Northland Inc from Kaipara District Council at a value of \$2 per share and authorises the Chief Executive to sign the Share Transfer Form (Attachment 3) to execute the purchase.
4. Agrees to purchase 10 shares in Northland Inc from Far North District Council at a value of \$2 per share and authorises the Chief Executive to sign the Share Transfer Form (Attachment 4) to execute the purchase.
5. Authorises the Mayor to sign the Northland Inc Shareholder's Agreement (Attachment 5) which includes the Constitution of Northland Inc.
6. Adopts the Terms of Reference for the Joint Regional Economic Development Committee (Attachment 6).
7. Adopts the Policy on the Appointment of Directors to Northland Inc (Attachment 7).
8. Appoints His Worship the Mayor Vince Cocurullo and Deputy Mayor Phil Halse as Council's representatives on the Joint Regional Economic Development Committee and appoints Councillor Carol Peters as the alternative.

9. Appoints His Worship the Mayor Vince Cocurullo as the shareholder representative for Northland Inc delegating all necessary authority to represent Council's interest including but not limited to exercising Council's vote as a shareholder of Northland Inc at shareholder meetings and in regard to any shareholder resolutions.
10. Council notes the 2024-34 Long Term Plan only includes funding for years 1 and 2, after which time Council will review future involvement and ongoing funding requirements.

3 Background / Horopaki

Acting as Northland's Regional Economic Development Agency, Northland Inc is a council-controlled organisation, jointly and equally owned by Northland Regional Council (NRC), along with Far North District Council (FNDC) and Kaipara District Council (KDC). As part of Whangarei District Council's Long Term Plan 2024-34 public consultation Council requested feedback on becoming a shareholder in Northland Inc.

During Council's Long Term Plan deliberations 29 May 2024, the recommendations to become a shareholder in Northland Inc and approve the additional funding of \$370,000 in the 2024-25 year and \$482,000 in the 2025-26 year as set out in the Draft 2024-34 Long Term Plan Consultation Document were carried. This included a recommendation that Council reviews the benefits of Council's involvement in Northland Inc before committing to further funding beyond Year 2 (2025-26).

Following the passing of these recommendations Council staff have prepared this report to make decisions required to enact the equal shareholding of Northland Inc after the Long Term Plan 2024-34 has been adopted.

4 Discussion / Whakawhiti korero

4.1 Procedural Requirements

There are a number of decisions required under the Companies Act 1993 and the Local Government Act 2002 (LGA) needed for ownership implementation.

To enact the decision to become a joint owner in Northland Inc the three current shareholder Councils, Northland Regional Council, Kaipara District Council and Far North District Council, are agreeing to sell 10 shares each of their current 40 shares.

A Share Sale and Purchase Agreement (Attachment 1) and a Share Transfer Form for each Council (Attachment 2), (Attachment 3) and (Attachment 4) have been prepared. These documents set out the terms under which the share sale and transfer will be made.

Each current shareholder Council will present the Share Sale and Purchase Agreement (Attachment 1), their respective Share Transfer Form (Attachment 2), (Attachment 3) and (Attachment 4) and the Northland Inc Shareholders' Agreement (Attachment 5) to be signed prior to this decision report be presented to Council. Northland Regional Council has sought legal advice in the preparation of the documents to ensure compliance with legislative requirements.

Councils' internal Legal Council has reviewed the Northland Inc Shareholders' Agreement (Attachment 5) and the Joint Regional Economic Development Committee Terms of Reference (Attachment 6). Following this review a meeting was arranged between WDC Legal Council and NRC to discuss and seek clarification.

4.2 Legal Considerations

4.2.1 Share Sale and Purchase Agreement and Share Transfer Forms

These documents are transactional in nature and comply with the requirements under the Companies Act 1993. All details have been checked and confirmed as correct.

4.2.2 Shareholders' Agreement (SA)

The Shareholders' Agreement sets out the terms between the parties (the four Councils and Northland Inc) regarding the management and ownership of Northland Inc, its activities and the shareholders' rights and obligations. The agreement sets out the rights attached to shares, the appointment of directors, the procedures for board meetings, matters requiring joint committee approval, the issue of new securities and share transfer restrictions.

As part of the Long-Term Plan (LTP), it is recommended that the Council becomes a shareholder in Northland Inc. However, it is also advised that the Council conducts a thorough review of the benefits of its involvement before extending funding beyond Year 2. The legal concern is ensuring there is a pathway to exit the shareholding agreement for Northland Inc, should this so be desired in the future. Clause 11 effectively addresses this concern.

Clause 11 of the Shareholder Agreement allows any shareholder, such as WDC, to exit Northland Inc by giving at least six months' prior notice that they wish to cease being a Shareholder of the Company as of the immediately following 30 June. This would require Council to give notice no later than **31 December 2025**, if Council wishes to exit the SA after the current two-year commitment. This date must be considered when planning the process for reviewing benefits and performance to ensure that the decision is made, and if the decision to exit is made, the notice to exit can be delivered before this date. Otherwise, Council will remain a shareholder until the following year and be bound by the obligations involved with being a shareholder. Approval from other councils is not required, and the exiting shareholder is released from all obligations.

There are several other legal considerations that whilst not of substantive concern, are useful to note:

- Clause 14 contemplates intellectual property ownership, which under this agreement is owned solely by Northland Inc. Such ownership applies to all existing and future intellectual assets relevant to the agreement are unequivocally owned and controlled by Northland Inc.
- Clause 17 covers the Investment and Growth Reserve funding requirements, expectations and path for future negotiations.
 - Clause 17.1 outlines the agreed level of Investment and Growth Reserve funding for 2024/2025 and 2025/2026, which align with Council's LTP consultation.
 - Clause 17.2 sets the expectations for future levels of funding beyond Council's current two-year commitment but does not from a legal obligation for this level.
 - Clause 17.3 sets out the process for how a shareholder Council can request to discuss in good faith the level of funding into the Investment and Growth reserve and the process for resolving a dispute if agreement cannot be made.

4.3 Joint Regional Economic Development Committee (JREDC)

As a shareholder in a Council Controlled Organisation (CCO), a local authority has a number of responsibilities, duties and powers under the LGA. These include:

- Receiving a draft Statement of Intent and providing any comments, before receiving the final Statement of Intent.
- Agree to the Statement of Intent, or require it to be modified if it does not agree.
- The ability to extend a deadline regarding the statement of intent by up to one month.
- Adopting a policy that sets out an objective and transparent process for identifying required skills of Directors, appointment and remuneration of Directors.
- Requiring the preparation and delivery of additional plans (i.e. an asset management plan, a long-term plan or a thematic plan).
- Regularly undertaking performance monitoring of the CCO to evaluate its contributions to achieving the desired results (set out in statement of intent).
- The ability to prepare a statement of expectations to specify how the CCO is to conduct its business and any expectations in relation to community engagement and collaboration.

The Terms of Reference for the Joint Regional Economic Development Committee (Attachment 6) address the requirements above and by each council resolving to adopt the terms of reference, the requirements of the LGA are considered to be met.

The committee shall have eight members with each council nominating two elected members as full members and one as an alternate in the event that either of the two nominees are unable to attend.

One thing for council to consider is that meetings are held four times annually, and at least 50% of members shall be present (with at least one member from each council present). This is something to note as the Council Member/Members chosen to be representatives on this committee must be aware of this obligation and have the capacity to attend such meetings.

4.4 Policy on the Appointment of Directors to Northland Inc

Section 57 of the Local Government Act (LGA) 2002 requires local authorities to adopt a policy on the appointment of directors to their council organisations. The Policy on the appointment of directors to Northland Inc (attachment 7) satisfies this requirement and will be amended to include Council once shareholding is in place and Shareholders shall adopt this policy in regard to Northland Inc instead of any general policy adopted by a Shareholder under section 57 of the Local Government Act 2002 relating to Council organisations generally.

4.5 Financial/budget considerations

Council are agreeing to purchase of 10 shares from each current shareholding Council (NRC, KDC and FNDC). The cost of purchasing the shares is \$60, 30 shares at \$2 per share, the price each Council originally paid for the shares.

To enact equal shareholding the purchase and transfer of these shares are required to take place simultaneously. Staff across the four Councils have worked to process the required papers through their respective Council meetings for the required approval and the share purchase and transfer will take place once this is completed.

Council are agreeing to contribute a total of \$475,000 in Year 1 and \$587,000 in Year 2 to the Investment and Growth Reserve. This is achieved by reallocating \$105,000 per annum of grant funding, which is currently provided to Northland Inc, to the Investment and Growth Reserve and additional funding of \$370,000 in Year 1 and an additional \$482,000 in Year 2. These values match what was consulted on through the Long Term Plan 2024-34.

The contributions to the Investment and Growth Reserve are budgeted for the first two years of the Long Term Plan 2024-34. The costs beyond the first two years are not budgeted for in the Long Term Plan 2024-34. Council will review the benefits of its involvement in Northland Inc and, if it wishes to continue its involvement, will need to include additional funding for this

beyond year two. This additional expense, and any resulting rates impact would need to be incorporated into the 2026-27 Annual Plan budget setting process.

4.6 Timeline

To enact equal shareholding the required documents are being presented to all shareholding councils and Northland Inc for approval and the required authority to sign. An outline of the timeline is below:

- 23 July 2024 – NRC Council Meeting
- 25 July 2024 – WDC Council Meeting
- 31 July 2024 – KDC Council Meeting
- 8 August 2024 – FNDC Council Meeting
- Week of 12 August 2024 – Northland Inc Board Meeting

Once all four Councils and Northland Inc have the required approvals the documents will be signed, and Councils equal shareholding enacted. A potential date of 26 August 2024, at the Mayoral Forum, has been identified.

4.7 Options

No.	Option	Advantages	Disadvantages
1	Agree to the set of decisions that enable the purchase of Northland Inc shares, adopts the Terms of Reference for the Joint Regional Economic Development Committee, appoints Council's representatives on the Joint Regional Economic Development Committee and appoints Council's shareholder representative for Northland Inc.	Completes the process of Council becoming a shareholder in Northland Inc and joining the JREDC. Provides Council governance oversight of Northland Inc and jointly support economic development activities in Northland. Provides additional funding into the IGR, allowing for a greater level of enabling investment across the region. Enables JREDC to serve as a demonstration of regional unity, on economic development issues, to stakeholders inside and outside the region. Enables a greater level of regional coordination in conversations with central government and private firms about investment	Council increases funding to a joint CCO for economic development with less control than if internally operated. Increases the operational complexity of the JREDC.

		and development opportunities. Enhances Northland Inc's ability to advocate for the region and secure funding for economic development projects.	
2	Do not agree to the set of decisions to become a shareholder of Northland Inc.	Council is not obligated to contribute to the investment and growth reserve. Doesn't increase the complexity of the JREDC.	Council would have no control at a governance level to influence the activities Northland Inc undertakes. Limits the capacity of Northland Inc to advocate for our region, when talking to central government and businesses. Likely to decrease the operational funding available to Northland Inc, hindering its ability to support businesses, given the JREDC's desire to increase the size of the IGR. Indicates a lack of regional unity and coordination on economic development priorities, which could limit Northland's access to central government funding, given the government's stated desire to see a high level of regional coordination. Would damage Council's relationship with the other three local authorities.

Staff recommend Option 1.

5 Significance and engagement / Te Hira me te Arawhiti

The decision to become a joint shareholder in Northland Inc was made at the 29 May 2024 Council deliberations meeting. This decision was made after the consideration of significance and consultation with the community as part of the key issues in the Consultation Document for the LTP.

The decisions being requested in this report do not require additional consultation and the public will be informed through the agenda publication on the website.

6 Attachments / Ngā Tāpiritanga

Attachment 1 - Share Sale and Purchase Agreement

Attachment 2 - Share Transfer Form NRC to WDC

Attachment 3 - Share Transfer Form KDC to WDC

Attachment 4 - Share Transfer Form FDC to WDC

Attachment 5 - Northland Inc Shareholders' Agreement

Attachment 6 - Joint Regional Economic Development Committee Terms of Reference

Attachment 7 - Policy on the Appointment of Directors to Northland Inc

Share Sale and Purchase Agreement

relating to shares on issue in Northland Inc Limited

between

Northland Regional Council
Kaipara District Council
Far North District Council
(Vendors)

And

Whangarei District Council
(Purchaser)

Share Sale and Purchase Agreement

Date:

2024

Parties

Northland Regional Council, Kaipara District Council and Far North District Council (Vendors).

Whangarei District Council (Purchaser).

Background

- A. Pursuant to clause 11 of the Shareholders' Agreement relating to Northland Inc Limited (**the Company**) dated 1 July 2021, the Purchaser has served a written notice on the Company that it wishes to become a shareholder of the Company, thereby requiring the Vendors to sell and transfer 10 shares each to the Purchaser.
- B. The parties enter into this agreement to record the terms and conditions of such share sale and purchase.

Agreement

1. Definitions

- 1.1 The following definitions apply in this agreement:

Board means the board of directors of the Company.

Business Day means any day (other than a Saturday, Sunday or public holiday, as that term is defined in section 5(1) of the Holidays Act 2003) on which registered banks are open for general banking business in Northland, New Zealand.

Company means Northland Inc Limited (company number 857377).

Completion means the performance by the Parties of their respective obligations under clause 3, or the time at which such performance is completed.

Completion Date means the later of 16 July 2024, the date that this agreement is signed by all parties, or such other date as the Parties may agree in writing.

Encumbrance means:

- (a) any charge (whether fixed or floating), mortgage, debenture, pledge, lien,
- (b) hypothecation, title retention, deferred purchase option, right of pre-emption or right of first refusal; and

- (c) any other security interest (as that term is defined in section 17 of the Personal Property Securities Act 1999) or third party right (whether legal or equitable).

Parties means the parties to this agreement and **Party** means either one of them.

Purchase Price means a total of \$60, being \$2 per Sale Share.

Sale Shares means:

- (a) 10 Shares owned by Northland Regional Council;
- (b) 10 Shares owned by Far North District Council; and
- (c) 10 Shares owned by Kaipara District Council.

Share Register means the share register of the Company, as kept and maintained in accordance with section 87 of the Companies Act 1993.

Shareholders' Agreement means the shareholders' agreement between the Vendors, the Purchaser, and the Company relating to the Company (replacing the prior shareholders' agreement relating to the Company) in a form agreed and which is to take effect on the Completion Date.

Shares means fully paid ordinary shares in the Company.

Share Transfer Form means share transfer forms for the Sale Shares in a form agreed in writing by the Parties.

Interpretation

1.2 The following rules of interpretation apply in this agreement:

- (a) References to the Parties include their respective executors, administrators, successors and permitted assigns.
- (b) References to persons include natural persons, companies, and any other body corporates (wherever incorporated) and unincorporated bodies (wherever formed).
- (c) References to this agreement means this agreement, including the introduction, as amended and/or replaced from time to time.
- (d) References to clauses are to those in this agreement.
- (e) Headings and subheadings have been inserted for convenience only and will not affect the interpretation of this agreement.
- (f) References to the words including, include or similar words do not imply any limitation and are deemed to have the words without limitation following them.
- (g) References to a statute or statutory provision means a New Zealand statute or statutory provision as amended, consolidated and/or replaced from time to time.
- (h) A gender includes each other gender and the singular includes the plural and vice versa.
- (i) References to \$ are references to New Zealand dollars.
- (j) References to time and dates are to time and dates in New Zealand.

- (k) References to written or in writing shall include all modes of presenting or reproducing words, figures and symbols in a visible form (including via email).
- (l) No rule of construction (including the contra proferentem rule) applies to the disadvantage of a Party because that Party (or its relevant advisor) was responsible for the preparation of this agreement or any part of it.

2. Sale and Purchase

Agreement to sell and purchase

- 2.1 On the terms set out in this agreement, each of the Vendors agree to sell to the Purchaser, and the Purchaser agrees to purchase from each of the Vendors, the Sale Shares.

Terms of sale

- 2.2 The Sale Shares shall be sold by each of the Vendors to the Purchaser:
 - (a) **Completion Date:** on the Completion Date;
 - (b) **no Encumbrances:** free of any Encumbrances; and
 - (c) **with all rights, benefits and entitlements:** with all rights, benefits and entitlements that attach to the Sale Shares as at Completion.

Consideration

- 2.3 In consideration of each of the Vendors agreeing to sell their respective Sale Shares to the Purchaser on the terms of this agreement, the Purchaser will pay an appropriate part of the Purchase Price to each of the Vendors.

3. Completion

Time and date

- 3.1 Completion is to take place before 5.00pm on the Completion Date.

Transfer of title

- 3.2 On Completion, the legal and beneficial title to the Sale Shares shall pass from the Vendors to the Purchaser, free of all Encumbrances. Until Completion, all risk of loss and diminution of value to the Sale Shares remains at the sole risk of the Vendors.

Vendor's obligations

- 3.3 On the Completion Date, each of the Vendors shall deliver the following documents to the Purchaser:
 - (a) **Share Transfer Forms:** The Share Transfer Form, duly executed by the relevant Vendor.
 - (b) **Shareholders' Agreement:** The Shareholders' Agreement duly executed by the relevant Vendor.
- 3.4 On the Completion Date, the Vendors together shall deliver to the Purchaser a resolution in writing of the Board that directs the name of the Purchaser be entered into

the Share Register as the holder of the Sale Shares, signed by the Directors of the Company.

Purchaser's obligations

3.5 On the Completion Date, the Purchaser will:

- (a) deliver to each of the Vendors the Share Transfer Forms, duly executed by the Purchaser;
- (b) deliver to the Vendors the Shareholders' Agreement duly executed by the Purchaser; and
- (c) pay an appropriate part of the Purchase Price to each Vendor in cleared funds.

Completion simultaneous

3.6 The actions of the Vendors under clauses 3.3 and 3.4, and the actions of the Purchaser under clause 3.5, are interdependent and must take place, as nearly as possible, simultaneously. If one action does not take place, then there is no obligation on either Party to undertake to perform any of the other actions. To the extent that such actions have already been undertaken and any party does not carry out any action it is required to, the Parties must do everything reasonably required to reverse those actions.

4. Warranties

Mutual warranties

4.1 Each Party warrants to the other that:

- (a) **power and authority:** it has full power and authority to enter into this agreement;
- (b) **authorisation and approvals:** all authorisations and approvals that are required of that Party in connection with the signing of this agreement, and the assumption of rights and obligations under it, have been obtained; and
- (c) **no breach:** the signing, delivery and performance of this agreement does not constitute a breach of any obligation by which that Party is bound.

Vendor's warranties

4.2 Each Vendor warrants to the Purchaser that:

- (a) **title:** it has legal and beneficial title to their Sale Shares, free of any Encumbrances; and
- (b) **capacity:** it has the right and power to sell their Sale Shares on the terms set out in this agreement.

Date of warranties

4.3 Each of the warranties in this clause 4 is given by the relevant Party on the Completion Date.

5. General Provisions

Entire agreement

- 5.1 This agreement constitutes the entire agreement and understanding of the Parties relating to the matters dealt with in this agreement and supersedes and extinguishes any previous agreement (whether oral or written) between the Parties in relation to such matters. Nothing in this clause 5.1 operates to limit or exclude any liability for fraud.

Further assurances

- 5.2 Each Party shall, at its own expense, promptly sign and deliver any documents, and do all things, which are reasonably required to give full effect to the provisions of this agreement.

No merger

- 5.3 The obligations, warranties and representations of the Parties under this agreement, to the extent not already performed by Completion, will not merge on Completion or on the execution or delivery of any document in connection with this agreement, but will remain enforceable to the fullest extent notwithstanding any rule of law to the contrary.

No waiver

- 5.4 No Party will be deemed to have waived any right under this agreement unless the waiver is given in writing and signed by that Party.

Amendments

- 5.5 This agreement may not be amended or varied in any way unless such amendment or variation is made in writing and signed by each Party.

Assignment

- 5.6 No Party will assign or transfer, or purport to assign or transfer, any of their rights or obligations under this agreement without the prior written consent of the other Party (such consent shall not be unreasonably or arbitrarily withheld or delayed).

Severability

- 5.7 If any provision of this agreement is found by a court or other competent authority to be void or unenforceable, such provision will be deemed to be deleted from this agreement and the remaining provisions of this agreement will continue in full force and effect.

Rights and remedies

- 5.8 Unless otherwise expressly provided in this agreement, the rights and remedies set forth in this agreement are in addition to, and not in limitation of, any other rights and remedies under or relating to this agreement (whether at law or in equity).

Counterparts

- 5.9 This agreement may be signed and delivered in any number of counterparts, including by way of electronic transmission where a Party signs a counterpart and sends it as a PDF to the other Party by email. All such counterparts, when taken together, shall constitute one and the same instrument and, notwithstanding the date of execution, will be deemed to bear the date of this agreement.

Electronic signatures

- 5.10 A Party may sign this agreement by way of the application of that Party's electronic signature in accordance with Part 4 of the Contract and Commercial Law Act 2017.

Governing law and jurisdiction

- 5.11 This agreement, and any claims arising out of or in connection with it or its subject matter or formation (including non-contractual claims), will be governed by and construed in accordance with the laws of New Zealand and the Parties irrevocably submit to the exclusive jurisdiction of the courts of New Zealand for any matter arising under or relating to this agreement or its subject matter or formation or the relationships established by it (including non-contractual claims).

Signed by the parties

Signed by **Whangarei District Council**
as Purchaser

Signature

Signed by **Northland Regional Council**
as Vendor

Signature

Signed by **Kaipara District Council**
as Vendor

Signature

Signed by **Far North District Council**
as Vendor

Signature

Share Transfer Form

For the consideration stated below, the Transferor named below hereby transfers to the Transferee named below the shares in the Company specified below subject to the terms on which such shares are now held by the Transferor, and the Transferee agrees to accept and hold such shares subject to those terms.

Company	Northland Inc Limited (company number 857377)
Number and full description of shares	10 fully paid ordinary shares.
Transfer from Transferor	Northland Regional Council
Consideration	NZ\$20 (twenty dollars)
Transfer to Transferee	Whangarei District Council

This share transfer may be signed and delivered in any number of counterparts, including by way of electronic transmission where a party signs a counterpart and sends it as a PDF to the other party by email. All such counterparts, when taken together, shall constitute one and the same instrument and, notwithstanding the date of execution, will be deemed to bear the date of this share transfer.

A party may sign this share transfer by way of the application of that party's electronic signature in accordance with Part 4 of the Contract and Commercial Law Act 2017.

For the purposes of section 84(2) of the Companies Act 1993, the Transferor shall procure that this share transfer is delivered to the Company for registration.

Dated the day of 2024

Signed by Northland Regional Council
as Transferor

Signature

Signed by Whangarei District Council
as Transferee

Signature

Share Transfer Form

For the consideration stated below, the Transferor named below hereby transfers to the Transferee named below the shares in the Company specified below subject to the terms on which such shares are now held by the Transferor, and the Transferee agrees to accept and hold such shares subject to those terms.

Company	Northland Inc Limited (company number 857377)
Number and full description of shares	10 fully paid ordinary shares.
Transfer from Transferor	Kaipara District Council
Consideration	NZ\$20 (twenty dollars)
Transfer to Transferee	Whangarei District Council

This share transfer may be signed and delivered in any number of counterparts, including by way of electronic transmission where a party signs a counterpart and sends it as a PDF to the other party by email. All such counterparts, when taken together, shall constitute one and the same instrument and, notwithstanding the date of execution, will be deemed to bear the date of this share transfer.

A party may sign this share transfer by way of the application of that party's electronic signature in accordance with Part 4 of the Contract and Commercial Law Act 2017.

For the purposes of section 84(2) of the Companies Act 1993, the Transferor shall procure that this share transfer is delivered to the Company for registration.

Dated the day of 2024

Signed by Kaipara District Council
as Transferor

Signature

Signed by Whangarei District Council
as Transferee

Signature

Share Transfer Form

For the consideration stated below, the Transferor named below hereby transfers to the Transferee named below the shares in the Company specified below subject to the terms on which such shares are now held by the Transferor, and the Transferee agrees to accept and hold such shares subject to those terms.

Company	Northland Inc Limited (company number 857377)
Number and full description of shares	10 fully paid ordinary shares.
Transfer from Transferor	Far North District Council
Consideration	NZ\$20 (twenty dollars)
Transfer to Transferee	Whangarei District Council

This share transfer may be signed and delivered in any number of counterparts, including by way of electronic transmission where a party signs a counterpart and sends it as a PDF to the other party by email. All such counterparts, when taken together, shall constitute one and the same instrument and, notwithstanding the date of execution, will be deemed to bear the date of this share transfer.

A party may sign this share transfer by way of the application of that party's electronic signature in accordance with Part 4 of the Contract and Commercial Law Act 2017.

For the purposes of section 84(2) of the Companies Act 1993, the Transferor shall procure that this share transfer is delivered to the Company for registration.

Dated the day of 2024

Signed by Far North District Council
as Transferor

Signature

Signed by Whangarei District Council
as Transferee

Signature

Shareholders' Agreement

Northland Inc Limited

Contents

1.	Definitions and Interpretation	2
2.	The Activities.....	5
3.	Parties' Rights and Obligations.....	6
4.	Directors	6
5.	The Board	7
6.	Shareholders' Meetings.....	8
7.	Joint Committee Approval	8
8.	Group Governance.....	9
9.	Issue of New Securities	9
10.	Share Transfer Restrictions	11
11.	Exiting shareholders.....	13
12.	Completion of Share Transfers.....	13
13.	Common Purpose	14
14.	Intellectual Property.....	14
15.	Provision of Accounts and Information.....	14
16.	Dividends and Distributions	14
17.	Funding	15
18.	Default.....	16
19.	Dispute Resolution	17
20.	Termination	18
21.	Relationship of the Parties.....	18
22.	Prevailing Terms.....	19
23.	Confidentiality.....	19
24.	Notices	20
25.	General Provisions	20
	Signatures	22
	Schedule 1 Deed of Accession	24

Dated the

Parties

Northland Regional Council

Far North District Council

Kaipara District Council

Whangarei District Council

Northland Inc Limited, a limited liability company incorporated and registered in New Zealand with company number 857377.

Introduction

This agreement sets out the terms between the Parties in relation to the management and ownership of the Company and the Activities, and the rights and obligations of the Shareholders. As at the date of this agreement, each of Northland Regional Council, Far North District Council, Kaipara District Council and Whangarei District Council own 30 fully paid up ordinary shares in the capital of the Company.

Agreed Terms

1. Definitions and Interpretation

1.1 Definitions

The following definitions apply in this agreement:

Activities means the activities and purpose to be carried on by the Group, being the implementation of economic development activities and supporting investment in Northland.

Affiliate means any person that directly or indirectly controls a Party, including if that person possesses (directly or indirectly) the power to:

- (a) appoint a majority of the directors or trustees of that Party (or any persons who may carry out a similar function in relation to that Party); or
- (b) direct or cause the direction of the management or affairs of that Party, whether through the ownership of voting securities, by contract or otherwise.

AMINZ means the Arbitrators' and Mediators' Institute of New Zealand Inc., an incorporated society in New Zealand with registered number 379524.

Board means the board of Directors, as constituted from time to time.

Board Quorum means, subject to clause 5.7, not less than one half of the Directors then in office.

Business Day means any day (other than a Saturday, Sunday or public holiday, as that term is defined in section 5(1) of the Holidays Act 2003) on which registered banks are open for general banking business in Northland, New Zealand.

Chairperson means the chairperson of the Board appointed in accordance with clause 5.8.

Change of Control means any change in the ownership or control of 50% or more of the voting power of a Shareholder.

Companies Act means the Companies Act 1993.

Company means Northland Inc Limited, a limited liability company incorporated and registered in New Zealand with company number 857377.

Confidential Information means any non-public financial, business or commercial information relating to the Activities, any Group Company or any other Party which a Party may receive or obtain as a result of or in connection with this agreement.

Constitution means the constitution of the Company in effect from time to time.

Deed of Accession means a deed of accession in substantially the form set out in schedule 1.

Defaulting Party means any Shareholder that has committed an Event of Default.

Director means any director for the time being of the Company.

Dispute means a dispute or disagreement between any Parties that arises out of or relates to this agreement.

Disputing Parties means any Parties that are involved in a Dispute.

Distribution has the meaning given to that term in section 2(1) of the Companies Act.

Dividend has the meaning given to that term in section 53 of the Companies Act.

Encumbrance means:

- (a) any charge (whether fixed or floating), mortgage, debenture, pledge, lien, hypothecation, title retention, deferred purchase option, right of pre-emption or right of first refusal; and
- (b) any other security interest (as that term is defined in section 17 of the Personal Property Securities Act 1999) or third party right (whether legal or equitable),

but excludes any right of pre-emption or right of first refusal created pursuant to this agreement and/or the Constitution.

Event of Default means any of the events specified at clause 18.1.

Financial Year means a financial accounting period of 12 months commencing on 1 July and ending on 30 June each year.

FMCA means the Financial Markets Conduct Act 2013.

FMCA Disclosure Exemption means an exclusion from the full and detailed disclosure requirements under the FMCA and Financial Markets Conduct Regulations 2014.

Group means the Company and any Related Company of the Company, each member being a **Group Company**.

Intellectual Property means all intellectual property, proprietary and industrial rights arising in connection with the Activities (whether existing in statute, at common law or in equity), including:

- (a) all copyright (including in source code and object code), know-how, trade secrets, methods (including business methods), technical and non-technical information, processes and procedures (including management processes and procedures), rights in databases, characteristics, trade marks, trade names, business names, domain names, inventions, patent rights, design rights, discoveries, algorithms and formulae;
- (b) all designs (including software and website designs), design details and specifications, concepts, evaluations (including risk evaluations), models and presentation materials, working drawings, sketches and photographs;
- (c) all improvements, enhancements, modifications or adaptations to any of the foregoing rights, including those created by or on behalf of any Party;
- (d) the right to sue for passing off;
- (e) all allied, similar and associated rights, whether registered or unregistered, registrable or unregistrable; and
- (f) all applications to register, and any renewals of, any of the foregoing rights.

Joint Committee means a joint committee formed by the Shareholders in accordance with section 30 of schedule 7 of the Local Government Act 2002 in relation to the operation of the Company and the Activities.

Management Accounts means unaudited accounts which shall incorporate a profit and loss statement, cash flow statement and balance sheet.

Minimum Transfer Condition means a condition specified by the Transferor in a Transfer Notice that, unless all or not less than a specified number of Transfer Shares are purchased, the Transferor shall not be bound to transfer any of the Transfer Shares.

New Securities means any new Shares or other securities issued by the Company that are convertible into, or that carry the option or right to subscribe for, new Shares.

Offer Expiry Date means the expiry date for an offer of New Securities or Transfer Shares (as applicable) specified in an Offer Notice.

Offer Notice means a written notice given by the Board under:

- (a) clause 9.2 regarding an offer of New Securities; or
- (b) clause 10.3 regarding an offer of Transfer Shares.

Ordinary Resolution has the meaning given to that in section 105(2) of the Companies Act.

Parties means the parties to this agreement from time to time, including those who became or become a party to this agreement by signing a Deed of Accession, and **Party** means any one of them.

Pro-rata Entitlement means, in relation to a Shareholder, an entitlement calculated according to the proportion that such Shareholder's Shares bear to the total number of Shares then on issue in the Company.

Purchase Application means a written application by a Remaining Shareholder to purchase all or any Transfer Shares under clause 10.5.

Quarter means a quarterly period ending on 31 December, 31 March, 30 June and 30 September each year.

Related Company has the meaning given to that term in section 2(3) of the Companies Act, but with that meaning extended by reading section 2(3) of the Companies Act as if "company" included any body corporate (wherever incorporated or formed).

Related Parties means, in relation to a Party:

- (a) any director, officer or employee of, or professional adviser to, that Party;
- (b) any Affiliate of that Party; and
- (c) any Related Company of that Party.

Remaining Shareholders means all Shareholders other than the Transferor in the case of clause 10.

Shareholder means any person whose name is entered in the Share Register as the holder (whether individually or jointly) for the time being of at least one Share.

Share Register means the share register of the Company, as kept and maintained in accordance with section 87 of the Companies Act.

Shares means fully paid ordinary shares in the Company.

Statement of Intent means a written plan for the Activities approved by the Joint Committee and as may be amended by the Joint Committee from time to time.

Subscription Application means a written application by a Shareholder to subscribe for New Securities under clause 9.4.

Subsidiary has the meaning given to that term in section 5(1) of the Companies Act.

Transfer Notice means a notice given by a Transferor under clause 10.2 regarding the transfer of Transfer Shares.

Transferor means any Shareholder that makes, or proposes to make, a transfer of Shares.

Transfer Shares means any Shares that a Transferor proposes to sell.

WDC means Whangarei District Council.

1.2 Interpretation

The following rules of interpretation apply in this agreement:

- (a) References to **persons** include natural persons, companies, and any other body corporates (wherever incorporated) and unincorporated bodies (wherever formed).
- (b) References to the **Parties** include their respective executors, administrators, successors and permitted assignees.
- (c) All **headings** and **subheadings** have been inserted for convenience only and will not affect the interpretation of this agreement.
- (d) References to **this agreement** means this agreement, including its schedules and introduction, as amended and/or replaced from time to time.
- (e) References to **clauses** and **schedules** are to those in this agreement, except where specified otherwise.
- (f) References to a **paragraph** in a schedule is to a paragraph of that schedule.
- (g) References to the words **including**, **include** or similar words do not imply any limitation and are deemed to have the words **without limitation** following them.
- (h) A **gender** includes each other gender and the **singular** includes the plural and vice versa.
- (i) An obligation **not to do anything** includes an obligation not to suffer, permit or cause that thing to be done.
- (j) References to **time** and **dates** are to time and dates in New Zealand.
- (k) References to a **statute** or **statutory provision** means a New Zealand statute or statutory provision as amended, consolidated and/or replaced from time to time.
- (l) References to **\$** are references to New Zealand dollars.
- (m) References to **written** or **in writing** shall include all modes of presenting or reproducing words, figures and symbols in a visible form (including via email).
- (n) No **rule of construction** (including the contra proferentem rule) applies to the disadvantage of a Party because that Party (or its relevant advisor) was responsible for the preparation of this agreement or any part of it.

1.3 Replacement of prior agreement

Northland Regional Council, Far North District Council, Kaipara District Council and the Company are parties to a prior shareholders' agreement relating to the Company and dated 1 July 2021. The parties agree that subject to all parties signing this agreement and Whangarei District Council becoming a shareholder in the Company, the prior shareholders' agreement shall terminate, and that this agreement shall become operative as the shareholders' agreement for the Company. Termination of the prior shareholders' agreement shall not affect any rights, remedies, obligations or liabilities of the parties that have accrued up to the date of its termination.

2. The Activities

2.1 Primary objective

The primary objective of the Group is to carry on the Activities.

2.2 Conduct of the Company

The Activities will be conducted in accordance with this agreement and on the basis of the Statement of Intent, noting that the Company is intending to benefit the Northland community and not to make a profit.

3. Parties' Rights and Obligations

3.1 Rights attaching to Shares

Subject to the provisions of this agreement, the Constitution and the terms on which a Share is issued, a Share confers on the holder:

- (a) **right to vote:** the right to one vote on a poll at a meeting of Shareholders on any resolution, including any resolution to:
 - (i) appoint or remove a Director (subject to clause 4) or an auditor;
 - (ii) adopt a Constitution (if the Company does not have one);
 - (iii) alter the Constitution (if the Company has one);
 - (iv) approve a major transaction (as that term is defined in section 129(2) of the Companies Act);
 - (v) approve an amalgamation under the Companies Act; and
 - (vi) put the Company into liquidation;
- (b) **Dividends:** the right to an equal share in Dividends authorised in accordance with this agreement; and
- (c) **distribution of surplus assets:** the right to an equal share in the distribution of the Company's surplus assets.

3.2 General obligations

Each Shareholder shall do or cause to be done all things necessary or desirable in its capacity as a Shareholder to carry out this agreement, including (to the extent permitted by law) by:

- (a) **voting:** exercising (or procuring the exercise of) voting rights at Shareholders' meetings and/or Board meetings (as applicable); and
- (b) **signing documentation:** signing (or procuring the exercise of) written Shareholders' and/or Board resolutions, consents, waivers or other documents,

to carry out and to cause to be carried out this agreement. For the avoidance of doubt, in complying with its obligations under this clause 3.2 no Shareholder or Director shall be required to act in breach of any legal or fiduciary duty owed to the Company.

3.3 Obligations of the Company

The Parties acknowledge that the Company has been made a Party in order to bind it to, and allow it to enforce, the provisions of this agreement. Where any provision of this agreement requires the Company to perform and observe obligations, each Shareholder agrees to do all things necessary to cause the Company to perform and observe those obligations.

4. Directors

4.1 Appointment and removal of Directors

All appointments and any removal of a Director shall be made by the Joint Committee for as long as the Joint Committee remains in existence. If there is no Joint Committee all appointments and any removal of a Director will be made by Ordinary Resolution. The Shareholders shall adopt a joint policy on the appointment of Directors to the Company to satisfy the requirement of section 57 of the Local Government Act 2002 and abide by this policy instead of any general policy adopted by a Shareholder under section 57 of the Local Government Act 2002 relating to Council organisations generally.

4.2 Term of Appointment

Each Director shall be appointed for a term of up to 3 years, subject to removal in accordance with clause 4.1 and at the end of that term will automatically resign.

4.3 Notice requirement

All appointments and removals of Directors pursuant to this clause 4 must be made by written notice to the Company, with a copy of the notice promptly delivered to the Shareholders. No appointment, removal or replacement will become effective until such notice is received by the Company, unless the notice specifies a later time at which the appointment, removal or replacement will take effect.

4.4 **Director compliance with this agreement and the Constitution**

The Joint Committee must procure that each Director:

- (a) **receives this agreement and the Constitution:** receives a copy of this agreement and the Constitution; and
- (b) **enforcement:** undertakes to enforce and observe its terms, and the terms of the Constitution, on behalf of the Company in his or her capacity as a Director.

5. **The Board**

5.1 **Powers of the Board**

Except as otherwise specifically provided in this agreement, the Board has full power to direct the activities of the Company in the conduct of the Activities.

5.2 **Delegated authorities**

The Board may grant a set of delegated authorities for the day-to-day operation and management of the Activities.

5.3 **Board meetings**

If at any time the Company has more than one Director, the Board shall meet at least once every Quarter at such time and place as the Directors may agree to in writing.

5.4 **Notice of Board meetings**

A Director may convene a Board meeting by giving not less than five Business Days written notice to every Director. The notice must:

- (a) **postal or email address:** be sent to the postal or email address that the Directors provide to the Company for the purpose of receiving notices;
- (b) **date, time and place:** specify the date, time and place of the meeting; and
- (c) **matters to be discussed:** include an indication of the matters to be discussed at the meeting.

Any irregularity in the notice of a Board meeting is waived if all Directors attend the meeting without protest as to the irregularity or if all Directors agree to waive the irregularity.

5.5 **Board Quorum**

No business may be transacted at a Board meeting unless a Board Quorum is present.

5.6 **Manner of holding Board meetings**

Board meetings may be conducted by telephone conference, video conference or any similar means of electronic, audio or audio-visual communication. Accordingly, Directors participating in a Board meeting via such means shall be deemed to be present in person at the meeting and shall be entitled to be counted in the Board Quorum and to vote.

5.7 **Lack of Board Quorum and adjournment**

If the Directors required to constitute a Board Quorum are not present (whether in person or by any of the methods specified in clause 5.6) within 30 minutes after the time appointed for holding the Board meeting, the following shall apply:

- (a) **Adjournment:** The Board meeting shall be adjourned to the next Business Day following that Board meeting at the same time and place.
- (b) **Adjourned meeting:** If at the adjourned meeting a Board Quorum is not present within 30 minutes after the time scheduled for the meeting, the Directors present shall then

constitute a Board Quorum.

5.8 Chairperson

The Board may elect one of the Directors as Chairperson, who shall hold office until he or she resigns or the Board elects another Chairperson in his or her place.

5.9 Voting at Board meetings

Subject to the provisions of this agreement , at Board meetings:

- (a) **simple majority:** any question arising or any resolution proposed must be decided by a simple majority of the votes cast by the Directors present;
- (b) **one vote per Director:** each Director is entitled to one vote;
- (c) **no casting vote for Chairperson:** the Chairperson (where one has been elected) shall not have a casting (or second) vote in the event of an equality of votes; and
- (d) **manner of voting:** a Director present is presumed to have agreed to, and voted in favour of, a Board resolution unless that Director expressly abstains from or votes against the resolution.

5.10 Written Board resolutions

- (a) **Written resolution in lieu of Board meetings:** In accordance with section 7, schedule 3 of Companies Act, a Board resolution in writing, signed or assented to by all Directors then entitled to receive notice of a Board meeting, is valid and effective as if it had been passed at a Board meeting duly convened and held.
- (b) **Assenting by email:** Without limitation, a Director may assent to a written Board resolution by email or other electronic means.

6. Shareholders' Meetings

6.1 Proceedings at Shareholders' meetings

The provisions of schedule 1 of the Companies Act shall govern proceedings at Shareholders' meetings, provided that no business may be transacted at a Shareholders' meeting unless a quorum for a meeting of Shareholders (as that term is defined at clause 6.2 below) is present.

6.2 Quorum of Shareholders

- (a) Subject to clause 6.2(b), for the purposes of clause 6.1, a quorum for a meeting of Shareholders is present if shareholders or their proxies are present or have cast postal votes who are between them able to exercise 100% of the votes to be cast on the business to be transacted by the meeting.
- (b) If a quorum as defined under clause 6.2(a) is not present within 30 minutes after the time appointed for a Shareholders' meeting, the meeting shall be adjourned to the same day in the following week at the same time and place and if, at the adjourned meeting, a quorum as defined under clause 6.2(a) is not present within 30 minutes after the time appointed for the adjourned meeting, the shareholders or their proxies present or have cast postal votes shall constitute a quorum for that meeting of Shareholders.

7. Joint Committee Approval

7.1 Matters requiring Joint Committee Approval

The following matters affecting the Company and the Activities shall require Joint Committee Approval before being undertaken, or agreed to be undertaken, by the Company:

- (a) **Significant financial commitments:** The entry into any financial commitment exceeding \$500,000.
- (b) **Significant asset acquisitions and disposals:** The acquisition or disposition of any assets valued in excess of \$100,000.
- (c) **Long term contracts:** The entry into any agreements involving a term exceeding 3 years

and with a total consideration payable by the Company under the contract of an amount more than \$100,000.

- (d) **Remuneration of Directors:** The remuneration of Directors, and any increase in the remuneration of such persons.
- (e) **Changes to the Activities:** Any changes to the Activities or the way the Activities are conducted, operated or carried on.
- (f) **Loans:** The making or providing of any loan or other financial facility.
- (g) **Incurring debt:** The incurring of any indebtedness or obligation in the nature of borrowing under any loan, guarantee or other financial facility.
- (h) **Establishing a subsidiary:** the establishment of a subsidiary as defined in the Companies Act.
- (i) **Issuing New Securities:** The issue of any New Securities.

7.2 Major transactions

For the avoidance of doubt, the matters requiring Joint Committee Approval under clause 7.1 are in addition to, and not in substitution for, the major transaction provisions under section 129 of the Companies Act.

7.3 Pre-approval in Statement of Intent

If any of the matters set out in clause 7.1 are expressly contemplated in, or proposed to be undertaken by, the Company in the then current Statement of Intent, then the Company may undertake that matter or those matters without having to obtain Joint Committee Approval.

8. Group Governance

8.1 Subsidiaries

The Company may at any time have one or more Subsidiaries. The Parties will procure that the affairs of the Group are carried on in a manner that is consistent with the provisions of this agreement.

8.2 Joint Committee Approval in respect of certain actions of Group Companies

The obligation to obtain Joint Committee Approval under clause 7.1 shall, in the event that the Company has any interest in any Subsidiary, be deemed to apply to the business or actions taken by any such Subsidiary as well as by the Company as if references to the Company were also references to each and every Subsidiary.

8.3 The board of Group Companies

The Company will (to the extent permitted by law) procure that the board of directors of each Group Company is the same as the Board (unless the Board resolves otherwise).

9. Issue of New Securities

9.1 Pre-emptive rights

The Shareholders shall have the pre-emptive rights in respect of the issue of New Securities set out in this clause 9.

9.2 Offers of New Securities

If the Company issues or proposes to issue New Securities, the Company must first offer those New Securities to all Shareholders by delivering an Offer Notice containing the following information:

- (a) **Details of the offer:** Details of the number and subscription price of the New Securities on offer.
- (b) **Terms of issue:** The terms of issue of the New Securities.

- (c) **Invitation:** An invitation for the Shareholders to make a Subscription Application.
- (d) **Offer Expiry Date:** The Offer Expiry Date, which must be a reasonable time period as determined by the Board.
- (e) **Pro-rata Entitlement:** The Pro-rata Entitlement of each Shareholder in respect of the New Securities on offer.
- (f) **Additional subscription:** An invitation for the Shareholders to indicate if they are willing to subscribe for New Securities in excess of their Pro-rata Entitlement, and, if so, the number of additional New Securities that they are willing to subscribe for.
- (g) **Competition for New Securities:** A statement that, if there is competition among the Shareholders for the New Securities on offer, the Company will allocate the New Securities on the basis set out in clause 9.6.

9.3 FMCA Disclosure Exemption

It may be a condition of any offer of New Securities under this clause 9 that each Shareholder accepting such offer must provide evidence reasonably satisfactory to the Board that an FMCA Disclosure Exemption applies to it. For the avoidance of doubt, any offer which includes this condition will satisfy the pre-emptive requirements in this clause 9 notwithstanding that some Shareholders may not be eligible to accept such offer.

9.4 Subscription Applications

Following receipt of an Offer Notice, any Shareholder may make an irrevocable Subscription Application before the Offer Expiry Date. Each Subscription Application must state the following:

- (a) **Number of New Securities desired:** The number of New Securities that the Shareholder wishes to subscribe for, which may be all or part of the Shareholder's Pro-rata Entitlement.
- (b) **Additional New Securities:** Whether the Shareholder is willing to subscribe for New Securities in excess of its Pro-rata Entitlement, and, if so, the number of additional New Securities that it is willing to subscribe for.

9.5 Deemed rejection of offer

If no Subscription Application has been received by the Company from a Shareholder by 5.00pm on the Offer Expiry Date, that Shareholder will be deemed to have rejected the offer of New Securities in full.

9.6 Allocation of New Securities

No later than five Business Days after the Offer Expiry Date, the Board must allocate the New Securities to the Shareholders that made a Subscription Application on the following basis:

- (a) **Pro-rata Entitlement:** The Shareholders that applied for all or less than their Pro-rata Entitlement of New Securities shall be allocated the New Securities applied for in their Subscription Application.
- (b) **Additional subscriptions:** The Shareholders that stated in their Subscription Application that they wish to purchase a specific number of New Securities in excess of their Pro-rata Entitlement shall be allocated any remaining New Securities that have not been allocated under clause 9.6(a) according to the proportion that such Shareholder's Shares bear to the aggregate number of Shares of all Shareholders that wish to subscribe for New Securities in excess of their Pro-Rata Entitlement, provided that no Shareholder shall be allocated more New Securities than it applied for.
- (c) **Rounding:** Fractional entitlements shall be rounded to the nearest whole number of New Securities.

9.7 Notice of allocation of New Securities

No later than five Business Days after the Board has made the allocations of New Securities under clause 9.6, the Board must notify each Shareholder that has made a Subscription Application of:

- (a) **allocation:** its allocation of New Securities;
- (b) **price payable:** the total price payable for those New Securities;

- (c) **subscribers**: the names of the other Shareholders that made a Subscription Application (if any) and the number of New Securities allocated to them; and
- (d) **unallocated New Securities**: the number of New Securities that are yet to be allocated (if any).

9.8 **Issue of New Securities to third parties**

Following completion of the procedure set out in clauses 9.2 to 9.7, the Board may issue any New Securities that have not been subscribed for by Shareholders to any third party provided that the terms of issue are no more favourable to that third party than the terms which were offered to the Shareholders, but otherwise on such terms as the Board may determine.

9.9 **Deed of Accession**

It is a condition precedent to the issue of any Shares by the Company to any person who is not a Party that such person signs and delivers to the Company a Deed of Accession.

9.10 **Exclusion of pre-emptive rights**

For the purposes of this clause 9, the Constitution and the Companies Act, the pre-emptive rights of the Shareholders in relation to the issue of New Securities shall not apply where:

- (a) **unanimous written agreement of all Shareholders**: all of the Shareholders agree in writing;
- (b) **Share consolidations or subdivisions**: the Company issues Shares to all Shareholders for nil consideration under any pro-rata bonus issue of Shares, or any consolidation or subdivision of the Shares, that affects all Shareholders equally.

10. **Share Transfer Restrictions**

10.1 **Pre-emptive rights on the transfer of Shares**

The Parties shall have the pre-emptive rights in respect of the transfer of Shares set out in this clause 10. Accordingly, a Transferor may only transfer, or attempt or offer or agree to transfer, any direct, indirect, legal or beneficial interest (whether arising at law or in equity) in any Transfer Shares in accordance with this clause 10.

10.2 **Transfer Notice**

The Transferor must give an irrevocable Transfer Notice to the Board, which must appoint the Board as the Transferor's agent for the proposed sale and specify the following:

- (a) **Number of Transfer Shares**: The number of Transfer Shares that it wishes to sell.
- (b) **Sale price**: The sale price, which must be \$2 per Share.
- (c) **Terms**: Any terms of sale, which must be set out with sufficient certainty to enable a binding contract to be formed with transferees of the Transfer Shares.
- (d) **Minimum transfer**: Any Minimum Transfer Condition.
- (e) **Existing offers**: Whether the Transferor has received any offers or interest regarding the purchase of the Transfer Shares from any person (including, for the avoidance of doubt, from any Shareholder). If so, the Transferor must provide the names of such person or persons and full details of their offer or stated interest.

10.3 **Offer of Transfer Shares**

Within 10 Business Days of receipt of a Transfer Notice, the Board must give an Offer Notice to all Shareholders (other than the Transferor), which shall include the following:

- (a) **Transfer Notice contents**: The contents of the Transfer Notice.
- (b) **Pro-rata Entitlements**: The Pro-rata Entitlement of each Shareholder in respect of the Transfer Shares on offer.
- (c) **Invitation**: An invitation for those Shareholders to:
 - (i) apply to purchase the Transfer Shares at the sale price specified in the Offer

Notice; and

- (ii) indicate if they are willing to purchase Transfer Shares in excess of their Pro-rata Entitlement, and, if so, the number of additional Transfer Shares that they are willing to purchase.
- (d) **Offer Expiry Date:** The Offer Expiry Date, which must be determined by the Board and be at least 20 Business Days after the date of the Offer Notice.
- (e) **Competition for Transfer Shares:** A statement that, if there is competition for the Transfer Shares among the Shareholders, the Transfer Shares will be allocated on the basis set out in clause 10.7.

10.4 **FMCA Disclosure Exemption**

It may be a condition of any offer of Transfer Shares under this clause 10 that each Shareholder accepting such offer must provide evidence reasonably satisfactory to the Board that an FMCA Disclosure Exemption applies to it. For the avoidance of doubt, any offer which includes this condition will satisfy the pre-emptive requirements in this clause 10 notwithstanding that some Shareholders may not be eligible to accept such offer.

10.5 **Purchase Applications**

Following receipt of an Offer Notice, any Remaining Shareholder may make an irrevocable Purchase Application to the Board on or before the Offer Expiry Date. Each Purchase Application must state:

- (a) **Number of Transfer Shares desired:** the number of Transfer Shares that the Remaining Shareholder wishes to purchase, which may be all or part of the Shareholder's Pro-rata Entitlement; and
- (b) **Additional Transfer Shareholders:** whether the Remaining Shareholder is willing to purchase Transfer Shares in excess of its Pro-rata Entitlement, and, if so, the number of additional Transfer Shares that it is willing to purchase.

10.6 **Deemed rejection of offer**

If no Purchase Application has been received by the Board from a Remaining Shareholder by 5.00pm on the Offer Expiry Date, that Remaining Shareholder will be deemed to have rejected the offer set out in the Offer Notice in full.

10.7 **Allocation of Transfer Shares**

No later than five Business Days after the Offer Expiry Date, the Board must allocate the Transfer Shares to the Shareholders that made a Purchase Application on the following basis:

- (a) **Pro-rata Entitlement:** The Shareholders that applied for all or less than their Pro-rata Entitlement of Transfer Shares shall be allocated the Transfer Shares applied for in their Purchase Application.
- (b) **Excess Transfer Shares:** The Shareholders that stated in their Purchase Application that they wish to purchase a specific number of Transfer Shares in excess of their Pro-rata Entitlement shall be allocated any remaining Transfer Shares that have not been allocated under clause 10.7(a) according to the proportion that such Shareholder's Shares bear to the aggregate number of Shares of all Shareholders that wish to purchase Transfer Shares in excess of their Pro-Rata Entitlement, provided that no Shareholder shall be allocated more Transfer Shares than it applied for.
- (c) **Rounding:** Fractional entitlements shall be rounded to the nearest whole number of Transfer Shares.

10.8 **Notice of allocation of Transfer Shares**

No later than five Business Days after the Board has made the allocations of Transfer Shares under clause 10.7, and provided that the Minimum Transfer Condition (if any) has been satisfied or waived in writing by the Transferor, the Board must notify each Shareholder that has made a Purchase Application of:

- (a) **allocations:** its allocation of Transfer Shares;

- (b) **price payable:** the total price payable for those Transfer Shares;
- (c) **Shareholders that made a Purchase Application:** the names of the other Shareholders that made a Purchase Application (if any) and the number of Transfer Shares allocated to them; and
- (d) **unsold Transfer Shares:** the number of unsold Transfer Shares (if any).

10.9 **Company buyback right**

Following completion of the procedure set out in clauses 10.1 to 10.8, if not all of the Transfer Shares have been accepted for purchase by the Shareholders in accordance with those provisions, or if the Minimum Transfer Condition has not been satisfied, the Company may, subject to the Companies Act and no later than 10 Business Days after the Offer Expiry Date, purchase and cancel or hold as treasury stock, any or all of the Transfer Shares not accepted for purchase at a price of \$2 per Share.

10.10 **Transfer to a third party**

Following completion of the procedure set out in clauses 10.1 to 10.9, if not all of the Transfer Shares have been accepted for purchase by the Shareholders in accordance with those provisions, or if the Minimum Transfer Condition has not been satisfied, the Transferor may transfer the Transfer Shares to any third party at any time before the expiry of 6 months after the date of the Offer Notice, provided that:

- (a) **terms:** such transfer is made on terms that are no more favourable to the third party than those set out in the Offer Notice;
- (b) **Board approval:** the Board has approved the transfer in writing (such approval is not to be unreasonably or arbitrarily withheld, conditioned or delayed); and
- (c) **Deed of Accession:** the third party signs and delivers to the Company a Deed of Accession.

10.11 **Exclusion of pre-emptive rights**

The pre-emptive rights set out in this clause 10 shall not apply:

- (a) **unanimous written agreement of all Shareholders:** where all of the Shareholders agree in writing; or
- (b) **qualifying transfers:** in respect of any transfer of Shares, or any interest in Shares, pursuant to clause 11.

11. **Exiting shareholders**

If at any point after the date of this agreement any of Northland Regional Council, Kaipara District Council, Far North District Council or Whangarei District Council (an **Exiting Shareholder**) serves a written notice on the Company giving at least six months prior notice that they wish to cease being a Shareholder of the Company (**Exit Notice**) as of the immediately following 30 June (**Exit Date**), the Exiting Shareholder shall transfer all of its Shares in equal numbers to the other Shareholders at a price of \$2 per share payable by the other shareholders (**Transfer**). The Transfer will occur on the Exit Date or within 10 Business Days thereof and, for the avoidance of doubt, clause 12 shall apply to the Transfer.

12. **Completion of Share Transfers**

12.1 **Completion**

At completion of a transfer of Shares under this agreement, the Transferor shall transfer such Shares to the transferee:

- (a) **no Encumbrances:** free of any Encumbrances; and
- (b) **share transfer form:** by way of a duly completed share transfer form signed by the Transferor and transferee.

12.2 Registration of Share transfers

A Transferor of a Share shall remain the holder of a Share until the name of the transferee is entered in the Share Register.

12.3 Limited release

Once a transfer of all of a Shareholder's Shares has been registered in the Share Register, that Shareholder will cease to be bound by this agreement. Notwithstanding this, such transfer will not affect any accrued rights or obligations of any Shareholder, nor will it affect any provision in this agreement which comes into force on, or continues in force, after the transfer.

13. Common Purpose

- 13.1 The Shareholders agree that they will act together in good faith with a common purpose of furthering the Activities of the Company and that they will not take any action that can reasonably consider to be adverse to the interests of the Company.

14. Intellectual Property

14.1 Ownership

The Parties agree that all Intellectual Property:

- (a) **owned by the Company:** shall be and remain owned by the Company; and
- (b) **continuing ownership:** that is created, has been created or will or may be created by or on behalf of any Party prior to, on or after the date of this agreement shall be and remain owned by the Company,

and each Shareholder hereby assigns and transfers to the Company, and the Company accepts an assignment of, all of such Intellectual Property as it has come or will come in existence.

14.2 Enforcement of title

The Shareholders agree to take all actions as may be reasonably required by the Company to perfect or enforce the Company's title to the Intellectual Property, which shall include signing and delivering any document required in order to perfect or enforce such title (including, for the avoidance of doubt, a deed of assignment of intellectual property).

14.3 Enduring effect

The Parties agree that the provisions of this clause 14 shall survive the termination of this agreement. Furthermore, a Party shall continue to be bound by this clause 14 notwithstanding that the Party may have transferred its Shares or otherwise ceased to hold Shares or be a Party.

15. Provision of Accounts and Information

15.1 Financial information

The Board shall, in respect of the Company, prepare (or procure the preparation of) Management Accounts every six months (being 31 December and 30 June) and provide these accounts to Shareholders as soon as reasonably practicable after they are approved by the Board.

15.2 Disclosure of information by Shareholder appointed Directors

A Director may, pursuant to section 145(2)(a) of the Companies Act and without the need for prior Board approval, disclose Company information and/or information in relation to the Activities to the Joint Committee, or if relevant, to the Shareholder that appointed the Director under clause 4.1.

16. Dividends and Distributions

16.1 Dividend and Distribution policy

The Parties agree that it is the intention of the Parties and the Company that no Dividends or Distributions will be declared. Should a Dividend or Distribution be declared at any stage, this will only be with the prior written approval of the Joint Committee, save that if there is no Joint

Committee, a Dividend or Distribution may be declared with the approval of 75% or more of the votes of the Shareholders.

16.2 Solvency requirements for Dividends and Distribution

For the avoidance of doubt, no Dividend or Distribution shall be declared by the Company unless the Board is satisfied on reasonable grounds that all applicable legal requirements under the Companies Act have been complied with, including the Company satisfying the solvency test as required by section 52 of the Companies Act.

17. Funding

17.1 Investment and Growth Reserve funding for 2024/2025 and 2025/2026 Financial Years

The Shareholders each agree to provide funding to Northland Regional Council's Investment and Growth Reserve in the Financial Years and respective amounts specified in the table below:

Shareholder	Financial Year	
	2024/25	2025/26
Far North District Council	\$335,000	\$413,000
Kaipara District Council	\$121,000	\$149,000
Northland Regional Council	\$1,983,595	\$2,033,184
Whangarei District Council	\$475,000	\$587,000

17.2 Subsequent Financial Years

The Shareholders acknowledge that it is expected that for Financial Years 2026/2027 onwards during the term of this Agreement that Shareholders will together contribute a total combined amount ("**Total Amount**") to Northland Regional Council's Investment and Growth Reserve of \$3,473,014 in Financial Year 2026/2027 and adjusted annually for each subsequent Financial Year by the forecast percentage operating expenditure cost adjustment factor ("**Cost Adjustment Factor**") for the relevant Financial Year published by Business and Economic Research Limited for Local Government New Zealand in accordance with the following equation. Should Business and Economic Research Limited cease to publish such forecast, the Shareholders will use an alternative forecast that is agreed by the Shareholders, but failing agreement, an alternative forecast determined by an expert appointed by the president or vice president of the New Zealand Law Society as being an equivalent or as close as possible to equivalent forecast.

$$A = B \times (1 + C)$$

Where:

- A is the Total Amount for the relevant Financial Year;
- B is the Total Amount that applied in the immediately preceding Financial Year;
- C is the Cost Adjustment Factor applicable for the relevant Financial Year.

It is expected that the Shareholders will each pay a proportion of the Total Amount as follows:

- 60.00% of the Total Amount by Northland Regional Council.
- 14.38% of the Total Amount by Far North District Council
- 5.19% of the Total Amount by Kaipara District Council
- 20.44% of the Total Amount by Whangarei District Council

For the purposes of clarity, this clause 17.2 does not create a legal obligation on any Shareholder to contribute any amount to Northland Regional Council's Investment and Growth Reserve,

however, if a Shareholder does not agree to, or fails to, do so in the proportions expected under this clause, clause 17.3 will apply.

17.3 Not meeting expected contribution

If a Shareholder(s) does not agree to, or fails to, contribute to Northland Regional Council's Investment and Growth Reserve its proportion of the Total Amount expected under clause 17.2 in any Financial Year ("**Non Contributing Shareholder**"), the parties agree as follows:

- (a) Any Shareholder may request by notice in writing to the other Shareholders that the Shareholders meet to discuss in good faith whether an alternative model of contributions can be agreed for the relevant Financial Year(s).
- (b) If the Shareholders are unable to reach agreement under clause 17.5(a) within two months of the relevant request to meet first being made, any Shareholder may refer the matter to mediation as if it was a Dispute under clause 19.2.
- (c) If the Shareholders are unable to reach agreement under clause 17.5(a) or through mediation under clause 17.5(b) within three months, a majority of the Shareholders who have agreed to contribute to Northland Regional Council's Investment and Growth Reserve their proportion of the Total Amount expected under clause 17.2 may at any time within the next three months give written notice to all Shareholders and the Company under this clause and which shall take effect as if the Non Contributing Shareholder was an Exiting Shareholder who had given an Exit Notice under clause 11 and the remaining provisions of clause 11 shall apply accordingly.

18. Default

18.1 Events of Default

The following events shall each constitute an Event of Default:

- (a) **Material breach:** A Shareholder committing a material breach of its obligations under this agreement or a series of persistent breaches of this agreement that, when taken in totality, constitute a material breach of this agreement.
- (b) **Funding:** A Shareholder not providing any funding to Northland Regional Council's Investment and Growth Reserve, or the Company in the manner required by their respective Long Term Plans.
- (c) **Bankruptcy or insolvency:** A Shareholder becoming bankrupt or insolvent.
- (d) **Receiver, administrator or liquidator appointed:** A receiver, administrator or liquidator being appointed in relation to all or a material part of a Shareholder's assets.
- (e) **Liquidation, dissolution or winding-up:** The making of an order or the passing of a resolution for the liquidation, dissolution or winding-up of a Shareholder.
- (f) **Encumbrances over Shares:** A Shareholder granting, or allowing to subsist, an Encumbrance over its Shares.
- (g) **Change of Control:** Any Change of Control that occurs in respect of a Shareholder.
- (h) **Criminal and fraudulent conduct:** A Shareholder being found guilty in any court of any fraud or dishonesty offence, or committing any act of fraud against any Group Company.

18.2 Notice of Event of Default

Where an Event of Default has occurred or been committed, the Defaulting Party must promptly give written notice to the Board and the other Shareholders of this fact, describing the Event(s) of Default in reasonable detail.

18.3 Information regarding Event of Default and requirement to remedy

Where a notice is given by a Defaulting Party under clause 18.2, or if the Board or any Shareholder becomes aware of an Event of Default, the Board or any Shareholder may by written notice (with a copy promptly delivered to the other Shareholders) require the Defaulting Party to:

- (a) **information:** supply such information that it reasonably requires in order to fully assess

the nature of the Event of Default; and

- (b) **remedy default:** remedy the Event of Default, if it is capable of remedy, within 20 Business Days.

18.4 Defaulting Party

For such time as the Event of Default is continuing:

- (a) the Defaulting Party shall not be entitled to exercise any vote in connection with its Shares or give or withhold any consent or other approval contemplated by this agreement;
- (b) any Director appointed by the Defaulting Party shall not be entitled to exercise any vote at a meeting of the Board and, for the avoidance of doubt, any of the matters or transactions subject to clause 5 may be undertaken without the need to obtain the approval of any such Director.

18.5 Mandatory sale

Unless the Parties agree otherwise in writing, if:

- (a) **not capable of remedy:** a Defaulting Party commits or allows the occurrence of an Event of Default that is not capable of remedy; or
- (b) **not remedied:** a notice is given pursuant to clause 18.3(b) and the Event of Default is not remedied by the Defaulting Party within the required timeframe,

the Board may notify the Defaulting Party that it shall be deemed to have given an irrevocable Transfer Notice in respect of all of its Shares and be required to sell such Shares pursuant to clause 18.6.

18.6 Terms of sale

Where a Transfer Notice is deemed to be given under clause 18.5, the Defaulting Party's Shares shall be offered for sale according to the provisions of clause 10, except that the following terms shall apply:

- (a) **Sale price:** The sale price for the Shares must be \$2 per Share.
- (b) **Power of attorney:** The Defaulting Party shall be deemed to have irrevocably appointed any person nominated by the Company to be its duly authorised agent and attorney to sign all necessary transfers on its behalf in respect of the Shares.
- (c) **Rights, benefits and entitlements:** Any Shares transferred will be deemed to be sold by the Defaulting Party with effect from the date of such transfer free from any Encumbrance and with all rights, benefits and entitlements attaching to them.

19. Dispute Resolution

19.1 Negotiation

All Disputing Parties must use reasonable endeavours to resolve any and all Disputes by negotiation. If a Dispute is settled following negotiations under this clause 19.1, such settlement shall be recorded in writing and be signed by the Disputing Parties, whereupon it shall be final and binding on the Disputing Parties.

19.2 Mediation

If the Disputing Parties cannot resolve their Dispute by negotiations under clause 19.1 within 20 Business Days, a Disputing Party may, by written notice to the other Disputing Party or Disputing Parties, require that the Dispute be dealt with by mediation under the following terms:

- (a) **Mediation Protocol:** The mediation shall be conducted in accordance with the Mediation Protocol of AMINZ then in force (or any protocol or mediation agreement which replaces it).
- (b) **Mediator:** The mediation shall be conducted by a mediator and at a fee agreed in writing by the Disputing Parties. Failing agreement between the Disputing Parties within 10 Business Days of the giving of the notice requiring mediation, the mediator will be selected and his or her fee determined by the chairperson for the time being of AMINZ (or his or her

nominee).

- (c) **Location:** The mediation shall take place in Northland, New Zealand at such address as determined by the mediator, provided that any Disputing Party may, if permitted by the mediator, attend via telephone conference, video conference or any similar means of electronic, audio or audio-visual communication.
- (d) **Settlement:** If the Dispute is settled at or following mediation under this clause 19.2, such settlement shall be recorded in writing and be signed by the Disputing Parties, whereupon it shall be final and binding on the Disputing Parties.
- (e) **Costs:** The costs of the mediation, excluding the Disputing Parties' own legal and preparation costs, will be shared equally by the Disputing Parties.

19.3 Court or arbitration proceedings

No Disputing Party may initiate or commence court or arbitration proceedings relating to a Dispute unless it has complied with the procedure set out in this clause 19, provided that application may still be made to the courts:

- (a) **interlocutory relief:** for interlocutory relief;
- (b) **debts:** to recover or enforce a debt payable; or
- (c) **enforce settlement:** to enforce a settlement agreed to by the Disputing Parties under clause 19.1 or 19.2.

20. Termination

20.1 Termination of this agreement

Except where this agreement explicitly states otherwise, this agreement will continue in force until:

- (a) **unanimous written agreement:** the date on which the Shareholders unanimously agree in writing that it will terminate;
- (b) **sole ownership:** all of the Shares become owned by one Shareholder or any third party; or
- (c) **dissolution:** the date of dissolution of the Company following its liquidation, whether such liquidation is voluntary or compulsory.

20.2 Accrued rights and obligations on termination

Termination of this agreement shall not affect any rights, remedies, obligations or liabilities of the Parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the agreement which existed at or before the date of termination.

21. Relationship of the Parties

21.1 No partnership or agency

None of the provisions of this agreement will create or constitute, or be deemed to create or constitute (for any purpose whatsoever):

- (a) **no partnership:** a partnership between the Parties (in the legal sense of being partners in a partnership involving profit sharing and joint and several liability); or
- (b) **no agency:** any Party as an agent of any other Party, except where this agreement specifies otherwise.

21.2 Shareholders are not liable for any other Party

Except as set out in this agreement, each Shareholder is responsible and liable for its obligations under this agreement and is not responsible or liable for any obligation of any other Party.

21.3 No authority to bind

Except as provided in this agreement or by written agreement between one or more Parties, no Party will have any authority or power to bind or commit, act on behalf of, represent, or hold itself

out as having authority to act as an agent of, the other Parties in relation to any obligations.

22. Prevailing Terms

22.1 Agreement prevails

The terms of this agreement will prevail over anything to the contrary contained in, or that may be in conflict or inconsistent with, the Constitution.

22.2 Constitution to be consistent with this agreement

The Shareholders shall ensure that, at all times, the Constitution is consistent with the provisions of this agreement.

22.3 Actions required

The Parties will (to the extent permitted by law) do everything required to give effect to the terms of this agreement and will, if necessary, amend or replace the Constitution to give effect to the terms of this agreement.

22.4 No deemed amendments to the Constitution

Nothing contained in this agreement shall be deemed to constitute an amendment to the Constitution.

23. Confidentiality

23.1 Confidentiality obligations

Except as permitted in this clause 23, no Party will disclose, communicate or distribute to any third party any Confidential Information.

23.2 Disclosure to Related Parties

Each Party may disclose Confidential Information to its Related Parties, but only where that Party's Related Parties have agreed in writing to comply with that Party's confidentiality obligations under this agreement. The Parties agree that they will be wholly responsible for all acts and omissions of their Related Parties concerning any Confidential Information disclosed to them.

23.3 Limits on obligations

A Party will not have to observe any duty of confidentiality concerning Confidential Information that:

- (a) **prior written consent:** the other Parties all give their prior written consent to the disclosure of;
- (b) **required by law:** is required to be disclosed by law or any legislative or regulatory authority in any competent jurisdiction that has jurisdiction over the Party;
- (c) **listing rules and continuous disclosure:** is required to be disclosed or announced in accordance with the listing rules or continuous disclosure rules of any recognised securities exchange;
- (d) **necessary for performance:** is necessary to be disclosed to enable a Party to perform its obligations under this agreement; or
- (e) **information in the public domain:** at the time of disclosure is in, or subsequently enters, the public domain otherwise than by breach of any duty of confidentiality under this agreement.

23.4 Enduring effect

The restrictions in this clause 23 will continue to apply after the termination of this agreement.

24. Notices

24.1 Written notice

All notices and other communications to be given under this agreement must be in writing and be addressed to the Party to whom it is to be sent at the physical address or email address from time to time designated by that Party in writing to the other Parties for such purpose.

24.2 Consent to receipt of notices by electronic means under section 391 of the Companies Act

Each Shareholder hereby gives notice to the Company that, for the purposes of section 391 of the Companies Act, annual reports, notices and other documents required to be sent to a Shareholder shall be sent by email to the email address from time to time designated by that Shareholder under clause 24.1.

24.3 Deemed delivery

Any notice or communication given under this agreement shall be deemed to have been received:

- (a) **by hand:** at the time of delivery, if delivered by hand;
- (b) **by post in New Zealand:** 3 Business Days after the date of mailing, if sent by ordinary post or courier within New Zealand;
- (c) **by post from overseas:** 10 Business Days after the date of mailing, if posted, couriered or delivered overseas; or
- (d) **by email:** if sent by email, on the date and time at which it enters the recipient's information system, as evidenced (if required by a recipient where delivery is disputed) in a confirmation of delivery report from the sender's information system which indicates that the email was sent to the email address of the recipient.

24.4 Delivery after 5.00pm or on non-Business days

Any notice or communication received or deemed received after 5.00pm or on a day which is not a Business Day in the place to which it is delivered, posted or sent will be deemed not to have been received until the next Business Day in that place.

25. General Provisions

25.1 Entire agreement

This agreement constitutes the entire agreement and understanding of the Parties relating to the matters dealt with in this agreement and supersedes and extinguishes any previous agreement (whether oral or written) between the Parties in relation to such matters. Nothing in this clause 25.1 operates to limit or exclude any liability for fraud.

25.2 Capacity

Each Party warrants and represents to the others that:

- (a) **power and authority:** it has full power and authority to enter into this agreement;
- (b) **authorisation and approvals:** all authorisations and approvals that are necessary or required in connection with the signing by that Party of this agreement, and its assumption of rights and obligations under it, have been obtained; and
- (c) **no breach or default:** the signing, delivery and performance of this agreement does not constitute a breach by that Party of any law or obligation and will not cause or result in any default or breach under any other agreement or arrangement by which that Party is bound.

25.3 Assignment

Subject to the terms of this agreement, none of the Parties will assign or transfer, or purport to assign or transfer, any of their rights or obligations under this agreement without the prior written consent of the other Parties.

25.4 No waiver

No Party will be deemed to have waived any right under this agreement unless the waiver is in writing and signed by that Party. A failure to exercise or delay in exercising any right under this agreement will not operate as a waiver of that right.

25.5 **Amendments**

This agreement may not be amended or varied in any way unless such amendment or variation is made by deed and signed by each Party.

25.6 **Severability**

If any provision of this agreement is found by a court or other competent authority to be void or unenforceable, such provision will be deemed to be deleted from this agreement and the remaining provisions of this agreement will continue in full force and effect.

25.7 **Costs and expenses**

Except as expressly provided in this agreement, each Party shall pay its own costs and expenses incurred in connection with the negotiation, preparation, execution and preparation of this agreement (and any documents referred to in it).

25.8 **Rights and remedies**

Unless otherwise expressly provided in this agreement, the rights and remedies set out in this agreement are in addition to, and not in limitation of, any other rights and remedies under or relating to this agreement (whether at law or in equity), and the exercise of one right or remedy will not be deemed a waiver of any other right or remedy.

25.9 **Limitation of liability for trustees**

The liability of any independent trustee of any trust which is or becomes a Party is not unlimited or personal liability and instead shall be limited to the assets of the trust from time to time. A trustee will be deemed to be an independent trustee for the purposes of this clause if he, she or it is not a beneficiary or the settlor of the trust.

25.10 **Counterparts**

This agreement may be signed and delivered in any number of counterparts, including by way of electronic transmission where a Party signs a counterpart and sends it as a PDF to the other Parties, or the Company, by email. All such counterparts, when taken together, shall constitute one and the same instrument and, notwithstanding the date of signing, will be deemed to bear the date of this agreement.

25.11 **Electronic signing**

Any Party may:

- (a) **Party's electronic signature:** sign this agreement by way of application of that Party's electronic signature; and
- (b) **witness' electronic signature:** have their signature witnessed by way of the application of the witness' electronic signature,

in each case in accordance with Part 4 of the Contract and Commercial Law Act 2017.

25.12 **Governing law and jurisdiction**

This agreement, and any claims arising out of or in connection with it or its subject matter or formation (including non-contractual claims), will be governed by and construed in accordance with the laws of New Zealand and the Parties irrevocably submit to the exclusive jurisdiction of the courts of New Zealand for any matter arising under or relating to this agreement or its subject matter or formation or the relationships established by it (including non-contractual claims).

Signatures

Signed and **delivered** as a deed.

Signed by Northland Inc Limited by two directors:

Director's signature

Director's signature

Director's full name

Director's full name

Signed for and on behalf of **Northland Regional Council** by its duly authorised officer in the presence of:

[name]

Signature of witness

Name of witness

Occupation

Address

Signed for and on behalf of **Far North District Council** by its duly authorised officer in the presence of:

[name]

Signature of witness

Name of witness

Occupation

Address

Signed for and on behalf of **Kaipara District Council**
by its duly authorised officer in the presence of:

_____ **[name]**

Signature of witness

Name of witness

Occupation

Address

Signed for and on behalf of **Whangarei District Council** by its duly authorised officer in the presence of:

_____ **[name]**

Signature of witness

Name of witness

Occupation

Address

Schedule 1 | Deed of Accession

Deed of Accession

This deed is made by [new shareholder's name] (the **New Shareholder**) on this day of [year].

Introduction

The New Shareholder wishes to acquire shares in [] Limited (company number []) (the **Company**).

The Company and its shareholders (together, the **Parties**) are party to a shareholders' agreement relating to the Company, dated [insert date] (the **Shareholders' Agreement**). Under the Shareholders' Agreement, the New Shareholder is required to enter into this deed.

Terms of this Deed

1. Shareholders' Agreement

The New Shareholder acknowledges that it has been given a copy of the Shareholders' Agreement and has read it and understands its terms.

2. Accession

With effect from the date of this deed, the New Shareholder agrees that it will become a party to the Shareholders' Agreement and be legally bound by its terms as if it had been named as a party to it and had signed it.

3. Contractual Privity

The New Shareholder agrees that, for the purposes of Part 2, Subpart 1 of the Contract and Commercial Law Act 2017, this deed is made and fully intended to confer a benefit on, and be legally enforceable by, the Parties and any other party or parties who may, after the date of this deed, become a party to the Shareholders' Agreement.

4. Governing Law and Jurisdiction

This deed will be governed by, and construed in accordance with, the laws of New Zealand and the New Shareholder irrevocably submits to the exclusive jurisdiction of the courts of New Zealand for any matter arising under or relating to this deed.

Execution

Signed and delivered as a deed.

[Insert execution clause for the New Shareholder.]

Joint Regional Economic Development Committee Terms of Reference¹

Background

Economic development is listed as one of the five policy priorities of Local Government New Zealand. Globalisation and the relaxation of border controls have been radically changing the way in which local and regional economies work. Cities, districts and regions in New Zealand are now competing against their peers in other parts of the world for the same capital and same skilled workers. The COVID-19 pandemic and associated policy responses disrupted this long-term trend and brought additional challenges to the economy. To succeed, local authorities need to ensure that they not only offer a good life and effective infrastructure and services they must also promote these attributes. Economic development agencies such as Northland Inc Limited play an important role in bridging the gaps in local economies, leveraging local advantage, and promoting the region both nationally and internationally.

Economic growth is vital for generating the resources needed to address some of the pressing problems affecting Northland, such as poor housing, health and education. Councils wish to improve Northland's economic performance to support strong communities and environmental sustainability.

A joint committee of the Northland Regional Council and the Far North, Kaipara and Whangarei district councils elected council members is fundamental to ensuring these outcomes are achieved in a coordinated and collaborative way across Te Taitokerau.

Membership

The Joint Regional Economic Development Committee (the **committee**) is a joint committee made up of elected members from the Northland Regional Council, the Far North District Council the Kaipara District Council and the Whangarei District Council.

The committee shall have eight members as follows:

Two elected members from:	Kaipara District Council Far North District Council Northland Regional Council Whangarei District Council
---------------------------	--

Each council shall also appoint one alternative elected member who will have full speaking and voting rights when formally acting as the alternate.

Ex officio: Whereas the Mayors of Far North, Kaipara and Whangarei district councils are a member of all committees by virtue of section 41A(5) of the Local Government 2002, the Mayors have agreed not to exercise this right of membership.

Role and Responsibilities

- 1) All responsibilities, duties and powers of a local authority as a shareholder in Northland Inc. Limited are, as far as legally possible, delegated to the committee. For avoidance of doubt, a meeting of the committee is not a meeting of shareholders under the Companies Act 1993.

¹ Approved by NRC at its meeting on [insert date] 2024, FNDC on [insert date] 2024, KDC on [insert date] 2024 and WDC on [insert date] 2024.

- 2) Make funding allocations from the Investment and Growth Reserve (IGR) administered by Northland Regional Council.
- 3) Receive advice and provide direction and support to economic development in Te Taitokerau.
- 4) Make recommendations to member councils to ensure a consistent regional approach is applied and adopted to economic development activities.
- 5) Act collectively as an advocate for regional economic development generally and within the individual bodies represented on the committee.
- 6) Ensure the bodies represented on the committee are informed of economic development activities in Te Taitokerau.

Status

The committee is a joint committee of council as provided for under Clause 30(1)(b) of Schedule 7 of the Local Government Act 2002 and shall operate in accordance with the provisions of Clause 30A of Schedule 7 that Act.

The committee has no powers under the Local Government Act 2002 (or any other Act) other than those delegated by decision of all member councils.

The committee shall operate under Northland Regional Council Standing Orders.

Joint Committee not discharged at triennial elections

Pursuant to Clause 30(7) of Schedule 7 of the Local Government Act 2002, the councils have resolved that this joint committee is not discharged at the triennial elections. However, on coming into office following an election, a council may choose to review its appointments to the committee.

Committee Chair and Deputy Chair:

The Chair and Deputy Chair are to be elected by members at the first meeting of the committee according to System A of clause 25 of Schedule 7 of the Local Government Act 2002.

Meetings

The committee shall meet a minimum of four times per annum.

Quorum

At least 50% of members shall be present to form a quorum with at least one member from each council present.

Decision making

The committee will endeavour to make all decisions by consensus, i.e. 100%. However, if consensus cannot be reached, matters will be decided by a simple majority of the votes cast by the members present. For the avoidance of doubt the Chair shall not have a casting vote at committee meetings.

Service of meetings

The Northland Regional Council will provide secretarial and administrative support to the committee.

Draft agendas are to be prepared by Northland Regional Council and approved by the Chair of the Committee prior to the committee meeting.

Northland Inc Limited can request the committee hold a confidential committee meeting for discussion about commercially sensitive matters, subject to this request meeting the requirements of section 7(2) of the Local Government Official Information and Meetings Act. Any report submitted by Northland Inc needs to be accompanied by council management advice to the committee.

Remuneration

Remuneration and / or reimbursement for costs incurred by committee members is the responsibility of each council.

Amendments

Any amendment to the Terms of Reference or other arrangements of the committee shall be subject to approval by all member councils.

Should Kaipara District Council, Far North District Council, Northland Regional Council or Whangarei District Council cease to be a shareholder of Northland Inc Limited (a **departing Council**):

1. The number of members that the committee is to have (as referred to in paragraph 2 of the section entitled "Membership" above) shall reduce by two for each departing Council.
2. Any elected member(s) appointed by the departing Council to the committee shall automatically cease to be a member(s) of the committee.
3. The right of the departing Council to appoint members to the committee (as referred to in paragraph 2 of the section entitled "Membership" above) shall automatically cease.
4. All references to the departing Council in these Terms of Reference shall be deemed deleted.

These Terms of Reference replace the prior Terms of Reference approved by Kaipara District Council, Far North District Council, and Northland Regional Council for the committee in June 2021.

Policy on the appointment of directors to Northland Inc Limited

Section 57(1) of the Local Government Act (LGA) 2002 (“the Act”) requires local authorities to adopt a policy on the appointment of directors to their council organisations. As at 1 July 2021, Northland Inc Limited (Northland Inc) is a council-controlled organisation jointly and equally owned by Northland Regional Council, Far North District Council and Kaipara District Council. This document sets out a consistent policy for the appointment of directors to Northland Inc for all three local authorities.

Definitions

“Council organisations” include council-controlled organisations and council-controlled trading organisations. According to the Act, a council-controlled organisation is an organisation in which the council, either on its own or when combined with other local authorities, controls, directly or indirectly, 50 percent or more of the votes or has the right, directly or indirectly, to appoint 50 percent or more of the directors, trustees or managers.

“Joint Committee” means the Joint Regional Economic Development Committee.

Other relevant legislation/regulation

This policy seeks to give effect to the requirements under the Shareholders’ Agreement for Northland Inc Limited and the Constitution of Northland Inc Limited. The Shareholders’ Agreement, Constitution, and legislation take precedence over this policy, but internal policies of Northland Inc do not.

Key principles of this policy

1. Ensure that the Joint Committee appointment process selects the best person for the role having regard to the needs of Northland Inc and the mix of skills on the board.
2. All appointments will be made through an objective, transparent and accountable process.
3. All appointments will be made on the basis of merit.
4. All directors will be appointed on the basis of the contribution they can make to Northland Inc, not on the basis of representation.
5. That all parties share a clear and agreed approach to director appointments prior to the process commencing.

Appointment process

Vacancies will be advertised unless good reason exists not to. The power to decide not to advertise a vacancy is to reside with Joint Committee. In making a decision not to advertise, the Joint Committee will consider:

- The costs of any advertisement and selection process;
- The already known availability of qualified candidates;
- The urgency of the appointment, e.g. Northland Inc is without a quorum cannot hold a board meeting;
- The degree of potential interest, including public interest, in the vacancy; and
- Whether there is a high prospect that an incumbent will be reappointed.

An ad hoc committee will be established to consider applications and / or nominations, conduct interviews and make a recommendation on preferred candidate(s) to the Joint Committee. The ad hoc committee shall normally comprise members of the Joint Committee. The ad hoc committee may also include key stakeholders, one or more directors of Northland Inc, or any person who has particular knowledge or skills that would be beneficial in the selection process.

Ad hoc committee members and candidates are required to declare any potential conflicts of interest.

General core competencies

A matrix will be developed to outline the skills and experience required of board members. All board members are expected to meet core competencies as well as relevant industry or other technical / specialist skills required.

Person specifications

Nominees for specific vacancies shall be assessed and ranked for their particular skills, knowledge and experience using the matrix.

Diversity

Diversity encompasses gender, ethnicity, disability, sexual orientation, family responsibilities, education and cultural background. In making its selection, the Joint Committee shall actively support diversity and inclusion with a view to the board reflecting Northland demographics, and to ensure governance experience is gained by Northlanders.

The Joint Committee believes that supporting diversity and inclusion when making board appointments will enhance the overall strength and capability of the governance function. In practice, this means that the appointment process will actively seek out people with a variety of background and abilities.

Appointment restrictions

Councillors and council staff should not be appointed as directors, unless good reason exists for an exception.

Staff of Northland Inc should not be appointed to its board. In the event the board decides one of its members should fill a vacancy in Northland Inc, the board member must first resign from their position on the board.

Any board member applying for employment with the shareholder councils shall offer to resign from the board immediately following an acceptance of appointment.

Any board member who is a candidate in a local body election (or a general election or placed on any political party's list) must offer to stand down from nomination day until the election results are notified.

Term of appointment

Appointments shall be for a maximum three-year term, subject to any review the Joint Committee considers necessary.

Directors should have no expectation of reappointment at the end of their term of appointment.

Reappointment may not occur for reasons unrelated to the performance of the board member, such as other changes to the composition of the board or changes to the direction of Northland Inc or the environment in which it operates.

The maximum number of consecutive terms for any director is three, but with reappointments exceeding six continuous years being considered on a case-by-case basis.

The Joint Committee shall generally review the performance of Northland Inc and its board after the local body election.

Where reappointment of an incumbent is proposed, the Joint Committee may decide that advertising the vacancy is inappropriate. Consideration will be given as to whether the reappointment will be consistent with the broader policies in this section, and whether the reappointment of the incumbent:

- Will match the projected activities and governance requirements of Northland Inc;
- Is appropriate having regard to the mix of skills now on the board; and
- Will further the diversity policy.

Remuneration of directors

Remuneration for directors of Northland Inc will be determined on a case-by-case basis taking into account:

- Each specific role;
- Any existing legal or constitutional requirements;
- The form and purpose of Northland Inc; and
- Any previous level of fees paid by the shareholder.

Directors are not to undertake consulting work for Northland Inc under any circumstances.

Removal of directors

Directors may be removed from office in accordance with the constitution of the company and the general law; particularly section 156 of the Companies Act 1993 which provides for removal of a directors by ordinary resolution of the shareholders.

7.1 Administrative Matter – Correction to Council Minutes 29 May 2024

Meeting: Whangarei District Council
Date of meeting: 25 July 2024
Reporting officer: C Brindle (Senior Democracy Officer)

1 Purpose / Te Kaupapa

To correct the Minutes of the Extra ordinary Whangarei District Council meeting held 29 May 2024.

2 Recommendations / Whakataunga

That the Council:

1. Notes the correction to the Minutes of the Extra ordinary Whangarei District Council meeting 29 May 2024.
2. Notes the minuted decision/vote on Aquatic Centre will be amended as follows:
*'On the ~~motion~~ **amendment** being put His Worship called for a division.'*
*'The ~~motion~~ **amendment** was **Carried (10 to 3)**, and **subsequently Carried**, as the **substantive motion**.'*

3 Background / Horopaki

The Minutes of the Extra ordinary Whangarei District Council meeting 29 May 2024 were confirmed and adopted on the 27 June 2024.

Subsequent to the adoption the minuted decision for the Aquatic Centre repairs was found to have been incorrectly recorded.

The minuted vote (division) recorded the motion as Carried. The amendment should have been recorded as Carried, and Carried as the substantive motion.

An amendment to the minutes is necessary to correct this error and ensure that the minutes reflect the decision of Council. All other minutes from the 29 May meeting are correct as confirmed by Council on 27 June.

4 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda are administrative and do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website.

5 Attachment / Ngā Tāpiritanga

Extract from Extra ordinary Whangarei District Council minutes 29 May 2024

Extract Extra ordinary Whangarei District Council minutes 29 May 2024:

Aquatic Centre Repairs

Moved By Cr Patrick Holmes

Seconded By Cr Carol Peters

That Council:

1. Approves a capital grant of \$2.2m (funded by debt) in year 1 of the Long Term Plan to Sport Northland for critical plant repairs and replacements.
2. Allocates an additional \$650,000 capital grant (funded by debt) in year 2 of the Long Term Plan to address the most urgent non critical renewals.
3. Allocates \$20,000 operating expenses in year one for a business case to evaluate the long term investment path for the Aquatic Centre.
4. Directs staff to commence planning for future aquatic facilities that is aligned to the planning of a Sports/Recreation Hub.
5. Notes that indications are that Council may need to bring the Aquatic Centre 'in house' and that this option may trigger a future consultation process.
6. Notes that \$1.6m operating expenses funding may be required for remaining renewal items over year 3-10 of the Long Term Plan but that this requirement will be considered in more depth for the next Long Term Plan once the business case has been completed.

Amendment

Moved By Cr Phil Halse

Seconded By Cr Simon Reid

That Council:

1. Approves a capital grant of \$2.2m (funded by debt) in year 1 of the Long Term Plan to Sport Northland for critical plant repairs and replacements.
2. Allocates an additional \$650,000 capital grant (funded by debt) in year 2 of the Long Term Plan to address the most urgent non critical renewals.
3. Allocates \$20,000 operating expenses in year one for a business case to evaluate the long term investment path for the Aquatic Centre.
4. Notes that \$1.6m operating expenses funding may be required for remaining renewal items over year 3-10 of the Long Term Plan but that this requirement will be considered in more depth for the next Long Term Plan once the business case has been completed.
5. Request Sport Northland and/or their management company review the admission price to help cover costs.

On the **motion** amendment being put His Worship called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney	X		
Cr Nicholas Connop		X	
Cr Ken Couper	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	10	3	

**The motion-amendment was Carried (10 to 3)
and subsequently Carried
As the substantive Motion**

RESOLUTION TO EXCLUDE THE PUBLIC

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 27 June 2024	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Confidential Minutes Whangarei District Council 3 July 2024		
1.3	Springs Flat Roundabout Procurement Plan		
1.4	Extension Wastewater and Stormwater Maintenance Contract		
1.5	Airport Noise Committee Community Representative		
1.6	NECT Reappointments & Resignations		
1.7	Old Municipal Building Future Use		
1.8	Saorsa Retirement Village Trust – Capital Grant Request		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	For the reasons as stated in the open minutes	
1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.5	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)
1.6	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)
1.7	To enable Council to carry on without prejudice or disadvantage commercial activities	Section 7(2)(h)

	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	
1.8	To protect information where the making available of the information would be likely unreasonably to prejudice the commercial position of the person who supplied it or the subject of the information.	Section 7(2)(b)(ii)

Resolution to allow members of the public to remain

If the council/committee wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

Move/Second

"That _____ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item _____.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because _____.

Note: Every resolution to exclude the public shall be put at a time when the meeting is open to the public.